



Final Report



UNFOLDING THE TRUTH:

A STRUCTURAL DIAGNOSIS OF ENFORCED
DISAPPEARANCE IN BANGLADESH

Volume One

THE COMMISSION OF INQUIRY ON
ENFORCED DISAPPEARANCES

4 January 2026, Dhaka, Bangladesh

Justice Moyeenul Islam Chowdhury
President

Justice Md. Farid Ahmed Shibli
Member

Md. Nur Khan
Member

Dr. Nabila Idris
Member

Md. Sazzad Hussain
Member

**THE COMMISSION OF INQUIRY ON
ENFORCED DISAPPEARANCES**

96, Gulshan Avenue
Dhaka 1212, Bangladesh

FOR THE DISAPPEARED.
FOR THOSE WHO DID NOT STOP SEARCHING.
FOR EVERYONE WHO, WHEN FEAR ARRIVED,
STOOD THEIR GROUND.

কারার ঐ লৌহকপাট,
ভেঙ্গে ফেল, কর রে লোপাট,
রক্ত-জমাট
শিকল-পূজার পাষণ-বেদী।
ওরে ও তরুণ ঈশান!
বাজা তোর প্রলয়-বিষাণ!
ধ্বংস-নিশান
উডুক প্রাচীর-প্রাচীর ভেদি।

– কাজী নজরুল ইসলাম

Table of Contents

LIST OF ACRONYMS.....	6
LIST OF TABLES.....	8
LIST OF FIGURES.....	9
PREFACE: THE MANDATE AND THE MOMENT.....	11
MANDATE.....	11
WORK UNDERTAKEN	12
THE END OF SILENCE	13
1. INTRODUCTION.....	15
1.1 THE RECURRING SPECTRE OF ENFORCED DISAPPEARANCE	16
1.2 THE FIG LEAF OF COUNTERTERRORISM	17
1.3 THE CONCEPTUAL FRAMEWORK.....	20
1.4 THE FUTURE	21
2. METHODOLOGY.....	22
2.1 DOCUMENTATION	22
2.2 CHALLENGES	24
2.2.1 <i>Intimidation</i>	24
2.2.2 <i>Procedural obstruction</i>	25
2.2.3 <i>Missing records</i>	26
2.2.4 <i>Climate of fear</i>	26
2.2.5 <i>Evidence destruction</i>	27
3. THE LEGAL FRAMEWORK.....	35
3.1 RIGHTS VIOLATIONS.....	36
3.2 LEGAL FRAMEWORK	36
3.3 COMMAND AND SUPERIOR RESPONSIBILITY	36
3.4 THE ARMY ACT, 1952 VS. THE INTERNATIONAL CRIMES (TRIBUNALS) ACT, 1973.....	38
3.5 CONTINUING CRIME	38
3.6 ESCAPING ACCOUNTABILITY BY FLEEING ABROAD	39
3.7 STRATEGY.....	40
3.7.1 <i>Prioritising swiftly solvable cases to prevent flight</i>	40
3.7.2 <i>Shifting the balance of fear</i>	40
3.7.3 <i>Focusing on detention site identification</i>	41
3.7.4 <i>Using continuing crime and indirect legal routes</i>	41
3.7.5 <i>Applying the strategy to the case of Barrister Arman</i>	42
4. SECURITY FORCES AND THE ARCHITECTURE OF SECRET DETENTION.....	44
4.1 POLICE	44
4.2 RAPID ACTION BATTALION.....	47
4.3 DETECTIVE BRANCH	51
4.4 COUNTER TERRORISM AND TRANSNATIONAL CRIME	53
4.5 DIRECTORATE GENERAL OF FORCES INTELLIGENCE	55
4.6 NATIONAL SECURITY INTELLIGENCE	59
4.7 BORDER GUARD BANGLADESH.....	60
5. A BRIEF OVERVIEW OF NUMBERS.....	62
5.1 THE BREAKDOWN OF COMPLAINTS	62
5.2 ESTIMATES OF ENFORCED DISAPPEARANCES BETWEEN 2009-2024	63
5.3 NOT ENFORCED DISAPPEARANCE	65
5.4 POLITICAL IDENTITY AND PATTERNS OF DISAPPEARANCE	66
5.5 TRENDS IN ENFORCED DISAPPEARANCES OVER TIME	68

5.6	FORCES INVOLVED IN ABDUCTIONS	72
5.7	A SYSTEM THAT COULD NOT EXIST BY ACCIDENT	72
6.	THE ANATOMY OF ENFORCED DISAPPEARANCE	74
6.1	TARGET SELECTION	75
6.2	SURVEILLANCE	76
6.3	ABDUCTION	77
6.4	DETENTION	78
6.5	TORTURE.....	79
6.5.1	<i>Generalised discomfort</i>	82
6.5.2	<i>Beatings</i>	83
6.5.3	<i>Electric shock</i>	87
6.5.4	<i>Waterboarding</i>	90
6.5.5	<i>Rotating devices</i>	91
6.5.6	<i>Sexualised torture</i>	93
6.6	THE OUTCOMES OF ENFORCED DISAPPEARANCE	95
6.6.1	<i>Released without charge</i>	95
6.6.2	<i>Executions</i>	97
7.	EMPIRICAL FOUNDATIONS: PATTERNS IN THE DATA	100
7.1	THE DOCUMENTED SAMPLE	100
7.1.1	<i>Contemporaneous evidence at the point of abduction</i>	101
7.1.2	<i>Resurfaced through the criminal justice system</i>	102
7.1.3	<i>Survivors testify about captivity conditions</i>	103
7.1.4	<i>The logic of the sample</i>	104
7.1.5	<i>The central assertion</i>	104
7.2	DIFFERENCES IN THE SAMPLE	105
7.2.1	<i>Spread across time</i>	105
7.2.2	<i>Spread across space</i>	106
7.2.3	<i>Spread across age</i>	106
7.2.4	<i>Spread across professions</i>	107
7.2.5	<i>Arbitrary custody gaps, i.e. periods of enforced disappearance</i>	108
7.3	SIMILARITIES IN THE SAMPLE	109
7.3.1	<i>Similarities in political identity</i>	109
7.3.2	<i>Similarities in the mode of disappearance</i>	113
7.3.3	<i>Similarities in religion and gender</i>	113
7.3.4	<i>Multi agency involvement</i>	114
7.3.5	<i>Similarities in media treatment</i>	115
8.	WEAPONISED CRIMINAL JUSTICE SYSTEM	117
8.1	COERCED STATEMENTS.....	117
8.1.1	<i>Threats and coercion as standard practice</i>	117
8.1.2	<i>Pre-coached statements and rehearsed formats</i>	118
8.1.3	<i>Absence of legal representation</i>	119
8.1.4	<i>Judicial misconduct, apathy or inaction</i>	119
8.2	CHARGED UNDER SIMILAR LAWS	120
8.3	SIMILARITIES IN THE CHARGES	121
8.3.1	<i>Framing dissent as a national security threat</i>	122
8.3.2	<i>Generic claims of secret intelligence</i>	123
8.3.3	<i>Pre-scripted escape attempts</i>	124
8.3.4	<i>Instant confessions of terrorism</i>	125
8.3.5	<i>Possession of ideologically curated literature</i>	126
8.3.6	<i>Detailed confessions during preliminary questioning</i>	127
8.4	IMPACT ON THE COURTS	129
8.4.1	<i>The political link</i>	131
8.4.2	<i>The performance indicator link</i>	131
8.5	IMPACT ON THE VICTIMS AND FAMILIES.....	132
8.6	A MESSAGE FOR THE JUDICIARY	136
9.	HOW DID WE ARRIVE HERE?	138

9.1	A CULTURE OF COERCION	138
9.1.1	<i>Dissent</i>	139
9.1.2	<i>Permissive institutional culture</i>	142
9.1.3	<i>What explains the persistent silence within the forces?</i>	143
9.1.4	<i>Consequences for junior officers and the future of the forces</i>	145
9.1.5	<i>Ongoing culture of impunity</i>	146
10.	THE FOREIGN NEXUS	151
10.1	RENDITIONS TO INDIA	152
10.2	CAPTIVE EXCHANGE WITH INDIA	155
10.3	SECURITY COOPERATION WITH WESTERN ACTORS	157
11.	CONSEQUENCES FOR THE VICTIMS, THE FAMILIES, AND THE INSTITUTIONS	160
11.1	IMPACT ON VICTIMS	161
11.2	WOMEN AND CHILD VICTIMS	163
11.3	IMPACT ON THE VICTIM FAMILIES	164
11.4	IMPACT ON THE CRIMINAL JUSTICE SYSTEM.....	165
11.5	SELF-DESTRUCTIVE IMPACT ON THE SECURITY FORCES	166
11.6	STRATEGIC RISKS FOR THE COUNTRY.....	167
12.	ASSESSMENT OF COMMON CLAIMS	169
12.1	CLAIM THAT RESPONSIBILITY LIES WITH EARLIER OFFICE-HOLDERS	169
12.2	CLAIM OF IGNORANCE BY SENIOR OFFICIALS	170
12.2.1	<i>The legal response</i>	170
12.2.2	<i>The testimonial response</i>	171
12.2.3	<i>The geographical response</i>	172
12.3	CLAIM OF NATIONAL SECURITY NECESSITY	174
12.4	CLAIMS OF ISOLATED MISCONDUCT OR INSTITUTIONAL INABILITY.....	176
12.5	CLAIM THAT ACCOUNTABILITY SHOULD BE LEFT TO MILITARY LAW AND INTERNAL MILITARY PROCESSES INSTEAD OF CIVILIAN COURTS.....	177
12.5.1	<i>Legal barrier</i>	178
12.5.2	<i>An internal military inquiry with inconsistent application</i>	178
12.5.3	<i>An internal military inquiry without findings</i>	179
12.6	CLAIM THAT THE COMMISSION TARGETED THE MILITARY	180
12.7	CLAIM THAT THE PRINCIPAL OFFENDERS ESCAPED WHILE INNOCENTS REMAIN TO FACE TRIAL	182
13.	ATTRIBUTION OF RESPONSIBILITY	184
13.1	HOW HAS RESPONSIBILITY BEEN ATTRIBUTED?	184
13.1.1	<i>Rapid Action Battalion</i>	185
13.1.2	<i>DGFI and NSI</i>	187
13.1.3	<i>Police</i>	188
13.1.4	<i>CTTC and DB</i>	188
13.2	CONCRETE ILLUSTRATIVE EXAMPLES	188
13.2.1	<i>Rendition to India example: Salauddin Ahmed</i>	188
13.2.2	<i>Survivor examples: Golam Mortuza Mihin and Abdullah Zayed Bin Sabit</i>	190
13.2.3	<i>Missing cases examples</i>	193
13.2.4	<i>Attributed responsibility from the 256 case cluster</i>	195
14.	MEASURES REQUIRED FOR ACCOUNTABILITY AND NON-REPETITION.....	197
	<i>Dismantle the institutional machinery of disappearance</i>	198
	<i>Reform counter-terrorism laws and practices</i>	199
	<i>Strengthen accountability for law enforcement and intelligence agencies</i>	200
	<i>Victim-centred justice, reparation, and rehabilitation</i>	202
15.	ENGLISH TRANSLATIONS	212

List of Acronyms

ADG	Additional Director General
AFMI	Armed Forces Medical Institute
ARTDOC	Army Training and Doctrine Command
ATA	Anti-Terrorism Act
BGB	Border Guard Bangladesh
BSF	Border Security Force of India
CDR	Call Detail Records
CID	Criminal Investigation Department
CIA	Central Intelligence Agency (USA)
CPC	Crime Prevention Company
CrPC	Code of Criminal Procedure
CSA	Cyber Security Act
CTIB	Counter Terrorism Intelligence Bureau
CTTC	Counter Terrorism and Transnational Crime
DAD	Deputy Assistant Director
DB	Detective Branch
DG	Director General
DGFI	Directorate General of Forces Intelligence
DIG	Deputy Inspector General
DSA	Digital Security Act
FIR	First Information Report
GD	General Diary
ICCPR	International Covenant on Civil and Political Rights
ICPPED	International Convention for the Protection of All Persons from Enforced Disappearance
ICT	International Crimes (Tribunals) Act
ICT Act	Information and Communication Technology Act
IGP	Inspector General of Police
IMEI	International Mobile Equipment Identity
IMSI	International Mobile Subscriber Identity
JIC	Joint Interrogation Centre

LIC	Lawful Interception Centre
LPR	Leave Preparatory to Retirement
NMC	National Monitoring Centre
NTMC	National Telecommunications Monitoring Centre
NSI	National Security Intelligence
OC	Officer-in-Charge
OPCAT	Optional Protocol to the Convention Against Torture
PTSD	Post-Traumatic Stress Disorder
RAB	Rapid Action Battalion
SB	Special Branch
SPA	Special Powers Act
TFI	Task Force for Interrogation
UN	United Nations
UNHRC	United Nations Human Rights Council
UNRCO	United Nations Resident Coordinator's Office
UPR	Universal Periodic Review
WGEID	Working Group on Enforced or Involuntary Disappearance

List of Tables

1 Table: Indicators used in this report	20
2 Table: Framing dissent as a national security threat using ICT Act 2006	122
3 Table: Framing dissent as a national security threat using DSA 2018.....	123
4 Table: Generic claims of receiving secret intelligence	124
5 Table: Pre-scripted escape attempts	125
6 Table: Instant confessions of terrorism	125
7 Table: Ideologically curated literature	127
8 Table: Confessions during preliminary questioning	128
9 Table: Location of captives was not hidden from superiors	174
10 Table: Prima facie attribution list, based on only the 256-case cluster.....	204

List of Figures

1 Fig: Captives faced a variety of torture at secret detention centers (illustration based on witness and survivor accounts).....	18
2 Fig: The destruction of DGFI’s JIC began almost immediately after 5 August 2024	28
3 Fig: Ground floor map of TFI centre.....	29
4 Fig: Diagram sent to an ICT prosecutor on 22 Jan 2025.....	30
5 Fig: First floor map of TFI centre	31
6 Fig: TFI cells were destroyed following 5 August 2024; the opening to the right leads to Barrister Arman’s cell	32
7 Fig: Sketch of RAB Intelligence’s now-destroyed Mirpur safe house based on the account of an officer who had deposited captives there	33
8 Fig: Sketch of RAB Intelligence’s then Uttara safe house based on the account of an officer who had deposited captives there	34
9 Fig: Detention site maintained by the LIC team at the Police Headquarters (ground floor), illustrated from victim testimony and verified during the Commission’s visit in the presence of the current IGP	45
10 Fig: Sketch of RAB 10 Dholpur cells drawn by a 2017 victim	46
11 Fig: Sketch of RAB 1 ground floor cells.....	47
12 Fig: A RAB 1 cell deceptively hidden behind a door labelled “ration store” and clearly freshly painted.....	48
13 Fig: Cloth partitions would be used to form temporary cells for captives at the TFI centre	49
14 Fig: An intact RAB 11 cell.....	50
15 Fig: A RAB 7 cell, built some time in 2017 by subdividing larger rooms	51
16 Fig: In Minto Road, Dhaka, DB kept its detainees on the ground floor	52
17 Fig: A CTTC ground floor cell.....	53
18 Fig: A CTTC seventh floor cell.....	54
19 Fig: Map of JIC, ground floor interior	55
20 Fig: Corridor of cells with exhaust fans matching witness descriptions.....	56
21 Fig: JIC cells with characteristic rough walls	57
22 Fig: Toilet.....	58
23 Fig: JIC cells with characteristic high ceilings.....	58
24 Fig: The rotating chair torture device found at NSI	60
25 Fig: Distribution by political identity (n = 948).....	66
26 Fig: Political identity of the missing (n=157)	67
27 Fig: Number of enforced disappearances per year (n=1564)	68
28 Fig: Year wise data from missing cases (n=286)	69
29 Fig: Code 1904 was able to provide CCTV footage; the police officer identified in the footage, BP 7003027838 ASP Mohiuddin Farooqi, was at that time deputed to RAB and is currently in custody.....	78
30 Fig: This room in RAB 11 had previously been subdivided into three detention cells. Prior to our inspection, the partition walls and cell doors were removed, and the walls and ceiling freshly painted to obscure the evidence. However, the difference between the old and new paint itself proved indicative.	79
31 Fig: A jom tupi found at DB	80
32 Fig: CCTV cameras remained trained on detainees even when they used the toilet (illustration based on survivor accounts).....	82

33 Fig: The structures maximised discomfort for captives (illustration based on survivor accounts).....	83
34 Fig: This form of torture was more common amongst police personnel than military (illustration based on survivor accounts).....	84
35 Fig: Code BCG was beaten at a stretch for nearly 24 hours at CTTC, with his captors taking turns in four-hour shifts; he had permanent injury marks across his body. The fact of his beating was confirmed by a fellow detainee who witnessed his distress.....	85
36 Fig: Across the country, throughout the entire period, victims describe regular beatings (illustration based on witness and survivor accounts).....	86
37 Fig: Inserting pins underneath fingernails was a common torture tactic (illustration based on survivor accounts)	87
38 Fig: Electrocution was a very common form of torture (illustration based on witness and survivor accounts)	88
39 Fig: Captives endured brutal torture, including forcible teeth extraction (illustration based on survivor accounts)	89
40 Fig: Victims frequently lost consciousness during waterboarding (illustration based on survivor accounts)	90
41 Fig: Many specialised interrogation rooms had rotating torture chairs (illustration based on witness and survivor accounts).....	91
42 Fig: This form of torture was called ‘bash dola’ (illustration based on survivor accounts)	92
43 Fig: The aftermath of enforced disappearances	95
44 Fig: Scratched tallies, usually to keep track of time, on the wall of a pre-2018 RAB 2 battalion cell	103
45 Fig: Distribution of abductions by year (n=256).....	105
46 Fig: Distributions of abduction by district (n=256)	106
47 Fig: Distribution of age of abduction grouped by range (n=256)	107
48 Fig: Distribution of victims’ profession (n=256)	108
49 Fig: Duration of disappearance (n=256)	109
50 Fig: Disclosed political identity (n=96)	110
51 Fig: Acts under which cases have been filed against individuals in the sample	121
52 Fig: Routine narratives seen in fabricated charges.....	122
53 Fig: Analysis of disposals (2017-2024)	129
54 Fig: Evolution of cases under trial (2017-2024)	130
55 Fig: Case inflows and 5-year lagged outflows	131
56 Fig: Amount spent per victim, excluding extreme outliers.....	133
57 Fig: Nails were frequently uprooted as a form of torture (illustration based on witness and survivor accounts)	135
58 Fig: Train lines were used as body disposal sites (illustration based on witness accounts)	141
59 Fig: Captives were thrown in front of vehicles to be killed (illustration based on witness and survivor accounts).....	143
60 Fig 8C: A three-tiered pyramidal system	148
61 Fig: Captives were executed in isolated locations away from public view (illustration based on witness accounts).....	149
62 Fig: Victims have been left with enduring trauma from the torture (illustration based on witness and survivor accounts).....	160
63 Fig: RAB organogram, supplied by RAB HQ	186
64 Fig: Female captives have complained of not being able to cover themselves with orna and being harassed by male law enforcers (illustration based on survivor accounts)	198

Preface: The Mandate and The Moment

Created in the aftermath of 5 August 2024 and the fall of the Awami League regime, the Commission presents this report as its formal account of what it has been able to document, verify, and analyse concerning enforced disappearances in Bangladesh.

It is written at a moment of rare possibility, when a democratic rupture has opened a narrow and fragile window for accountability. Evidence is degrading. Witnesses remain fearful. Suspects may still evade lawful process. Throughout its work, the Commission has tried to hold two difficult duties together: to tell the truth in a way that can withstand scrutiny and to frame recommendations that can be implemented before impunity becomes permanent.

The central organising claim of this report is that what occurred was not a collection of isolated deviations. It was the functioning of a system. Our responsibility has been to make that system legible while avoiding the re-victimisation of those who endured it.

Mandate

The Commission of Inquiry on Enforced Disappearance was constituted under section 3 of the Commissions of Inquiry Act, 1956. Under its Terms of Reference, the Commission was authorised to search for, identify, and determine the circumstances of enforced disappearances committed between 6 January 2009 and 5 August 2024, including disappearances carried out with the support, assistance, consent, or acquiescence of State agencies.

It was empowered to collect information from any person or institution, inform relatives where disappeared persons were found, submit reports to relevant authorities, identify individuals and institutions involved, recommend appropriate legal measures, review investigations conducted by other bodies, recommend legislative reforms, order police investigations under section 10A, obtain documents under section 5, and undertake any other work necessary to fulfil these purposes.

Pursuant to its mandate, the Commission was authorised to visit any place in Bangladesh, to summon and examine any person whose testimony was relevant, and to submit its final report in accordance with law.

Work undertaken

Acting under this mandate, the Commission carried out a nationwide programme of inquiry whose purpose was to search for victims, identify detention sites, and determine responsibility. The search for victims involved visits, inspections, and cross-matching of information and documents from a range of agencies throughout the country.

The Commission inspected both recognised and undisclosed detention facilities. These included the Joint Interrogation Cell (JIC) and the Taskforce for Interrogation Centre (TFIC), operated by DGFI and RAB, as well as detention centres at RAB Headquarters, RAB Battalions, Police Headquarters, NSI, DB, CTTC, Police Lines, and other law-enforcement facilities identified by survivors.

To establish the whereabouts of missing persons, the Commission interviewed serving and former officers of law enforcement and intelligence agencies who exercised authority over these facilities. Suspected officers, members of disciplined forces, and private witnesses were summoned and questioned.

In total, 222 individuals appeared before the Commission. The breakdown is: Army 100, Police 98, Civilian 10, Air Force 5, BGB 5, Navy 3, Coast Guard 1. Beyond these examinations, the Commission interviewed 765 victims of enforced disappearance and members of affected families, often repeatedly.

The Commission also examined cases involving cross-border rendition to India. Through the Ministry of Foreign Affairs, it requested information from Indian authorities, who provided lists of 1,052 and later 3,285 Bangladeshi prisoners in Indian jails. Comparison with the unresolved disappearance cases produced no matches. The Commission also reviewed information from the police and the BGB relating to individuals pushed into Bangladesh by the Indian Border Security Force at different border points.

Under section 10A of the Commissions of Inquiry Act, 1956 (SRO No. 360-Law/2024), details of more than 200 persons were forwarded to the Inspector General of Police for investigation through the relevant districts and police stations. Most of these cases have now been registered as FIRs. Progress reports continue to be submitted, although no tangible outcomes have yet been achieved.

To clarify the fate of missing victims, the Commission recommends government-led or collaborative efforts to identify and excavate suspected mass graves, recover and catalogue human remains, and develop a DNA database capable of matching profiles with samples from relatives. The Commission itself initiated this work by overseeing an exhumation in Barisal and arranging DNA analysis of the recovered body. It has also opened discussions with Anjuman Mufidul Islam regarding the use of photographic records of unidentified bodies.

The Commission has submitted two interim reports (in December 2024 and June 2025) as well as this final report to the Government. These reports identify individuals, agencies, and institutions involved in enforced disappearance and recommend appropriate legal action.

In order to strengthen institutions and secure non-repetition, the Commission also helped draft the Enforced Disappearance Prevention and Redress Ordinance, 2025, and the National

Human Rights Commission Ordinance, 2025. Following consultations, both were promulgated.

Consultations formed a central part of the work. In collaboration with Maayer Daak, Odhikar, and HRSS, the Commission organised divisional consultations across the country to gather testimonies from victim-survivors and families and document cases for future investigation.

The Commission also organised four sensitisation workshops for judges and magistrates, with support from OHCHR Dhaka, held on 18 October, 25 October, 15 November, and 29 November 2025 at Hotel Amari, Gulshan, Dhaka, attended by more than 300 senior judicial officers.

Awareness-raising activities accompanied the work of inquiry. The Commission conducted press briefings, seminars, and training sessions for government officials, including at BPATC. Through the Office of the Chief Adviser, it released a one-hour documentary explaining the system of enforced disappearance in Bangladesh. The documentary can be viewed here: <https://www.youtube.com/watch?v=pFG8nwvZNpc>

Additionally, the Commission has engaged consistently with key international and domestic stakeholders, including Human Rights Watch, the British High Commission, the U.S. Embassy and other foreign missions, the Asian Federation Against Involuntary Disappearances, Robert F. Kennedy Human Rights, the UN Working Group on Enforced or Involuntary Disappearances, Forensic Anthropology Foundation of Guatemala, United for the Victims of Enforced Disappearances, and the International Federation for Human Rights.

Across these meetings, delegations expressed concern at the scale of enforced disappearances, commended the Commission's work, and underscored the urgency of thorough inquiry, prosecution of perpetrators, institutional reform, and sustained cooperation to ensure truth, justice, and protection for victims and their families. Additionally, we are deeply grateful for the vital support provided by the Office of the UN High Commissioner for Human Rights in Bangladesh.

Further details of the above are shared in Volume II of this report.

The end of silence

Much of this work was carried out in a transitional context where trust was limited and fear was widespread. Many detention facilities have been altered to conceal prior use. Records were missing or destroyed. Victims, witnesses, and even members of the Commission faced intimidation and threat. These realities shaped the strategy and pace of the inquiry and illustrate the urgency of preserving what evidence remains.

At its core, this report addresses the systematic use of enforced disappearance under the Awami League Government as an instrument of repression. It does not replace the role of courts; the Commission is neither an investigative nor a prosecuting agency. Rather, it seeks to provide a careful record and an evidentiary roadmap, identifying responsibility where the evidence permits and proposing measures to secure accountability, reparation, and guarantees of non-repetition.

The consequences of this work are already visible. Evidence gathered and preserved by the Commission has contributed to the initiation of historic proceedings before the International Crimes Tribunal, including cases that reach to the highest levels of political authority and implicate senior law enforcement officials in ways that have not previously occurred in Bangladesh's history. These developments underline both the gravity of the crimes and the significance of establishing a reliable public record.

The Commission offers this report in the hope that what was done in secrecy will not be allowed to disappear into silence.

1. Introduction

আবার আয়া জিজ্ঞাসাবাদ করল। বলে যে, “তুমি কোন দল সমর্থন করো?”

বললাম যে, “স্যার, আমি কোন দল করি না। আমার ব্যক্তিগতভাবে ভালো লাগে বিএনপি। কোন দল করি না, কিন্তু আমি একজন সমর্থক কর্মী।” তো বলে যে, “তুমি জামাতে ইসলাম করো।” বললাম যে, “স্যার, আমি জামাতে ইসলাম করি না।”

এরকম জিজ্ঞাসাবাদ করার অনেক টাইম, লং টাইম পরে বলে যে, “তুমি তাইলে জঙ্গি দল করো।”

“স্যার, না, আমি এগুলো কোন কিছুই জানি না। এগুলো করি না।”

– 30 year old carpenter forcibly disappeared by RAB in 2017 (Code ECA,¹ ¹)

Enforced disappearances are among the gravest violations of human rights, constituting crimes against humanity. When the State itself is complicit in such crimes, it not only erodes trust in public institutions but also entrenches a climate of fear. Families of the disappeared and human rights defenders are left to navigate immense obstacles in their pursuit of justice. Recognising the inadequacy of existing international frameworks, the United Nations adopted the International Convention for the Protection of All Persons from Enforced Disappearance on 20 December 2006, which came into force on 23 December 2010. This Convention provides a vital mechanism to hold perpetrators accountable and prevent these heinous crimes.

In Bangladesh, enforced disappearances under Sheikh Hasina’s regime became a weapon of political repression. The Commission has received over 1900 complaints of enforced disappearances carried out by the security forces during the past Awami League regime. We estimate the actual number may be two to three times higher. It persisted due to systemic failures, including a culture of impunity, dysfunctional institutions, and the absence of an independent justice system.

Political opponents, critics, and dissidents were targeted, with basic freedoms of expression, association, and assembly routinely violated. These actions silenced dissent, stifled opposition, and suppressed criticism of the Government, fostering fear and despair among victims and their families. This pattern of abuse coincided with the global War on Terror, during which sporadic suspensions of human rights were often justified under the guise of countering terrorism. Bangladesh adopted similar systems, exploiting counterterrorism rhetoric to legitimise political oppression. These practices not only deepened political repression but also institutionalised a broader framework of human rights violations.

This chapter situates enforced disappearance in Bangladesh within its historical, political, and global contexts. It first traces the recurrence of enforced disappearance from the Liberation

¹ 32 year old male; abducted by RAB 3 in 2017; disappeared for 78 days. English translations are in end notes.

War to its systematic resurgence under Sheikh Hasina's administration, identifying the political and institutional conditions that enabled its return. It then examines how counterterrorism frameworks were instrumentalised to normalise repression, detailing the legal, bureaucratic, and operational mechanisms through which disappearances were carried out and denied. Finally, the chapter introduces the conceptual framework and analytical indicators used in this report to identify patterns, attribute responsibility, and distinguish systemic design from isolated abuse, laying the groundwork for the empirical and legal analysis that follows.

1.1 The recurring spectre of enforced disappearance

Enforced disappearances have been a recurring and tragic chapter in Bangladesh's history, although fundamentally less widespread than we saw in Sheikh Hasina's regime. During the Liberation War of 1971, many individuals, including prominent intellectuals, were abducted and disappeared by the Pakistani Army and their local collaborators. While some victims' bodies were later found, many remain unaccounted for.

In the years following independence, enforced disappearances continued under various regimes. Between 1971 and 1976, for instance, left-wing freedom fighters and activists were targeted by successive Governments and security forces. Notable victims of enforced disappearances include acclaimed filmmaker Zahir Raihan, revolutionary political leader Siraj Shikdar, and Kalpana Chakma, a women's rights activist from the Chittagong Hill Tracts.

After a prolonged pause, enforced disappearances re-emerged as a systemic practice in 2009 under Sheikh Hasina's Administration. The question is: *why did this heinous crime resurface at that point in time?* The roots of its resurgence lie in the global narrative of the "War on Terror" and the domestic political realities of Bangladesh.

The establishment of the Rapid Action Battalion (RAB) in 2004 had already normalised widespread extrajudicial killings. Successive Governments embraced this narrative, at times leveraging global counterterrorism rhetoric to legitimise authoritarian practices. When the Awami League-led Grand Alliance assumed power in January 2009, it faced significant national and international criticisms for the prevalence of extrajudicial killings. This coincided with Bangladesh's participation in the United Nations Universal Periodic Review (UPR), a mechanism introduced in 2009 to assess the human rights records of UN Member States. International scrutiny over Bangladesh's human rights record exerted pressure on the Government to publicly adopt a "zero-tolerance" policy towards extrajudicial killings, a commitment reiterated by the then Foreign Minister during the UPR sessions in Geneva.

However, rather than genuinely addressing the issue, the Awami League Government shifted its strategy. Enforced disappearances became the regime's preferred method for silencing political opponents and dissenters while maintaining a facade of compliance with international norms. The visible reduction in extrajudicial killings therefore was short-lived, and state-sanctioned violence continued under new guises.

The use of enforced disappearances reached alarming levels during key political flashpoints, particularly in the run-up to the general elections in 2014, 2018, and 2024. These periods were marked by mass arbitrary detentions, violent clashes, and targeted abductions of opposition leaders and activists, primarily from the Bangladesh Nationalist Party (BNP) and Bangladesh

Jamaat-e-Islami. Thousands of individuals were forcibly disappeared during the time under reference, further entrenching the practice as a tool for political repression.

The Hasina Government's persistent denial of enforced disappearances reflects its calculated unwillingness to address this grave violation of human rights. Despite ratifying the Rome Statute of the International Criminal Court in 2010—which defines enforced disappearance as a crime against humanity—the Awami League Government consistently rejected allegations that it engaged in widespread practice of enforced disappearance during UPR cycles in 2009, 2013, 2018, and 2023. It dismissed recommendations from UN Member States to end enforced disappearances and refused to ratify the International Convention for the Protection of All Persons from Enforced Disappearance. The then Government consistently claimed in its responses that cases of missing persons were being falsely portrayed as enforced disappearances in politically motivated attempts to damage its reputation. However, the Commission's dossier of evidence decisively refutes the claims made by the Hasina regime. In fact, during a conversation with the Commission, the sister of a victim expressed gratitude for its efforts, stating, "Finally, someone believes us. The previous Government kept saying we were all lying."

The re-emergence of enforced disappearances in Bangladesh under Sheikh Hasina's administration was thus not incidental but deliberate. By weaponising counterterrorism rhetoric and exploiting the global War on Terror narrative, the regime institutionalised this practice as a means of maintaining political dominance. This strategy not only suppressed opposition but also perpetuated a culture of impunity, making enforced disappearances a defining feature of the state's repressive apparatus.

1.2 The fig leaf of counterterrorism

Authoritarian regimes are increasingly inclined to consolidate power not by dismantling democratic institutions outright, but by reconfiguring them through the language of security. Counterterrorism frameworks offer a particularly potent toolkit in this process. By recasting political dissent, activism, journalism, and opposition organizing as potential manifestations of terrorism or violent extremism, ruling elites gain access to exceptional legal instruments—detention without charge, expansive surveillance, and emergency powers—that are otherwise illegitimate in democratic settings.

This process, conceptualized as *securitisation*, allows governments to claim legitimacy while shrinking civic space and criminalizing dissent. The strategic ambiguity built into counterterror laws enables selective enforcement, turning institutions like the judiciary and law enforcement into instruments of regime protection. This is termed as "autocratic legalism" in comparative authoritarianism literature. In this way, counterterrorism becomes more than a policy area; it becomes a mechanism of authoritarian resilience, cloaking repression in the language of risk management and national security.

Additionally, counterterrorism facilitates the consolidation of autocratic rule not only through domestic institutional capture but also through its international legitimizing function. Global security cooperation frameworks and donor priorities often privilege stability and counter-extremism collaboration over democratic accountability. This creates what scholars have termed as "authoritarian internationalism", wherein regimes deliver intelligence or security cooperation in exchange for muted criticism of human rights violations. Thus, in effect,

counterterrorism offers authoritarian leaders a dual advantage: it neutralizes internal opposition through coercive legalism and garners external tolerance or even support from international partners.

In Sheikh Hasina's Bangladesh, the architecture of counterterrorism evolved into an infrastructure of control, transforming what were once temporary emergency measures into permanent instruments of repression. In the process, countless individuals—most innocent—were falsely branded as terrorists, subjected to arbitrary detention, brutal interrogation, and, in many cases, tortured or killed without due process. The indiscriminate targeting of innocents is not merely collateral damage but a deliberate strategy, carefully calibrated to create widespread fear and suppress collective resistance. This institutionalization of fear not only erodes the rule of law but also devastates the lives of those caught in its dragnet, turning counterterrorism from a protective measure into a machinery of state-sponsored violence.



1 Fig: Captives faced a variety of torture at secret detention centers (illustration based on witness and survivor accounts)

Bangladesh under the decade and a half of Awami League rule witnessed the systematic entrenchment of enforced disappearances, custodial torture, and extrajudicial killings – practices routinely justified under the banners of “counterterrorism” and “violent extremism prevention”. Initially framed as necessary security measures, these practices rapidly evolved into primary instruments of authoritarian control, emblematic of broader global patterns of democratic erosion and the instrumentalization of security frameworks for political ends. The security agencies most deeply involved—particularly the Rapid Action Battalion (RAB), Directorate General of Forces Intelligence (DGFI), Detective Branch (DB) and Counter Terrorism and Transnational Crimes (CTTC) unit of the police, originally working as elite units targeting militant threats—increasingly became notorious for assisting the repressive Awami League regime by operating an extrajudicial apparatus of abduction, torture, and intimidation that bypasses judicial accountability.

The Awami League's strategic utilisation of these forces was deliberate and methodical. Even international interventions, exemplified by targeted US sanctions on some senior RAB officials in December 2021, yielded only transient interruptions. These were quickly overshadowed by fresh surges of enforced disappearances, particularly heightened during

politically volatile periods, such as national elections and opposition mobilizations. This cyclical pattern underscores not merely enforcement deficiencies but a calculated strategy aimed at dual domestic and international audiences – a hallmark of authoritarian resilience globally.

Domestically, the regime weaponised counter-terrorism statutes and preventive detention laws, recasting legitimate political activities—such as student activism, investigative journalism, labour organizing, and opposition mobilization—as manifestations of extremism. This rhetorical reframing allowed the Awami League regime to criminalize dissent systematically while normalizing the pervasive presence and deployment of militarized units in civic life. Such a strategy transforms ordinary political discourse and activities into security threats warranting extraordinary measures.

Consequently, a chilling effect permeated the society: families hesitated to file habeas corpus petitions, covert threats muted witnesses, and journalists imposed self-censorship to evade allegations of supporting terrorism. Legal frameworks were further exploited through repeated amendments to the Anti-Terrorism Act and expansive digital security legislation, ambiguously defining “terrorist propaganda” to encompass innocuous digital communications, slogans, and political critiques.

Internationally, the regime adeptly positioned itself as an indispensable ally in the global fight against terrorism, reframing domestic suppression as a necessary bulwark against the diffusion of global terrorism. This narrative resonated with Western governments and international security donors inclined towards regional stability over confronting democratic regression. This tacit agreement resulted in an *authoritarian bargain*, where Bangladesh ostensibly delivered counter-extremism cooperation while international actors tolerated systemic human rights abuses and criminalization of political dissent.

At the heart of this bargain lay a sophisticated legal and bureaucratic machinery that cloaked repression in the language of legality. Charge sheets filed under the anti-terrorism law were often near-carbon copies, vague allegations of “planning sabotage”, standardized claims of confiscated books and pamphlets were used as routine invocations of national security to deny bail. The uniformity of these documents signals not investigative rigors, but state-orchestrated scripting designed to withstand minimal judicial scrutiny while generating maximum public spectacle. Far from isolated abuses, these are the signature mechanics of autocratic power consolidation.

We find that disappearances typically began with early-morning or late-night raids by plainclothes operatives in unmarked vehicles. Victims vanished for days or weeks, often resurfacing only after enduring prolonged incommunicado detention marked by severe physical abuses and torture, including electric shocks and waterboarding. Many never returned. Law enforcers routinely falsified the arrest date to obscure the period of incommunicado detention. These practices involved what is known as “grey zones”, deliberately engineered gaps facilitating coercive interrogations, forced confessions, and intimidation of families.

The media ecosystem reinforced this choreography. Even mainstream outlets often published front-page accusations labelling the disappeared as “Islamist radicals” or “terrorists”, well before any formal charge was filed or scrutinised – a practice of “narrative sequencing” critical to authoritarian informational control. These narratives both justified repression and inflicted

lasting reputational damage, even when courts later dismissed the charges. Journalists and civil society groups who questioned the official version faced reprisals under the then Digital Security Act and were harassed if their documentation challenged the state’s narrative.

What emerged was not an ad hoc abuse of power but a consolidated strategy of repression, deeply embedded in the authoritarian power consolidation by the then ruling Awami League regime. Drawing on testimonies from over 250 survivors and many more witnesses, police and court documents, and findings of domestic fact-finding missions, our analysis leverages a broad evidentiary base to trace recurring patterns: replication of charges across districts, multi-agency coordination in targeting dissidents, and clustering of disappearances around elections and mass protests.

These are not anomalies but features of an intentional system, where the boundary between national security and regime preservation had been deliberately obliterated. This report seeks to expose that system and provide a structural diagnosis rather than only anecdotal documentation.

Signature	Mechanism
Semantic duplication	Charge sheets recycle near-identical language, revealing centralized drafting templates.
Custody gaps	Police falsify arrest dates, creating “grey zones” of unacknowledged detention conducive to torture-based interrogation.
Multi-agency choreography	DGFI, RAB, and the police sequentially transfer detainees, diffusing accountability while amplifying coercive leverage.
Narrative sequencing	Media outlets pre-emptively label victims as “urban extremists”, shaping public opinion before bail hearings can expose loopholes in the garnered materials.
Temporal targeting	Abductions spike during election cycles and mass protests, signalling a deterrent logic calibrated to political opportunity structures.
Procedural spirals	People are charged with a package of cases, ensuring that release from one docket funnels detainees into another, thus extending legal harassment.

1 Table: Indicators used in this report

1.3 The conceptual framework

This report highlights several core signatures of authoritarian manipulation, including *semantic duplication*, evident in replicated charge sheets that reveal centrally issued templates; *custody gaps* that create deliberate delays and allow space for coercive interrogations; *multi-agency coordination*, especially in politically sensitive cases; *narrative sequencing*, whereby the media disseminate official accounts before any judicial review can take place; and so on and so forth.

To be clear, Bangladesh does face real militant threats, and effective counterterrorism remains a national security imperative. This is undeniable and needs to be taken seriously with culturally appropriate deradicalisation programs key to keeping the threats at bay.

However, legitimate responses must rest on transparent investigations, evidence-based prosecutions, and judicial safeguards. These principles are systematically undermined when counter-terror laws are deployed to suppress lawful dissent. In this environment, fabricated plots and real threats coexist, eroding public trust and weakening the long-term efficacy of genuine security operations.

1.4 The future

A narrow window for justice now opens. Historic trials of senior military and police officers, both serving and retired, have begun. Renewed international scrutiny and recent domestic court rulings favouring habeas corpus petitions create a fleeting but crucial opportunity.

Victims falsely accused under manufactured extremism charges require immediate judicial review, medical care, and reparations. At the same time, individuals credibly suspected of terrorism must be prosecuted transparently, with independently tested evidence and full legal safeguards.

These goals are not contradictory. A counterterrorism regime reliant on secret detentions and coerced confessions cannot protect citizens from real threats; it corrodes institutional legitimacy and fuels future cycles of violence.

Bangladesh now stands at a crossroads: it can either continue to trade fundamental rights for international reputation or begin the hard process of institutional reform that meaningful rule of law demands. This report is intended as both a mirror and a roadmap, reflecting the consequences of the current trajectory and offering a path forward that neither ignores real security concerns nor sacrifices democratic principles.

The report is structured in a sequence that moves from method to responsibility. It first sets out the Commission's methodology, evidentiary constraints, and investigative strategy, followed by an examination of the applicable legal framework, including continuing crime and command responsibility. It then analyses the role of security forces and the architecture of secret detention, before presenting empirical patterns and the operational anatomy of enforced disappearance. The later chapters examine the weaponisation of the criminal justice system, the structural and political conditions that enabled these practices, their consequences for victims and institutions, and competing claims and defences, before attributing responsibility and setting out conclusions, measures for accountability, and recommendation

2. Methodology

This report draws on qualitative and quantitative evidence from both primary and secondary sources. Primary information was obtained through complaints submitted by victims and families, in-depth interviews, field visits, and consultations with human rights defenders and other stakeholders. The Commission's method is deliberately triangulatory. Testimony is assessed alongside contemporaneous records, including General Diaries, legal cases, media reports, and CCTV footage, then evaluated for internal consistency across cases and for repeatable patterns in tactics, detention environments, and post-release criminal processing.

The inquiry relied on a multi-source, cross-verified investigative approach. Survivors of enforced disappearance, and where necessary their families, were interviewed in depth, as were officers and rank-and-file members of the security forces. A total of 222 individuals were summoned before the Commission. Of these, 100 were from the Army, 98 from the Police, 10 civilians, 5 from the Air Force, 5 from the BGB, 3 from the Navy, and 1 from the Coast Guard. The Commission also spoke with over 765 victims of enforced disappearance and their families, in many cases on multiple occasions. Interviews were often lengthy. Some lasted more than five hours, few were shorter than an hour, and several individuals were interviewed multiple times when clarification was needed.

The Commission reviewed thousands of legal documents, including charge sheets and confessional statements, and analysed institutional behaviour through internal records and materials obtained from a range of sources. Intelligence shared by various actors was assessed and corroborated across multiple channels. Field visits to key locations allowed the collection of physical evidence, such as photographs and location data, which was then cross-checked against written and oral accounts.

This layered methodology was designed to ensure both factual accuracy and analytical integrity. Even so, the scale of the work, together with the obstacles described in the pages that follow, made the task exceptionally demanding.

2.1 Documentation

We have adopted a multi-format documentation strategy to ensure the resilience, accessibility, and long-term integrity of the collated materials. Wherever appropriate, data were collected not only in writing but also through audio and video recordings, depending on the nature of the data and context of collection. Physical copies were generated and maintained for archival purposes; however, all such materials were systematically digitised to create mirrored

electronic records. From the outset, a guiding principle of our information management strategy was that, should any part of our physical infrastructure be compromised or destroyed, the evidentiary corpus could be reconstructed from digital sources alone.

To that end, all digitised data are securely hosted on commercial servers located outside Bangladesh. These primary repositories are supplemented by a structured system of iterative backups, enabling us to restore not just the most recent version of a file, but also earlier states, should corruption or tampering be detected. The geographic locations and access credentials of these backups are deliberately compartmentalised and kept strictly confidential to protect the data from both physical and cyber threats. Within the practical constraints of our resources, we have prioritised continuity, redundancy, and discretion at every stage of evidence preservation, to ensure that no single point of failure can compromise the integrity of the record.

One of the earliest operational challenges we faced was transcription. A core component of our work involves collecting long-form interviews, often running between 60 to 90 minutes or more, with both survivors and implicated individuals. It quickly became clear that the volume of material requiring transcription far exceeded our available human resources. While English language transcription tools are widely available, no reliable or accurate solution existed for Bangla. This limitation was compounded by additional challenges, including regional accents, overlapping dialogues, background noise, the need for inserting punctuation, and the separation of multiple speakers.

Outsourcing transcription to external vendors was not always a viable option, given the classified and highly sensitive nature of the materials. In response to this constraint, our in-house technical team took the initiative to develop a proprietary Bangla transcription tool. This was done without external prompting or prior instruction – a true testament to the zeal that has engulfed our small team in this extraordinary battle amongst unequals.

The software has since gone through multiple iterations and is now used routinely to generate relatively accurate transcriptions of recorded testimony. Once the initial transcription is produced, trained human operators carefully review the output, correct residual errors, and ensure fidelity to the original audio. As a result, transcription time has been reduced from an average of three working days to approximately three hours per interview. The tool has become indispensable to our workflow. Its development reflects the initiative, discretion, and technical ingenuity that have shaped our operational approach from the very inception.

In parallel with transcription innovations, we have also developed secure, in-house databases tailored to the specific needs of our inquiry. These databases have enabled us to systematically organise and categorise incoming information, including testimonies, case records, and metadata. As a result, we have been able to conduct preliminary forms of quantitative analysis on key patterns within the data. This capacity has proved essential in identifying trends, corroborating narratives, and generating data-driven insights to inform both our investigative and reporting strategies.

The work described above has been carried out by an exceptionally small team operating out of a small office, where the scale of the task has repeatedly outstripped the resources available to us. Entire corridors have been converted into makeshift workstations to accommodate the growing demands of documentation, analysis, and field coordination. The logistical and operational difficulties of managing a nationwide inquiry of this magnitude with such limited

infrastructure and manpower have been extraordinary by any measure. That this work has progressed as far as it has is a testament to the perseverance, ingenuity, and deep personal commitment of all involved.

At various points throughout this process, we have been fortunate to receive support from individuals and groups outside the Commission who have been very generous with their time and efforts. The illustrations featured in this report, for instance, were created entirely pro bono by a team that responded at short notice and with remarkable commitment. This spirit of solidarity and civic responsibility has guided many of those who have come forward to assist us in performing this monumental task.

We are especially grateful to the UN Office of High Commissioner for Human Rights for providing crucial staffing and equipment support, and to other friends who stepped in with additional resources when they were most needed. These acts of quiet generosity have had a lasting impact on our capacity to continue this work.

In the preparation of this report, there have been weeks when the team worked well into the night, often past midnight, driven not by obligation but by conviction. This sustained effort, frequently undertaken without complaint and sometimes even without access to basic comforts, like tea or coffee, speaks about their extraordinary dedication.

The work of the Commission has been profoundly meaningful. It has offered a glimpse of what is possible when even a small group of people come together in pursuit of justice, determined to confront a much greater wrong. At its heart, this effort has been guided by the sacrifices of victims and their families. To them, and the principles they represent, we remain unwaveringly committed, regardless of the challenges placed before us.

2.2 Challenges

The challenges faced by the Commission have been multifaceted and, at times, deeply obstructive. In the early days of our work, the Commission was not perceived as particularly threatening, and was therefore largely ignored. There was perhaps a prevailing notion in the security forces that we lacked the capacity or the mandate to deliver meaningful results. However, as time progressed and the integrity and determination of the Commission became more apparent, the atmosphere began to shift. Disquiet grew across various quarters, and resistance became more pronounced.

2.2.1 Intimidation

Both victims and Commission members have faced intimidation over the course of this work. Some Commission members have faced sustained intimidation, both direct and indirect. In several interviews, alleged perpetrators admitted monitoring Commission members' families.

Threats were delivered in person, by phone and online, accompanied by harassment, slander and organised disinformation. Commission members were regularly accused of being agents of foreign intelligence services (ISI, RAW, CIA) or of harbouring extremist political or religious views.

For instance, a report by *The Dissent* (28 October 2025), a Dhaka-based investigative outlet, found that a member of the Commission was a notable target of a coordinated Facebook campaign: at least ten pages ran negative ads about her, including at least ten misleading ads documented between 14-25 October 2025, falsely portraying the Commission's work as an attempt to pressure the army before elections, and even implying it could endanger Bangladesh's UN peacekeeping role.

These intimidation efforts, however, have not influenced the direction or pace of our work. We have treated such provocations with the disregard they deserve and continued our mandate with full commitment to victims.

Victims are also being intimidated. In one case, a victim approached the Commission seeking to withdraw his complaint. Since the Commission treats withdrawals with particular caution, the request was scrutinised closely. During that process it became clear that the complainant was acting under pressure: he had been approached by the alleged perpetrators and threatened to withdraw his case.

The Commission shared information about this pattern of threats with investigators at the ICT, but did so in an anonymised fashion. We did not identify the complainant or the perpetrators; rather, we conveyed that victims in comparable circumstances were facing such pressure. Despite these precautions, the information appears to have leaked from within their investigative chain. Within hours the perpetrators became aware that the complainant had disclosed the threats to us, and he was subsequently threatened again.

This episode significantly undermined the complainant's sense of safety. It also reinforced the Commission's concern about protecting identities and scrutinising any attempted withdrawal. It explains the great care taken throughout this report to mask personal details wherever appropriate and to limit the sharing of identifying information to situations of strict investigative necessity.

Even so, once our files are transferred to another authority after our closure, there can be no absolute certainty about how confidentiality will be maintained in a changing political environment. Should perpetrators regain influence, victims may face renewed intimidation or reprisals. For these reasons, the Commission regards confidentiality, and the climate of fear surrounding many complaints, as matters of grave and continuing concern.

2.2.2 Procedural obstruction

Beyond intimidation, the Commission has also faced persistent procedural obstruction. In one instance, a secret detention facility that we had visited and documented with photographic evidence was later denied in writing by the concerned agency. It was only after direct follow-up communication, and the presentation of incontrovertible evidence, that the agency retracted its position and acknowledged the existence of the site.

One of the most consistent procedural difficulties has been obtaining timely responses to official letters. Many institutions have shown clear reluctance to put sensitive information in writing. In some cases, it has taken weeks, even months, to receive answers to basic questions. For example, a letter sent in December 2024 did not receive a reply until nearly a month later, despite the fact that the requested information was already in the public domain.

Requests for personnel rosters, vehicle logs, deployment histories, or custodianship details, such as who was responsible for a particular facility or who served as its warden, have been met with prolonged silence, delay, or ambiguity. Multiple follow-ups, both written and in person, have often been required to extract even the most routine information. In end 2025, for instance, it took nearly two months of persistent follow-up and repeated negotiations before the Military Intelligence (led by Director BA 5274 Brigadier General Selim Azad) and the Army Security Unit (led by Commandant BA 5382 Brigadier General Shams Mohammad Mamun) reluctantly agreed to simply provide their charter of duties.

In some cases, senior officers, including at the director general level, have informed us that they were actively discouraged by other agencies from cooperating with the Commission – suggesting an alarmingly coordinated, though ultimately unsuccessful, effort to suppress institutional transparency.

2.2.3 Missing records

The passage of time has worked against us. Many of the cases under inquiry are more than a decade old. As a result, key official records, such as call detail records (CDR), are no longer available. Telecommunications companies typically retain such data for only one to two years.

In one case, we possessed a photograph of a uniformed RAB member from whose phone a victim who never returned made contact with his family several times from within an unknown detention centre (Code BCJ²). The photo had appeared on his then Viber profile. The family received ransom calls from the same number, and made payment to it.

Yet we have been unable to confirm the ownership of the number at that time, as the CDR data no longer exist, the number has since been reassigned, and the original registration data appear to be misleading. These are undoubtedly frustrating roadblocks to victim families but an unavoidable challenge of dealing with unresolved cases sometimes a decade or older.

In the wake of 5 August 2024 transition, a new challenge has emerged: several police stations have begun reporting that their archival records have been destroyed by fires. In some instances, we suspect that such claims may not be entirely truthful. Nevertheless, this has made it particularly difficult for the victims seeking documentation of earlier proceedings.

2.2.4 Climate of fear

Surviving victims face an entirely separate set of obstacles. If we bring them under the public gaze, for instance, during high-profile visits, such as those of the Chief Adviser to the secret detention centres in February 2025, we take care to ensure that they are prepared for the subsequent pressure they may face. And victims have indeed demonstrated resilience.

However, the sustained public attacks and online harassment from political actors, particularly affiliates of Awami League, have exacted a psychological toll on them. Even those victims who appeared ready to face scrutiny, later reported significant mental distress following such

² 27 year old male; abducted by RAB in 2015; still missing

targeted backlash. Conversely, when we do not bring some victims in the public eye, sometimes they feel as if they are being sidelined. The balance is a tricky one.

Fear remains pervasive, particularly among those who have not yet come forward. Tears are a frequent and expected part of our interviews. Victims often request that we turn off the audio recorder while they recount their ordeals, and at times their voices fall to a whisper – so low that we must strain to hear them. One survivor (Code BHHH³), who finally approached us in mid-2025, was asked why he had waited so long to establish contact. His answer was candid: he had not been certain whether the Commission itself was affiliated with RAW! This deep climate of mistrust and fear is one of the primary reasons, we believe, a significant number of cases remain unreported.

In one instance, the Commission members visited a remote village in Barishal to inquire into the provenance of some unidentified bodies buried there. Local accounts had initially suggested one or two possible cases of enforced disappearance in the locality. However, once the Commissioners arrived and engaged with the community, five to seven new cases were brought to our attention at the same village, most of which had not been reported to us previously. The presence of the Commission and the visible seriousness of its work gave the families the much-needed confidence to step forward.

However, this was just one village out of thousands across the country. Due to time and resource limitations, we have not been able to replicate such field visits on a wide scale. Still, experiences like this confirm our belief that many more victims remain uncounted, silenced by fear or isolation.

2.2.5 Evidence destruction

During Sheikh Hasina's reign, a culture of impunity became entrenched within the security forces. It was evident in our conversations with the officers of both civil and military forces that not only did most of them never expect to be ever held accountable for their crimes, they also did not necessarily view the crimes *as* crimes. Enforced disappearances of people accused of being terrorists, for instance, were regularly brushed aside as insignificant and not worthy of the Commission's attention. Similarly, custodial torture was nonchalantly described as a routine matter, indispensable to crime fighting.

This culture has undoubtedly had a significant impact on the nation, particularly on the victims of enforced disappearances and related crimes. However, it is important not to overlook the damage it has caused to the members of the security forces themselves. Crucially, in order to perpetuate and protect the culture of impunity, they appear to have acted against their own self-interest.

The post-August 5 partial structural alterations of the JIC at DGFI headquarters, including painting over the walls where prisoners testified that they had carved out their details, illustrates this dynamic. According to witness statements, the order for destruction was given by the outgoing DG, BA 3787 Major General Hamidul Haque, and carried out by

³ 44 year old male; abducted by DGFI and DB; disappeared for 130 days

While the then DG persuasively argued that he was not directly involved in crimes committed before his tenure, his immediate response to manipulate evidence underscores the coercive power of this culture of impunity. His actions, ostensibly to shield perpetrators of past crimes, went against his own self-interest and professional integrity.

This pattern of doctoring of evidence and non-cooperation was not isolated to DGFI only. Across various security forces, evidence of crimes spanning over 15 years has been systematically manipulated. It was done not only by those in power till 5 August 2024, some of whom likely sought to cover up their own crimes, but also by those who assumed leadership afterwards. It reveals the pervasive and coercive nature of the culture of impunity, which compels even those not originally directly involved in the commission of offences to protect and perpetuate it.



2 Fig: The destruction of DGFI's JIC began almost immediately after 5 August 2024

We have previously noted in our interim reports that the destruction of evidence that took place across various forces, including at DGFI's JIC, following 5 August 2024. As our work has progressed, we have uncovered further instances of evidence destruction. In this report, we present two such cases. The first concerns the facility known as the Task Force for Interrogation (TFI) cell, also referred to within RAB Intelligence Wing as the "hospital". The second facility, also operated by RAB Intelligence Wing, was the "clinic".

In the following sections, we will walk the reader through the painstaking process by which these discoveries were made, in order to demonstrate the scale of damage inflicted on the evidence and how it complicates our task by misleading inquiries, prolonging timelines, and erasing key traces of events.

[illegible]

3 Fig: Ground floor map of TFI centre

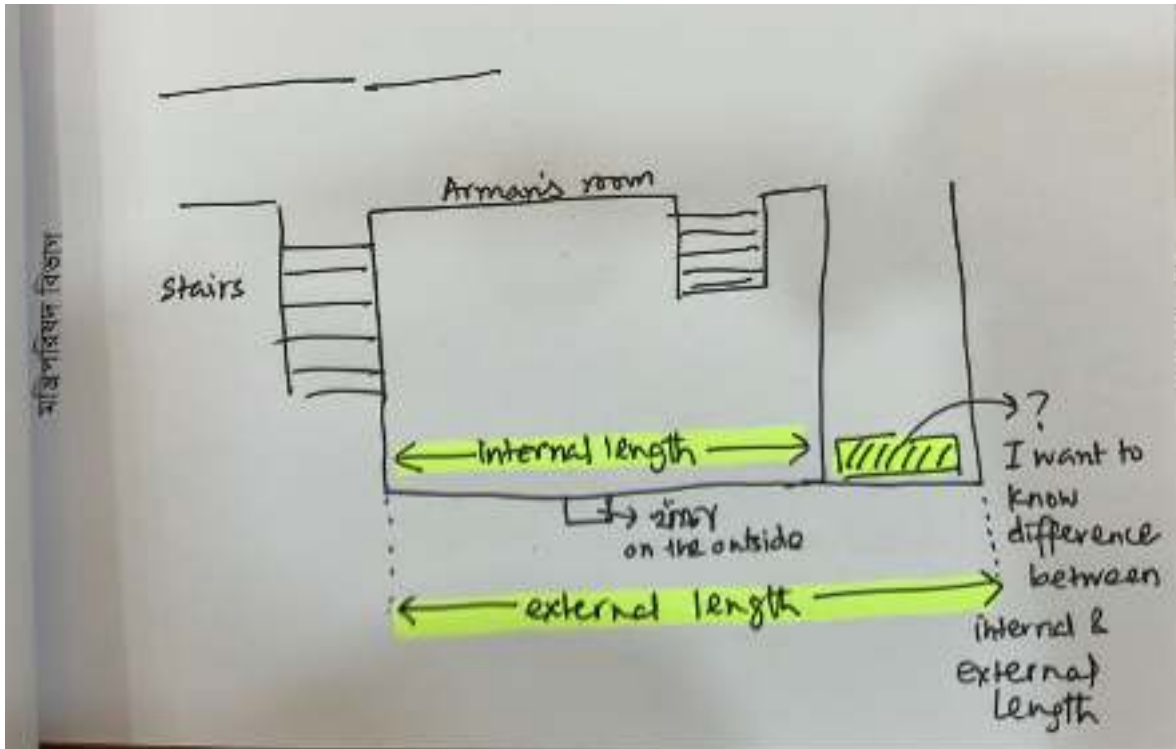
The hospital: Despite early reports that Barrister Mir Ahmad Bin Quasem Arman had been held at Aynaghar, the first indication that he had not been detained at DGFI’s JIC came from his own testimony. Over the course of our inquiry, we came to understand that each detention facility bore its own operational signature – a distinct pattern of details by which it could be identified. These included how guards behaved, bathroom schedules, the type of food served, ambient sounds, and other such sensory cues. In Barrister Arman’s account, several of these details did not align with what we knew of JIC, where Brigadier General Abdullahil Aman Azmi had been held.

This prompted us to conduct a prolonged interview with Barrister Arman, attempting to determine the actual location of his detention. Over time, specific features in his testimony began to suggest that he had in fact been held at the TFI centre, a facility located within RAB 1 compound but operated by RAB Headquarters. We first visited the TFI centre on 16 October 2024. At that time, officials informed us that the site had been abandoned for at least two years. Upon inspection, this appeared plausible: the facility was in disrepair, its infrastructure broken, and the entire area gave the appearance of long-term neglect.

The TFI site was divided into three distinct sections: an administrative area, a larger space used to hold captives, and a smaller zone comprising interrogation and torture rooms. Barrister Arman's description of his conditions closely matched the features of the torture section. It became clear that a small area within the torture wing had also been used to house long-term detainees, contrary to what we had previously understood.

Early in the inquiry, Barrister Arman mentioned that the floor beneath his feet had been tiled and cold – a tactile memory from the occasions he had been allowed to walk there. However, when we visited the site, the floor was a coarse, uneven slab of cement, clearly unfinished and

seemingly long abandoned. This discrepancy was striking and prompted further scrutiny. Upon closer inspection, we noticed square markings—grid-like impressions—on portions of the floor, which resembled the remnants of tiling. This led us to begin inquiring about the missing tiles during our interviews with officers who had served at the facility during July and August.



4 Fig: Diagram sent to an ICT prosecutor on 22 Jan 2025

Around this time, we asked Barrister Arman to draw a map of his path of movement. Although blindfolded for most of his captivity, like many other captives he retained a sense of his orientation, whether he had turned, descended steps, or walked straight. In his drawing, he described climbing down a short flight of stairs, then walking straight before making a single left turn to reach his cell. However, when we traced the route ourselves, this path did not align with the existing layout. To reach the cell he described, one would have to turn right, then left, then left again. The mismatch raised further doubts.

Then Barrister Arman noticed something subtle in one of the photographs sent to him. The way light reflected off a section of the wall appeared slightly different from the rest. He suggested that this might be where his cell door had once been, and that it could have been sealed up. This observation shifted the course of the inquiry.

Acting on Barrister Arman's insight, we contacted our colleagues at the International Crimes Tribunal, who have been consistently supportive. We shared a diagram of the space (see figure above) and asked them to compare the internal and external measurements of the wall in question. Our hypothesis was straightforward: if there was a significant discrepancy—greater than seven feet—it could indicate the presence of a concealed chamber behind a false wall.

ICT colleagues carried out the measurements and found a significant difference of more than ten feet, confirming our suspicion. The wall was subsequently broken open. Behind it, we discovered a concealed cell, nearly intact, that matched Barrister Arman’s description in every detail. This, along with various other evidence, confirmed he had spent most of his eight years in captivity in that space.



5 Fig: First floor map of TFI centre

It was evident that the room had been sealed off after Barrister Arman’s release on 5 August 2024. By the time we visited the site in mid-October, the cell had been entirely hidden from view. Therefore, the concealment must have taken place sometime between August and our visit in mid-October. This constitutes a clear instance of deliberate evidence destruction intended to obstruct accountability, even after the fall of the Hasina regime.

Since that discovery, we have pursued further inquiries into the timeline of evidence destruction. We now understand that the dismantling and concealment activities at this location began right after Hasina fled in August 2024 and continued well into September.

Although the Director of the Intelligence Wing continued in his post from before the 5 August changeover through our visit on 16 October 2024, the ADG (Operations) had been replaced by the first week of September. Nevertheless, the destruction of evidence continued even under the new ADG (Operations). Subsequently, although the Director of the Intelligence Wing was replaced by an Acting Director, access to information remained obstructed. For example, letters sent in April 2025 requesting some basic information—such as a list of personnel serving in RAB Intelligence—had still not received a proper response by end May 2025.

This pattern suggests a deeper institutional problem: officers, such as the new ADG (Operations), who were not originally involved in specific crimes are becoming newly complicit in crimes through a culture of impunity that incentivises concealment over accountability. As a result, they too are now entangled in the very crimes they inherited. This phenomenon—where successive officers become interested in covering up the misconduct and misdoing of their predecessors—has, we believe, significantly contributed to the difficulties we have faced in obtaining information from RAB’s Intelligence Wing. The legal consequences can only be very harmful to these officers, as we understand.



6 Fig: TFI cells were destroyed following 5 August 2024; the opening to the right leads to Barrister Arman’s cell

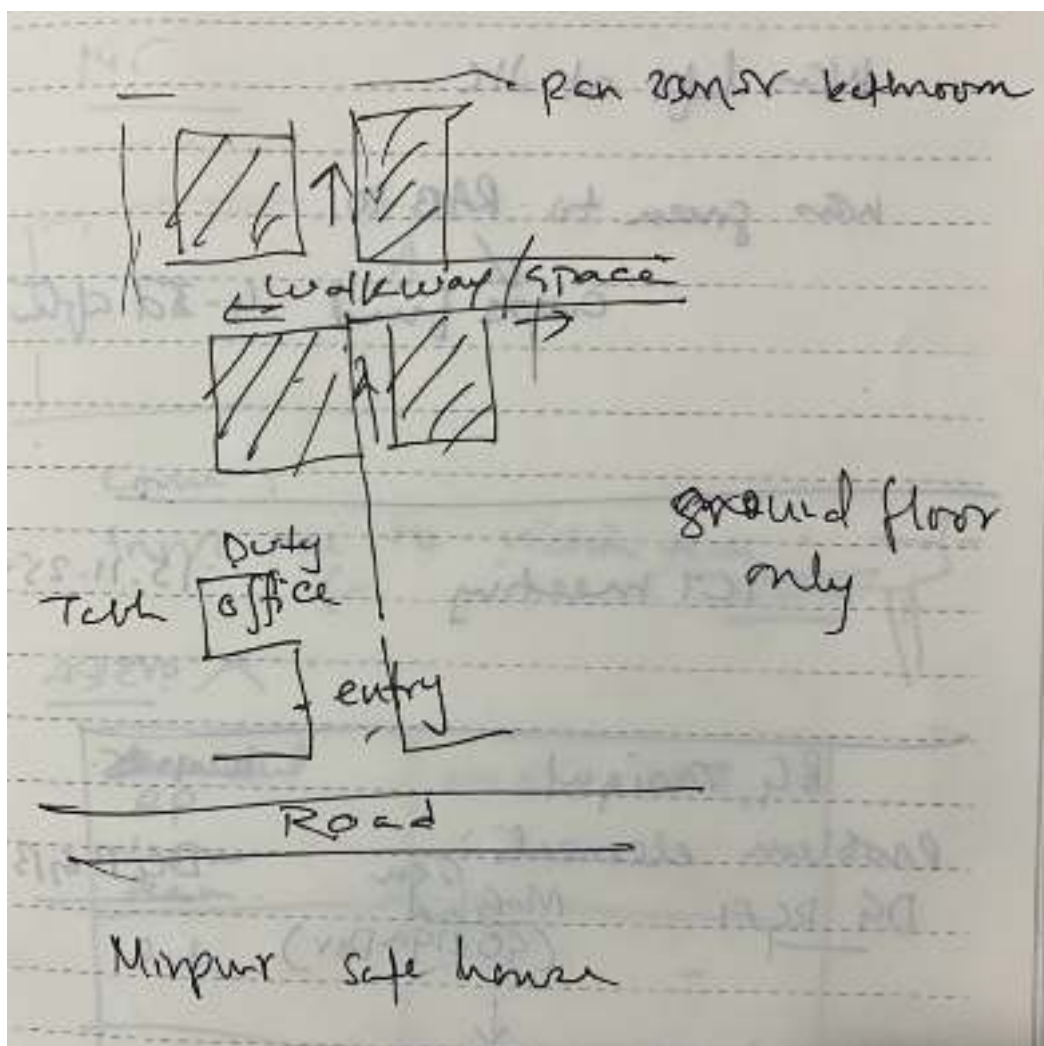
The clinic: RAB Intelligence Wing also operated another secret detention site up until 5 August 2024. This facility was located within the premises of RAB Headquarters itself and was colloquially referred to as the “clinic”. It was housed in a structure known informally as the “glass house”, due to its glass-panelled exterior. Inside, the site had reportedly once contained approximately six small detention cells on the third floor.

We discovered the glass house site in April 2025, based on analysis of victim and witness statements. Prior to that, we suspected there was an as yet unidentified RAB Intelligence Wing-run detention site somewhere near the airport but could not be certain of its location.

Upon inspection, it became apparent that significant structural changes had already taken place. The internal layout no longer fully matched with the descriptions the survivors had provided in their testimonies. However, based on the alignment of ceiling beams, traces of partition walls, and residual wall markings, it was clear that the space had originally been configured into six separate cells. At the time of our visit, only four rooms remained. Two of the dividing walls had been removed entirely, and the altered spaces had been retiled to

resemble bathroom interiors. The overall modifications, including the removal of original cell doors, gave the impression of complete repurposing.

The removal of the cell walls, along with the nature of the renovations, indicated that this was not an improvised effort. Even if some materials had been reused from existing stock, the work would still have required a degree of coordination and access to construction supplies. Cement, tiles, tools, and personnel had to be made available. The execution and timing suggest that this process involved some level of logistical planning and budgetary support. While the full extent of these arrangements remains unclear, the renovations were evidently systematic.

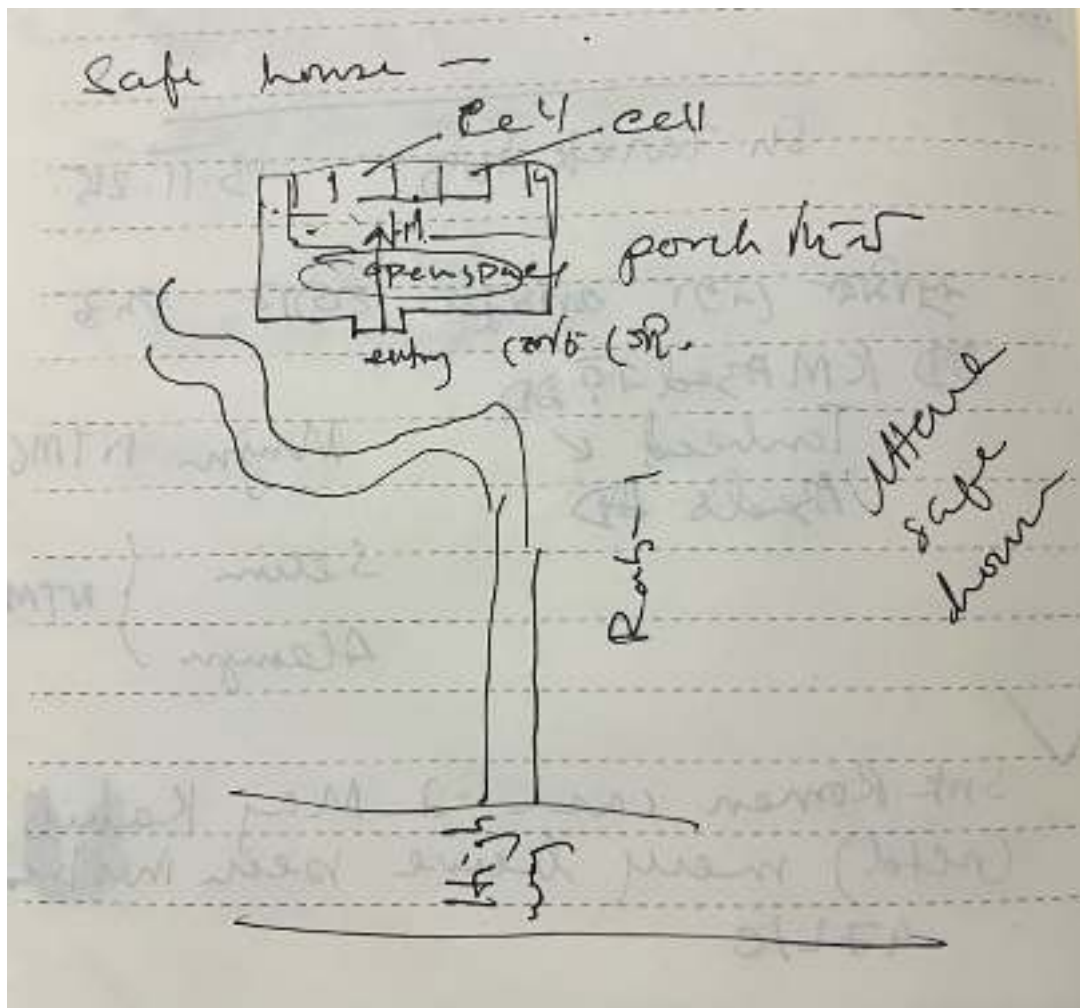


7 Fig: Sketch of RAB Intelligence's now-destroyed Mirpur safe house based on the account of an officer who had deposited captives there

We understand that this phase of evidence destruction coincided with the dismantling of torture instruments previously reported at the TFI cell. Our inquiry has established that many of these implements were broken down and removed during the same period. These included rotating chairs, devices used to administer electric shocks, and a particularly painful instrument used to apply thermal torture. In this device, a detainee would sit in a chair chained by his legs. Reaching up to just below the knee, approximately ten inches above the ankle, the legs would be submerged in water which would be heated gradually to an excruciating temperature.

Other torture implements mentioned in survivor testimony, including those that adorned the walls, such as whips, sharp instruments like knives, etc., along with sound proofing equipment were also destroyed. The dismantling of both detention infrastructure and torture equipment appears to have occurred as part of a broader effort to eliminate physical evidence in the weeks following the political transition of 5 August.

Separately, two other RAB Intelligence Wing-operated safe houses—one in Uttara and another in Mirpur—were no longer operational as part of the network of active detention locations for quite some time before 5 August. To the best of our knowledge, and based on site visits, it is our understanding that both these sites had been broken down well before that date.



8 Fig: Sketch of RAB Intelligence's then Uttara safe house based on the account of an officer who had deposited captives there

3. The legal framework

Enforced disappearance is a composite crime. It entails the deprivation of liberty; direct or indirect involvement of State authorities or their agents; concealment of the fate or whereabouts of the person concerned; and the removal of that person from the protection of the law. By its very design, the practice violates multiple fundamental rights and is intended to frustrate ordinary pathways of accountability.

This chapter examines the legal consequences of that design. It sets out the applicable legal framework governing systematic enforced disappearance in Bangladesh and explains why any credible accountability process must be capable of addressing both the continuing nature of the crime and the responsibility of those exercising command or superior authority. Confining liability to low-ranking operational actors is legally insufficient and incompatible with the way the crime operates in practice.

Under Article 2 of the International Convention for the Protection of All Persons from Enforced Disappearance, to which Bangladesh acceded in August 2024, enforced disappearance is defined by four core elements:

1. Deprivation of liberty;
2. Direct or indirect involvement of State forces or authorities, or their instigation;
3. Failure to acknowledge the detention or to disclose the fate or whereabouts of the detained person; and
4. Removal of the person from the protection of the law.

Many of the complaints submitted to the Commission satisfy these criteria. While enforced disappearance occurred earlier in Bangladesh's history, the scale, duration, and institutionalisation of the practice during the Awami League regime from 2009 to 2024 represent a qualitative departure from past instances. This warrants close examination of how existing legal mechanisms apply to enforced disappearance, what gaps have been exploited, and what steps are necessary to ensure accountability, provide redress to victims, and prevent recurrence. The analysis that follows addresses these questions and concludes by explaining how the Commission has applied this legal framework in practice in a specific case.

3.1 Rights violations

It is evident that enforced disappearances severely violate fundamental human rights, depriving individuals and their families of essential protections and freedoms. The rights violated include the right to legal protection and the right to equal recognition as a person before the law, which are essential for ensuring justice and accountability. Victims also lose their right to life, as enforced disappearances often result in extrajudicial killings or indefinite detention. Basic freedoms, such as freedom of movement, freedom of speech, thought and conscience, and freedom of association and religion, are gravely undermined as well, further dehumanising those affected. Victims are also denied the right to a fair trial, while being subjected to torture and inhuman or degrading treatment during their captivity. The right to be presumed innocent until proven guilty, a cornerstone of any just legal system, is effectively erased too, leaving the victims and their families in a perpetual state of incertitude and despondency. These egregious violations of fundamental rights demand a robust legal response to ensure accountability, uphold the rule of law, and prevent recurrence.

3.2 Legal framework

On 29 August 2024, Bangladesh acceded to the International Convention for the Protection of All Persons from Enforced Disappearance. As a State Party to this instrument, Bangladesh is now obligated to prevent enforced disappearances, combat impunity for such crimes, and incorporate provisions to criminalise enforced disappearances into its domestic laws, as required by Article 4 of the Convention. Further obligations include ensuring proper investigation, safeguarding victims' rights to justice (Article 3), and providing victims and their families with reparation and prompt, fair, and adequate compensation (Article 24). Article 24(4) of the Convention highlights the right to reparation, which includes compensation for both material and moral damages, alongside other forms of redress where appropriate, such as: (a) Restitution; (b) Rehabilitation; (c) Satisfaction, including restoration of dignity and reputation; and (d) Guarantees of non-repetition.

By acceding to the Convention, Bangladesh has undertaken a legal and moral obligation to uphold these principles, ensuring justice for the victims and their families while taking concrete steps to prevent future recurrence of enforced disappearances. For reasons discussed below, given the particularities of the context, in order to uphold this obligation, Bangladesh will need to try the alleged perpetrators in courts where:

- enforced disappearance, of which abduction is an essential ingredient, is a recognised crime;
- command/superior responsibility is a recognised legal doctrine; and
- continuing crime is an accepted concept.

3.3 Command and Superior responsibility

As this report will demonstrate, in Bangladesh, trained professionals deliberately designed the system of enforced disappearances over 15 years in a fashion calculated to avoid detection and attribution of responsibility. This system involved several layers of operational sophistication, including unobtrusive abductions, jurisdictional overlaps between security forces, and

segmentation of teams responsible for abduction, detention, and elimination. Victims were routinely blindfolded, and captors withheld location information from them. These measures were put in place to obscure culpability, making it difficult to directly trace responsibility to specific individuals or organisations.

However, evidence suggests that far from being passive or accidental or, indeed, the work of isolated rogue officers, these systems reflect a deliberate design orchestrated by a central command structure. For instance, jurisdictional overlaps and segmentation of operations across various units point to a coordinated and synchronised effort that could not have emerged organically or without centralised direction. A compelling example lies in the similarities observed in the locations of detention cells. Detention cells where victims were kept by different Rapid Action Battalion units are often found near armouries or within buildings with strikingly similar layouts, despite being in geographically distant locations. The detention cells associated with RAB 11 in Narayanganj, for instance, were in nearly identical buildings to those linked to RAB 7 in Chittagong and RAB 2 in Mohammadpur. Such uniformity strongly indicates centralised planning and oversight.

Interviews with security force personnel further corroborate the existence of a top-down command structure. Lower-ranked security personnel often reported being unaware of the identity of the individuals they detained, learning details only after the commission of the offence, if at all. In contrast, interviews with commanders confirmed that they retained explicit control of activities conducted under their authority, and command structures remained intact throughout the decade and a half in question.

The legal doctrine of superior or command responsibility is critical in addressing the accountability of those in positions of authority for crimes committed by their subordinates. Under international law, this doctrine holds military commanders, civilian leaders, or other superiors criminally liable if they knew, or should have known, about the unlawful actions of their subordinates and failed to prevent or punish them. This principle is particularly relevant in cases involving crimes against humanity, war crimes, and genocide. In the context of Bangladesh, the doctrine of command responsibility is explicitly recognised under the International Crimes (Tribunals) Act of 1973. Section 4 of this Act permits the prosecution of individuals in command/superior positions for crimes committed by subordinates if they failed to take necessary and reasonable measures to prevent the acts or to punish the perpetrators.

Since the system of enforced disappearances in Bangladesh was meticulously designed to hide detection, with operational segmentation being a key feature, perpetrators within the command structure may argue that they were not directly involved in specific actions, such as abductions or detentions, or that they lacked knowledge of the incarceration or fate of the victims. However, the doctrine of command/superior responsibility negates such defences. Even if commanders were not physically present or directly involved in specific acts, they can still be held criminally liable if it is established that they knew, or should have known, about the crimes and failed to act to prevent or punish them. Instances where victims were held incommunicado in detention centres under the custodianship of these officers unequivocally fall within this scope of liability. The Commission has taken this factor into cognisance.

In order to ensure justice, it is imperative that the crime of enforced disappearance be prosecuted in a court/tribunal with jurisdiction to address both the crime itself and the superior/command responsibility of those involved. Without this approach, the segmented and

opaque nature of the system may allow high-ranking officials to skirt accountability, perpetuating impunity and denying justice to the victims and their families.

3.4 The Army Act, 1952 vs. The International Crimes (Tribunals) Act, 1973

An important consideration concerns where responsibility for enforced disappearance must be adjudicated. In practical terms, this raises a choice of forum: whether allegations involving enforced disappearance should be addressed through internal military processes under service law, or through civilian judicial mechanisms established to try crimes against humanity.

On this point, the Commission's position is clear: exclusive reliance on military law would be inappropriate. This is so for two reasons. First, the Army Act, 1952 does not recognise enforced disappearance or abduction as criminal offences, nor does it provide for superior or command responsibility. It is therefore structurally incapable of addressing crimes of this nature. Secondly, the International Crimes (Tribunals) Act, 1973 recognises enforced disappearance as a crime against humanity and expressly provides for the responsibility of superiors. Section 26 of that Act contains a non obstante clause, giving it an overriding effect over any conflicting law, including service law. Where conduct amounts to crimes against humanity, the International Crimes Tribunal is therefore the appropriate and controlling forum, including in respect of serving officers.

The application of the International Crimes (Tribunals) Act to enforced disappearance rests on legal continuity rather than retrospective expansion. The constituent acts that comprise enforced disappearance—abduction, unlawful detention, and torture—were already recognised as criminal conduct under the Act prior to later amendments. Those amendments did not create new offences; they clarified and consolidated pre-existing criminal acts within a defined category of crimes against humanity.

In addition, the Constitution of Bangladesh in Article 32 imposes an obligation on the State to see that no person is deprived of life or personal liberty save in accordance with law. Even in the absence of this constitutional duty, the legal framework of the International Crimes (Tribunals) Act encompasses the core conduct involved in enforced disappearance.

Given that the International Crimes (Tribunals) Act prevails over ordinary service law, including the Army Act, there is no legal barrier to trying retired or serving military and civilian officials before the International Crimes Tribunal. There is likewise no lawful basis to defer or avoid such proceedings by invoking military jurisdiction.

3.5 Continuing crime

Enforced disappearance is recognised as a continuing crime until the whereabouts or fate of the victims are determined, their remains are recovered, or justice is served. This highlights the critical importance of actively searching for victims and upholding the families' right to know the truth about the circumstances of the disappearance.

The concept of a continuing offence is established in Bangladesh's legal framework. A continuing offence refers to an unlawful act that persists over a period of time, with each day constituting a new instance of the offence. This concept has significant implications for cases of enforced disappearance. Captives are often held in various locations, with responsibility for their detention changing hands as their captors are promoted, reassigned, or replaced. In such cases, some alleged perpetrators have argued that they should not be held culpable for the crime because they were not directly involved in the initial abduction but merely inherited responsibility for the captives upon assuming their new role.

However, since enforced disappearance is classified as a continuing offence, each day of captivity represents a renewed violation of the law. Therefore, those who have command/superior responsibility over the captives during the entire period of detention must be held accountable for the offence, not merely those at the point of abduction. This ensures that the chain of responsibility is not broken and justice is pursued for the victims and their families, irrespective of changes in personnel or command.

3.6 Escaping accountability by fleeing abroad

Another potential tactic that high-ranking officials with command/superior responsibility may use to escape accountability is fleeing Bangladesh and retiring to other countries, believing that they will enjoy impunity due to the complexities of prosecuting them in foreign jurisdictions. This has already been the case with several perpetrators whom the Commission considers *prima facie* responsible for acts of enforced disappearance, including Sheikh Hasina herself.

However, the case of a former Syrian official in the United States illustrates a potential way forward to ensure that justice is still served. On 8 August 2024, a former Syrian prison chief was charged with immigration fraud for concealing his involvement in crimes against humanity. He had falsely claimed to have no criminal history when applying for U.S. citizenship, a clear violation of immigration laws that require full disclosure of such information. Authorities used this misrepresentation as a legal basis to strip him of his citizenship and initiate deportation proceedings.

This approach demonstrates how immigration laws can be leveraged to hold perpetrators accountable indirectly, even when direct prosecution for their crimes may be challenging due to jurisdictional or evidentiary constraints. It shows that failing to disclose criminal history is itself a punishable offence that can lead to significant legal consequences, including deportation and loss of residency or citizenship status. For victims in Bangladesh, this presents a potential way forward to ensure that the perpetrators do not evade accountability for their crimes under any circumstances.

The previous section established the legal framework for addressing enforced disappearances. However, legal frameworks alone cannot ensure accountability. The Commission has faced significant practical obstacles, including destroyed evidence and institutional obstruction. To address these challenges, a strategic approach is required. The next section will outline this strategy in detail, followed by a case-specific application to demonstrate its efficacy.

3.7 Strategy

In a context marked by large-scale evidence destruction and inconsistent institutional cooperation, the Commission has had to make careful strategic decisions about how to approach its caseload of over 1900 complaints. From the outset, we encountered procedural obstruction and active interference, making it clear that conventional inquiry methods would not be adequate. However, within weeks of beginning our work, recurring patterns began to emerge from the data that have since informed the direction of our work.

3.7.1 Prioritising swiftly solvable cases to prevent flight

Specifically, we began noticing a subset of cases in which the victims could provide some form of contemporaneous documentation from the time of their disappearance. These included general diaries filed with the police or media coverage shortly after the abduction. In many of these cases, the victims had also subsequently been shown as arrested in formal cases initiated by law enforcement agencies. This meant that, at a minimum, their custodial link to law enforcement was officially acknowledged. Additionally, these victims were alive and capable of identifying the location, conditions, and sometimes even the specific perpetrators involved in their disappearance and detention.

Such cases provided a more stable evidentiary foundation. They were easier to verify, and they allowed us to make quicker progress in identifying potential perpetrators. Strategically, we realised that initiating accountability in these ‘solvable’ cases could serve a broader purpose. Once the process of prosecution or pre-trial investigation begins—and particularly when the alleged perpetrators are incarcerated or suspended—victims and witnesses become significantly more willing to come forward. This also applies to other witnesses, including law enforcers, who may not be directly implicated but possess valuable information.

3.7.2 Shifting the balance of fear

Additionally, there is always a risk that individuals potentially responsible for enforced disappearances may attempt to flee once they perceive that scrutiny or legal consequences are becoming more likely. Prioritising these more straightforward, well-documented cases allows the broader accountability framework to respond more swiftly. This enables the relevant authorities to take preventative measures, whether by restricting travel or suspending passports, before such individuals are able to leave the country. These opportunities are far more limited in older, unresolved cases involving the victims who have not returned. In such unresolved cases, both the evidentiary threshold and the time required to build a coherent legal pathway are significantly higher, during which time suspects get the opportunity to disappear before any action can be taken.

A clear example is the case of Tareq Syed Mohammad, a prime accused in the Narayanganj seven murder case, who is currently on death row. At the height of his power, he was widely feared and considered untouchable. Yet since his incarceration, we have received several complaints relating to his activities, often from individuals who would previously have been too afraid to speak out. By contrast, fear continues to inhibit disclosure in cases involving officers who remain in service or have not yet been held accountable.

We also came to understand that many of the same officers and units were involved in both categories of enforced disappearances: those where victims returned, and those where victims never resurfaced. The teams deployed to carry out these operations—abduction, detention, and elimination—were often segmented but overlapping. The likelihood that the same personnel were involved in both returned and non-returned cases is therefore high. However, the evidentiary burden in disappearance cases where the victims have not returned is much greater, as the direct testimony of the victim is unavailable. In these cases, the fear of retribution is even more pronounced, particularly when the suspected perpetrators are still in positions of authority.

3.7.3 Focusing on detention site identification

This reality shaped the second dimension of our strategy: focusing on detention site identification. We understood that if a victim could be placed at a particular site—whether through their own testimony or corroborated by architectural features, ambient descriptions, or timelines—then custodians of that site could be held legally responsible. According to both domestic and international legal norms, individuals in custodial command during periods of unlawful detention carry liability. This approach allowed us to bypass some of the evidentiary limitations inherent in disappearance cases where the victims are still missing.

Over time, we developed a technical skillset around identifying detention sites from even vague or fragmentary descriptions. Having collected hundreds of accounts from the survivors, we built an internal evidentiary corpus that now allows us to match individual testimonies with specific locations based on recurring features. These include layout, sounds, food, physical treatment, verbal interactions, etc. This has become one of the most effective tools at our disposal.

3.7.4 Using continuing crime and indirect legal routes

Another critical legal principle that supports this strategy is the concept of continuing crime in the context of enforced disappearance. An enforced disappearance is not considered a one-time offense but a continuing violation of rights, which remains ongoing until the fate or whereabouts of the disappeared person are clarified. This means that even if the custodians or commanders change during a victim's period of secret detention, each successive officer in the chain of custody inherits legal culpability after a threshold—typically after the 24-hour mark—when detention becomes illegal and unreported. This principle has given us additional leverage in identifying liability even in the absence of complete timelines.

We have also learned that, in complex cases involving overlapping chains of command and historical crimes, strategic entry points can be as important as the final charges. In this sense, our approach bears resemblance to how the US law enforcement pursued the case of Al Capone. Although Capone was widely known to be responsible for serious organised crime, including murder, he was ultimately prosecuted and imprisoned for income tax evasion. The lesson is that indirect accountability measures—whether through misuse of office, obstruction, unlawful detention, or falsification of records—can be equally effective in breaking impunity. Old, unresolved cases involving enforced disappearances often require such non-linear routes to justice.

3.7.5 Applying the strategy to the case of Barrister Arman

To illustrate this strategy, we turn to the case of Barrister Arman. He was forcibly disappeared and held from 9 August 2016 to 5 August 2024. Once we identified the location of his detention (TFI centre) and confirmed that the structure was under the command and control of RAB Intelligence Wing, the individuals with *prima facie* culpability in his case include: the Director Generals of RAB, Additional Director Generals (Operations), and the Directors (Intelligence) who served during the period of his disappearance.

- **The DGs in the relevant period are:** the then AIGs Benazir Ahmed, Chowdhury Abdullah Al-Mamun, M Khurshid Hossain, and Md. Harun Or Rashid.
- **The ADGs (Ops) in the relevant period are:** the then Colonels Md. Anwar Latif Khan, Md. Jahangir Alam, Tofayel Mostofa Sorwar, K M Azad, Md. Kamrul Hasan, Md. Mahbub Alam, and Abdullah Al Momen.
- **The Directors (Intelligence) are:** the then Lieutenant Colonels Mohammad Abul Kalam Azad, Md. Mahbub Alam, Md. Sarwar-Bin-Kasem, Muhammad Khairul Islam, Md. Moshir Rahman Jewel, and Saiful Islam Sumon.

Our inquiry has established that RAB maintained a clear and centralised command structure during this entire period. We received testimony indicating that even minor decisions required clearance from senior command. For example, when captives fell ill at the TFI centre, guards had to seek approval from their superiors before administering even basic medication, like paracetamol. Such information demonstrates the extent of control and oversight exercised by senior leadership. It reinforces the view that command and superior responsibility, both operational and moral, can be clearly attributed to specific actors within the institution. Therefore, targeted investigations and accountability mechanisms can begin from these well-documented cases and expand outward to address the broader system of enforced disappearance.

The Commission summoned several officers from the list above. Most uniformly denied any knowledge of the building or of holding captives there. This, of course, is a pointless exercise in denial, as the ownership of the facility has been confirmed by RAB. During our visit there in October 2024, we were informed—and indeed witnessed—that the then Director of RAB Intelligence Wing, Lt Colonel Saiful Islam Sumon, held the key to the building. To claim that the building had been abandoned years before and never used for this purpose since then makes no sense, given clear proof that Barrister Arman was released from there only after 5 August 2024. (The details of the discovery of his cell, after breaking through walls constructed to conceal it, are recorded in a documentary released by the Commission via the Chief Advisor’s Office on 8 October 2025.)

Furthermore, we have testimonies from other victims who occupied cells at the TFI centre during the same period, many of whom witnessed each other inside the facility. Several of these victims were underage, and some were held captives there for over two years. We have received witness statements from the personnel who served there, acknowledging that some of these individuals were held at the TFI centre. We may, therefore, conclude that the claim that the facility was abandoned years ago is plainly false. These officials, accordingly, bear

prima facie responsibility for what transpired in this building, including systematic inhuman torture and prolonged enforced disappearances of the victims.

Cases like those of Barrister Arman, where the victims returned and strong evidence exists, thus offer a crucial starting point for holding the perpetrators accountable. Many of the same officers responsible for his disappearance were also in charge of the TFI cell during the same period when other victims were abducted by the RAB Intelligence Wing and never seen again. By establishing responsibility in cases like his, we begin to erode the culture of impunity. It demonstrates that justice is possible, and that those in command are not beyond reach. This, in turn, reduces the fear that prevents the victims, witnesses, and even insiders from coming forward. As more people speak out, it becomes easier to uncover the truth behind the more difficult cases, particularly those involving individuals who remain missing.

In this way, the missing are never sidelined, and accountability is not limited to those who have survived. Instead, this targeted approach lays the groundwork for justice for all.

4. Security forces and the Architecture of secret detention

This chapter identifies the principal state agencies repeatedly named across testimony and corroborating records, and maps detention locations from the victims' perspectives. Patterns in detention environments, movement protocols and facility characteristics point to a central conclusion: these practices required sustained organisational capacity and authorisation, and cannot be explained as isolated misconduct.

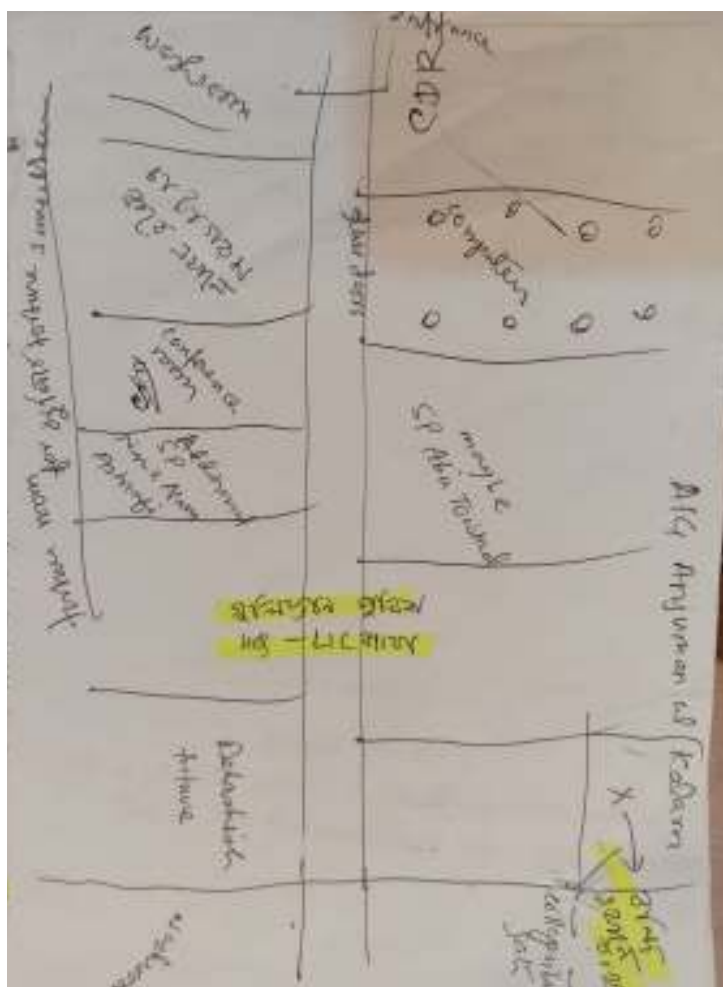
The predominance of formal law-enforcement and intelligence agencies in the data indicates significant institutional involvement or complicity. Lower numbers for organisations such as NSI and BGB may reflect either a more limited role in internal security operations or under-reporting. The presence of plainclothes actors claiming law-enforcement affiliation further suggests covert operations that complicate accountability and attribution.

The Commission finds that most enforced disappearances in Bangladesh were carried out by units within the police and intelligence services. Victims, witnesses and families most frequently identified the Rapid Action Battalion (RAB), the Detective Branch (DB) and the Counter Terrorism and Transnational Crime (CTTC) unit, with personnel from the Directorate General of Forces Intelligence (DGFI), National Security Intelligence (NSI) and Border Guard Bangladesh (BGB) also implicated.

All these agencies, in different ways, appear to have exceeded their legal mandates. DGFI and NSI, in particular, are intelligence bodies without authority to arrest or detain civilians. Any role in abduction, detention or interrogation therefore crosses institutional boundaries and points to the emergence of unlawful, parallel enforcement arrangements – a serious constitutional concern.

4.1 Police

The Bangladesh Police is the principal law enforcement agency of the country, operating under the Ministry of Home Affairs. It is responsible for maintaining law and order, preventing and investigating crimes, and ensuring internal security. Headed by the Inspector General of Police (IGP), the force included specialised units such as the Detective Branch (DB), Special Branch (SB), Criminal Investigation Department (CID), and Rapid Action Battalion (RAB). Although established during British colonial rule, the police has evolved significantly since Bangladesh's independence in 1971.



9 Fig: Detention site maintained by the LIC team at the Police Headquarters (ground floor), illustrated from victim testimony and verified during the Commission's visit in the presence of the current IGP

Under the Awami League government, the police came under sustained scrutiny for widespread human rights violations, including extrajudicial killings, enforced disappearances, torture in custody, suppression of dissent, and excessive use of force. From 2009 onward, the police became increasingly politicised, functioning more as an enforcer of government policy than as a neutral public institution. Numerous national and international reports documented the disproportionate targeting of opposition groups, particularly the Bangladesh Nationalist Party (BNP) and Jamaat-e-Islami, raising serious concerns about the erosion of democratic space and civil liberties. With regards to enforced disappearance, Code BHFD⁴ remembers:

আমাকে প্রথমে চোখ বেঁধে ঢাকা পুলিশ হেডকোয়ার্টারে নিয়ে আসা হয়েছিল, যেখানে আমি প্রায় সপ্তাহখানেক ছিলাম। একটি বড় বিল্ডিংয়ের ভেতরে একটি রুমে আমাকে রাখা হয়, যেখানে ঢোকানোর পর আমার চোখ খোলা হয়। রুমটি তুলনামূলকভাবে বড় ছিল, কাঠের দরজা এবং সম্ভবত আটকানো জানালা ছিল, ফ্যান-লাইট থাকলেও ঘুমানোর জন্য চৌকি বা খাট ছিল না; টাইলস করা মেঝেতে শুধু একটি জায়নামাজ দেওয়া হয়েছিল। সেখানে সবসময় গার্ড থাকত এবং তাদের আলোচনা থেকেই আমি এই জায়গাটি যে 'পুলিশ হেডকোয়ার্টার' তা বুঝতে পারি। আমাকে জিজ্ঞাসাবাদ করতে যারা আসতেন, তাদের মধ্যে এসপি হাসান মাসুদ বা শুধু হাসান, এএসপি নূরে আলম এবং এএসপি আশরাফুল আলম-এর নাম জানতে পারি। এছাড়াও বগুড়ার ডিবি'র এসপি আরিফ মন্ডলও সেখানে এসেছিলেন। হেডকোয়ার্টারের পর আমাকে বগুড়ায় নিয়ে যাওয়া হয়। গার্ড ও

⁴ 22 year old male; abducted by the police in 2017; disappeared for 136 days

কনস্টেবলদের কথা থেকে আমি নিশ্চিত হই যে সেটি বগুড়া পুলিশ লাইনের ইনসার্ভিস বিল্ডিংয়ের নিচের তলার একটি বড় হলরুম ছিল। সেখানে প্রায় চার মাস আমি গুম ছিলাম। হলরুমের দুটি দরজা ও কয়েকটি জানালা ছিল, যেখান থেকে বাইরে একটি বড় মাঠ দেখা যেত। হলরুমটিতে সাত-দশটা চৌকি পাতা ছিল এবং বেরোনোর পর বাথরুম ছিল। বগুড়ায় আরিফ মন্ডল এবং এসআই জুলহাস জিজ্ঞাসাবাদ করতেন, এবং পরে আসাদুজ্জামান (যিনি সিটিটিসি প্রধান ছিলেন) একদিন এসেছিলেন। তারা আমাকে শারীরিকভাবে মারধর করেছে, মানসিকভাবে টর্চার করেছে, নিয়মিত ক্রসফায়ারের হুমকি দিত এবং পরিবারের সদস্যদের তুলে আনার ভয় দেখাত।ⁱⁱ

Extrajudicial killings—frequently labelled as “crossfire” incidents—became a hallmark of police operations, especially during anti-drug raids or crackdowns on suspected criminals. These killings often took place without judicial oversight. Torture in custody was also pervasive. Victims reported severe abuse, including beatings, electric shocks, waterboarding, and other forms of physical and psychological torture. Although the Torture and Custodial Death (Prevention) Act of 2013 was enacted to curb such practices, it was rarely enforced, and few officers faced legal consequences.

The police also routinely cracked down on peaceful protests, student movements, and press freedom, most notably during the July Uprising in 2024. Repressive laws such as the Special Powers Act and the Digital Security Act were widely used to arrest dissenters on vague charges such as “hurting religious sentiment” or “spreading propaganda.”

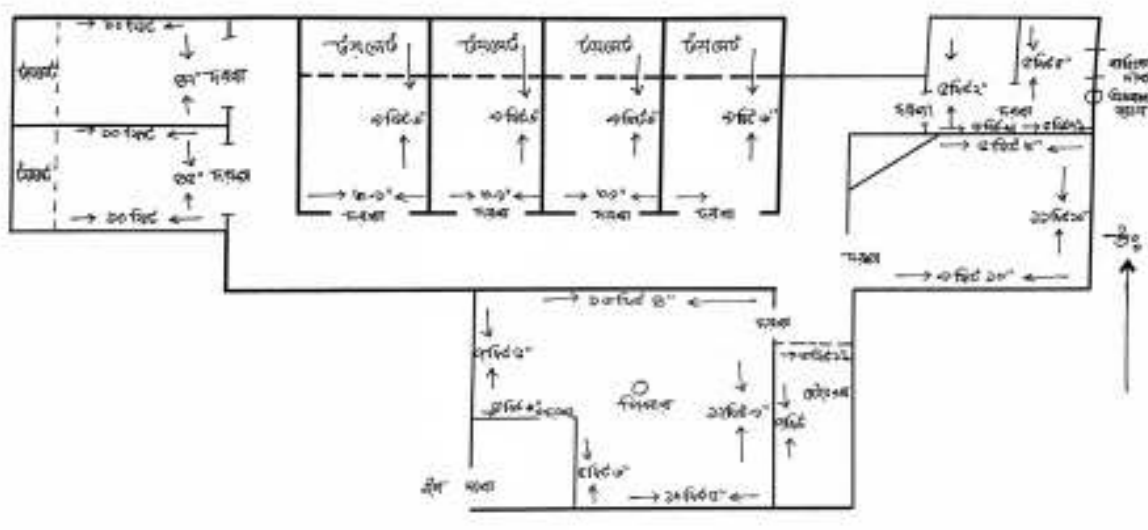
The Commission has documented hundreds of enforced disappearances carried out by the police. Victims included political activists, students, teachers, businesspeople, and critics of the government. Many were severely tortured and ultimately extrajudicially killed after being disappeared. These patterns revealed a structural crisis within the police: a culture of impunity, systematic abuse of power, and a lack of institutional accountability—all in direct contradiction to their constitutional mandate to uphold the rule of law and protect citizens.



10 Fig: Sketch of RAB 10 Dholpur cells drawn by a 2017 victim

4.2 Rapid Action Battalion

The Rapid Action Battalion (RAB) is a paramilitary law enforcement agency established in 2004 under the Ministry of Home Affairs, originally tasked with tackling serious crimes such as terrorism, drug trafficking, and organised crime. The force comprises 15 battalions across the country, each with three to four Crime Prevention Companies (CPCs) under each battalion. Under the leadership of the Director General, it operates through ten functional wings. Under the direction of ADG (Ops): Operations, Intelligence, Legal and Media, and Air Wings; and under the direction of ADG (Admin): Admin and Finance, Communication and MIS, Investigation and Forensics, Training and Orientation, and Research and Development Wings. RAB's headquarters are located in Kurmitola, Dhaka.



11 Fig: Sketch of RAB 1 ground floor cells

While RAB initially played a prominent role in combating crime and maintaining public order, it soon became synonymous with serious human rights abuses. National and international organisations have documented a pattern of individuals allegedly picked up by RAB who were later found dead or remained missing, raising grave concerns regarding the agency's adherence to rule of law and human rights standards. The Commission has received hundreds of complaints involving RAB's direct participation in enforced disappearances, custodial torture, and extrajudicial killings. Code EBA⁵ remembers:

দুই মাস ১৮ দিন সেখানে থাকার পর ভেন্টিলেটর দিয়ে রূপসা ব্রিজ দেখতে পাওয়ার পর আমি নিশ্চিত হই যে আমি র‍্যাব সিক্লেই আছি। প্রথমে আমাকে একটি ছোট রুমে আটকে রাখা হয়, যার পরিমাপ ছিল প্রায় পৌনে চার হাত লম্বা এবং পৌনে তিন হাত চওড়া। রুমের মধ্যেই টয়লেট এবং থাকার জায়গা ছিল, যার দুর্গন্ধে আমার শ্বাসকষ্ট শুরু হয়েছিল। সেখানে গোসল করা বা মুখ ধোওয়ার কোনো ব্যবস্থা ছিল না। মেঝে ছিল সাধারণ সানের (সিমেন্ট/কংক্রিটের) এবং ছাদ ছিল খুব নিচু। রুমের সামনে জেলখানার মতো গ্রিল ছিল, যার ওপাশে একটি সংকীর্ণ গলি। মনে হয় ওই গলিপথে এক লাইনে সাত-আটটা রুম ছিল।ⁱⁱⁱ

⁵ 35 year old male; abducted by RAB 6 in 2016; disappeared for 72 days

Although RAB had been created with support from the United States and the United Kingdom as a counterterrorism force, it eventually morphed into a political death squad. The force operated with significant autonomy, and the lack of robust oversight enabled widespread abuse. The UK Government withdrew its support and training over a decade ago in response to its poor human rights record, and the United States imposed sanctions in December 2021 citing gross violations, including extrajudicial executions and enforced disappearances.



12 Fig: A RAB 1 cell deceptively hidden behind a door labelled “ration store” and clearly freshly painted

The Intelligence Wing of RAB, working in close coordination with operational battalions, conducted many covert operations. These included abductions and prolonged detentions in secret facilities under the pretext of fighting militancy, narcotics, and arms trafficking. One of the most notorious sites was the Task Force for Interrogation (TFI) cell, located within the RAB 1 compound. Though publicly framed as an inter-agency facility, it was de facto operated and controlled by RAB Intelligence (this has been confirmed to the Commission in writing by RAB HQ; the Commission has supplied a copy of this letter to the ICT). Over the years, thousands of detainees were held in this facility, confined for weeks or months in pitch-dark rooms, blindfolded and handcuffed at all times. Code BHFI⁶ remembers:

আমাকে সবসময় চোখ বেঁধে রাখা হতো, তাই পরিবেশটা পুরোপুরি দেখতে পারতাম না। তবে ভেতরে একাধিক কাঠের ও সবুজ মোটা কাপড়ের অস্থায়ী সেলের মতো কাঠামো ছিল। সেখানে তাদের নজরদারির জন্য একটি লাইট রাখা হতো, যাতে তারা পুরো এলাকাটি নিয়ন্ত্রণে রাখতে পারে। এই লাইটের কারণে গার্ডরা যখন হেঁটে যেত, তখন তাদের ছায়াটা আমাদের দিকে পড়ত, যা দেখে আমরা বুঝতে পারতাম কেউ আসছে এবং তখন

⁶ 16 year old male; abducted by RAB 7, RAB Intelligence and RAB 14 in 2017; disappeared for 3.5 years

সতর্ক হয়ে যেতাম। দরজার একপাশ থেকে খুব অল্প দূরত্বে দাঁড়ালে আমি অন্য সেলের লোকেদের সাথে ফিসফিস করে কথা বলতে পারতাম, যেখানে দাঁড়ালে তারা আমাকে দেখতে পেত না। কোনো গুরুত্বপূর্ণ কাজ বা টর্চারিংয়ের সময় তারা সাউন্ড বক্স বাজিয়ে রাখত, যাতে ভেতরের কোনো আওয়াজ বাইরে না আসে। গার্ডরা শিশ দিয়ে যোগাযোগ করতো। করিডোরের প্রান্তে একটা গলির মতো রাস্তায় টয়লেট ছিল। দীর্ঘদিন সূর্যের আলো না পাওয়ায় আমার শরীরে ফ্যাকাসে দাগ হয়ে গিয়েছিল এবং গরমেও আমার শরীর কাঁপত। বিশেষ দিনগুলোতে তারা বিশেষ খাবার দিত, যা দেখে আমরা বুঝতাম যে সেদিন ঈদ।



13 Fig: Cloth partitions would be used to form temporary cells for captives at the TFI centre

The Commission continues to receive near-daily accounts of torture at this site, reflecting the scale and consistency of its abuse. Testimonies revealed that detainees were subjected to relentless torture within specialised rooms: methods included beatings, electrocution, suspension from ceilings, rotational disorientation, and even physical dismemberment. Children and mentally unwell detainees were not spared. Although the facility was primarily run by military personnel, police officers also participated in operations.

Detainees were brought to the TFI centre from across the country, some directly abducted by RAB Intelligence, others transferred from DGFI or RAB battalions. In many cases, individuals were later executed and their bodies disposed of in rivers, rendering recovery and identification virtually impossible. One RAB Intelligence operative stated:⁷

র‍্যাবে বন্দীদেরকে আমরা টার্গেট বলতাম। আমরা টার্গেটদেরকে কোথা থেকে ধরে আনা হতো সেটা জানতাম না। অধিকাংশই টিএফআই সেল থেকে আমাদেরকে সাপ্লাই দেওয়া হতো। গাড়িতে উঠিয়ে বলা হতো যে, “টার্গেট আছে, চলো যাই।” টিএফআই সেল ছিল টার্গেট সাপ্লাই দেয়ার জন্য আতুরঘর। টিএফআই সেল থেকে যাদেরকে আনা হতো তাদেরকে কোথা থেকে তুলে আনা হতো তা আমি জানতাম না।^{iv}

⁷ As a witness in an ongoing legal case, the individual’s identity has been withheld for safety.

Following the 5 August 2024 change in government, concerted efforts were made to erase evidence of the facility's true nature. Cells were remodelled to appear larger, torture chambers were dismantled, surveillance equipment was removed, and floor tiles were excavated to obliterate forensic traces. This destruction of evidence was part of a broader pattern of obstruction.



14 Fig: An intact RAB 11 cell

RAB's methods deeply eroded public trust in law enforcement. The force's use in political repression—particularly against opposition parties, activists, and dissenters—transformed it from a crime-fighting body into a coercive political tool. Victims' statements indicated that RAB officers acted with impunity, knowing they were unlikely to be held accountable. This emboldened conduct had far-reaching consequences: it weakened public safety by creating fear of law enforcement, discouraged victims and witnesses from coming forward, and fuelled a wider culture of institutional unaccountability. Code BHBD⁸ remembers:

সেলের একটি ফাঁকা দিয়ে আমি টর্চার রুমের দরজা দেখতে পেতাম এবং দেখতাম কীভাবে জ্ঞান হারানো বা রক্ত বরা অবস্থায় অন্য বন্দীদের ছেঁচড়ে নিয়ে যাওয়া হচ্ছে। আমার উপর যে অমানবিক নির্যাতন চালানো হয়েছিল তার মধ্যে ছিল আমাকে একটি মেশিনের সাহায্যে শূন্যে ঝুলিয়ে বুক বরাবর বেঁধে হক স্টিক বা রোলার লাঠি দিয়ে নির্মমভাবে পেটানো, যার ফলে আমার শরীর থেকে রক্ত বের হতো, এবং একপর্যায়ে পায়ে ইলেকট্রিক শক দেওয়ার ফলে আমি জ্ঞান হারাই। জ্ঞান ফেরার পর আবার আমার হাতকড়া ও পা বেঁধে চিত

⁸ 23 year old male; abducted by RAB 5 in 2017; disappeared for 82 days

করে শুইয়ে বুকে ৩-৪ জন বসে নাকে কাপড় চাপা দিয়ে গরম পানি ঢেলে নির্যাতন করত এবং আমাকে
বিএনপি-জামাতের ইনফর্মার হিসেবে তথ্য দিতে চাপ দিত।^৭

Despite the fall of the previous government, RAB as an institution has continued to exist. The legacy of its operations—and the deep mistrust it cultivated—remains a significant barrier to democratic reform. The Commission believes that meaningful change will require **the dismantling of RAB as a force**. Its dissolution is essential to break the cycle of impunity, restore public confidence, and enable the creation of a rights-respecting security framework.



15 Fig: A RAB 7 cell, built some time in 2017 by subdividing larger rooms

4.3 Detective Branch

The Detective Branch (DB) of the Bangladesh Police is a specialised unit responsible for intelligence gathering, investigation of serious crimes, surveillance, and, in many cases, political policing. Functioning under the Dhaka Metropolitan Police and other metropolitan

jurisdictions, the DB plays a central role in law enforcement operations, particularly through covert investigations and intelligence-led actions.



16 Fig: In Minto Road, Dhaka, DB kept its detainees on the ground floor

However, the unit has come under sustained scrutiny for grave human rights violations. Numerous allegations were made that DB personnel abducted political opponents, activists, and suspected criminals; detained them in undisclosed locations; failed to acknowledge the arrests; conducted arbitrary detentions without warrants; and held individuals incommunicado. Victims frequently reported custodial torture, enforced disappearances, extrajudicial killings, and transfers to other security agencies such as RAB and DGFI.

The DB was widely believed to be an instrument of political repression during the tenure of the Awami League Government. It was accused of targeting opposition figures, particularly members and supporters of the Bangladesh Nationalist Party and Jamaat-e-Islami, often during politically sensitive periods such as election cycles. A substantial number of enforced disappearances reportedly occurred in the lead-up to national elections, reflecting the DB's role in suppressing dissent.

Patterns of abuse were consistent across cases. Victims were often taken by plainclothes officers in unmarked vehicles, with families being denied any information about their whereabouts. Some reappeared weeks or months later, while others remained missing indefinitely or were found dead, often bearing signs of torture. These actions, routinely attributed to the DB, either acting alone or in collaboration with RAB and DGFI, highlights systemic abuse within Bangladesh's security architecture.

The frequency and nature of these disappearances prompted concern from both domestic and international human rights organisations. Although hard evidence remained elusive due to the clandestine nature of the operations, the volume of eyewitness testimonies, the uniformity of

the abduction patterns, and the institutional opacity collectively presented a compelling case for accountability.

The DB's legacy has been one of impunity and repression. The Commission's findings reinforces the urgent need for institutional reform, independent oversight, and judicial accountability. Ending such violations would require not only strong domestic legal mechanisms but also sustained international pressure to uphold human rights and ensure justice for victims of enforced disappearance.

4.4 Counter Terrorism and Transnational Crime

The Counter Terrorism and Transnational Crime (CTTC) Unit of the Bangladesh Police, established in 2016, was tasked with combating terrorism, organised crime, and transnational criminal activities. It comprises seven specialised divisions, including the Special Action Group (SWAT), Bomb Disposal Unit, Anti-Illegal Arms Unit, Canine Unit, and Cyber Crime Unit. While the CTTC has claimed to play a vital role in addressing emerging security threats, it has become associated with the same patterns of abuse and impunity that have long plagued other security forces, such as RAB.



17 Fig: A CTTC ground floor cell

Even though they usually detained captives unlawfully over briefer periods than other agencies, CTTC operatives have been reported to inflict severe harm through strategic misuse of the legal system. The unit has been known to initiate numerous false cases, thereby weaponising the judiciary to wage ‘lawfare’ against targeted individuals. Like RAB in its earlier years—backed by foreign governments in the name of counterterrorism—the CTTC has benefited from international support. Yet, as with RAB, this foreign backing has not prevented its descent into grave human rights violations.

The CTTC has faced serious allegations of enforced disappearances, torture, and arbitrary detention. Human rights defenders both within and outside Bangladesh have consistently raised concerns about the disappearance of individuals suspected of so-called terrorist or criminal affiliations. These actions continue to erode the rule of law and deepen public mistrust in the justice system. The Commission has documented numerous instances where individuals were forcibly disappeared, held incommunicado, and subjected to abuse under the guise of interrogation. In several cases, victims were later presented with concocted charges or have never resurfaced at all.

CTTC kept its detainees in its ground and seventh floor cells. Whilst their current Minto Road building was being built, they shared office space with DB in tin shed buildings within the same compound. Detainees would be kept under desks, handcuffed to chairs, etc. The seventh floor cells for “special detainees” contain a toilet separated by a half wall at the back and are smaller than the ground floor cells. The ground floor cells have similar toilets but to the side.

Detainees have described being subjected to brutal torture intended to extract information or forced confessions. Such confessions, obtained under duress, have compromised the integrity of investigations and judicial proceedings. Victims interviewed by the Commission have recounted psychological torment and physical abuse while in CTTC custody. Judicial scrutiny and institutional oversight remain lacking, allowing these abuses to persist unchecked.



18 Fig: A CTTC seventh floor cell

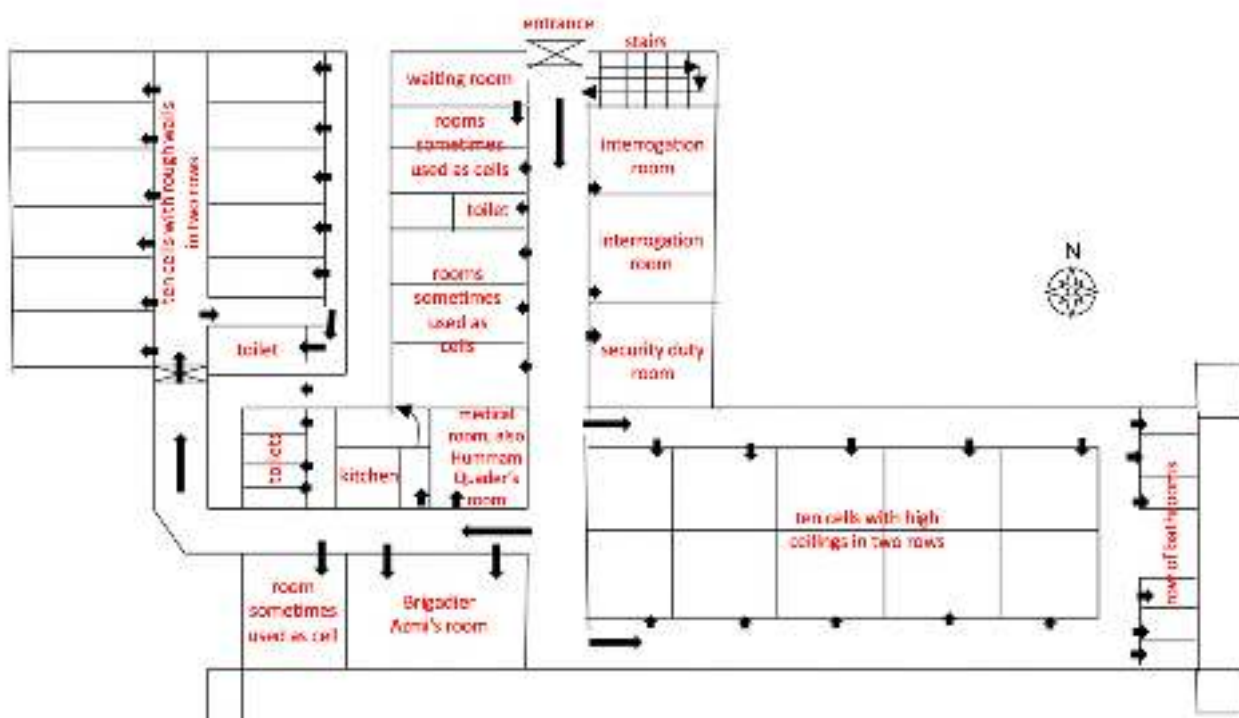
A persistent concern has been the CTTC’s arrest of individuals without proper evidence or legal basis, particularly those affiliated, or alleged to be affiliated, with political or religious groups deemed oppositional to the Government. These actions have appeared politically motivated rather than grounded in genuine security concerns. Victims from specific communities have reported feeling disproportionately targeted, fuelling a sense of collective grievance and injustice.

The CTTC has continued to operate under a veil of opacity, with minimal public access to information about its operations or outcomes. Despite serious allegations, meaningful accountability mechanisms have remained absent. Officers accused of misconduct—ranging from unlawful detention to torture—have rarely faced consequences. As a result, the CTTC has fostered an internal culture of impunity not unlike that which ultimately discredited RAB.

The Commission’s findings indicate that the CTTC, rather than functioning as a neutral counterterrorism body, has come to mirror the very practices and impunity that international partners had once condemned in other agencies. If the trajectory of RAB serves as a warning, then the CTTC now stands at a similar crossroads—where unchecked power, foreign backing, and political misuse have led to systematic violations and a widespread loss of public trust.

4.5 Directorate General of Forces Intelligence

The Directorate General of Forces Intelligence (DGFI), Bangladesh’s principal military intelligence agency, was formed in 1977 under the Ministry of Defence and is primarily staffed by personnel from the Bangladesh Armed Forces. Its core responsibilities include military intelligence gathering (both domestic and foreign), counter-intelligence, surveillance of national security threats, and conducting internal and external threat assessments. It is headed by a Director General, typically a serving Major General (two-star general) from the Bangladesh Army.



19 Fig: Map of JIC, ground floor interior

Over the past decade, the DGFI has faced persistent allegations of enforced disappearances, unlawful detentions, torture, and surveillance of political opponents. The agency has also been accused of manipulating domestic politics and interfering in the 2014 Parliamentary elections.

Its alignment with the ruling Awami League Government seriously compromised its perceived neutrality. The lack of parliamentary oversight—being answerable only to the Defence Minister—has contributed to accusations of unchecked authority and institutional opacity.

Credible reports from international organisations and media outlets document widespread human rights abuses by DGFI personnel. The agency has reportedly operated black sites—including the notorious Aynaghor (House of Mirrors)⁹—where detainees were held incommunicado and subjected to extreme torture. DGFI’s deepening involvement in civilian affairs over the years has raised serious concerns about democratic erosion and the militarisation of governance.



20 Fig: Corridor of cells with exhaust fans matching witness descriptions

DGFI’s elite counterterrorism unit, the Counter Terrorism and Intelligence Bureau (CTIB), was formed in 2006 to combat terrorism and manage threat intelligence. CTIB runs the Joint Interrogation Centre (JIC), colloquially known as “Aynaghor”, located within Dhaka Cantonment. This site is one of the most infamous detention facilities in the country, known for its extensive use of torture and prolonged secret detention. Detainees at Aynaghor included military officials, political opponents, and individuals accused—often falsely—of terrorism, such as Brigadier Abdullah Aman Azmi, Ambassador Maruf Zaman, Lt. Col. Hasinur Rahman, Hummam Quader Chowdhury, and Michael Chakma, along with hundreds of lesser-known individuals.

⁹ Although DGFI’s JIC was originally known as the *aynaghor* (“house of mirrors”), we have increasingly observed that the term is now used colloquially to refer to all secret detention centres. The phenomenon is similar to how all motorcycles are commonly referred to as “Honda” in Bangladesh. Thus, this shift in usage should not cause confusion.



21 Fig: JIC cells with characteristic rough walls

JIC was run entirely by military officers seconded to DGFI. It contained multiple interrogation rooms where detainees were tortured using beatings, suspension from ceilings, electric shocks, and disorientation through rotating chairs. Loud exhaust fans masked the noise, and victims were kept blindfolded and shackled for long durations, often in solitary confinement. Survivors interviewed by the Commission continue to exhibit lasting psychological trauma, even years after their release. Code BHHG¹⁰ remembers:

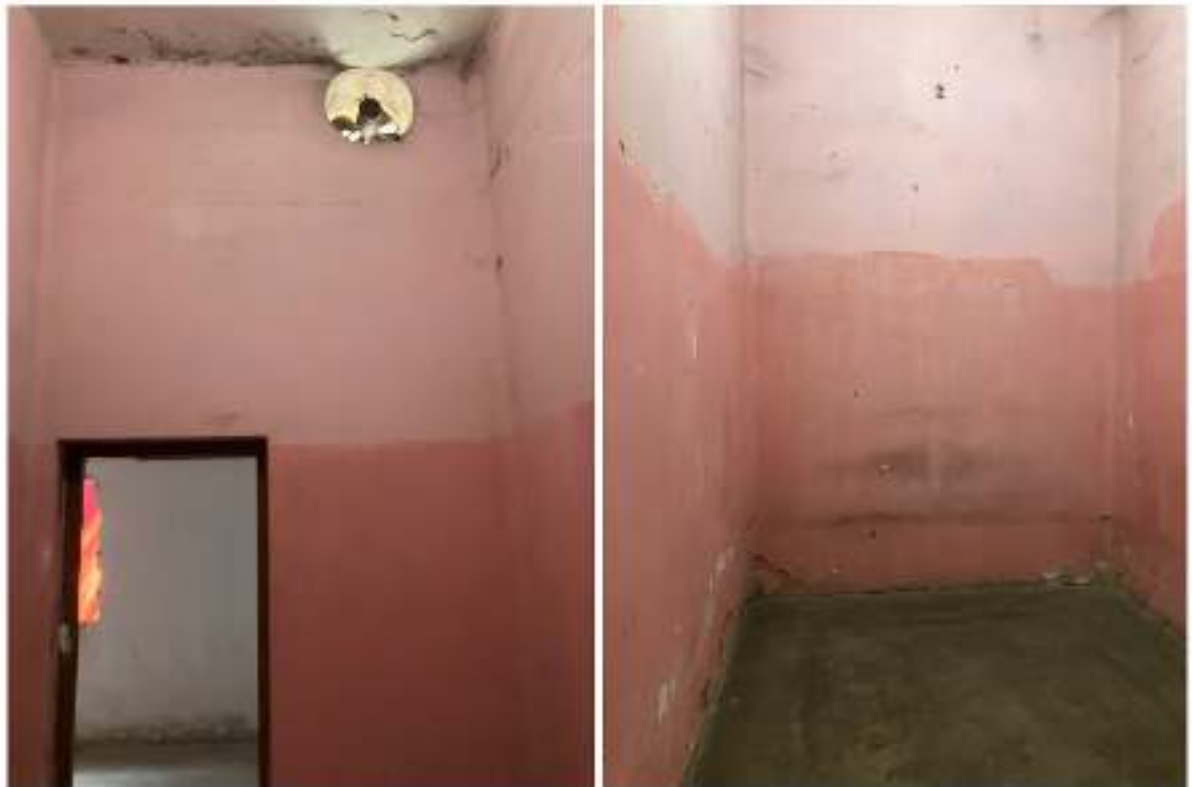
ভবনে প্রবেশের জন্য দুটি সিঁড়ি বেয়ে উপরে উঠে একটি করিডোরে ঢুকতে হতো, যেখানে পরপর পাঁচটি কক্ষ ছিল এবং করিডোরের শেষে বাথরুম ছিল; আমি ছিলাম প্রথম কক্ষটিতে। আমার কক্ষের দেয়ালগুলো ছিল লালচে এবং বেশ পুরনো, সিলিং ছিল প্রায় ১২ ফুট উঁচু। কক্ষের ভেতরের আসবাবপত্রের মধ্যে ছিল কেবল একটি কাঠের চৌকি, যার উপর তৈশক ছাড়া শুধু চাদর বিছানো থাকত এবং একটি বালিশ। লোহার গেটের সাথে বাইরের দিকে একটি কাঠের দরজা লাগানো থাকত যাতে বাইরে আসামিদের আনা-নেওয়া দেখা না যায়, যদিও আমার কক্ষের কাঠের দরজাটি খোলা থাকত। দরজার ডানপাশের কোণায় একটি পুরনো, বিশ্রী শব্দ করা একজস্ট ফ্যান বসানো ছিল, যা রোটেশন মেনে চলতো। খোলা দরজা দিয়ে আমি করিডোর এবং আবছাভাবে দেয়ালের নকশার ফাঁক দিয়ে গাছপালা ও দূরে দালান দেখতে পেতাম। এছাড়া, দিনের বেলা উড়োজাহাজ ও রেল ট্রেনিংয়ের শব্দ শোনা যেত এবং আমি দেয়ালে দাগ কেটে দিন গুনতাম। পরবর্তীতে, ডিজিএফআই থেকে আমাকে র্যাবের কাছে হস্তান্তর করা হয়।^{vi}

¹⁰ 26 year old male; abducted by DGFI and RAB 2 in 2015; disappeared for 515 days



22 Fig: Toilet

Due to DGFI's limited operational capacity, it frequently relied on RAB Intelligence for operational support when conducting abductions. After interrogation and torture, detainees were either returned to RAB or transferred to the Detective Branch, where many were subsequently executed extrajudicially or held under fabricated charges for extended periods.



23 Fig: JIC cells with characteristic high ceilings

Although the DGFI has played an essential role in national defence and counterterrorism, its expansion into civilian and political domains has posed grave risks to democratic governance and civil liberties. Its future legitimacy as an intelligence agency depends on urgent reforms aimed at ensuring transparency, accountability, and compliance with human rights standards. Only then can it function as a professional and apolitical institution within a democratic framework.

4.6 National Security Intelligence

The National Security Intelligence (NSI) functions as Bangladesh's principal civilian intelligence agency under the Defence Minister's Office, with mandates covering both domestic and foreign intelligence. It collects and analyses information related to national security, counterintelligence, counterterrorism, and the surveillance of political and subversive activities. It also engages in border intelligence and monitors threats to state sovereignty.

The NSI operates alongside other agencies, such as the Directorate General of Forces Intelligence (DGFI) and the Special Branch (SB), leading to overlapping jurisdictions, redundancy, and inter-agency friction. Its operational effectiveness has come under serious scrutiny due to increasing politicisation. Allegations suggest that the agency is used to monitor and suppress political opposition, civil society, and journalists rather than focus strictly on national security threats.

The NSI operates without a comprehensive legal statute defining its powers, limitations, and oversight mechanisms. It lacks independent parliamentary or judicial oversight, raising concerns about unchecked authority and the potential for human rights violations. Human rights organisations also accuse it of involvement in torture and other abuses, with victims having limited legal recourse due to the opaque nature of its operations. The Commission has received complaints implicating the NSI in enforced disappearances. BIJG¹¹ remembers:

একপাশে ছিল লোহার শিক। শিকের বাইরে দেওয়ালে জিএফসি ফ্যান সারাক্ষণ খুব জোরে আওয়াজ করে চলত আর আলো থাকত। সেখানে আমাকে চোখ বাঁধা অবস্থায় সম্পূর্ণ বিবদ্ধ হতে বলা হয়েছিল। তারপর আমাকে একটি কমলা রঙের ফতুয়া ও হাফপ্যান্ট পরানো হয়, যা নামাজের জন্য বসলে হাঁটু বের হয়ে যেত। সেল থেকে বেরিয়ে হাতের দান দিকে টয়লেট ছিল। সেল ৫ ফিট বাই ৮ ফিটের মতো। একজন কালো রঙের ভদ্রলোক আমার ছবি ও উচ্চতা মাপার কথা বলে এবং বলে যদি 'ভালো ব্যবহার' করি তবে তা আশীর্বাদ হবে, আর যদি 'তেরামি' করি তবে সে এত খারাপ হবে যা আমার কল্পনার বাইরে।^{vii}

While the NSI plays a vital role in maintaining national security and has contributed to counterterrorism and intelligence efforts, it faces critical challenges. These include politicisation, lack of transparency, inadequate oversight, and serious human rights concerns. Addressing these issues requires substantial legal and institutional reform to ensure the NSI functions as a modern, accountable intelligence agency.

¹¹ 50 year old male; abducted by NSI and RAB 4 in 2022; disappeared for 30 days



24 Fig: The rotating chair torture device found at NSI

4.7 Border Guard Bangladesh

The Border Guard Bangladesh (BGB), formerly known as the Bangladesh Rifles, functions as a paramilitary force primarily responsible for guarding the country's borders. Operating under the Ministry of Home Affairs, it undertakes a range of duties including preventing cross-border crime and smuggling, countering human trafficking, and supporting internal security operations. Following the 2009 BDR mutiny, the force underwent reorganisation and rebranding as BGB, with enhanced oversight and renewed mandates.

Credible allegations from both local and international human rights organisations—including Human Rights Watch and Amnesty International—accuse Bangladeshi security forces, including the BGB, of involvement in enforced disappearances, particularly since 2010. Although elite units such as the Rapid Action Battalion (RAB) and Detective Branch (DB) are more frequently cited, BGB is implicated in several cases, especially in border and counter-insurgency contexts. In areas bordering India and Myanmar, reports have emerged of extrajudicial killings and disappearances linked to BGB operations. These incidents often remain undocumented due to the remoteness of the regions and restricted media access.

Enforced disappearance constitutes an inter-state crime due to its cross-border dimensions. Victims are at times abducted in one country and delivered to the authorities of another, making the involvement of border security forces from both states almost inevitable. The Commission's inquiry finds that such cross-border transfers or exchanges of captives would not be possible without the collusion or active cooperation of BGB and the Indian Border Security Force (BSF). Cases such as the disappearances of Shukhoranjan Bali, BNP leader Salauddin Ahmed, Mehedi Hasan Dollar, and Rahamatullah serve as stark examples of cross-border rendition involving India.

Testimony before the Commission reveals that RAB usually notified BGB before conducting cross-border renditions, specifying border locations where their vehicles would cross a few hundred metres into Indian territory and captives would be transferred from Bangladesh to India. Detainees were reportedly handed over to Indian intelligence and security agencies directly or through intermediaries.

While the BGB plays a vital role in safeguarding national security, persistent allegations of enforced disappearances seriously undermine its legitimacy and the rule of law. In the absence of accountability, such abuses risk becoming institutionalised, weakening democratic structures and threatening the fundamental rights of citizens. A transparent, rights-based reform process is essential to restoring the credibility of the BGB and strengthening the broader security architecture of Bangladesh.

5. A brief overview of numbers

This chapter examines what the Commission's data reveal about the nature, scale, and evolution of enforced disappearances in Bangladesh. Drawing on verified complaints, follow-up inquiry, survivor testimony, and independent corroboration, it traces which groups were targeted, how cases unfolded, which institutions were involved, and how outcomes changed over time. The analysis shows that enforced disappearance was not a collection of isolated abuses, but a structured practice that expanded, adapted, and aligned closely with political pressures, security operations, and institutional priorities. Taken together, the patterns that emerge help clarify the broader logic that governed the system of enforced disappearances.

5.1 The breakdown of complaints

A total of **1,913 complaints** were filed with the Commission. After intensive scrutiny, 231 were found to be duplicates. In many instances, the same case had been sent through multiple channels, for example, by email, courier, and in-person submission, or both an organisation and the affected individual had submitted separate complaints about the same incident. Identifying these duplicates was painstaking. Names, narratives, and even dates often varied, and in numerous cases National ID numbers had not been included, requiring us to collect them ourselves. Where necessary, we used phone numbers, cross-referenced witnesses, and conducted follow-up verification. This left **1,682 unique complaints**.

After removing duplicates (231 files) and non-qualifying cases (113 files, discussed below), we were left with 1,569 complaints involving potential enforced disappearance, i.e. about 82% of all complaints. Therefore, a large majority of complaints were substantiated, indicating that enforced disappearance is not a marginal or sporadic phenomenon but a systemic issue reflected in verified cases.

Within these cases, 251 victims never returned and are presumed dead, while a further 36 bodies were recovered after periods of enforced disappearance, often following so-called “crossfire” incidents or discovered in rivers with characteristic gunshot wounds. Taken together, this means that, even from the limited set of complaints formally filed with the Commission, at least **287 deaths** are plausibly associated with enforced disappearance.

Against this backdrop, of the 1,569 complaints that qualify as potential enforced disappearance, the largest proportion concern individuals who ultimately resurfaced. A total of **1,282 people reappeared** after varying periods in illegal custody. While most victims eventually resurfaced, the fact that one in six victims remains missing points to continuing

uncertainty, profound trauma, and absence of closure for families. The documented deaths, although numerically smaller, highlight the lethal risks inherent in the system of disappearance.

Turning to gender, 1,546 victims were male (≈ 98.5 per cent), while 23 were female (≈ 1.5 per cent). These figures suggest that enforced disappearance overwhelmingly targets men, reflecting patterns linked to political activity, perceived security threats, or socially assigned male roles.

However, the number of women reported as disappeared is almost certainly an undercount. Families frequently described intense stigma, fear, and social pressure surrounding the reporting of female disappearances, and in several instances women expressly refused to submit complaints. The smaller number of recorded female victims must therefore be read alongside this context of silence and reluctance. Even so, the presence of female victims remains significant and warrants focused attention, given the specific risks and vulnerabilities they face.

Some of these figures differ from those published in earlier interim reports. This reflects the Commission's continuing work to eliminate duplicates, remove non-qualifying complaints, and reconcile inconsistencies across sources. Further refinements may occur as subsequent investigators continue the process.

5.2 Estimates of enforced disappearances between 2009-2024

The complaints submitted to the Commission almost certainly represent a substantial undercount, particularly for the earlier years. In many instances, families did not know where to submit complaints, lacked confidence that reporting would lead to meaningful action, or feared retaliation. Under-reporting is especially acute where victims have died. Families frequently do not know the cause or circumstances of death and therefore do not always recognise it as the outcome of an enforced disappearance. In such cases, the deaths never enter the formal record at all.

Based on our estimates, the 1,569 unique complaints we received likely represent only one-third to one-quarter of the actual caseload. Extrapolated across the total universe of incidents, at a 1:3 to 1:4 ratio, this would imply between **approximately 4000 and 6000 potential cases of enforced disappearance**.

We arrived at this estimate in two main ways.

First, individuals who later faced manufactured criminal cases often reported that several of their co-accused had also been subjected to enforced disappearance, yet many of those people never submitted complaints to us. Some may have obtained temporary relief in their cases; others remained afraid to come forward. In numerous files, a single charge sheet listed four or five individuals, yet only one of them contacted the Commission. This consistent pattern strongly suggests that the true number of disappearances is significantly higher than what is reflected in our formal caseload.

Second, even in cases of the missing where we were able to investigate further, follow-up inquiries frequently revealed additional victims we had not previously known about. One

example concerns Code DEF¹², involving a young man who disappeared at the age of twenty-two. As we examined the case, it became apparent that he had been picked up together with his brother and that a vehicle marked RAB 11 had been seen at the scene. Later that same day, a friend who had tried to prevent the abduction was also detained when the abductors returned.

Initially, only the missing brother's case had been reported to us. Through subsequent inquiry, we located the other two men, both of whom were by then living abroad (the brother in the Maldives and the friend in Saudi Arabia). Their testimonies allowed us to reconstruct events across the three interlinked disappearances.

The surviving brother resurfaced within about a month and described detention conditions that closely matched RAB 11 facilities. In contrast, the friend was held from April 2016 to 16 December 2016 and released without any criminal case being filed against him. His detailed testimony was consistent with detention at the TFI centre run by RAB Intelligence. However, on the first night, likely whilst in transit, he had been kept with the missing man at Cumilla Police Station and later transferred to an unknown facility, likely again associated with RAB 11, where he saw uniformed RAB personnel. He was also questioned about the missing man at the TFI centre.

Taken together, the cumulative evidence indicates that RAB was *prima facie* involved in this cluster of enforced disappearances. The friend was unquestionably in RAB Intelligence custody; RAB 11 was involved in the initial pick up, and possibly in the surviving brother's detention. What remains uncertain is which part of RAB's structure ultimately retained custody of the brother who never returned: whether RAB 11 or RAB Intelligence. That uncertainty itself reflects the opacity of command and custody practices.

This case also demonstrates how disappearances frequently remain undocumented. Neither the brother who resurfaced nor the friend initially filed complaints; it was only after intensive tracing and outreach that we learned of their experiences, at which point we urged them to submit complaints — advice that is not always followed. During his detention, the friend reported being held in a space that would later be the corridor outside Barrister Arman's cell. He was permitted to use the toilet attached to the neighbouring cell. There, he observed long strands of a woman's hair and heard the voice of a woman who appeared to have been held there for at least a day. He also recalled hearing the interrogation of a religious teacher from Gazipur. These accounts point to an active detention site operating at that time, yet none of the individuals he described ever appear in our files. This example shows how a single reported disappearance may mask several unreported ones, and how the full scope of enforced disappearance remains partially hidden even after extensive inquiry.

Based on repeated patterns observed during this inquiry, the Commission adopted a conservative working assumption: that each documented complaint may conceal approximately three to four additional cases of enforced disappearance. We did not apply higher multipliers occasionally suggested by some witnesses (such as seven to nine cases per complaint), nor lower assumptions of one or two; rather, the figure reflects what was most consistently observable. Applying this 1:3-1:4 ratio across the Commission's caseload, we estimate that between 4,000 and 6,000 enforced disappearances may have occurred during the Awami League's fifteen-year tenure. This estimate does not purport to be exhaustive, but it reflects the most reasonable approximation available based on the evidence reviewed.

¹² 22 year old male; disappeared by RAB in 2016; still missing

5.3 Not enforced disappearance

Of 1,682 unique files, 113 complaints were found, after inquiry, not to fall within the legal definition of enforced disappearance. In some cases, the alleged perpetrator was not a law-enforcement body. In others, the detention constituted a routine arrest where the period of custody was less than twenty-four hours. Establishing such exclusions was rarely straightforward. Demonstrating that law enforcement was *not* involved often required as much effort as proving that it was.

The following case illustrates the complexity of determining whether a disappearance falls within the legal definition of enforced disappearance. A young man (Code BHED¹³) travelled for extremist training to the hills of Chittagong and subsequently disappeared. Arrested Islamist militants who had attended the same training told the family afterwards that he had died of natural causes due to the harsh camp environment and had been buried there.

RAB Intelligence later flew the family by helicopter to what was purportedly the gravesite. When the grave was opened, instead of the body, it contained only a blanket. Adding to the mystery of the missing body, the family was told—through enforced disappearance survivor networks—of a detainee in a RAB 7 cell who had described someone in the adjacent cell whose personal details closely matched their relative, creating doubt as to whether he was dead or secretly detained.

Understandably, the family was thrown into deep uncertainty. The officer who had arranged the helicopter ride urged them to file a murder case against the militants; although at his insistence they did do so, the circumstances had already made them very confused.

While inquiring into the complaint filed by the family, the Commission pursued every lead exhaustively. Individuals with direct knowledge of the militant camp independently confirmed that the young man had indeed died there of natural causes and been buried by his associates soon after. The missing body, however, remained unexplained.

Eventually, a credible RAB Intelligence operative with first hand knowledge explained that a separatist group active in the same area had found the grave and disposed of the deceased man's remains in the river. They had extracted this information from a member of the separatist group in their custody. The earlier officer's insistence on filing a murder case was apparently motivated by a desire to ensure that the militants already in custody would face charges severe enough to keep them detained.

The needless confusion and misdirection described above had profound human consequences. The young man's sister told the Commission that, as painful as it would have been, knowing the truth, including the fact of her brother's extremist involvement and subsequent death, would have been preferable to this prolonged uncertainty. "On the streets, I scrutinise every man who resembles my younger brother in case it is him," she said, crying quietly.

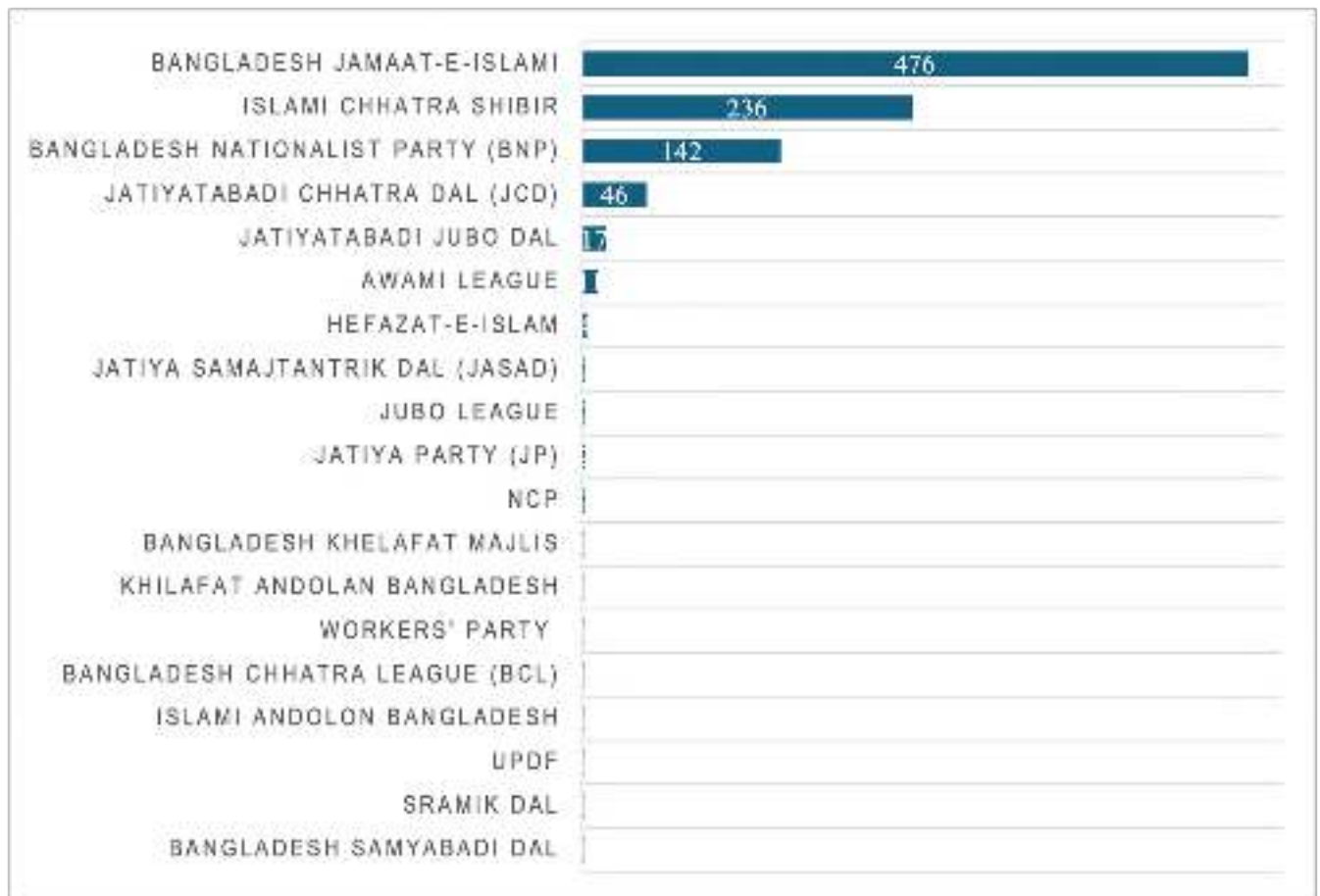
Ironically, the murder charge is unlikely to succeed, and the accused militants may cultivate a sense of grievance at being falsely charged, when they could have been prosecuted for the grave offence they had actually committed: participation in illegal militant training. This episode demonstrates both the chaotic nature of 'justice' in some contexts and the

¹³ 23 year old male; disappeared in 2022; not enforced disappearance

extraordinary investigative efforts often required simply to determine that a case does not constitute enforced disappearance.

5.4 Political identity and Patterns of disappearance

Understanding political identity is essential to interpreting enforced disappearances in Bangladesh. Political affiliation reveals not only who was exposed to risk, but also whether disappearances resulted from random policing or reflected selective, targeted enforcement.



25 Fig: Distribution by political identity (n = 948)

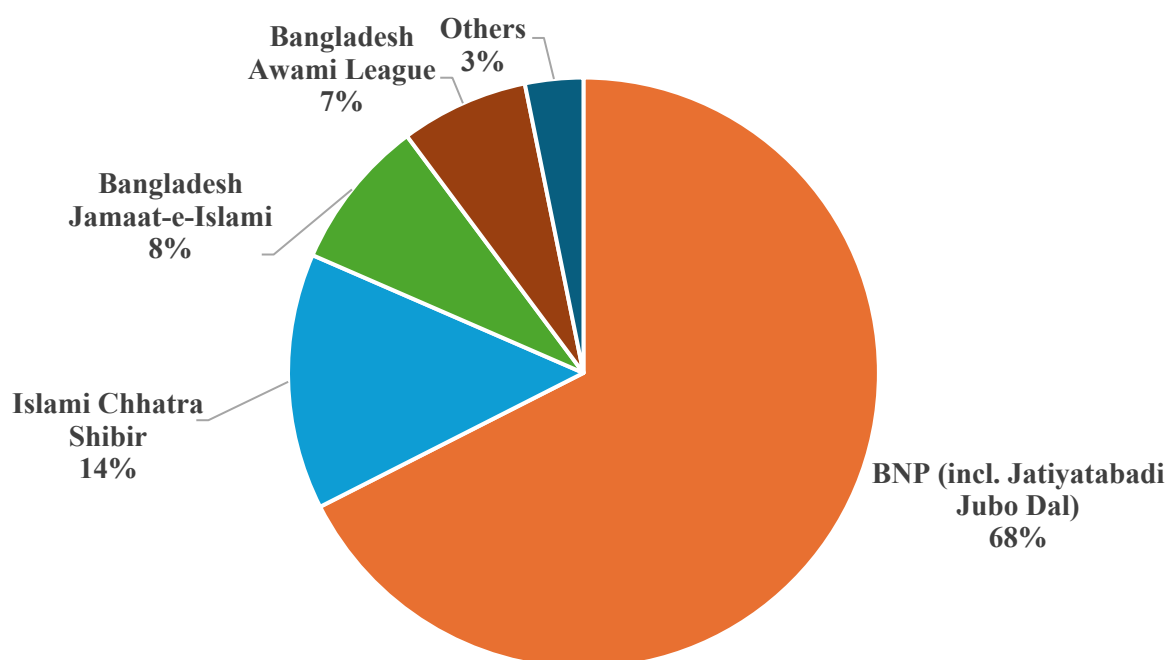
The chart above shows political affiliation across the broader dataset, including those who resurfaced and those who remain missing. The distribution is highly skewed:

Bangladesh Jamaat-e-Islami: 476 ($\approx 50.2\%$)
 Islami Chhatra Shibir: 236 ($\approx 24.9\%$)
 Bangladesh Nationalist Party (BNP): 142 ($\approx 15.0\%$)
 Jatiyatabadi Chhatra Dal (JCD): 46 ($\approx 4.9\%$)
 Jatiyatabadi Jubo Dal: 17 ($\approx 1.8\%$)

Together, opposition party affiliations account for approximately 96.7% of all victims with known political identity (n = 948, including survivors as well as the missing and deceased). Ruling-party affiliates appear only marginally. Even if one were to accept Awami League's

claim that these individuals were all criminals, a basic question remains unanswered: where, then, are the Awami League criminals in the victim pool? The absence is telling.

This distribution demonstrates that enforced disappearances and related abuses were not politically neutral, but overwhelmingly directed at individuals associated with opposition politics. The concentration of victims among Bangladesh Jamaat-e-Islami, Islami Chhatra Shibir and BNP points to selective and systematic targeting of specific political ideologies rather than random or indiscriminate action. A significant proportion of victims were drawn from student and youth organisations, indicating heightened vulnerability among politically active young people. These patterns closely align with periods of political confrontation, counter-terrorism operations, and intensified suppression of opposition activism.



26 Fig: Political identity of the missing (n=157)

When the analysis focuses only on those who remain missing, the distribution shifts. Among missing persons with confirmed political affiliation:

BNP and its affiliates together constitute roughly 68% of the missing, whereas Jamaat-e-Islami and Islami Chhatra Shibir account for roughly 22% of the missing.

This pattern contrasts strikingly with the wider dataset, where Jamaat and Shibir together dominate the count, and BNP is comparatively smaller. The difference between these two distributions is too large to attribute to chance. Instead, it suggests that different enforcement strategies may have produced different outcomes. It also likely points to different timelines and different legitimization priorities (discussed in Section 5.5 below).

We also took into account cases in which no political identity was reported. Approximately 40-45% of complainants across both datasets did not declare any political affiliation. Interviews indicate that this silence was often driven by fear, particularly during the first year

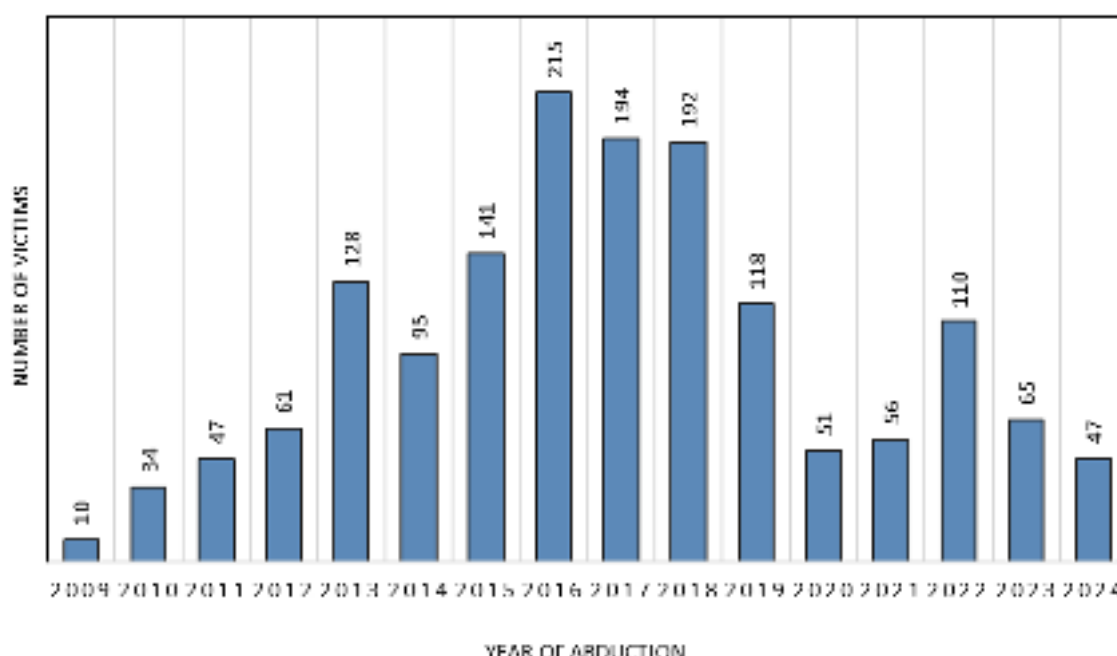
of the Commission’s work when most complaints were recorded. Although conditions improved slightly over time, many victims and families remained reluctant to disclose political associations. Even phone calls asking for clarity were treated with suspicion and hostility.

This category therefore requires methodological caution. It likely includes a three-way mixed population: individuals who were genuinely apolitical, opposition party supporters who chose not to disclose their affiliation, and ruling party supporters. The Commission cannot reliably distinguish between silence born of fear and silence reflecting genuine non-affiliation, and accordingly refrains from drawing definitive conclusions about this group.

However, even under the most conservative assumptions, this does not alter the overall pattern. Even if the “no political identity” group were evenly distributed across the three potential categories, opposition parties would still be overwhelmingly overrepresented in the victim pool, while ruling-party ties remain marginal. The core finding—that enforced disappearances were deeply entangled with political identity—therefore remains robust. If anything, underreporting of political affiliation is more likely to understate, rather than exaggerate, the degree of political targeting reflected in the data.

5.5 Trends in enforced disappearances over time

Understanding when enforced disappearances occurred is as important as knowing who they affected. When we examine year-by-year patterns, a picture emerges not of random law-enforcement activity, but of a practice that expands and contracts in response to political pressure, elections, security crises, and institutional shifts.



27 Fig: Number of enforced disappearances per year (n=1564)

The overall distribution shows a steady climb from 2009, increasing sharply after 2012, and remaining high through the middle of the decade. The decline after 2018 does not mark the

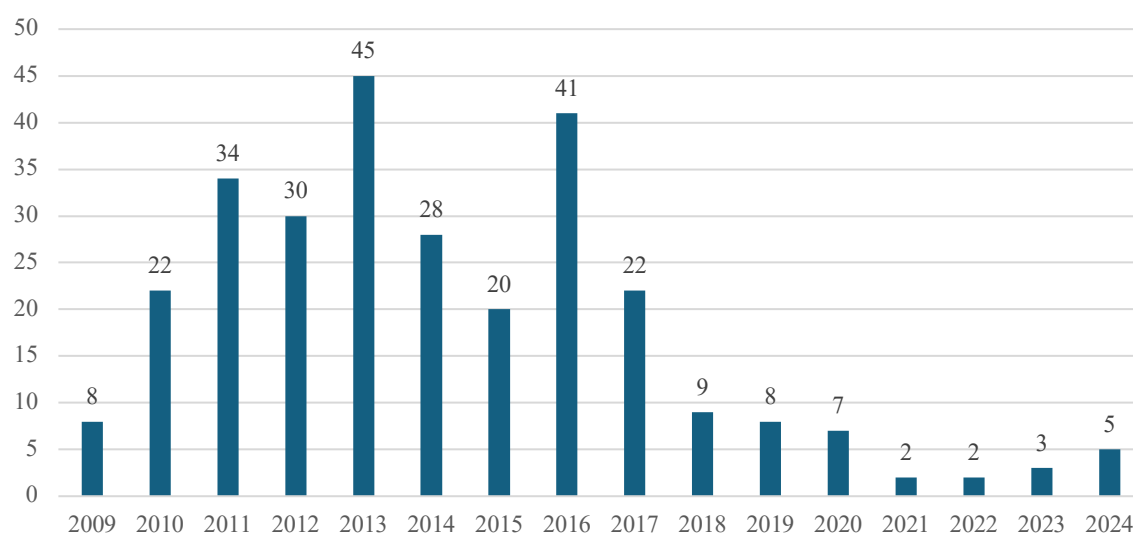
end of the practice; rather, enforced disappearances continue at lower but still significant levels.

It is important not to interpret this chart as a definitive historical record. The dataset is shaped by the realities of documentation. Individuals who were disappeared many years ago and later resurfaced, often traumatised or fearful, may never approach the Commission. Earlier years therefore almost certainly contain silent cases that will never be captured. What we see here, especially in the pre-2012 period, should be read as a minimum estimate (a floor) rather than a complete accounting (a ceiling).

The trend line also corresponds closely with political developments. The surge in 2013 coincides with unrest surrounding the January 2014 national election, marked by widespread protest and opposition repression. A similar dynamic surrounds the 2018 election, which was preceded by intensified policing and preventive detention. Even 2022, without a national vote, saw renewed street mobilisation and confrontation, reflected again in the figures.

Security crises played an additional role. The 2016 Holey Artisan attack ushered in an extended phase of counter-terror operations. In the years that followed, the divide between political control and counter-terror policing often blurred. The same institutions, and at times the same officers, moved between these domains, and unlawful methods migrated with them.

Leadership and institutional change also appear significant. Major shifts within law enforcement, including the exit of Major General Ziaul Ahsan from the role of RAB's ADG (Ops) in 2016, coincide with a gradual reduction in permanent disappearances. This does not suggest that coercion ceased. Rather, the form of coercion evolved: fewer persons vanished permanently, while increasing numbers resurfaced later in custody and sham court proceedings.



28 Fig: Year wise data from missing cases (n=286)

A different pattern emerges when the analysis is restricted to those who never returned. Missing cases are concentrated between 2011 and 2016, and then decline sharply. After 2017, enforced disappearances continue, but far fewer culminate in permanent disappearance. This contrast supports the inference that policy and practice shifted. Earlier years more frequently

produced outcomes involving death or permanent loss. Later years more often resulted in detention, intimidation, and eventual resurfacing through legal or quasi-legal processes. The underlying coercive machinery remained in operation, but its outcomes changed.

Seen this way, the data show both political families suffered but not identically. Two distinct patterns of harm emerge. First, Bangladesh Jamaat-e-Islami and Islami Chhatra Shibir members appear disproportionately among those detained, harassed, surveilled, and processed through criminal cases. Second, BNP activists and affiliates, by contrast, appear more likely to have been disappeared and, in many instances, eliminated rather than resurfaced. The data suggest that a substantial proportion of the roughly 70% BNP deceased victims fall within the pre-2016 period, while post-2016 resurfacing cases show greater concentration among BJI-Shibir victims. This does not imply that one group uniformly survived while the other did not; rather, it reflects shifts in methods and outcomes over time within an overall system of political repression. These figures reflect proportional patterns rather than absolute numbers.

Two factors likely explain this difference. First, the post-2016 intensification of the “war on terror” altered incentives. Producing detainees alive—particularly those who fit the familiar BJI-Shibir “bearded men” tropes—helped project Bangladesh internationally as a decisive counter-terror state. Political control no longer required widespread killing; detention, prosecution, and controlled resurfacing could achieve similar ends while acquiring the necessary international legitimacy. It’s worth noting that CTTC, heavily funded by USA, was set up around 2016. Second, institutional changes in leadership mattered. Officers such as Ziaul Ahsan, who pioneered earlier killing practices, were promoted out of RAB in 2016. The highly efficient system they built did not disappear, but it took time to replicate, and in the meantime, methods adapted rather than vanished.

Taken together, these patterns point to system-wide intentionality. Enforced disappearances did not occur randomly, nor did they simply rise and fall by chance. They expanded, contracted, and changed form in response to elections, security crises, leadership shifts, and international scrutiny. Future claims that these practices amounted merely to apolitical crime control are not borne out by the evidence. What the data reveal instead is sustained political intentionality, not neutral law enforcement.

Understanding these data also requires revisiting how victims were described. Official narratives frequently assigned identities that appeared to depend less on who the individual actually was and more on the geography in which that person was found or killed.

This pattern was observed with particular clarity during inquiries into cases in the Sundarbans.¹⁴ Officers reported detainees being moved at night, restrained, blindfolded, and gagged, including an instance in which as many as 39 detainees were taken in three boats during a single operation. For those subsequently recorded as killed rather than disappeared, official reports routinely described them as “killed in crossfire” during anti-piracy operations.

¹⁴ All testimony in this section is drawn from witnesses in an ongoing legal case, and their identities have therefore been withheld for reasons of safety. The witnesses include both civilians and members of the armed forces. Testimony relating to the Sundarbans relies on a combination of officer accounts, civilian observations, and circumstantial indicators. Although these sources converge, they do not always allow for definitive identification of specific individuals. The Commission therefore treats these accounts as credible evidence of pattern and practice, rather than conclusive proof in individual cases.

Over time, however, this narrative has come under serious doubt. One officer explained that although he could not see the detainees' faces or speak with them, a number of physical indicators suggested prolonged captivity rather than long-term residence in mangrove terrains. Several of the men had markedly overgrown toenails, for example. Their feet appeared soft and uncalloused. By contrast, individuals who regularly move barefoot through the Sundarbans develop thickened soles and a pronounced, permanent discolouration from extended contact with saline mud. Civilian witnesses independently reported similar observations. One resident demonstrated this by reference to his own feet, explaining that people who survive for long periods in those environments acquire distinctive markings over time. The men he had seen on the boats, presented as Sundarbans outlaws, did not display those characteristics.

Comparable dynamics were documented elsewhere. In Cox's Bazar, men killed in operations were often recorded as narcotics traffickers. In Narayanganj, they were labelled as gang members. Elsewhere, men with long beards were routinely described as Islamist extremists. In each location, identity appeared to follow geography rather than verifiable fact.

Thus where detainees were killed and can no longer speak for themselves, these official descriptions now constitute the only surviving record of who they were said to be. As one officer testified, this caution about identity extended across types of elimination methods:¹⁵

গল্ফ অপারেশন পরিচালনার ক্ষেত্রে এক এলাকার ভিকটিমকে অন্য এলাকায় ডিস্পোজ অফ করা হত। যাতে করে দুর্ঘটনা বশতঃ ডেড বডি ভেসে উঠলেও তা যেন আন-আইডেন্টিফাইড রয়ে যায়।^{viii} [Golf was synonymous with enforced disappearance.]

In one case, the Commission supervised the exhumation of a grave officially attributed to a disappeared man, following sustained appeals by his family. DNA analysis confirmed that the remains belonged to another individual entirely. The episode shows the extent to which erroneous identity claims can become institutionalised, sometimes persisting unquestioned for years.

These examples illustrate how sustained reliance on ad hoc, extra-legal enforcement corrodes confidence in official accounts. Without independent corroboration, such labels cannot safely be treated as reliable indicators of a victim's identity, activities, or affiliations.

Taken together, the charts and testimony highlight three central conclusions. First, enforced disappearance is cyclical, intensifying at moments of electoral stress, political confrontation, and perceived security crises. Second, the practice has evolved over time: earlier years produced higher proportions of victims who never returned, while later years relied more heavily on detention, prosecution performance, and controlled resurfacing. Third, these shifts were accompanied by systematic manipulation of identity and narrative, obscuring who many victims actually were and why they were targeted.

Thus, the practice of enforced disappearance did not simply rise, peak, and recede. It adapted. The logic behind it persisted, even as outward forms shifted in response to elections, crises, institutional preferences, and political priorities. Any serious interpretation of the data must

¹⁵ As a witness in an ongoing legal case, the individual's identity has been withheld for safety.

therefore view the numbers not only as statistical records, but as evidence of a changing strategy of coercion.

5.6 Forces involved in abductions

RAB is named as the predominant force in almost 25 per cent of complaints, followed by the police in nearly 23 per cent and the DB in 14.5 per cent of complaints. CTTC appears in around 5 per cent of cases, a proportion shaped in part by the fact that it only began operations in 2016, midway through the period under review. DGFI and NSI are cited less frequently, in 31 and four cases respectively. These lower counts do not necessarily reflect lesser involvement: due to stringent security protocols in intelligence facilities, detainees held by DGFI or NSI are often unable to identify either their location or their custodial authority. In a further 37 cases (2.4 per cent), victims reported being taken by men in plainclothes whose institutional affiliation could not be determined. Another 119 complaints (7.6 per cent) referred to teams claiming simply to be “from the administration” (“proshashoner lok”), suggesting deliberate reliance on ambiguous authority to legitimise detentions and evade accountability.

Patterns across the caseload indicate that enforced disappearance functioned as a routine *modus operandi* primarily for RAB and the intelligence agencies, particularly DGFI. Intelligence agencies lacked arresting authority and therefore relied on secret detention to manage captives, while RAB appears to have evolved from a culture centred on “crossfire” to one in which disappearance became a normalised instrument, as discussed in Chapter 1.

Beyond single-agency operations, a substantial proportion of abductions appear to have been conducted jointly. The most frequent pairings include DB with police (160 cases), DGFI with RAB (43), CTTC with DB (31), DB with RAB (25), and police with RAB (14), alongside smaller but notable multi-agency combinations involving three or more forces. The prevalence of such collaborations points to coordination across state institutions rather than isolated misconduct. RAB, the police, and DB together account for the bulk of alleged involvement, whether acting alone or jointly, underscoring the systemic nature of the practice.

5.7 A system that could not exist by accident

Taken together, the data show that enforced disappearance in Bangladesh was systemic, disproportionately targeted male political actors, and was predominantly linked to state security and law-enforcement institutions, with a significant proportion of victims still unaccounted for. Patterns of joint operations, inter-agency coordination, and asserted authority indicate an organised practice rather than isolated misconduct, pointing to the need for urgent legal, institutional, and accountability-focused reform.

The long duration, scale, and adaptive nature of enforced disappearances strongly suggest that the practice did not arise accidentally, nor could it have continued without authorisation at senior political levels. Over more than a decade, methods changed in response to elections, crises, leadership transitions, and reputational pressure. This pattern presupposes coordination, policy learning, and strategic oversight.

Individual officers can and do act unlawfully, but they cannot independently sustain a nationwide system involving multiple agencies, secret detention facilities, staged media

narratives, and the managed reappearance of detainees. The evidence instead points to a practice that was known, tolerated, and periodically adjusted rather than dismantled.

In this sense, enforced disappearances in the Awami League-era are best understood not as aberrations, but as instruments of governance. They operated in a permissive space that could only have existed with knowledge and toleration at the apex of political authority. Given the centralised style of decision-making during this period, and the degree of coordination required across agencies, it is difficult to conceive that such a system could have functioned for over a decade without the awareness of Sheikh Hasina and those immediately around her.

6. The anatomy of enforced disappearance

This chapter reconstructs enforced disappearance as a repeatable process with identifiable stages and tactics. Across testimonies, common rituals emerge: surveillance and selection; unobtrusive abduction; incommunicado detention; systematic torture and interrogation; and, in many cases, a controlled “reappearance” through staged arrest, press presentation, and fabricated charging. In other cases, the process ended not in reappearance but in elimination, including unlawful execution and disposal of the body, often accompanied by official denial. By detailing the “how”, the Commission clarifies what cannot plausibly be explained as accident, misunderstanding, or isolated excess.

A key finding of our inquiry is that the ‘gloom culture’—or the culture of enforced disappearance—was systematically designed over 15 years to remain undetectable. For instance, security forces would frequently operate in plain clothes and falsely attribute their actions to other agencies. If DGFI was operating, they would claim to be RAB; if it was RAB, they would claim to be DB, etc. The forces would also exchange victims amongst themselves, with one force abducting, another incarcerating, the third one killing or releasing the victims. Call records of one victim showed that his SIM card was activated at DGFI Headquarters soon after his abduction (Code BGDE¹⁶). Whilst his description of the cells he was kept in and his fellow inmates at the relevant time appeared to confirm his first location was DGFI’s JIC, he was subsequently taken to several RAB detention facilities in Dhaka that we identified through the descriptions of the cells, and finally he was shown arrested months later by RAB 7 in Chittagong. This misdirection ensured that, even when a survivor emerged, identifying the responsible entity remained difficult.

Moreover, even when it was a single force carrying out an enforced disappearance, the operations were deliberately segmented. The team responsible for the abduction would differ from the team managing detention, which in turn would differ from the team carrying out elimination. As a result, even individuals directly involved in victim elimination teams often lacked knowledge of who they were eliminating or the broader context of the operations. However, interviews with officers across the various security forces confirmed that high-ranking officers almost certainly possessed this information, underscoring the importance of targeting investigative as well as accountability efforts at the leadership level.

Additionally, the frequent rotation of teams, the blending of jurisdictions, and the lack of clear operational boundaries compounded the clandestine nature of the crime. For instance, RAB 2 could easily conduct operations within RAB 11’s jurisdiction without raising any internal

¹⁶ 37 year old male; abducted by DGFI, RAB Intelligence and RAB 7 in 2016; disappeared for 167 days

questions. This intentional intermingling of jurisdictions and operational areas created a highly opaque system designed to evade scrutiny.

The systemic nature of this design has rendered our inquiry extraordinarily challenging, as the mechanisms in place were specifically intended to conceal responsibility and suppress accountability. It is through the sheer resilience of the surviving victims that we were able to crack the system to the extent we have been able to. For this, they deserve our unending thanks and gratitude.

6.1 Target selection

Across testimonies and institutional records, the Commission identified two principal methods through which targets for enforced disappearance were selected. In some cases, individuals were identified through structured intelligence processes, including surveillance, informant reporting, and prior inclusion on watchlists. In other cases, selection was driven by ad hoc or opportunistic factors, such as political pressure, personal rivalries, or demands from influential actors. Together, these pathways demonstrate that enforced disappearance was neither random nor purely reactive. It combined formal intelligence mechanisms with informal, discretionary power, allowing the system to expand far beyond genuine security threats.

The first pathway operated through a cascading intelligence network. In this system, detainees were interrogated, a process that almost always involved torture, and compelled to provide the names of others. Those named were then picked up, interrogated in the same way, and pressured to identify further “suspects”, creating a cascading chain of disappearances. The Commission documented multiple cases where one coerced statement directly triggered the disappearance of others. Survivors often describe the heavy psychological burden this created. One victim, for instance, justified his actions to himself by saying that he had assumed the authorities would conduct a thorough background check on the individuals he named under duress (Code DDB¹⁷). He believed that anyone innocent would naturally be cleared off. It was only after his release that he discovered one of the individuals he had named was subsequently subjected to enforced disappearance and incarcerated in the same facility as his. Overwhelmed with a sense of guilt, the victim dedicated himself to ensure the release of the individual he had inadvertently implicated through legal channels.

The second pathway involved direct orders from politically powerful or otherwise influential actors. In these cases, disappearances did not emerge from any investigative process; they followed instructions transmitted through the chain of command. For example, Hummam Quader Chowdhury reported that, upon release, he was told: “The Honourable Prime Minister is giving you a second chance, but there are conditions. You must refrain from politics, leave the country, and return only when the situation improves. Understand that the Honourable Prime Minister is granting you a second chance in life.” The Army Court of Inquiry report (2024, p. 27) similarly records that BA 5624 Brigadier M.H. Hafizur Rahman stated he received instructions from the then Colonel GS of CTIB, BA 3970 Colonel Kamrul, to abduct Brigadier Azmi, and that he participated in the operation on that basis.

¹⁷ 27 years old male; abducted by RAB 11 in 2019; disappeared for 41 days

6.2 Surveillance

Interviews with the victims and the members of the Armed Forces confirm that mobile technology was integral to the surveillance process. In interviews, law enforcement officers repeatedly indicated that ‘silent pick-ups’—unobtrusive abductions—were virtually impossible without mobile surveillance to pinpoint the victim’s location with precision. Silent pick-ups served critical operational purpose in the prevailing logic of that time, as evidenced in the following testimony:¹⁸

র‍্যাব-এ থাকা অবস্থায় আমরা একজন বোমাবাজ সন্ত্রাসীকে গোয়েন্দা তথ্যের ভিত্তিতে প্রকাশ্যে একটি দোকান থেকে গ্রেফতার করি, এবং বিষয়টি জিয়া স্যারকে অবহিত করি। জিয়া স্যার আমাকে জিজ্ঞাসা করেন, “তোমরা যে গ্রেফতার করেছ, মানুষ কি দেখেছে?” আমি বলি, “জি, স্যার।” তখন জিয়া স্যার বলেন, “ক্লিন পিকআপ হয়নাই, তাকে ছেড়ে দাও।” আমি রীতিমত অবাক হয়ে যাই। এরপরে র‍্যাব হেডকোয়ার্টারস থেকে র‍্যাব ইন্টের দুইজন সদস্য ব্যাটালিয়নে আসে, এবং তাদের উপস্থিতিতে আমরা ঐ গ্রেফতারকৃত আসামীকে ছেড়ে দিতে বাধ্য হই। পরবর্তীতে র‍্যাব ইন্টের সদস্যরা ঐ আসামীকে কোনরূপ ট্রেস বা সাক্ষী না রেখে অপহরণ করে আবার আমার ব্যাটালিয়নে নিয়ে আসে। ঐ আসামী তখন আমাকে অনুরোধ করে যে, “স্যার, আপনারা মারেন কাটেন যাই করেন, আপনার এইখানেই আমাকে রাখেন, র‍্যাব হেডকোয়ার্টারে পাঠাইয়েন না। এখানে গেলে আমি আর ফিরে আসতে পারবো না।” পরবর্তীতে র‍্যাব ইন্টের সদস্যরা ঐ আসামীকে নিয়ে চলে যায়। তার পরিণতি সম্পর্কে আমি আর কিছু জানতে পারিনি।^{ix}

Prior to the establishment of the National Telecommunication Monitoring Centre (NTMC) as an independent agency, mobile surveillance was conducted through its predecessor, the National Monitoring Centre (NMC), which was housed within the DGFI Headquarters. The DGFI provided dedicated surveillance systems, which were also used by other forces such as RAB and DB, thereby implicating the DGFI in abetting the commission of enforced disappearances by forces other than its own. The NMC hosted dedicated consoles manned by personnel from various agencies working in rotating shifts. BA 2890 Lt General Akbar, DGFI DG (2013-17), also confirmed to the Commission that his organisation provided logistics support related to surveillance to various law enforcement teams while the NMC was housed at DGFI Headquarters. Since the establishment of the NTMC, surveillance activities had transitioned to this independent agency under the leadership of BA 4060 Major General Ziaul Ahsan, till 5 August 2024. Nevertheless, some surveillance capabilities still reside within individual forces. This operational structure again highlights significant coordination among security forces.

There appears to be no judicial oversight of the surveillance process. Despite this absence of oversight, several victims reported indications of surveillance prior to their abductions. For example, one victim stated that his captors referred to a private phone conversation about his wife’s dental treatment, suggesting that mobile surveillance had taken place in advance (Code EDB¹⁹). Other victims described receiving suspicious phone calls shortly before their abductions, during which no one spoke at the other end of the line; these calls were presumably used to pinpoint their location. In another instance, eyewitnesses recounted how security forces entered a room, instructed the occupants to place their phones in a line, and, when a call

¹⁸ As a witness in an ongoing legal case, the individual’s identity has been withheld for safety.

¹⁹ 27 years old male; abducted by CTTC in 2021; disappeared for 25 days

came to one of the phones, detained the individual who claimed it. That person was never seen again.

These accounts are consistent with information provided during an internal Army inquiry into the abduction of Brigadier Azmi (Army Court of Inquiry report, 2024, p. 27). The report stated that DGFI's Dhaka Det had been conducting surveillance on Brigadier Azmi for at least a month prior to his abduction. Additionally, as part of his deposition to that board, BA 5624 Brigadier MH Hafizur Rahman, then CTIB GSO 1, stated that digital monitoring is integral to conducting such operations, as is surveillance on the ground. Operations, he emphasised, are never conducted without information. As noted earlier, Brigadier Hafiz had himself taken part in the Azmi abduction operation. Witnesses who spoke to the Commission stated that the brigadier was a critical part of CTIB's operations team over a period in which numerous abductions occurred, as reflected in the Commission's records.

6.3 Abduction

Abductions typically occurred when individuals were approached on the streets or at their homes, usually at night, although not exclusively so. The abductors, often in plain clothes, identified themselves as “proshashoner lok” (people of the administration), law enforcement, DB, or RAB. Where victims were taken from their homes, families were left traumatised as they witnessed their loved ones being beaten and forcibly disappeared before their eyes, sometimes never to be seen again. Victims were also abducted from ferries, roadsides, and other public places. They were often called by name before being forcibly pulled into large vehicles, typically Hiace vans. Once inside, they were immediately blindfolded, handcuffed, and threatened with weapons. In many cases, torture, including beatings or electrocution, began almost immediately.

A particularly tragic incident illustrates the misplaced trust that many families still placed in law enforcement at the time. During one abduction, the victim briefly had an opportunity to escape by climbing over a wall. His father stopped him, reassuring him that there was ‘nothing to run from’ and handed him over to the officers. The son has never returned, and since that day, his father has lived with profound regret for having entrusted his son to the authorities (Code FJ²⁰).

Sometimes, these abductions took place in the presence of others, while in other instances, they occurred in remote locations with no eyewitnesses, making it incredibly difficult to prove what had happened. For example, in one case where the victim returned alive, an eyewitness reported: “I had tea with him, and he started off for his home. Fifteen minutes later, I found his bicycle and books lying by the roadside.” Since the victim survived, it was possible to piece together the details of his abduction through his testimony and the attending circumstances (Code FCA²¹). However, in cases where the victims did not return, especially when taken from isolated areas, there is often no evidence to indicate what happened to them.

Only in a very small minority of cases do CCTV footage of abductions exist. This scarcity is not accidental, but the product of deliberate planning. A member of RAB Intelligence explained to the Commission that the forces were meticulous about avoiding surveillance

²⁰ 26 year old male; abducted by RAB Intelligence in 2013; still missing

²¹ 24 year old male; abducted by RAB 10 in 2022; disappeared for 135 days

cameras. He insisted, “We would set the trap and wait for even a month, if needed. But we would proceed only when we were confident that the pick up would leave no trace.”

Even in crowded urban settings, abductions were executed so discreetly that bystanders often did not realise what had happened. On a ferry, for example, RAB officers in plain clothes approached a victim by calling out his pseudonym to identify him (Code BAB²²). At first, the interaction appeared casual and unremarkable. Within moments, however, additional officers arrived, swiftly forced the victim off the ferry, and escorted him into a waiting car. The operation was so smooth and rapid that other passengers, including foreign tourists, failed to recognise it as an abduction.



29 Fig: Code 1904 was able to provide CCTV footage; the police officer identified in the footage, BP 7003027838 ASP Mohiuddin Farooqi, was at that time deputed to RAB and is currently in custody

6.4 Detention

Victims were detained for varying periods, ranging from 48-60 hours to several weeks or months, and in some cases, up to eight years. Contrary to the perception that the victims were exclusively held in secret cells, interviews with survivors have revealed that many were detained in cells that also housed legal detainees. An example of this is those detained by DB. This overlap of legal and illegal detainees within the same facilities highlights the complexity of their detention circumstances. Additionally, there have been instances where the victims were transported within the same facility, moving from illegal cells to legal cells, often timed to coincide with their appearances before courts. These transitions were likely meant to obscure the illegal nature of their detention by presenting them as legally detained individuals.

Through detailed interviews with the living victims, we have been able to map their locations during detention. For example, in one instance, a victim described a distinctive door in a facility, allowing us to identify a room that had once been subdivided into three cells, even

²² 59 year old male; abducted by RAB 10 in 2018; and disappeared for 11 days

though the partitions were demolished by the time of our visit (see figure below). Other evidence at the site, which we documented, corroborated the victim's testimony. Furthermore, these interviews also helped us identify the areas within the same facility where legal detainees were kept. This pattern of shifting detainees between unlawful and lawful cells within the same facility is a key focus of our ongoing inquiry. It underscores the deliberate attempts to disguise illegal detentions and demonstrates the need for further inquiry into these practices.



30 Fig: This room in RAB 11 had previously been subdivided into three detention cells. Prior to our inspection, the partition walls and cell doors were removed, and the walls and ceiling freshly painted to obscure the evidence. However, the difference between the old and new paint itself proved indicative.

6.5 Torture

The system of enforced disappearance in Bangladesh was intrinsically linked to a widespread and systematic culture of torture. This culture was not an anomaly but a normalised practice, as evidenced by the consistent patterns across victim testimony from different regions and different years. These accounts cover a wide spectrum of experiences, ranging from the trivial to the grotesque, revealing that torture was not isolated but embedded within the security

forces. Psychological torture was ubiquitous—from blindfolds to solitary confinement—but in this report we focus on the physical torture.

The accounts of torture we have documented are both profoundly brutal and disturbingly methodical. A notable distinction has emerged between the premises under the management of military officers and those overseen by civil forces, such as the police.

In facilities managed solely by civil forces, such as DB and CTTC, torture was carried out in a manner that integrated it into the daily operations of these offices. Our findings indicate that although specialised torture equipment was used, the acts of torture were conducted routinely within the same space occupied by the security personnel. Detainees have reported witnessing officers calmly working at their desks or computers—screams of agony notwithstanding—within close proximity to the areas where torture was being perpetrated, suggesting a disturbing normalisation of such practices at these offices. Conversely, the premises controlled by military commanders, such as those managed by RAB and DGFI, exhibited a more specialised infrastructure for torture. These facilities were often equipped with soundproofed chambers and specialised instruments, including mechanised ones, designed explicitly for inflicting physical and psychological harm.



31 Fig: A jom tupi found at DB

Nearly every detention centre we discovered had specialised interrogation rooms equipped with torture devices. Despite significant efforts to destroy this evidence post-5 August, we were able to uncover traces that aligned with survivor testimonies, such as rotating chairs at NSI and RAB 2, CPC 3; the “jom tupi” (hood covering the head) at RAB 4 and DB; and the pulley system used to suspend people at TFI cell. In addition, at almost every destroyed location, remnants of soundproofing were found, designed to muffle the victims' screams and

prevent them from being heard beyond the room's walls. In some centres, music was also used to deaden sounds of the victims' anguish, and presumably for the enjoyment of the interrogators. For instance, Code BJB²³, amongst others, remember: “এই যে আমাকে মারতেছিল, এই মারার টাইমে ওরা আবার গান ছাড়ছে, হিন্দি গান বাজাইতো।”^{xv}

Victims of torture were often held in enforced disappearance during these horrific practices, allowing perpetrators to carry out their actions without the threat of legal consequences. The uncertainty about whether a victim would ever appear in court or simply vanish from the state's records facilitated this unchecked abuse. This environment emboldened perpetrators, making it much less likely for the torture to be interrupted or questioned. In cases where torturers feared additional scrutiny, they took steps to erase the evidence of their actions. For instance, in the case of Code BFJA,²⁴ the perpetrators waited several weeks before the victim was presented to the public. During this time, he was given ointments to apply to the areas where signs of torture were visible, and they waited until the bruises had faded before allowing him to be seen, ensuring that no obvious traces of their crimes remained.

The consistent involvement of personnel over time further demonstrates that the abuse was part of a sustained and organised effort. Equipment had to be procured, personnel trained, and methods institutionalised to ensure the continued operation of this system. The scale of the abuse and its persistent nature indicate that it was not only condoned at the ground level but likely supported by those at the highest echelon of power.

This brings us to the issue of command responsibility. A system of torture like this could not have existed without the explicit approval from higher authorities. There had to be budget allocations for infrastructure, equipment procurement, and maintenance over time. Therefore, responsibility for these crimes against humanity cannot rest solely with the perpetrators on the ground; it extends to commanding officers and senior officials who allowed or even encouraged these practices. For now, we have only begun to uncover the scale of this system of repression; as time progresses, we expect to add more to this growing body of evidence.

The system of torture, enforced disappearance, and extra-judicial execution in Bangladesh involved various forms of brutality that were both systematic and widespread. To accurately depict the horrifying conditions the victims faced, we have worked with illustrators who have generously donated their time, free of charge for the sake of the country, to help put an end to this horrendous practice. These illustrations are based on multiple testimonies from both the victims and security force personnel who were present at these sites when the abuses were being perpetrated.

The recreations aim to show the scope of both torture and execution tactics employed by the perpetrators. The graphic representations capture the details of physical abuse described by survivors and provide visual examples of the severe conditions, such as torture devices and methods used consistently across multiple cases. These illustrations are not only integral to understanding the nature of these abuses but also serve as a powerful tool to convey the level of sufferings and torture endured by the victims. The images have been showcased across this report in the appropriate places.

²³ 15 year old male; abducted by RAB Intelligence and RAB 14 in 2018; disappeared for 77 days

²⁴ 32 year old male; abducted by RAB 11 and RAB 4 in 2017; disappeared for 57 days

6.5.1 Generalised discomfort

Victims endured prolonged discomfort due to a combination of physical and psychological abuse. They were often given half the food ration of regular guards, kept handcuffed and blindfolded, and placed in solitary confinement. The uncertainty of their fate, coupled with these harsh conditions, led to constant distress. The system of enforced disappearance worked in tandem with a culture of fear and humiliation, where the simple act of performing bodily functions became a source of further suffering.

For male victims, the lack of privacy inside the cells was particularly brutal. The cells, small and confined, were designed with built-in low pans for bathroom functions. However, due to the lack of dividing walls, when victims lay down, their bodies would end up on top of the pans, subjecting them to the unhygienic conditions of dirt, urine, and faeces. Worse still, the CCTV cameras installed in these cells monitored every action, ensuring that victims were subjected to the humiliation of being observed during their most private moments, such as when using the pans.

The situation for female victims was only slightly better. Although there was usually a short wall, it was insufficient to provide full privacy, leaving the upper part of their bodies exposed. The discomfort of being constantly watched while performing bathroom functions, with no personal space or dignity, was compounded by the physical discomfort of the conditions themselves. Additionally, some women victims reported feeling distressed due to not being allowed to wear the ‘orna’ whilst in custody.



32 Fig: CCTV cameras remained trained on detainees even when they used the toilet (illustration based on survivor accounts)

Code BHFJ²⁵ highlights the systematic nature of the discomfort inflicted on detainees, designed to break their will and maintain control: “ঘুমাতে নিলে, একজন আইসা বলতেছে, ‘এই ঘুমাতেছেন

²⁵ 46 year old male; abducted by DGFI, RAB 10 and RAB 2 in 2015; disappeared for 391 days

কেন?’ মানে ঘুমাইতে দিতো না। ... জিজ্ঞাসাবাদ শেষে যাওয়ার পরে বালিশ সরাই ফেলতো। একদম শীতের মধ্যে কস্মল-বালিশ সব সরাই ফেলছে। ... আর এমনি শাস্তি দিতো। চেয়ার ছাড়া [খালি পায়ের ওপর ভর দিয়ে] বসায় রাখতো। ... আবার দেখা গেছে, হ্যান্ডকাপ পরায় বিছানার পাশ আটকে দিয়ে রাখতো। তা আমার এই হাতে মশা হইলে আমি তো মারতে পারতাম না। মশা কামড়াইতো। ... তো কষ্ট পাইতাম আর কি। এরকম শাস্তি দিছে আর কি।”^{xi}

Maintaining the victim's body in stress positions was another common, albeit passive, form of torture. As described by Code DGD:²⁶ “তো আলোপ উদ্দিন—পরে নাম জানতে পারছি, তখন জানতাম না—সে লাঠি নিয়ে খুব টর্চার করল। ... একদিন আমাকে বেশি টর্চার করল। টর্চার করে বলল যে, তাকে টাঙ্গায় রাখো, বুলায় রাখো। তো সেলে গিল আছে না? রডগুলা যে আছে ... [ওগুলার সাথে] আমাকে এমনে বুলায় রাখলো।... হাতকড়ার সাথে বাইস্কা রাখলো। ... তো এইভাবে অনেক ঘন্টা রাখার পরে আমি আর পারছি না। ওইদিন পরে যখন টর্চার করলো, আঙ্গুলের নখটা উঠে গেছিল পুরা।”^{xii}

The combination of physical pain, lack of privacy, and constant psychological torment created an environment where detainees were kept in a constant state of distress, with little chance for reprieve or dignity. The widespread use of these torture techniques, along with the normalisation of such practices within the security forces, suggests a deliberate and systematic effort to instil fear and maintain control over the victims.



33 Fig: The structures maximised discomfort for captives (illustration based on survivor accounts)

6.5.2 Beatings

Beating was a ubiquitous form of abuse, occurring everywhere and to everyone, even to victims who were not subjected to other forms of torture. Usually, however, it was often used in conjunction with other methods of abuse.

²⁶ 56 year old male; abducted by RAB 11 in 2017; disappeared for 56 days

Code EAF:27 আরেক দিন প্রচুর মারছে, প্রচুর মারছে, বলতাকে, “তোর বাড়িতে আমাদের ইনকোয়ারি গেছে। তোর নামে রিপোর্ট পাইছি, তোর পরিবার জামাত-বিএনপির সাথে জড়িত, তোর নানীর বাড়ি করে জামাত, আর তোর বাপ করে বিএনপি।” এগুলো বলতাকে, এগুলো বইলা আমারে মারছে। মারার এক পর্যায়ে আমি মনে হয় টেবিলের কোনা বা কিছু বাড়ি খেয়ে পড়ে গেছি, আমার জ্ঞান হারাইছি। পরে আমারে বাথরুমে মাথায় পানি দিয়ে আমার জ্ঞান ফিরাইছে। ... এই হাত আমার অবশ। আমি দাঁড়াইতে পারি না। মানে সোজা দাঁড়াইতে পারি না। এমন অবস্থা যে, দাঁড়াইলেই আর বসতে পারি না। বসলে আর দাঁড়াইতে পারি না। ওয়াশরুমে আমাকে নিয়ে গেছে। ... ওয়াশরুমে আমি - একটু লজ্জাকর বিষয় - তারপরও একটু বলতে হচ্ছে, আমি দাঁড়িয়ে ওয়াশরুমে, মানে আমি পারতেছি না। এই অবস্থায় আমাকে আবার মারধর করা হলো।



34 Fig: This form of torture was more common amongst police personnel than military (illustration based on survivor accounts)

দুইজনের নাম জিজ্ঞেস করতেছে, এরা কোথায়? আমি কই, “স্যার, আমি জানি না, স্যার, আমি জানি না।” ... যখন আমি কোন আওয়াজ করতে পারতেছি না, তখন আমি এতটুকু শুনতেছি, “মরে গেল কিনা, দেখ মরে গেছে কিনা।” একজন লাথি দিয়ে দেখতেছে, এর মধ্যে আবার চোখ খুলে আমি দেখতেছি, এমনে তাকায় রইছি। ... এর মধ্যে আমাকে কি করলো? গামছা দিয়ে পানি ঢাললো মুখে। “কোথায় আছে, কোথায় আছে, বল, কোথায় আছে বল?” মানে আমাকে একটা সেকেন্ডও সময় দিতাছে না। ... ওরা কয়, “না, তোর বলতে হইব। এখন কোথায় আছে, কোথায় গেলে পাবো?”...

এরপর শুরু হলো, কারেন্টের শক দেওয়া। আমাকে দাঁড় করাই রাখা। ঘিলের মধ্যে হ্যান্ডকাফ দিয়ে আমাকে দাঁড় করিয়ে রাখতো। আমি যাতে বসতে না পারি। দাঁড় করিয়ে রাখতো। পা এমন ফুলে গেছে আমার। আমার হাতে দাগ পড়ছে। এই যে দাগগুলো... ওয়াশরুমে যেতে চাইলে, ওয়াশরুমে যেতে দিত না। এই অত্যাচার শুরু হয়ে গেল। ... এর মধ্যে একদিন এনে আব্দুলটাকে এভাবে প্লাস দিয়ে ধরছে। ধরার পরে টেবিলের উপরে হাত রেখে, প্লাস ধরে, আরেকজন সূঁচ ঢুকাইছে। এই যে সূঁচের দাগ। কয়, “তুই আব্দুল মুমিন না?” “স্যার, আমি আব্দুল মুমিন না, আমার নাম হল হাবিব।” ^{xiii}

²⁷ 27 year old male; abducted by RAB 10 in 2017; disappeared for 113 days



35 Fig: Code BCG was beaten at a stretch for nearly 24 hours at CTTC, with his captors taking turns in four-hour shifts; he had permanent injury marks across his body. The fact of his beating was confirmed by a fellow detainee who witnessed his distress.

Code BHGD:²⁸ আমার পা বেঁধে উপর দিকে করে বুলাইছে। মাথা নিচের দিক, পা উপর দিক দিয়ে। আমার শরীরে কোনো পোশাক রাখে নাই তখন, একেবারে উইদাউট ড্রেস। তারপরে এলোপাখাড়ি আমাকে দুইজনে একসঙ্গে পিটাতে থাকে। খুব সম্ভব বেতের লাঠি দিয়ে। পরবর্তীতে আমাকে অসংখ্যবার টর্চার করেছে এবং মারতে মারতে আমার এমন হয়েছে, চোখের কাপড় খুলে গেছে। নাকে-মুখে চড়ানো, থাপড়ানো। ... শুধু পিছে মারছে। ওই সময়ে চামড়া ছিঁড়ে, মানে চামড়া ফেটে রক্ত ঝরে গেছে। ...

পরবর্তীতে যখন আমাকে একটা সেলের সংকীর্ণ একটা জায়গায় রাখে, তখন আমি পিছনে হাত দিয়ে দেখি যে রক্ত পড়তেছে। আর এটার দাগ প্রায় দেড় বছর পর্যন্ত ছিল। মানে পেটানোর দাগ এরকম পুরো হয়ে গেছিল। ... তা আমি যখন উপর হয়ে শুয়ে আছি, তখন ওইখানে সাইফুল নামক একটা লোক, সে বলে যে, “ভাই, আপনি উপর হয়ে শুয়ে আছেন কেন?” আমি বলছি, “ভাই, আমি বসে থাকতে পারতেছি না।”... আমাকে গায়ে হাত দিয়ে টর্চার করেছে ২৫ দিন।^{xiv}

Code CFC:²⁹ চোখে কখনো গামছা দিয়া, কখনো ওই যে জম টুপি, এগুলো দিয়ে বাঁধা থাকতো। হাত কখনো সামনে, কখনো পিছনে। আর যখন বেশি মারবে, তখন এই হাত পিছনে দিয়ে রাখতো আর আমার এই কনুই গুলো, দুই হাটু এগুলোতে খুব জোরে জোরে মারতো মোটা লাঠি দিয়ে। ... তো আমি মনে করতাম যে, আমার

²⁸ 23 year old male; abducted by RAB 11 in 2017; disappeared for 72 days

²⁹ 47 year old male; abducted by CTTC in 2023; disappeared for 16 days

হাড়গুলো বুঝি ভেঙ্গে যাবে, কিন্তু পরবর্তীতে দেখলাম যে ফুলে অবস্থা খুব খারাপ হয়ে গেছে, কিন্তু হাড় ভাঙছে এরকম বুঝি নাই। ... এক পর্যায়ে আমাকে বলল যে, “তোর হাড় থেকে মাংস আলাদা করে ফেলবো।”

তখন আমার এই কনুইয়ের এই গোশতগুলো এভাবে ঝুইলা রইছে। এই যে জামার মোটা হাতা, এটা টাইট হয়ে গেছিল, এই পরিমাণ ফুলিয়া ঝুইলা গেছে। এবং বলতেছে যে, “তোর হাত থেকে মাংস আলাদা করে ফেলবো।” ... তো এরপরে দীর্ঘদিন বসে নামাজ পড়াও কষ্টকর ছিল। ... বলতেছে, “এভাবে হবে না। এরে লটকা। টানাইতে হবে।” তো একজন এসআই লোক হবে, ও আমাকে দুই হাতে রশি লাগায়া ওই যে ফ্যানের হুক থাকে ছাদের মধ্যে, এটার মধ্যে ওর রশি দিয়ে এরকম ঝুলাইলো। শুধু পায়ের বুড়ো আঙ্গুলটা লাগানো থাকে মেঝেতে আর পুরা শরীরটা ঝুলানো। ... হাত এখনও উঠাতে পারি না, আমার এটা দুইটা জোড়ার মধ্যে সমস্যা হয়ে গেছে।^{xv}



36 Fig: Across the country, throughout the entire period, victims describe regular beatings (illustration based on witness and survivor accounts)

Code DDB:³⁰ হাত সম্ভবত গামছা বা কাপড় দিয়া বানছে আর কি। বাইনদা, আমার এই হাঁটুর ভিতরে দিয়া হাত ঢুকাইয়া এই দুই হাঁটুর মাঝখান দিয়া লাঠি ঢুকাইয়া একটা উঁচু কোন স্ট্যান্ডের মধ্যে রাখছে। যেটার কারণে আমার পাগুলো উপরে ছিল। আর মাথা নিচু হয়ে গেছে। ... পায়ের তালুর মধ্যে এবার বাড়ি শুরু করছে। চিকন একটা লাঠি হবে সম্ভবত। ... আবার ওই প্রথম থেকে একই প্রশ্ন, “নামগুলো বলো, তোমার সাথে কে কে আছে।” ...

তো ছাড়ায়া দেওয়ার পরে এবার বসাইছে। বসাইয়া, ওই গামছাটা ঝুইলা, এই চেয়ারের পিছনে দিয়া এভাবে আবার হাতকড়া লাগাইছে। এবার হাঁটুর মধ্যে মারা শুরু করছে। ... এই আল্লাহর একটা কুদরত কি, যখন বাড়ি দিত, অনেক কষ্ট লাগতো, কিন্তু সাথে সাথে আবারই বাড়ি, অর্থাৎ ব্যথাটা দূর হয়ে যাইতো, সাথে সাথে ব্যথা দূর হয়ে যাইতো। ... মাগরিবের পরেই মনে হয়, কারেন্টে শক দিচ্ছিল আমার এই জায়গাটাতে। ওই যে মাগরিবের নামাজ যখন পড়তে পাঠাইছে, ওই সময় দেখলাম যে, আমার হাঁটু কালো হয়ে গেছে আর কি। এমন

³⁰ 27 year old male; abducted by RAB 11 in 2019; disappeared for 42 days

মারা মারছে হাঁটুর ভিতরে। তো এরপরে, এই হাঁটুর কালো দাগ নিয়ে খুব কষ্ট হইতেছিল, এরপরও নামাজ পড়ছি। যেহেতু মুসিবতে পড়ছি, কি করার, নামাজ পড়ি।^{xvi}

Code BFJB:³¹ তার অফিস রুমের ভিতরে ঢুকানোর পরে বাম সাইডে জানালা ছিল। ... আমার হাত জানালার সাথে বেঁধে, তারা আমার রান, তারপর পা, তারপর মেরুদণ্ডের নিচ পর্যন্ত আমাকে পিটায়। তারপর তারা আমাকে বলে যে, “তুই তো সন্ত্রাসী, তুই জঙ্গি।” ... তখন তারা আমাকে মেঝেতে ফেলে টর্চার করে। পায়ের যে গিড়া আছে কিংবা পায়ের পাতা আছে, এগুলোতে তারা টর্চার করে। একবার না, কয়েকবারই তারা করছে।^{xvii}



37 Fig: Inserting pins underneath fingernails was a common torture tactic (illustration based on survivor accounts)

6.5.3 Electric shock

The second most common form of torture encountered was the administration of electric shocks, likely due to the ease of acquiring such machines. They were used almost everywhere, including in abduction vehicles on a portable basis. One soldier recalled his commander referring to the portable electric shock machine as a “balls machine”, crudely highlighting the area where the shock would be administered.

Code BFBG:³² আমার শরীরে হাফ হাতা গেঞ্জি ছিল, কলারওয়ালা। সেটা মাথার উপর দিয়ে মুখটা বন্ধ করে দেয়। দিয়ে মুখের উপর অনবরত হাত দিয়ে ঘুষি মারছিল, দাঁত দিয়ে ওপরের ঠোঁটটা আমার কেটে গেছিল। তাৎক্ষণিক পায়ের দুইটা ক্লিপ লাগায় দিল ... ফাস্ট সেবার শক খাওয়ার অভিজ্ঞতা। মনে হচ্ছে যখন শক দেয়,

³¹ 21 year old male; abducted by CTTC in 2018; disappeared for 12 days

³² 29 year old male; abducted by RAB Intelligence and RAB 5 in 2010; disappeared for 46 days

টোটাল শরীরটা আমার ফুটবলের মত গোল হয়ে যায়। এরকম আট দশবার মেবি আমাকে শক দিছে। শকটা হয়তো তিন-চার সেকেন্ড সর্বোচ্চ থাকে। তাৎক্ষণিক শরীরটা গোল হয়ে যায়, সমস্ত রগগুলো চেপে ধরে। তো ওই প্রশ্নগুলো করে আর শক দেয়, প্রশ্নগুলো করে আর শক দেয়। ... খুবই বেপরোয়াভাবে চার-পাঁচ জন পিটানি শুরু করল, দুই হাত ধরে ওই ছকের উপর লাগায় দিয়ে। মনে হচ্ছে হয়তো কিছুতে সুইচ টিপছে, অটোমেটিক আমার শরীরটা উপরে উঠে যাচ্ছে। ... এই মুহূর্তে আমার কাপড় খুলে, আবার ওই একই ক্লিপ লাগায় দেয় আমার গোপন দুইটা অঙ্গে। এবং ওই জিজ্ঞাসাবাদ সেম চলতে থাকে। যখনই সুইচ দেয়, আমার মনে হয়েছে যে, আমার সে অঙ্গগুলো পুড়ে যাচ্ছে ... এবং মাঝে মাঝে আমি গোস্তু পুড়লে যেসকল একটা গন্ধ লাগে, সেই গন্ধটা পাইতাম আর কি। ... চার থেকে পাঁচ জন টোটাল বডিতে, আমার পা থেকে একেবারে গলা পর্যন্ত পিটাত। গরু পিটানের মত, সবদিক দিয়ে। মানে, কোন জায়গাতে আমার ফাঁকা ছিল না। আমি জেলখানাতে যাওয়ার পরে শরীরটা যখন দেখি, এমন কোন জায়গা ছিল না, সব কালো হয়ে গেছিল।^{xviii}



38 Fig: Electrocution was a very common form of torture (illustration based on witness and survivor accounts)

Code DHD:³³ আমারে ধাক্কা দিয়ে গাড়ির ভিতরে বসাইয়া চোখ বেঁধে ফেললো। হ্যান্ডকাফ পরাইয়া গালের মধ্যে জোরে একটা থাপ্পড় মারলো। মাইরা সিটের মধ্যে এরকম ফলাইয়া এনে রিভালভারে ধরে বলে, “একটা কথা কবি তো তোরে মাইরা বুড়িগঙ্গা নদীতে ফলাইয়া দিমু।” হাতের এখানে একটা ক্লিপের মত লাগাইয়া কোথায় জানি একটা সুইচ টিপে দিল। মনে হলো আমার মাথায় একটা ঠাডা পড়লো। তারপরে আমি আর জানি না। যখন জ্ঞান ফিরছে, রাত্রি বাজে প্রায় একটার মতো।^{xix}

Code EHE:³⁴ আমাকে ওই হাঁটুতে, তারপর পায়ের তালুতে খুব পিটাইলো। আমি খুব কান্নাকাটি করতছি। আল্লাহর নাম নিলে আরো বেশি মারে। তো যাই হোক, এরপরে আমারে মারার পরে জিজ্ঞেস করতেছে, “কি

³³ 32 year old male; abducted by DGFI and DB in 2014; disappeared for 45 days

³⁴ 28 year old male; abducted by RAB 10 in 2017; disappeared for 131 days

জন্য নিয়ে আসছি? তুই কি বলতে পারোস?” আমি বলতেছি যে, “না। কি জন্য নিয়ে আসছেন, এগুলো তো কিছু বললেন না। কোনো ধরনের কথাবার্তা ছাড়া আমাকে শাস্তি দিতেছেন। আপনারা কে বা কারা?” তখন তাদের আর পরিচয় দিল না, বলল যে, “তুই অমুককে চিনিস, তমুককে চিনিস?” এই ধরনের কথা বলছে, যাদের সাথে আমার কোনো ধরনের সংশ্লিষ্টতা নাই। ...

তো যখনই তারা আসতো, তখনই আমি খুব ভয়ে কাঁপতে থাকতাম। ... আরেকদিন রিমান্ডে নিয়ে গেল, রাতে ১২টা বাজে। ওই সময় ইলেকট্রিক শক দিল। কানের মধ্যে দুইটা ক্লিপ দিয়ে ইলেকট্রিক শক দিতে থাকলো। তারপর আমাকে বলল যে, “তোকে তো অনেক পিটাইলাম, মারলাম। কিন্তু তুই তো কিছু বললি না। অমুকরে তো তুই ভালো করেই চিনিস। তাহলে অমুককে তোকে এই সমস্ত কাজে আনছে।” ...

আর ওই মুখের মধ্যে ভিজা কাপড় দিয়ে প্রায় দুই তিন মিনিটের মত পানি ঢালতো। ওই সময় দেখা যায়, আমি প্রায় সময়ই অজ্ঞান হয়ে যেতাম, আর মুখ দিয়ে খুব লোল-টোল ইত্যাদি পড়ত। তারা বলতেছিল যে, “তুই তো অনেক মেধাবী, তোর মেধাটা কিছু কমাই দিই।”তো কানের মধ্যে ক্লিপ লাগায়া অনেকবার শক দিতো। এইভাবে মেধা কমানোর জন্য আমাকে কয়েকবার শক দিত, আর যখন শক দিত, পুরো শরীর ঠাণ্ডা হয়ে যেত। সাথে সাথেই মনে হইতো যেন আমি শেষ। আমি চোখে ঝাপসা দেখতাম। এইভাবে আর কি, দিনের পর দিন শাস্তি দিত।^{xx}



39 Fig: Captives endured brutal torture, including forcible teeth extraction (illustration based on survivor accounts)

Code BGIG:³⁵ আমাকে ফ্রেড লিস্টের কিছু নাম জিঙ্গেস করে ... আমি তো এদের কাউকে চিনি না। তারপর আমাকে একটা নাম জিঙ্গেস করে যে, “মেজর জিয়ার সাথে পরিচয় কত দিনের?” আমি বলি, “আমি তো আসলে নামটাই শুনছি প্রথম।” সত্যি কথা বলতে, আমি নামটাই শুনছি প্রথম। তো এই কথা বলার সাথে সাথেই আমাকে মাইর শুরু করে। মাইরের কারণে আমি অজ্ঞান হয়ে যাই। ...

³⁵ 19 year old male; abducted by RAB in 2021; disappeared for 1 year 10 months

ওরা চারিদিক থেকে মারে আমাকে। আমার হাত পিছন থেকে হ্যান্ডকাফ পড়ানো ছিল, চোখ বাঁধা ছিল। আর চোখটা এমনভাবে বাঁধা যে, আমার মাথা ব্যথা হয়ে গেছে, এমনভাবে চোখ বাঁধা। তো ওই অবস্থায় মারার পরে আমি অজ্ঞান হয়ে যাই। ... আমাকে চেয়ারের সাথে বাধতো। বাঁধার পরে ওরা চার-পাঁচ জনের মত সাইডে থাকত। এটা বুঝতে পারতাম যে, চারদিক দিয়ে আমাকে পিটাচ্ছে। ... আর ইলেকট্রিক শক দিচ্ছে। ইলেকট্রিক শক দিলে আমি জ্ঞান হারিয়ে ফেলতাম। তো যেদিন জ্ঞান হারিয়ে ফেলতাম, ঐদিন আর করতো না। জ্ঞান ফেরার পর দেখতাম আমি আমার রুমে আবার আসছি।^{xxi}



40 Fig: Victims frequently lost consciousness during waterboarding (illustration based on survivor accounts)

6.5.4 Waterboarding

Whilst not as common as electric shocks, there are credible accounts of waterboarding at various detention centres, similar to the one below and the ones shared earlier.

Code EDE:³⁶ শোয়ানোর পরে আমার এই দুহাতের উপরে দিয়া আর ঘাড়ের নিচে দিয়া একটা বাঁশ দিছে। তার পরবর্তীতে পায়ের নিচে, রানের নিচে দিয়ে একটা দিল, আবার রানের উপরে দিয়েও একটা দিছে। দেওয়ার পরে এরা ওইভাবে আমাকে কিছুক্ষণ রাখলো যে, “বড় স্যার আসতেছে না।” পরে কিছুক্ষণ পরে সে আসছে। আসার পরে হঠাৎ করেই বললো, “এই উঠো।” বলার সাথে সাথে আমি মনে করলাম যে, আমি আর দুনিয়ার মধ্যে নাই। মানে এরকমের যন্ত্রণা আমার এই দুই হাতের বাহুতে শুরু হইছে, আর দুই পায়ের মধ্যে শুরু হইছে। আমার মনে হইতেছে কেউ আমার এই দুই হাতের আর পায়ের গোস্তুগুলো ছিড়া ফেলতেছে। মানে এরকম অবস্থা। এত খারাপ, ভয়ংকর এরা আমার সাথে ছিল। আমি চিৎকার করতেছি এত জোরে। ... এত কষ্টকর ছিল এই জিনিসটা। ... আমার এই ডান হাত, বাম হাত এগুলো অবশ্য হয়ে গেছে, সম্পূর্ণ ডান হাতটা একেবারে এরকম মুঠ হয়ে গেছে। আমার যে হাতটা সাথে আছে, এটা আমি বলতে পারতাম না। এই হাত দিয়ে আমি কোন ভাতও খাইতে পারতাম না। ... আমি শুধু তিন আঙ্গুল দিয়া যতটুকু ভাত নিয়া খাইতে পারতাম,

³⁶ 27 year old male; abducted by RAB 10 in 2017; disappeared for 39 days

ওইটা খাইতাম। ... মুখের উপরে গামছা দিয়া উপরে দিয়া পানি মারা শুরু করে দিছে। ... পানি দিতেছে, জগ ভরতি ... আমার নিঃশ্বাস বন্ধ হয়ে যাইতেছে। ... তারপর ওরা ওই গামছা সরাইয়া বলে, “বল কি করছিস?” “স্যার, কি কন্মু? আপনি আমারে বলেন, আমার কি জানতে চান? আপনি আমারে কেন ধইরা আনছেন?” তখন বলতেছে, “না, ওরে হইতো না। আবার গামছা দে, আবার গামছা দে, আবার পানি দে।” এইভাবে তিন-চারবার পানি দেওয়ার পরে বলছে, “ওরে নিয়া রাইখা আয়।” ^{xxii}

6.5.5 Rotating devices

We have received multiple descriptions of rotating devices used for torture, with two distinct types emerging in the testimonies. The first, commonly associated with RAB, is a rotating chair where victims would be spun at incredibly high speeds, often resulting in vomiting, urination, defaecation, and loss of consciousness. This device was found in the TFI centre as well as various RAB battalions, and one soldier described the one at TFI being covered in a plastic sheet to aid in cleanup due to the frequent bodily functions of the victims. The second type of rotating device, described primarily by DGFI victims detained at JIC, was not a chair but a full-body apparatus where the victim was strapped in and the device could rotate almost 360 degrees.



41 Fig: Many specialised interrogation rooms had rotating torture chairs (illustration based on witness and survivor accounts)

Since victims were usually blindfolded during torture, understanding the exact nature of the device is challenging, but we have relied on their descriptions of how they were strapped, the degree and direction of movement, the sounds they heard, and other sensory details, along with corroborating testimony from personnel who served at these facilities. One victim, for instance, described the DGFI’s JIC torture device as one that moved him around like “the hand of a clock” (Code EAD³⁷). Both types of testimony are shared below.

³⁷ 21 year old male; abducted by DGFI, RAB Int and RAB 1 in 2016; disappeared for 2 year 8 months 7 days

Code BGEB:³⁸ যখন জিজ্ঞাসাবাদ করতো, তখন তো চোখ বাঁধা থাকতো তিনটা কাপড় দিয়ে। প্রথমে একটা কাপড় দিয়ে চোখ বাঁধতো। জমটুপি পড়ানোর পরে আবার আরেকটা কাপড় দিয়ে বাঁধতো। আর হ্যান্ডকাফ পিছনে লাগানো থাকতো। ... চেয়ারটাতে বেঁধে, আমার দুই হাঁটু পিটাইয়া একবারে ফাটায় ফেলে। প্রায় ১০-১৫ দিন আমি সোজা হয়ে হাঁটতে পারতাম না। হাঁটার তো সুযোগ ছিল না। দাঁড়াইয়া যে নামাজ পড়বো, সেটাও সুযোগ ছিল না। পা ঝুলাইয়া, মানে ভিন্ন পাশে পা ঝুলাইয়া দিয়ে তারপর নামাজ পড়তে হতো। ... স্বাভাবিক একটা চেয়ার। ওই হুইল চেয়ারের মত যেমন পা রাখা যায়, ওরকম পা দানি আছে। পা দানির উপরে পা রাখার পরে, পা থেকে মাথা পর্যন্ত অনেকগুলো বেল্ট লাগায়। মাথায় লাগায়, তারপরে বুকে, হাতের এদিকেও লাগায়। দুই সাইডে হাতে লাগায় তিনটা, বুকে লাগায় দুইটা, পেটে একটা, বুকে একটা বড় বেল্ট, মাথা, পায়ে এরকম তিনটা। এগুলোর পর আমাকে কিছুক্ষণ ঘোরানো হয়েছে। এইভাবে ওই চেয়ারে ঘোরানো হয়েছে।

ওরা বলতেছে, “এখন তোকে ইলেকট্রিক শক দিব।” আমাকে বলতেছে, “তোর গোপনাজে ইলেকট্রনিক শক দেবো,” এরকম ভয় দেখাচ্ছে। আমি যখন বলতেছি, “আমি এদেরকে চিনি না, আমি কিভাবে বলবো?” তখন তারা দুইজনে দুইপাশ থেকে আমার হাঁটুতে বাইড়াতে থাকে। অনেকক্ষণ, মানে ওই টর্চারিংটা খুব বেশি ছিল। আমি যখন মানে একবারেই সহ্য করতে পারতেছিলাম, তখন তারা থামে। এভাবে আমাকে জিজ্ঞাসা করে প্রতিদিন তিন থেকে চারবার। অধিকাংশ দিন শেষ রাতে, মানে ফজরের আগে, এই সময়গুলোতে জিজ্ঞাসা করতো। এখানে আনুমানিক সাড়ে সাত মাসের মত ছিলাম।^{xxiii}



42 Fig: This form of torture was called ‘bash dola’ (illustration based on survivor accounts)

Code BGBJ:³⁹ একটা মেশিনে উঠাইছিল। উঠাই এইখানে [মাথায়] বাঁধছে, এইখানে [হাতে] বাঁধছে, পায়ে বাঁধছে, মানে হাঁটুর মিডলে, এইখানে আবার পায়ের নিচেও বাঁধছে। এরকম সোজা দাঁড়ানো। ওই মেশিনটায় উঠায় চালানোর পরে মনে হইছে যে, আমার হাড় সম্পূর্ণ যেন আলাদা হয়ে যাচ্ছে। ... কেন বলতে পারবো না, ওটার সেটিং এরকম যে, মেশিনটাই একটা আজাব। ... ওরা বলছে যে, “তুমি পিঠ একেবারে লাগাইয়া রাখো। এখানে উঠলে কিন্তু সব পায়খানা করে দেয়।” মানে এমন কঠিন অবস্থা ওইখানে। ... মেশিনটা ঘোরানো যায়।

³⁸ 29 year old male; abducted by DGFI, RAB Int, RAB 4 and RAB 7 in 2016; disappeared for 1 year and 1 month

³⁹ 28 year old male; abducted by DGFI and RAB 2 in 2017; disappeared for 208 days

কখনো কখনো উল্টা করানো যায়। আবার এরকম ফ্ল্যাট শোয়ানো যায়। ... এরপর ওইখানে থাকা অবস্থায় হাঁটুর উপর বাড়ি দিচ্ছে। যেমন জিজ্ঞেস করছে, “তুমি সরকারের বিরুদ্ধে কি কি ষড়যন্ত্র করতেছো?”^{xxiv}

6.5.6 Sexualised torture

Sexualised forms of torture, while present, have been more difficult to document due to the reluctance of victims to share such experiences. However, we have found credible and repeated instances where the genitals were specifically targeted for torture, as demonstrated in this example (Code BHEA⁴⁰): “এক পর্যায়ে তারা আমার মানে অভ্যন্তরে জোরে চাপ দেয়, আমার শক্তি শেষ হয়ে যায়।”^{xxv} In the testimonies below, we particularly highlight electric shock administered to the genitals, when urinating and otherwise.

Genital shock

Code CED:⁴¹ তারা একটা দাঁড়িতে করে আমাকে মেশিনের মাধ্যমে উপরে বুলায়। বুলাবার পরে, এলোপাথারি মারতে থাকে আর অকথ্য ভাষায় গালিগালাজ করে। এক পর্যায়ে তারা আমাকে বলে, “তুই শিবিরের ক্যাডার।” তুই করে কথা বলে এবং গালিগালাজ করে অনেক। তখন আমি কান্নাকাটি করি। এক পর্যায়ে মারপিটের সাথে সাথে, আমার গোপন জায়গায় কারেন্ট শক দেয়। ... বাথরুমে গেলে বলতো যে, “চোখ একটা খুলবি, তারপরে কাজ সারবি।” তো আমি আসলে ওখানে কাউকে ওভাবে দেখিও নাই। একদিন দুই-তিনজন ব্যক্তি ক্যামেরার সামনে নেয় এবং বলে, “আমরা যেভাবে বলি, ঐভাবে বলতে হবে, যেন কোন ভুল না হয়।” ল্যাপটপ সামনে ছিল, আর তাদের মুখ ঢাকা ছিল, আমি ওইভাবে তাদের ফেস দেখিও নাই। তো তারা সেখানে বলে যে, “তুই তোর জীবনের সবকিছু বল।”^{xxvi}

Code DHI:⁴² চোখ বাঁধা, হ্যান্ডকাফ লাগানো। ... এই যে এখনো দাগগুলো যায়নি, ১০-১১ বছর হয়ে গেছে। বাথরুমে নিয়ে যাওয়ার সময়টা ছিল এরকম, যে আমাকে অন্ধের মতো একটা লাঠি ধরায় দিত। আমার হাত পিছনে বাঁধা এ অবস্থায় একটা লাঠি আমার হাতের ফাঁকার মধ্যে দিত। ... উলঙ্গ করে কারেন্ট শক দিয়ে বুলায়ে রাখছিল দুই ঘণ্টার মতো। মানে একটাই দাবি যে আমাকে স্বীকার করতে হবে। ... এই বিষয়টা তো আমি মানতে রাজি হইনি। ... শকটা কিভাবে দিয়েছিল? পেনিসের মধ্যে ক্লিপ বা এই জাতীয় কিছু একটা লাগাইছিল আর হাত দুটো উপরে বাঁধা ছিল। এই অবস্থায় কারেন্ট শক দিতো আর পিছন থেকে মারতো। “হ্যাঁ” বললে মার থামে, কারেন্ট শক থামে। “না” বললেই মার চলে। ... মানে এগুলো অনেকটা সাজেশন টাইপের। বলতো যে, “তুমি এই সংগঠন করো?” আমি বলছি, “না”। শুরু হইলো কারেন্ট শক।^{xxvii}

Code DEA:⁴³ আমার তখন কোন মামলা পর্যন্ত নাই। তবুও এমনকি আমার শরীরে কোন কাপড় রাখেনি ওরা। আমাকে বুলাইছে। এরপরে কিছু কিছু টর্চার করছে, যেগুলো আমি আপনাকে বলতে পারতেছি না। যেগুলো বলা যায় না। আমার ওয়াইফ জানে। তো ওখানে আমি সেন্সলেস হয়ে যাই। তখন নামায় তারা আমাকে। ... ছয় মাস দাগ ছিল আমার কজিতে। ওইখান থেকে আমার ঘাড়ের সমস্যা হয়ে গেছে, কারণ

⁴⁰ 22 year old male; abducted by RAB 3 in 2020; disappeared for 11 days

⁴¹ 19 year old male; abducted by RAB Intelligence and RAB 1 in 2016; disappeared for 7 days

⁴² 20 year old male; abducted by RAB 12 in 2014; disappeared for 34 days

⁴³ 29 year old male; abducted by RAB Intelligence and RAB 1 in 2016; disappeared for 53 days

আমারে বুলায় রাখতে বলছে যে, আমি থাকতে পারতেনি না। ওরা নামায় নাই আমাকে। আমাকে টর্চার করছে এবং এমন জায়গায় ইলেকট্রিক শক দিচ্ছে, তারা বলতেছে, “তোকে আমি ইম্পোটেন্ট বানায় দিব, যদি তথ্য না দিস।”... আমাকে দীর্ঘ সময় ইলেকট্রিক শক দিচ্ছে এবং আমি ফিল করতেছিলাম, ইচ এন্ড এভরি পাট অফ মাই বডি। মানে ইলেকট্রিক শক খেয়ে আমার মনে হচ্ছিল আমার পা এবং আমার মাথা দুইটা স্কুইজ হয়ে এক হয়ে গেছে, ঠিক আছে? তো তারপরেও সবচেয়ে মজার ব্যাপার, দ্য ওয়্যার লাফিং এট মি। হ্যাঁ? তারা মনে হচ্ছিল মেকিং ফান।^{xxviii} (7-23)

Code EDH:⁴⁴ তখন ওরা কিল থাপ্পড় মারে। প্যান্ট খুলে ফেলে। প্যান্ট খুলার পর, আমার একটা বিচির সঙ্গে ক্লিপ লাগায়। গাড়ির মধ্যে উঠে দরজা বন্ধ করে দিচ্ছে। প্রায় ছয় সাত জন হবে, চোখ বাঁধা অবস্থায় যা বুঝলাম। কথা বলতেছে, তারপর গাড়ি ছেড়ে দিল, ছেড়ে দিতে দিতে আমার প্যান্ট অলরেডি খোলা শেষ। খুলে, ক্লিপ দিয়ে কারেন্ট শক দেওয়া শুরু হয়ে গেছে। গাড়ির মধ্যে খুব চোঁচাচ্ছি ... দুই পা সামনের সিটে লাফানোর কারণে আমার প্রায় এক ফুট করে দুই পায়ে ছিলে যায়। কিন্তু ওইটার ব্যথা কিছু মনে হয়নি। কারেন্ট শকের ব্যথা এতটা ভয়ঙ্কর। ... প্রায় ১৫ থেকে ২০ মিনিট কারেন্ট শক দিল। এই ২০ মিনিটে গাড়ি চলতেছিল ... এরকম করতে করতে যখন থামলো, মনে হইলো যে দুনিয়া দুনিয়া নাই। কারেন্ট শক বন্ধ করার পরে তিন মিনিট ধরে আমি চেঁচাইছি। লাস্টে বাধ্য হয়ে ওরা মুখ চেপে ধরে। ওই কারেন্ট শকের কষ্টে।

সকাল বেলায় আবার আমাকে নিয়ে যেয়ে একটা রুমে ঢুকাইলো। ... আমাকে একটা চেয়ারে বসাইছে। বসানোর পর, চেয়ারে পা বাঁধলো, হাত বাঁধলো, বুক বাঁধলো, মাথা বাঁধলো। বাঁধার পর, আমাকে বলতেছে, “এই চেয়ারে কিন্তু সুইচ দিলাম।” তো, আমি তো চেয়ার সম্পর্কে কোন কিছু জানি না। জানার পর, আবার ওই একই প্রশ্ন করতেছে। করার পর, যখন কোন উত্তর পাইলো না, তখন ... একটা সাধারণ চেয়ারে বসালো। বসানোর পর, যখন আবার দুই-একটা জিজ্ঞাসাবাদ করার পর কোন উত্তর পাইলো না, তখন আমার দুই হাত রশি বাঁধিয়ে বুলাই দিল। বুলিয়ে দিয়ে আমাকে আবার ফুল উলঙ্গ করে ফেলল। উলঙ্গ করে ফেলার পর, আবার [ওই জায়গার] সঙ্গে কারেন্টের ক্লিপ লাগায় দিয়ে কারেন্ট শক দেওয়া শুরু করলো। একদিকে কারেন্ট শক, একদিকে বেতের লাঠি দিয়ে মারা শুরু করলো। ... কি যে ভয়াবহ একটা অবস্থা গেছে সেই ঈদের দিন সকালটা। আমি বলছি, কোন নরকে যে আল্লাহ আমাকে পাঠাইলো।^{xxix}

Genital shock during urination

Code BAG:⁴⁵ তো এরা মারধর করলো, স্বীকার করানোর জন্য। বলছে যে, “তুই এটা স্বীকার কর, তাহলে তোর কপাল ভালো, নাইলে কিন্তু তোর সমস্যা আছে।” পরে আমি স্বীকার করলাম না। ... অনেক পানি খাওয়ার পরে, পেশাব করতে দিচ্ছে। পেশাব করার সময় একটা বালতি দিচ্ছে। বালতির মধ্যে পানি ছিল। পানির মধ্যে যখন পেশাব পড়ে, তখন কারেন্টের শক লাগে। ... মারধর করেছে। বাইরাইছে। আর হ্যান্ডকাপটা খুইলা এখানে কি যেন একটা বাঁধলো। বাইকা উপরে ঝোলাই থুইয়া দিছিল অনেকক্ষণ। ... আর রাতে বেলা হাত পিছনে বাঁধা থাকলে ঘুমাইতে পারতাম না। পিছনে হাত বাঁধা থাকলে হাতগুলো অবশ হয়ে যেত।^{xxx}

Code CHB:⁴⁶ একটা যে কঠিন শাস্তি দিচ্ছে, সে শাস্তিটা হইলো একটা অন্যরকম। আমার তো চোখ বাঁধা, আমার কিন্তু চোখ বাঁধা। আমারে ধইরা নিয়ে জিজ্ঞাসাবাদ করতে ওইদিন, পিটনা দেওয়ার পরে আবার

⁴⁴ 30 year old male; abducted by RAB Intelligence and RAB 12 in 2014; disappeared for 39 days

⁴⁵ 24 year old male; abducted by RAB 5 in 2019; disappeared for 62 days

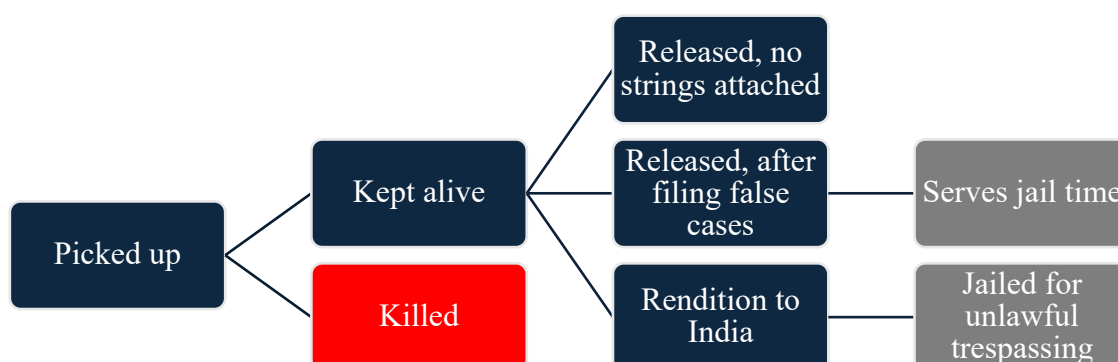
⁴⁶ 18 year old male; abducted by RAB Intelligence and RAB 11 in 2022; disappeared for 45 days

জিঞ্জাসাবাদ করতেছে। তখন আমি বুঝি যে, আজকে আমার জীবন শেষ। জিঞ্জাসাবাদ করার পরে কইতেছে, “এখানে প্রস্রাব কর। এখন এখানে প্রস্রাব কর।” প্রস্রাব করার সাথে সাথে আমি অনুমান করছি যে, আমি মনে হয় পাঁচ ফিট উপরে উঠছি, একটা ফাল দিয়া, ইলেকট্রিক শক সবচেয়ে বড় কোন স্থানে।^{xxxi}

6.6 The outcomes of enforced disappearance

Victims of enforced disappearance have exited the system through two primary channels. The first is execution. In some cases, the bodies were later produced and presented as the result of so-called “crossfire” or “gunfight” incidents. In most cases, however, the bodies were never returned, leaving families without any formal acknowledgement of death.

The second channel is controlled release. Those who were kept alive were released in three different ways. The most common was release following the filing of fabricated criminal cases, which resulted in imprisonment (discussed in Chapter 8). A smaller number of victims were subjected to rendition to India and prosecuted there (discussed in Chapter 10). Only a small minority were quietly released, without any formal charge or case; the victims released after the August 5 changeover are examples in point. This issue is discussed next.



43 Fig: The aftermath of enforced disappearances

6.6.1 Released without charge

A key question that continues to haunt the victim families, particularly those whose loved ones never returned, is why so few individuals were released after the events of 5 August 2024. Given the widespread existence of detention cells across the country, the high number of arrests during that period, and the ongoing street-level confrontations, it is difficult to comprehend why only three individuals—Brigadier Azmi, Barrister Arman, and Michael Chakma—were released. Families are understandably left to wonder whether other victims may still be held in unopened or undiscovered secret detention facilities.

This question has also deeply preoccupied the Commission. When we began our inquiry, we entered the first secret detention facility we discovered after giving a short prior notice. Since then, we have ceased giving notice in the hope of uncovering any secret cells that might still

have people alive in them, or where detainees could not be removed in advance. We have carried out these unannounced inspections across several cities. Although we have certainly uncovered many secret detention centres, in none of these sites have we found evidence that they are still being used to commit enforced disappearance. At no site have we located any detainees in custody at the time of inspection.

The central question, therefore, remains unanswered. With so many sites available for detention, why were only three people released? Does this mean everyone else was murdered that same night? But if that is the case, why were these three spared? And if people were not murdered, are we to believe that all of the cells were empty? These are serious and legitimate questions. They continue to cause confusion, grief, and suspicion among the families seeking the truth.

From nearly the beginning of our work, the Commission knew that more people had been released that night who had not come forward publicly. This is because at the very start of the inquiry, we received a complaint from at least one such individual. Although he was not held in any of the known secret detention centres, the available evidence suggests that he was most likely in DGFI custody. This assessment is based on the fact that he was part of a cluster of detainees, all the rest of whom we have traced to DGFI-controlled sites. However, unlike others in that cluster, he appears to have been treated more specially or as a VIP, and therefore was kept separately in more comfortable facilities.

This allowed us to conclude quite early on in the inquiry process that at least one additional person had been released that night, though he had not entered the public domain nor wanted his identity to be publicly disclosed. Since then, we have discovered that several others were also released that night from both RAB's TFI centre and DGFI's JIC. None of these individuals have made public statements acknowledging their detention or release. In fact, they have not come to us either. Their presence in the cells and their subsequent release were brought to our attention through our inquiry, including from the people who administered these sites.

Although we cannot definitively conclude that all of these individuals were released alive, the balance of probabilities supports the conclusion that they were released alive between 5-7 August 2024. In fact, all indications suggest that the orders issued during that period were to release detainees alive. However, the manner in which some of these releases were conducted raises concerns about the safety and welfare of the victims during the post-release period. For example, Barrister Arman was released at Diyabari, lying on the ground with his eyes and hands tied. Michael Chakma was also released in the middle of a forest, similarly bound. These methods suggest a level of carelessness regarding the victim's fate after release. In a deeply volatile security environment, they were left to navigate the post-uprising Bangladesh alone, without money, after having been held captive for years together. That they managed to make their way home unhurt is a testament to their courage and resourcefulness.

Our information is that in those three days after 5 August, at least one more person was released from JIC, in addition to the two who have come forward in the public domain. From the TFI centre, in addition to the one person who has come forward publicly, at least five others were released. We have some indication of who these unknown individuals are, although we have not established contact with them. It should be noted that, to the best of our knowledge, none of the families of these individuals lodged complaints with the Commission. This absence of complaints is another data point suggesting that these individuals were in fact

released alive, since if they remained missing, it is likely their families would have contacted us by now, as others have done. However, having corroborated the account through multiple channels, including from Bain himself, we are certain of the identity of at least one of those released captives: Subrata Bain (discussed elsewhere in the report).

6.6.2 Executions

The remainder of this chapter is dedicated to discussing the limited but revealing information the Commission has been able to uncover about how victims were eliminated. Officers were frequently active participants in these executions. BA 3799 Brigadier Rashidul Alam, then RAB 1 CO (19 October 2009 to 03 March 2013), recounted an “orientation” session conducted by the then head of the RAB Intelligence Wing, BA 4060 Major General Ziaul Ahsan, during which two victims were shot on a bridge in front of him as part of his initiation into RAB. Another soldier, previously deputed to RAB Intelligence, described a victim attempting to escape by jumping into a river. He retrieved the victim, who was executed on the spot.⁴⁷

Witnesses have described very similar execution scenes across the country:⁴⁸

“র‍্যাব ফোর্সেসে মূলত দুই ধরনের অভিযান পরিচালিত হয়। এর মধ্যে প্রথমটি হলো নিয়মিত টহল পরিচালনা ও দ্বিতীয়টি এনকাউন্টার অপারেশন। এ ছাড়াও এর বাহিরে অলিখিতভাবে আরো একটি অভিযান পরিচালিত হতো... অপারেশনটি গলফ অপারেশন নামে র‍্যাবে প্রচলিত ছিল।” xxxii

“মাইক্রোবাস থেকে একজন সাবজেক্টকে বের করা হলো। তার চোখ-হাত বাঁধা ছিল, মলিন পোশাক পরা, সাধারণ চেহারার মানুষ। এরপর তাকে ব্রিজের পাশে নিয়ে গিয়ে জিয়া স্যার নিজ হাতে পিস্তল দিয়ে তাকে গুলি করলেন, চোখ এবং হাতের বাঁধন খুলে দিয়ে তাকে ব্রিজের রেলিং এর উপর দিয়ে নিচে ফেলে দেয়া হলো। এই কাজে লেঃ কর্ণেল জিয়াকে র‍্যাব ইন্টের অন্যান্য সদস্যরা সাহায্য করে। সাবজেক্টকে গুলি করে ফেলে দেয়ার পর জিয়াউল আহসান আমাদের উদ্দেশ্যে একটি বক্তব্য রাখেন, সেখানে তিনি আমাদের তীব্র ভাষায় ভর্ৎসনা করেন এবং বলেন যে, তোমরা কাপুরুষ, তোমাদের দ্বারা র‍্যাবের চাকরি হবে না, তোমরা আর্মির কুলাঙ্গার। শিখো, কিভাবে এই কাজ করতে হয়।”xxxiii

“সেদিন যে কয়জন সাবজেক্টকে গুলি করে হত্যা করা হয়, তাদের প্রত্যেকেরই চোখ এবং হাত গামছা/কাপড় দিয়ে বাঁধা ছিল। এদের সবাইকে বয়সে তরুণ বলে মনে হয়েছে। এদের সকলেই ছিল দুর্বল, পোশাক-আশাক ছিল মলিন এবং নিজীব। আমার মনে হয়েছে এই সাবজেক্টগুলোকে দীর্ঘদিন কোথাও বন্দী রেখে নির্যাতন করা হয়েছিল।” xxxiv

There are also accounts of alternative methods of killing. One soldier reported being ordered to carry a body to a railway line in Dhaka, where it was placed on the tracks. The officers and soldiers remained in their vehicle until a train passed, dismembering the body.⁴⁹

⁴⁷ As a witness in an ongoing legal case, the individual’s identity has been withheld for safety.

⁴⁸ As witnesses in ongoing legal cases, these individuals’ identities have been withheld for safety.

⁴⁹ As a witness in an ongoing legal case, the individual’s identity has been withheld for safety.

স্যার আমাকে বললো গাড়ির পিছনের ডিকিটা খুলতে। শীতের সময় এইটুকু মনে আছে। অন্ধকার তো, অন্ধকারে হাত দিয়েছি একদম ঠান্ডা, তো আমি ভয় পেয়ে গেছি সাপের শরীর তো ঠান্ডা থাকে সাপটাপ কিনা। পরে দেখি যে একটা মানুষ। বুঝার কায়দা নাই। ... আনকাভারড একটা বডি। হাফ গেঞ্জি পড়া একটা পুরুষের লাশ। এটা দেখে ভয়ে আমার জান ছুটার একটা অবস্থা। রেললাইনের পাশে রেখে চলে আসার পরে আমরা গাড়িতে উঠে যাই। গাড়িতে উঠে যাওয়ার পরে দেখলাম যারা বাকিরা ছিল তারা লাশটা নিয়ে লাইনের উপরে শোয়ায় দেয়। ... বডিটা রেল কাটার পরে আমরা চলে আসছি। যতক্ষণ ট্রেনটা পাস করছিল ততক্ষণ আমরা গাড়িতে ছিলাম। আমরা চলে আসার পর সত্যি কথা বলতে আমি পাঁচ থেকে সাত দিন খাওয়া-দাওয়া করতে পারি নাই, ঘুমাতেও পারি নাই। শুধু ভাবছিলাম কী করলাম। কোন জায়গায় আসলাম আমি, আমি কেমনে কী করব।^{xxxv}

In another instance, a surviving victim (Code BFIH⁵⁰) described being pushed onto a highway in front of an approaching vehicle by a police officer. By chance, the vehicle swerved and avoided hitting him. Unwilling to make a second attempt, the officer abandoned the effort, inadvertently sparing the victim's life.

In cases where bodies were recovered, post-mortem examinations revealed that victims had been shot in the head and disposed of in rivers with cement bags tied to their bodies (Code BGCI⁵¹). This method, described by military officers who had served in RAB, was regarded as standard practice to ensure that bodies would sink. Specific sites of killing and disposal repeatedly referenced in testimony include the Buriganga River, Kanchon Bridge, and Postogola Bridge. A witness from the armed forces remembers:⁵²

এ সময় স্যার একজন টার্গেটকে নিয়ে গাড়ি থেকে নামলেন, পাশাপাশি মেজর নওশাদ [BA 5341 Major Md Ashraful Abedin Noushad] অপর একজন টার্গেটকে নিয়ে গাড়ি থেকে নামলেন। এরপর জিয়াউল স্যার তাঁর টার্গেটকে লুঙ্গি খুলে উলঙ্গ করলেন এবং খুব কাছে থেকে মাথায় পর পর দুটো গুলি করে টার্গেটকে ব্রিজ থেকে ফেলে দিলেন। আমি সামান্য দূরে দাঁড়িয়ে দেখছিলাম যে বডিটা ব্রিজ থেকে নীচে পানিতে পড়ে যাচ্ছে। এরপরই মেজর নওশাদ স্যারের গুলির শব্দ শুনলাম এবং দেখলাম আরেকজন টার্গেট একই ভাবে ব্রিজ থেকে উলঙ্গ অবস্থায় নীচে পানিতে পড়ে যাচ্ছে। এরপর আমি গাড়ির কাছে এগিয়ে গেলাম।^{xxxvi}

Another soldier remembers:⁵³

গুলি করার সময়-সবসময় মাথায় পিস্তল ঠেকিয়ে গুলি করা হতো যাতে করে শব্দ কম হয়। দূর থেকে গুলি করলে টার্গেটের গায়ের রক্তগুলো ছিটে এসে যারা গুলি করতো তাদের মুখমন্ডল রক্তাক্ত হয়ে যেত। এইভাবে একের পর এক ১১ জনকে গুলি করে হত্যার পরে আমরা সিমেন্টের বস্তায় বেঁধে লাশগুলো বুড়িগঙ্গা নদীতে ফেলে দেই। হত্যা করার সময় কোন কোন বন্দি ভয়ে এবং আতঙ্কে পায়খানা করে দিত। এই পায়খানা তখন হাত দিয়ে পরিষ্কার করতে হতো। মেজর নওশাদ স্যার [BA 5341 Major Md Ashraful Abedin Noushad] টিস্যু দিয়ে গাড়িতে গিয়ে পর্যন্ত পায়খানা পরিষ্কার করেছে এরকম দৃশ্য আমি নিজের চোখে দেখেছি।

xxxvii

⁵⁰ 47 year old male; abducted by DB in 2013; disappeared for 5 days

⁵¹ 40 year old male; abducted by RAB in 2011; found dead 12 days later

⁵² As a witness in an ongoing legal case, the individual's identity has been withheld for safety.

⁵³ As a witness in an ongoing legal case, the individual's identity has been withheld for safety.

At Postogola Bridge, a boat—originally seized during a raid on a pirate den in the Sundarbans—had reportedly been modified for use in these operations. Trawlers like these were used across the country, as one officer remembers:⁵⁴

মাইক্রোস থেকে প্রথমে দুইজন র‍্যাব সদস্য হাত ও চোখ বাধা অবস্থায় একজন ব্যক্তিকে নামিয়ে ট্রলারে নিয়ে দ্বিতীয় খালের মধ্যে প্রবেশ করায়। এভাবে একে একে চারজন ব্যক্তিকে (হাত ও চোখ বাধা অবস্থায়) ট্রলারে তোলা হয়। ... আমি এই পুরো প্রক্রিয়া চলাকালীন সময়ে আশেপাশে কোন জনমানব অবস্থান করছে কি না সেই বিষয়টি পর্যবেক্ষণ করার দায়িত্ব পালন করছিলাম। ... স্যার ইশারা করলে খালের ভেতর থেকে হাত ও চোখ বাধা একজনকে তুলে আনা হয়। চার জন ইন্টেলিজেন্স উইং এর সদস্য ঐ ব্যক্তিকে ঘিরে রাখে। .. এদের মধ্যে একজন প্রথমে চোখ-হাত বাধা ব্যক্তির শরীরের সাথে জমাট বাধা সিমেন্টের বস্তা বেধে ফেলে, একজন সদস্য ভুক্তভোগীর মাথায় কুশন ঠেকিয়ে কুশনের উপর দিয়ে মাথায় পিস্তল দিয়ে এক রাউন্ড ফায়ার করে। ফায়ার পরবর্তীতে তৃতীয় ব্যক্তি ভুক্তভোগীর নাভি বরাবর পেট কেটে ফেলে। চতুর্থ ব্যক্তি ভুক্তভোগী ব্যক্তির পেটের কাটা অংশে হাত ঢুকিয়ে কতটা কাটা হলো তার গভীরতা নিশ্চিত করে ... লাশটি ফেলার আগে সর্বশেষ পানির গভীরতা নিশ্চিত করে লাশটি ফেলে দেওয়া হয়। xxxviii

Taken together, these accounts demonstrate that methods of execution varied, but shared a clear and consistent objective: to eliminate the victim and, where possible, to dispose of the body in a manner that prevented recovery or identification. Far from the work of isolated rogue officers, the systemic character of these practices, spanning multiple locations and involving several agencies, points to coordinated planning and operational coherence. A deeper investigation is required to fully map the scale, chain of command, and logistics of these operations.

⁵⁴ As a witness in an ongoing legal case, the individual's identity has been withheld for safety.

7. Empirical foundations: patterns in the data

The Awami League has long denied the occurrence of enforced disappearances in Bangladesh. Their minions continue to repeat these denials today, despite overwhelming evidence to the contrary. Beyond denial, they actively blame the victims—labelling them as extremists and terrorists—and claim that instead of being forcibly disappeared by the State, these individuals were actually engaged in terrorist training at the time of their disappearance.

Even now, after the Chief Advisor Professor Yunus has publicly visited several secret detention sites accompanied by the victims and the media; after both national and international media have exposed these facilities and featured the voices of the victims; even after many survivors have come forward, at great personal risk, to share their stories – the denial persists. This refusal to acknowledge reality resembles not political defensiveness but something far more entrenched: a form of historical denialism so extreme that, it echoes the closed loops of a cult.

This chapter directly challenges that denial. It presents the documented cases of 256 individuals, out of the over 1900 complaints we have received, whose testimonies are remarkably consistent across time, geography, and experience. These are not random or self-selected stories. As explained below, the individuals involved could not have known the framework by which their cases would later be chosen.

While it is conceivable that a few people in a nation might fabricate stories of disappearance, the notion that hundreds would independently invent such consistent, patterned accounts over more than a decade defies belief. The only credible explanation is that these are not coincidences or conspiracies, but evidence of a systemic, institutionalised practice—one that was not only permitted, but normalised.

7.1 The documented sample

In choosing the sample, we deliberately made the criteria stricter than in the second interim report by excluding documents that could be considered adjacent to the main record.

For example, in a case where several people were picked up together, witnessed each other's detention, and the reappearance document confirmed this, we had previously included the whole group because one person had a General Diary (GD). In this report, we include only the individual with the GD. In another case, a GD had been filed to withdraw an earlier GD, thereby indirectly confirming that the disappearance had originally been reported. We

excluded that as well. Similar changes were made across the dataset. Thus the sample now contains complaints that meet the following criteria:

1. There was contemporaneous documentation, such as a GD, media report, time-stamped CCTV footage, or court case filing at the time of disappearance.
2. The victim reappeared in law enforcement custody, formally recorded as having been arrested in connection with a case filed by a law enforcement agency.
3. The victim survived and provided firsthand testimony of their detention, including descriptions of secret facilities and fellow detainees.

Overall, the number of proven survivor cases before the Commission is significantly larger than the small subset presented here; we adopt this subset to test our claims against the highest evidential standard. The sections below explain why we selected these three criteria to filter our sample.

7.1.1 Contemporaneous evidence at the point of abduction

The absence of official documentation at the point of disappearance has long posed serious obstacles to proving cases of enforced disappearance. This is not simply a bureaucratic failure. It reflects a deliberate system designed to frustrate accountability. For instance, victims' families have long been systematically denied the right to file GDs when their complaints implicated law enforcement agencies in disappearances or extrajudicial killings. In many instances, police stations explicitly refused to accept such complaints unless the language was altered to remove references to security forces. A 2014 Amnesty International report documented this pattern with disturbing clarity: "Police officers said if the family removed all references to RAB and changed the wording from 'abducted' to 'missing,' they would accept the complaint" (Source: Amnesty International, "Stop them NOW", October 2014). This process was designed to neutralise the legal and political implications of the incident.

This pattern is echoed across the over 1900 complaints submitted to us. Out of these, only around 250 complaints included any form of contemporaneous documentation, whether through a GD, court record, CCTV footage, or media report, at the time of disappearance. The overwhelming majority of families reported being actively discouraged or threatened when attempting to file a formal report.

A family member reported (Code FBH⁵⁵): "কর্তব্যরত অফিসারের কাছে ঘটনার বিবরণ বললে, তিনি সাধারণ ডায়েরি নিতে অপারগতা প্রকাশ করেন। পরে ওসি মহোদয়ের শরণাপন্ন হলে তিনি বিভিন্ন জায়গায় ফোনে যোগাযোগ করেন। তিনি বলেন যে, প্রশাসনের নামে জিডি করা যাবে না।"^{xxxix} Similarly, a survivor recounted (Code EBB⁵⁶):

জিডি নেয় নাই। তিন চার দিন গিয়েছিল আমার ওয়াইফ। বলছে যে খোঁজেন গা, থানায় যান, ডিবির কাছে যান। আমরা তো এখন জিডি নিতে পারবো না। ... আমি কি বলব। আমার বউয়ের কান্নায় বলে ওয়াল ভাইগা যায়। ডিবির আই ও বলে যে, তোমার বউ প্রতিদিন আইসা যেন চার-পাঁচ ঘন্টা করে কান্না করতো। মনে হচ্ছে ওয়াল ভাইগা যাবে। ... থানায় বলেছিল ওরা, খুঁজা দেখেন। যদি র‍্যাভ-পুলিশ-ডিবিরা নিয়ে থাকে, অনেক

⁵⁵ 23 year old male; abducted by the police in 2016; disappeared for 17 days

⁵⁶ 46 year old male; abducted by RAB 4 in 2016; disappeared for 19 days

সময় গুম করার ইচ্ছা না থাকলেও জিডি-টিডি করলে গুম কইরা ফালায়। আপনারা আপসে খুঁজা খুঁজা দেখেন।^{xl}

This practice continued even after the political transition of 5 August 2024. In one instance, a victim (Code BGDE⁵⁷) who had accompanied the Chief Advisor during a visit to a secret detention facility later received anonymous threats over phone from individuals claiming to represent the Detective Branch. When advised to file a GD with his local police station, he was initially unable to do so because the officers refused to record his complaint. It was only after direct intervention by a member of the Commission that the GD was finally accepted. This incident illustrates the persistence of a culture of institutional denial even after significant political changes.

Therefore, the fact that we have been able to identify over 250 instances of contemporaneous documentation is a feat in itself. The lack of documentation at the point of abduction in most cases is not a matter of ignorance or dereliction of duty. Rather, it is because people were actively prevented from filing such reports. In the absence of documentation at the point of occurrence, proving abduction via eyewitness testimony poses its own challenges, which is why we have not included those cases in this current report but hope to do so in our final report.

A case from our files demonstrates the difficulty of relying on eyewitness accounts. The abduction of a woman from a hospital was verified only years later, when a nearby security guard finally came forward to testify (Code EDI⁵⁸). The delay underscores how, in the absence of official records and under the constant threat of retaliation, crucial testimony may emerge only much later. The system was, in effect, structured to erase its own crimes.

7.1.2 Resurfaced through the criminal justice system

After weeks or months in secret detention, many victims were reintroduced into the legal system under fabricated charges. Law enforcement would claim to have arrested them the previous day and would present them before a magistrate alongside planted evidence. For instance, Code BDJF⁵⁹ remembers:

কোর্টে চালান করার সময় আমাকে বলতেছে যে, “তোমাকে কিন্তু এখন কোর্টে দিয়ে দিব। তুমি যদি বল ম্যাজিস্ট্রেট বা জজের সামনে যে তুমি তিন মাস আগে এরেস্ট হইছো, তাহলে কিন্তু তোমাকে আরো পাঁচটা মামলা দিব। তো বলবা যে আমি আজকে গ্রেফতার হইছি।”^{xli}

This practice has been extensively documented before the 5 August changeover as well. In its 2017 report ‘We Don’t Have Him’, Human Rights Watch stated: “In most cases, the men remain in secret detention for weeks or months before the police suddenly claim to have arrested them the previous day. The men are then taken to the magistrate court and are remanded into police custody on the basis of a concocted story.” Similarly, the US Department of State’s December 2019 report on human rights in Bangladesh also noted this manipulation

⁵⁷ 37 year old male; abducted by DGFI, RAB Intelligence and RAB 7 in 2016; disappeared for 167 days

⁵⁸ 30 year old female; abducted by CTTC in 2023; disappeared for 67 days

⁵⁹ 22 year old male; abducted by CTTC in 2022; disappeared for 96 days

of due process: “Authorities generally permitted defence lawyers to meet with their clients only after formal charges were filed in the courts, which in some cases occurred weeks or months after the initial arrest.”

7.1.3 Survivors testify about captivity conditions

Once abducted, victims were usually taken to detention facilities where they were held incommunicado and subjected to interrogation. In some cases, victims were able to see or hear others detained alongside them, forming a hidden network of witnesses that is only now becoming visible.



44 Fig: Scratched tallies, usually to keep track of time, on the wall of a pre-2018 RAB 2 battalion cell

One survivor described how detainees in facing cells developed creative methods of communication (Code BHFI⁶⁰). He recounted writing messages in the air using mirror writing so others could read them. To demonstrate this, he wrote his name in mirror writing on a Commission member’s notebook. In some instances, victims were unaware that others had witnessed their detention. One detainee told us that across from his cell was a man studying physics at a particular university. Though he did not know the name of this man, we had already received a complaint from that same physicist (Code IGB⁶¹) and were able to connect the two accounts, allowing them to serve as witnesses to each other’s detention.

The period between disappearance and formal arrest would be erased from the official record. During this time, victims, often accused of terrorism, were paraded before the media with planted evidence. Human Rights Watch documented such incidents in its May 2011 report ‘Crossfire: Continued Human Rights Abuses by Bangladesh’s Rapid Action Battalion’ noting, “When he (Masum) woke up, he was taken to his own apartment... RAB had placed seven or eight bottles of Phensedyl... on his bed. When Masum tried to protest, someone punched him

⁶⁰ 16 year old male; abducted by RAB 7, RAB Intelligence and RAB 14 in 2017; disappeared for 3.5 years

⁶¹ 26 year old male; abducted by DGFI, RAB Intelligence and RAB 3 in 2019; disappeared for 110 days

again, and he was forcibly photographed with the bottles.” In many cases, coerced civilian witnesses were forced to validate these fabrications.

7.1.4 The logic of the sample

The purpose of this section is to clarify why these 256 cases were selected in this sample and to explain what gives this sample its credibility. There are three reasons to treat this sample seriously.

1. First reason – *previously documented patterns*: As discussed above, the kind of patterns documented here have already been identified, documented, and analysed by independent and international bodies, albeit at much smaller scales. Thus these patterns were visible long before this report was even conceptualised. We are not claiming to have discovered new information but are reaffirming at scale what has been visible to independent actors for over a decade.

2. Second reason – *strict inclusion criteria*: The 256 cases meet the following three conditions: (a) Contemporaneous documentation: A contemporaneous general diary, CCTV footage, news report, or legal filing was produced at the time the victim went missing; (b) Reappearance in legal custody: The victim was later produced in state custody with formal acknowledgment; (c) Testimony: The victim is alive and therefore can provide testimony about the period of enforced disappearance including descriptions of their locations of captivity. Each of these three steps is clearly evidenced.

3. Third reason – *temporal and geographic dispersion with no prior coordination*: The credibility of this dataset is further reinforced by the temporal and geographic dispersion of the cases, which span over a decade (2009-2024) and originate from diverse regions across the country. These survivors were not part of a coordinated group, nor could they have anticipated or influenced the selection criteria later adopted by this Commission.

Most crucially, our inclusion requirement of contemporaneous documentation was not a foreseeable or obvious threshold at the time the disappearances took place. Prior to the establishment of this Commission, it would not have been clear that the primary obstacle to recognition would be the absence of such records, nor that such documentation would come to determine which cases could be credibly verified.

The victims themselves, held incommunicado, were also in no position to influence the creation of such records. The records were generated by family members, journalists, or lawyers at the time of the disappearance, long before any possibility of retrospective selection or public spotlight. As such, the consistency of these 256 accounts cannot plausibly be explained by coaching, collusion, or fabrication. Instead, their coherence across time, space, and testimony points to a systemic pattern rooted in the institutional behaviour of the security apparatus, not in individual narratives constructed after the fact.

7.1.5 The central assertion

This therefore is our central assertion: It is not impossible that, in one or two or three cases, a person might disappear and later falsely claim to have been forcibly disappeared. But it is unreasonable to believe that over 250 such people, spread out over a decade, across multiple

districts, all gave similarly detailed accounts of captivity, torture, and fabricated charges, simply by coincidence. That level of coordination is implausible.

The cases in our subset are not isolated narratives. They are documented, validated, and collectively point to an institutional pattern. They enabled us to reconstruct the full trajectory of enforced disappearance, from abduction to secret detention and thereafter to fabricated arrest. They also allowed us to identify the locations of clandestine facilities based on repeated, corroborated testimonies.

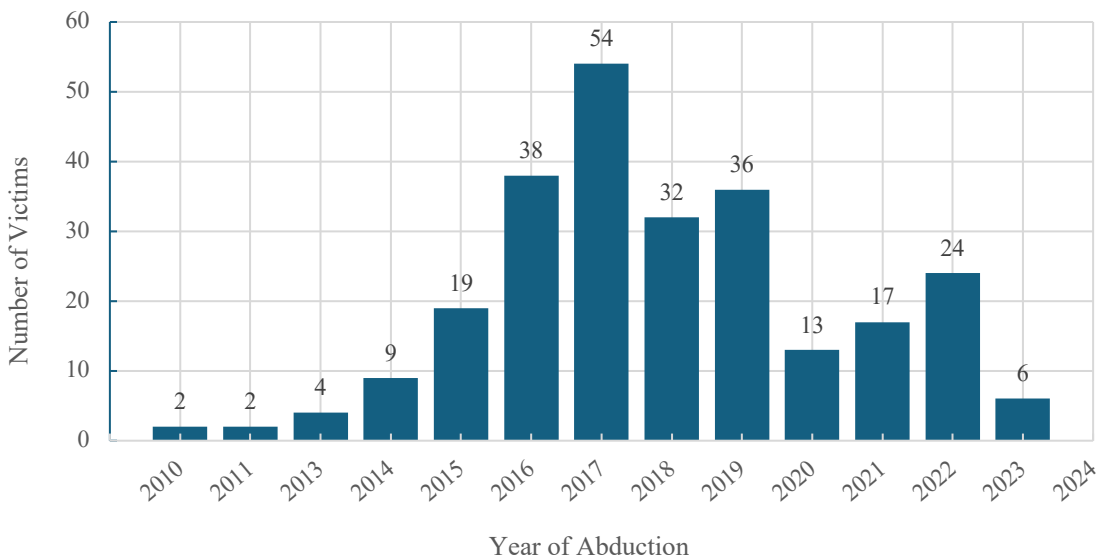
The burden of explanation lies with those who would suggest that 256 individuals—all of whom were legally acknowledged by the state after their reappearance—fabricated their accounts in identical ways over a span of more than a decade. For these reasons, we assert that this sample offers a legitimate and significant body of evidence for understanding the practice of enforced disappearance in Bangladesh.

7.2 Differences in the sample

In this section, we provide evidence of the heterogeneity of the sample—spread across space, time, age, profession, and duration of disappearance—to support the claim that these cases do not indicate the spread of extremism or similar pathology in Bangladesh but rather reveal a coordinated, state-backed system of enforced disappearance.

7.2.1 Spread across time

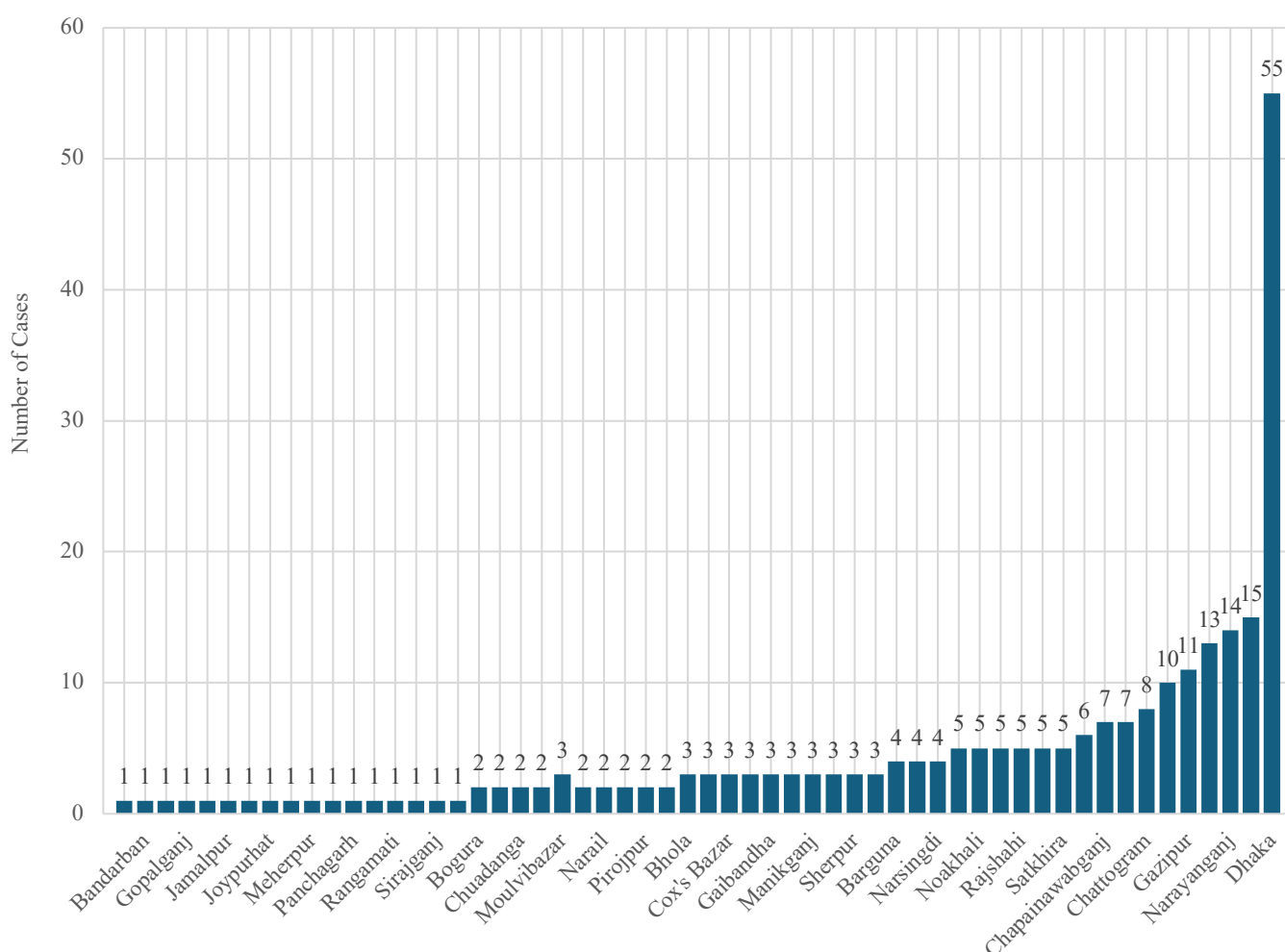
The chart shows that abductions in this sample occurred across a wide span of time, with cases reported every year from 2010 to 2023. While the peak was in 2017, the distribution reveals that incidents were not limited to a single year or period. Instead, they occurred persistently over more than a decade, underscoring the sustained and recurring nature of the practice. This temporal spread reinforces the conclusion that enforced disappearances have been part of a long-standing pattern rather than short-term or isolated events.



45 Fig: Distribution of abductions by year (n=256)

7.2.2 Spread across space

The chart shows that abductions in this sample are spread across a wide range of districts in Bangladesh, covering much of the country. While a few districts have a notably higher number of cases, the presence of incidents across so many areas demonstrates that this is not a localised issue. Instead, it reflects a geographically dispersed pattern of abuse affecting diverse parts of the country.

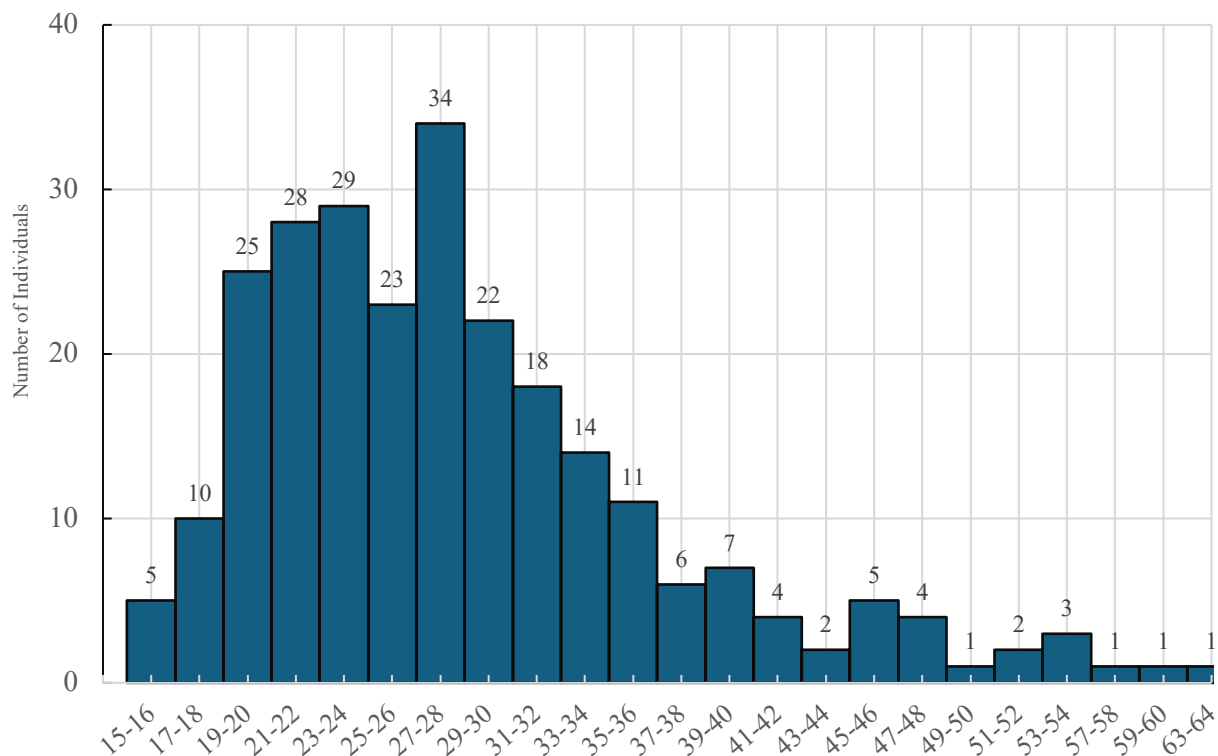


46 Fig: Distributions of abduction by district (n=256)

7.2.3 Spread across age

The majority fell between the ages of 19 and 36, with a distinct peak around ages 27–28, the single largest cohort in the sample. Notably, at least 15 individuals were aged up to 18 at the time of abduction, with at least 5 below 18, raising serious concerns under international and domestic protections for children. Authorities may argue that younger individuals were targeted based on their higher statistical likelihood of radicalisation, a claim that some counter-extremism studies support, noting that ideological shifts often begin in late adolescence. However, the data presented here complicate that rationale.

The peak does not occur in the teenage or early-twenties range, where radicalisation is said to most commonly begin. Instead, the largest cohort falls in the late twenties, an age bracket more closely associated with political maturity and organising capacity. This suggests that the system of enforced disappearance may have been driven less by counterterrorism objectives than by an intent to neutralise perceived political threats. The pattern in the chart supports this interpretation.



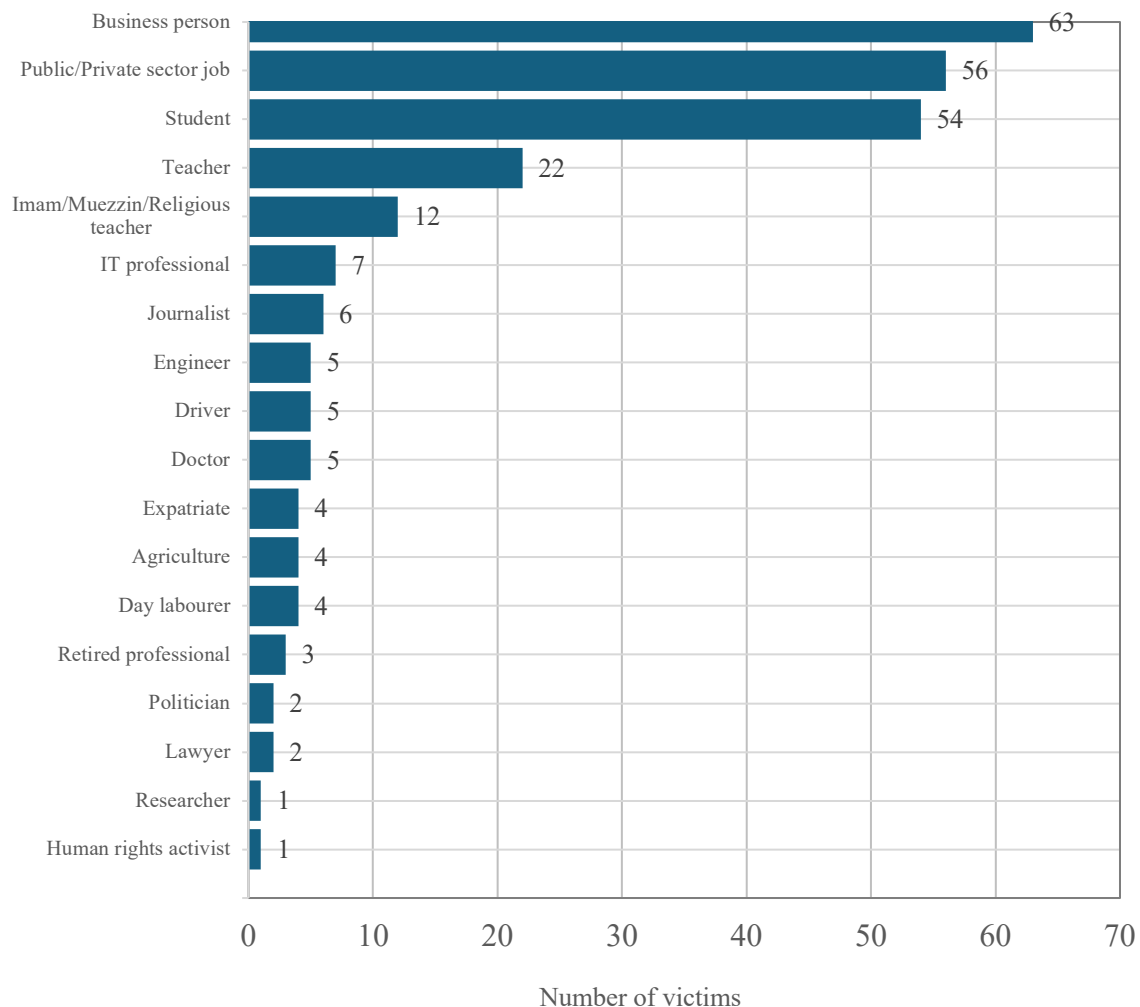
47 Fig: Distribution of age of abduction grouped by range (n=256)

7.2.4 Spread across professions

The chart below shows the distribution of professions among the 256 victims in this subset of the dataset. The data reflect a wide range of backgrounds—students, businesspeople, teachers, private-sector employees, religious workers, journalists, drivers, doctors, expatriates, and day labourers—indicating that individuals from many different sectors were affected. However, the largest groups are businesspeople (63), private or public sector employees (56), and students (54), suggesting that certain professions were more heavily targeted.

This pattern becomes clearer when viewed together with the age data. The peak age of abduction falls in the late twenties, aligning closely with professions such as business, teaching, and private service, which typically involve individuals beginning to accumulate social capital, economic independence, and organisational influence. While students also make up a large share of victims, many in this category are older, including postgraduate or politically active individuals.

Taken together, the data indicate that abductions may not have been aimed primarily at preventing youthful radicalisation, but rather at suppressing those already exercising, or likely soon to exercise, political or civic influence.

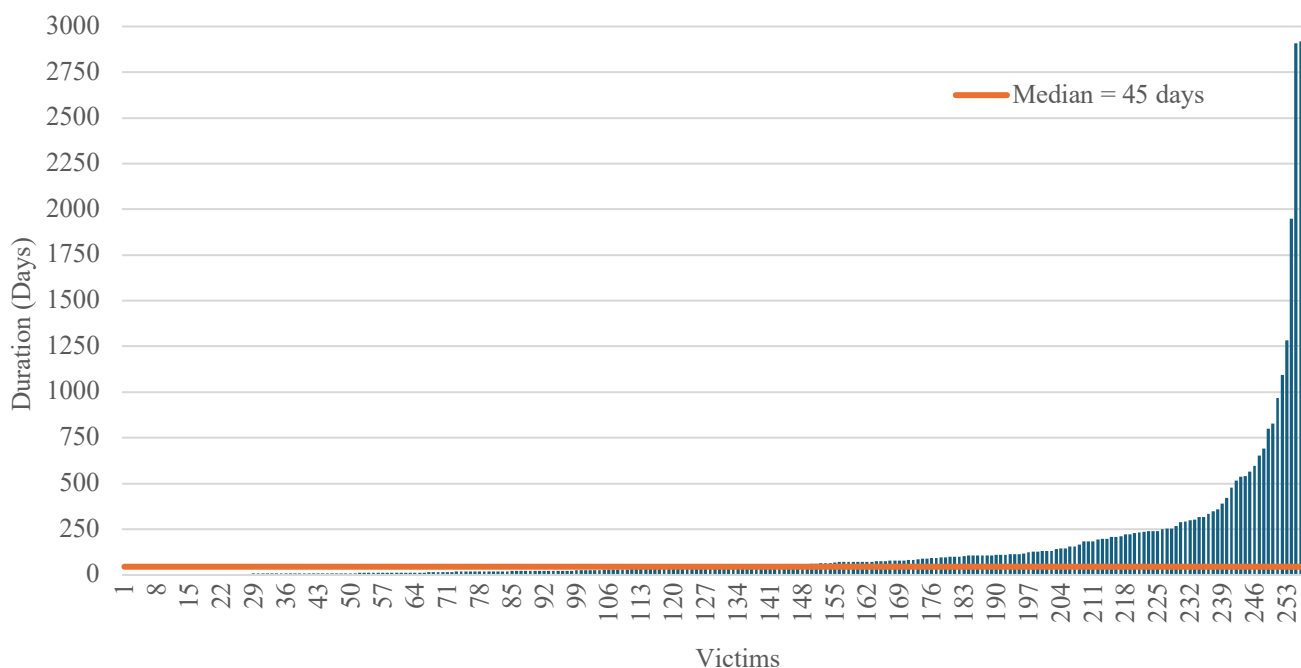


48 Fig: Distribution of victims' profession (n=256)

7.2.5 Arbitrary custody gaps, i.e. periods of enforced disappearance

The distribution of enforced disappearance durations reveals both the unpredictability and psychological toll of the practice. In this sample of 256 cases, victims were held for vastly differing lengths of time — from a single day to more than seven years. While the median duration of disappearance was 45 days, a significant number of individuals were missing for several months or even years, with outliers extending beyond 2,900 days.

The median means that half of the victims were held for less than 45 days and half for longer. It is a more reliable indicator than the average in a dataset skewed by extreme, long-term cases. Crucially, the lack of consistency in duration, and the absence of any transparent justification for why one person is held longer than another, reinforces the extrajudicial and punitive character of the system.



49 Fig: Duration of disappearance (n=256)

The patterns suggest that these were not merely isolated or operational decisions based on individual risk or case complexity, but part of a broader apparatus of intimidation and control. If the variation in duration had followed a legal or operational logic, we might expect clear categories — shorter detentions for less severe cases and longer ones for those deemed higher risk. Instead, the data reveal arbitrary, sometimes extreme inconsistencies.

Viewed alongside other patterns — such as the use of plainclothes personnel, blanket terrorism charges, and the concentration of disappearances among politically active or organising-age individuals — the durations appear less a matter of intelligence-gathering or national security, and more a method of governance by fear. The uncertainty of how long one might remain disappeared becomes, in itself, a tool of repression.

7.3 Similarities in the sample

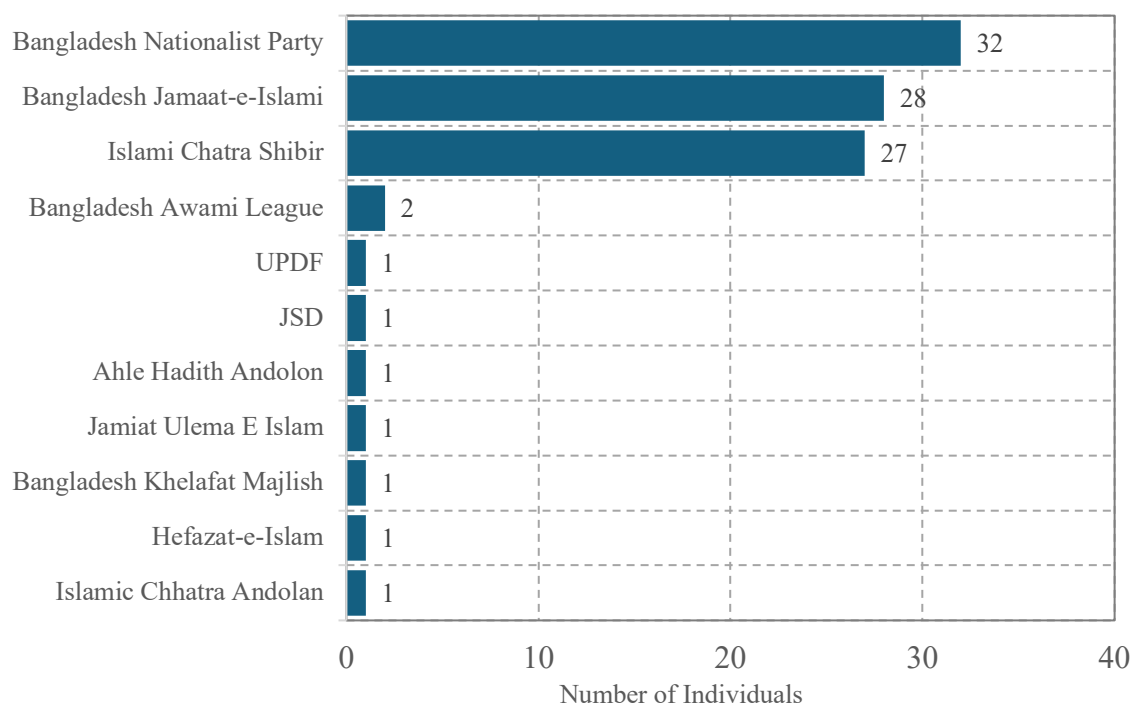
In this heterogeneous sample, what stands out are the notable categories of homogeneity. For example, victims show striking similarity in their political identification, mode of disappearance, religion, and gender. Many cases also involve multiple security agencies, and there are consistent patterns in media coverage. Furthermore, as we will discuss in the next chapter, despite the diversity in locations and timing of abductions, there is a remarkable uniformity in the judicial treatment of victims, including the coercion used when taking statements, the specific laws invoked, and the language of the charges.

7.3.1 Similarities in political identity

As a whole, we find that victims are often hesitant to disclose their political affiliations—a reluctance that appears to stem from the legacy of the 15-year Sheikh Hasina regime. Many

of those who were forcibly disappeared seem to have held oppositional political views, but the trauma associated with their disappearance makes it particularly difficult for them to acknowledge their political identity openly. It is common for victims to initially deny any political involvement; however, as interviews progress, their past affiliation with an opposition party is often revealed, sometimes involuntarily. This lingering fear remains palpable throughout the process.

As a Commission, we have found it difficult to press victims on this point out of concern that they might misinterpret our intentions. We were mindful not to create the impression that we sought to politicise their experiences or show bias towards or against any particular party. As such, we approached the matter with sensitivity and did not insist when the victims were unwilling to disclose such information.



50 Fig: Disclosed political identity (n=96)

Nonetheless, in a number of cases, the victims did voluntarily acknowledge their political background, either in writing or during oral testimony. Of the 256 complaints under examination in this report, we were able to determine the political affiliation of 96 individuals, which constitutes approximately 38 percent of the sample. It is important to reiterate that these 256 cases represent a specific subset of the nearly 1900 complaints currently in our possession. Only those cases for which official documentation exist at the point of abduction, who are alive, and who resurface with a case filed against them by a security force were included in this sample.

The political affiliation data derived from this subset, therefore, should not be assumed to reflect the exact proportions found across the full dataset. When the broader pool of cases is examined, the distribution across different opposition parties do shift. (The full political affiliation data is discussed in Chapter 5.) However, one trend has remained consistent throughout our inquiry: individuals affiliated with opposition political parties are significantly

overrepresented among the victims, as compared to supporters of the then ruling party. This observation is supported by the data, even though the exact proportions vary across subsets.

Within this group of 96 individuals who disclosed their political affiliations, the vast majority identified with what were, at the time, opposition political parties. Only two individuals were associated with the ruling regime. In the rare cases involving supporters or activists of the ruling party, we usually find the enforced disappearances appear to be the result of intra-party factional disputes, personal property conflicts, or other criminal dynamics unrelated to political dissent. In the two instances from our present sample of 256, for example, as far as we have been able to determine, enforced disappearance within Awami League happened because of intra-party dispute regarding upazila parishad elections (Code BGCE⁶²) and political mobilisation (Code ECI⁶³).

Beyond the demographic breakdown, the political imperative underlying the system of enforced disappearance is also evident in the nature of interrogation described by the victims. Many reported being questioned extensively and explicitly about their political identities, affiliations, and roles. We elaborate on two such cases below, where the victims were interrogated by officials from different agencies but were subjected to similarly politically charged questioning.

Despite the differences in the institutions—one being DGFI and the other RAB—and in the professional backgrounds of the interrogators—military versus police—what stands out is the striking similarity in the nature of questioning of the victims. In both cases, the focus was heavily centred on political information: the victims were repeatedly asked about their political identities and associations. This pattern underscores a broader structural reality, which is that the Awami League regime's system of enforced disappearance was constructed with a clear political imperative that also happened to serve other purposes as and when needed.

Code BHHH⁶⁴ is a BNP activist who was held at DGFI's JIC, where he was interrogated by military officers, as only military personnel were assigned to that role at that location during the relevant period. He recalls being questioned about BNP leaders:

তারা বুঝায় দিল যে, “আমরা সব আপনার সম্বন্ধে জানি।” আমি বিএনপি করি। ম্যাডামের সাথে চলি। এগুলো সবই তারা জানে। ... “আপনি আমাদেরকে আগে বলেন, আপনি বেগম খালেদা জিয়ার জন্য কি করতেন?” আমি পার্টি করি। আমাকে যখন যে টাস্ক দেওয়া হয়, আমি টাস্কটা ফলো করি। ... ওরা জিজ্ঞেস করছে: “উনার সেফটি সিকিউরিটিতে কোন কোন দেশ ইনভলভ? কারা তাকে সহযোগিতা করে?” আমি বলেছি, “আমি জানি না।” ... তো যখন বলছি জানি না, তখন বলল যে, “দেখেন, আপনি যত আমাদের সাথে নন-কোঅপারেশন করবেন, আপনার জন্য দিন তত খারাপ হবে।” তখন বলল যে, “আপনি এম্বাসিগুলোতে যেতেন। এম্বাসি থেকে গিফট আসতো। উনি গিফট দিত। এগুলো গিফটে কি ছিল?” আমি বললাম, “আমি জানি না।”

তখন মনে আছে, একটা জোরে—মানে হাতুড়ি না কি দিয়ে—বাড়ি মেরেছে জানি না, মানে আমার হাটুর মধ্যে। আমার তখন গলায় আওয়াজ আটকে গেছে পুরা। মানে এত জোরে লেগেছে, আমি তখন আর কথা বলতে পারছিলাম না। তো পাশ থেকে আরেকজন ইয়াং অফিসার তখন চিল্লাচ্ছে, “স্যার, একে শেষ করে ফেলি! এই

⁶² 38 year old male; abducted by RAB 15 and RAB 7 in 2022; disappeared for 1 year and 5 months

⁶³ 26 year old male; abducted by RAB Intelligence and RAB 1 in 2017; disappeared for 48 days

⁶⁴ 42 year old male; abducted by DGFI and DB in 2017; disappeared for 129 days

করে ফেলি, ওই করে ফেলি!" তো অন্যজন বলছে, "না, মুখ খুলবে। কয়দিন বন্ধ রাখবে?" তো তখন, ওইদিন ওখানে শেষ। ...

দুই-তিন দিনের মাথায় আবার হট করে নিয়ে গেল। নিয়ে গিয়ে আবার শুরু করল, "আচ্ছা, আপনার সাথে তো ওইদিন এই কথা হয়েছিল। আপনি কি এখন রেডি বলার জন্য?" আমি বললাম, "আমি কিছু জানি না।" তো বলছে, "তারেক রহমানের একাউন্ট ডিটেইল বলেন—কোন কোন জায়গায় তার টাকা থাকে।" আমি বললাম, "ভাই, আমি জানি না। আই ডোন'ট নো। সিম্পলি ডোন'ট নো।" তো বলছে, "ম্যাডাম জিয়ার টাকা কোথায় দিয়েছেন? কোথায় রাখেন?" আমি বলি, "আমি জানি না।" তখন আবার দিল—আমার দুইটা নি ক্যাপ, মানে তারা দিল [বাড়ি আবার]। তারপর ফেলে রাখলো। ... তাদের মূলত কথা ছিল দুইটা জিনিস - বেগম খালেদা জিয়ার একাউন্ট কোথায় কোথায়? তারেক রহমান সাহেবের একাউন্ট কোথায় কোথায়? বেগম খালেদা জিয়া এবং তারেক রহমানকে কোন কোন দেশ থেকে সহযোগিতা করে বা করে কিনা, কারা করে? এগুলো জানতে চায়।^{xlii}

Conversely, Code BHGJ⁶⁵ was interrogated at RAB 2 by a police officer whose identity we have been able to confirm. He was questioned, whilst being waterboarded, about his Jamaat Islami-Shibir affiliation:

আমারে চিৎ করে শোয়ায় দিছে। দিয়ে দুই হাতের মধ্যে আর দুই পায়ের মধ্যে বাঁশ ঢুকায় দিছে। তারপর হাত-পায়ের উপরে চারজন উঠে বসে। এরপর মুখের উপরে একটা কাপড় দিয়ে উপর থেকে পানি ঢালতেছিল। যেটাকে আমি কিছু বই পুস্তকে পড়ছিলাম। এর নাম হবে ওয়ারটার বোর্ডিং। তো ওই মাইরটা আমি নিতে পারতেছিলাম না। আমার মনে হয় যে যে কোনো সেকেন্ডের মধ্যে আমি মারা যাবো, আমার শ্বাস বন্ধ হয়ে যাবে। তো ওরা মনে হয় হার্ট চেক করতেছিল যে হার্ট বন্ধ হয়ে যায় কিনা। দুই-আড়াই মিনিট, তিন মিনিট এইটা দিছে।

আর জিজ্ঞেস করছে, “বল, তুই জামাতের? তুই শিবিরের? তুই কি করস?” আমি বলছি যে, “দেখেন, আমি এক সময় ছাত্র শিবির করতাম, এখন আমি করি না। আমি এটা অনেক আগেই ছেড়ে দিছি, ২০১৪ সালের পর থেকে আমি কোন রাজনীতি করি না। আমার বাবা মারা যাওয়ার, ভাই মারা যাওয়ার পর থেকে আমি আসলে পড়াশোনা করে একটা চাকরি নেওয়ার চেষ্টা করছি।” এই নানান প্রশ্ন। “তুই কেন ফজরের নামাজ জামাতে পড়স? মেয়েদের সাথে তোর কোন রিলেশন নাই কেন?” এই সব। ... ওয়ারটার বোর্ড করার মাঝে মাঝে এটা জিজ্ঞেস করে। ওইটা থামায় থামায় কোশেন গুলো করতেছে। ... আমার মনে হয় দুই মিনিট পর আমি সেন্সলেস হয়ে যাই। সর্বশেষ শুধু একটা গালি শুনছিলাম যে, “রাজাকারের বাচ্চা”। এরপর আমার হুশ ছিল না। এরপর আমি বেহুশ হয়ে গেছিলাম। ...

জিজ্ঞাসাবাদের সময় প্রশ্ন করত আমার কেন গার্লফ্রেন্ড নাই? ... তখন আমার মুখে আরেকটু বড় দাড়ি ছিল – “কেন মুখে বড় দাড়ি? টাকনোর উপর কেন প্যান্ট পড়ি?” এই নানান কোশেন। “আমার ভাই কেন জামাতে ইসলামী করত?” তো এগুলো বলছে, আর ফাঁকে ফাঁকে উনি খুবই বাজে গালি দিত। ... আমি জাস্ট কান্না করতেছিলাম আর বলতেছিলাম, “স্যার, আমি মিথ্যা কিছুই বলতেছি না। আপনি আমার কথা বিশ্বাস না হইলে আমার এলাকায় যাইয়া খবর নিয়ে দেখেন। আমি মিথ্যা কিছু বলতেছি না। আমি সবই সত্য বলতেছি। আমি এক সময় শিবির করতাম, এখন শিবির করি না, স্যার। আমার ভাই জামাত করতো, সে মারা গেছে। আর আমার পরিবারের অন্য কেউ জামাত-শিবিরের সাথে সরাসরি নাই।” তখন বলছে, “না, তোর বাপেও জামাত

⁶⁵ 19 year old male; abducted by RAB 2 in 2017; disappeared for 10 months

করছে।” আমি বলছি, “না, বাবা কখনো জামাত করে নাই। সে ইসলাম প্রিয় মানুষ ছিল, ধর্ম-কর্ম মানতেন। আমার পরিবার ধর্ম-কর্ম করে, তারা জামাত করে না। আমি শিবির করছি, ভাইয়া জামাত-শিবির করছে।” ...

আরো দুইটা জিনিসে খুব ফোকাস করছে। আমরা সাত-আট জন মিলে রোহিঙ্গাদের হেল্প করার জন্য একটা টিম করে গেছিলাম। আর কোন কিছু না। তো ওইখানে কেন গেছিলাম? তাদেরকে কেন হেল্প করছি? আর ভারত-পাকিস্তান। আমার কোনটাকে ভালো লাগে, এই টাইপের। ... প্রশ্নটা বলছে যে, “তোর কি ভারত ভালো লাগে? বাংলাদেশ-ভারত-পাকিস্তানের মধ্যে কাদেরকে ভালো লাগে? বাংলাদেশকে স্বাধীন ভালো লাগে?”... তারপর বলছে যে, “রোহিঙ্গাদেরকে তোরা হেল্প করতে গেছ। তোরা আসলে কী চাস? রোহিঙ্গাদেরকে তোরা কি এই দেশে রাখবি? রাইখা দিতে চাস, নাকি ফেরত দিতে চাস? রোহিঙ্গাদেরকে তোরা কি এরকম তোরা জামাত-শিবিরের মত জঙ্গী বানাবি? তাদের চিন্তা-ভাবনা কি?” আমি বলছি, “দেখেন, আমার এই ব্যাপারে কোন চিন্তা-ভাবনা নাই। ওদের কষ্ট দেখে আমরা জাস্ট একটা টিম করে টাকা-পয়সা কালেক্ট করে ওদেরকে হেল্প করছি। ওদেরকে আসলে কোন কিছু বানানো বা ইসলামী মানুষ বানানো, এরকম আমার চিন্তা ছিল না।” এই জিনিসগুলো নিয়ে ফোকাস করছে বেশি। আর জামাতের-শিবিরে আমি কোন পদে আছি? কি করি?^{xliiii}

In this sample, 62% did not disclose their political identity. On this issue, it is impossible for us to know whether it is because they were genuinely apolitical or because they were hesitant to disclose their political affiliation. As a result, our assessment of this mirrors our assessment of similar data presented in the earlier chapter

7.3.2 Similarities in the mode of disappearance

Regarding information about the appearance of their abductors, the vast majority of victims in this sample (over 200 individuals) reported that the men were in plain clothes rather than in uniform. This consistent pattern reinforces the covert and extrajudicial character of these operations, in which official identity was deliberately obscured. The use of “civil dress” appears to have been a deliberate tactic to avoid institutional accountability, heighten fear, and complicate efforts to trace responsibility. Its recurrence across such a large number of cases indicates that it was not incidental, but formed part of a standardised method of operation.

7.3.3 Similarities in religion and gender

Out of the 256 cases, the vast majority of victims are Muslim, with only two involving Hindus and one Buddhist. Similarly, nearly all victims are male, with just one female victim. This pattern aligns with the overall profile of enforced disappearances in Bangladesh, where Muslim men have been disproportionately targeted. It also reflects challenges in encouraging female victims to come forward and lodge complaints.

Whilst this data alone does not rule out the possibility that victims were targeted solely on suspicion of extremism, it clearly suggests that not all were singled out for that reason. In a Muslim-majority country like Bangladesh, with a large population of politically active Muslim men, the targeting may also have been primarily political. This interpretation gains further weight when considered alongside other data on political identity.

The low number of female victims may reflect a focus on individuals with organisational roles or street-level mobilisation capacity, positions typically occupied by male activists.

Additionally, the inclusion of Hindu and Buddhist victims, disappeared for political reasons, indicates that the repression extended beyond allegations of Islamic extremism and into a wider political crackdown.

7.3.4 Multi agency involvement

Out of the 256 cases in this sample, a little more than half involved multi-agency participation. In these cases, one agency carries out the initial abduction and subsequently transfers the victim to another, often involving a third or even fourth agency before the person is ultimately produced before a court.

This degree of coordination has two major implications. First, it appears to serve as a mechanism for masking culpability, diffusing responsibility across multiple institutions so that no single agency bears full accountability. Second, and more significantly, it reveals a high level of inter-agency cooperation, pointing to a deliberate and systematic repression apparatus operated at the state level.

Notably, such multi-agency involvement is most frequently observed in cases connected to RAB Intelligence and DGFI. Intelligence agencies such as these typically do not engage directly with the criminal justice system. They do not file formal charges or produce detainees before the court. Instead, victims are transferred to police or other law enforcement units that possess the legal authority to initiate judicial proceedings. Therefore, multi-agency coordination is a necessity for them.

The coordination between agencies is not only institutional but operationally visible. Victims frequently report being blindfolded and transported in vehicles, only to be stopped mid-transit and handed over to a different team. In many such cases, the blindfolds and handcuffs are physically replaced during the transfer. We infer that each agency uses its own equipment, suggesting a meticulous administrative process during these handovers. This level of detail reinforces the conclusion that such practices are not ad hoc, but part of an organised state security framework.

Importantly, we are attempting to assess agency-level culpability based primarily on victim testimony. Victims are often unable to clearly identify the specific agencies involved, either due to being blindfolded, disoriented, or afraid. In this context, the identification of a high number of cases with confirmed multi-agency involvement is in itself a significant finding. The true number may well be higher.

In contrast, cases involving CTTC show a different operational pattern. Multi-agency involvement in such cases is relatively attenuated. Typically, one CTTC team is responsible for the abduction, another for producing the individual before court or filing charges, and a third for presenting witnesses to substantiate the case. Unlike other agencies, CTTC and DB appear to have more in-house mechanisms for handling the entire cycle from disappearance to legal proceedings. Other forces lack such integrated structures and thus rely more heavily on inter-agency transfers.

Taken together, these findings not only highlight the structural complexity of enforced disappearance practices in Bangladesh but also underscore the extent to which institutional coordination facilitates abuse while shielding perpetrators from accountability. The prevalence

of multi-agency operations points toward a centrally managed, state-directed system of repression that is both deliberate and highly organised. A simple counterterrorism operation would not require such cover.

7.3.5 Similarities in media treatment

At the end of their period of enforced disappearance, law enforcement agents held press briefings where most of the individuals in our sample were paraded before cameras, usually branded as terrorists. For the victims, being made to appear before the media (called “মিডিয়া করা” or “doing media”) was a double-edged sword.

On one hand, it meant they would not be killed, and announcing they were held in custody meant they could enter the criminal justice system formally. On the other hand, it ensured their reputations would be permanently besmirched through a media trial. Their names, photographs, and alleged crimes were announced publicly before any formal charges or court hearings, denying them the opportunity to respond or defend themselves. Police narratives would dominate the media coverage, shaping public perception and prejudging guilt before judicial verdicts.

Even if acquitted later, the criminal label often lingered in public memory and online records, creating grave challenges for employment, education, and travel for years to come. Code CIC⁶⁶ described being denied US visa, even six years after the incident, despite receiving two post-doc offers from renowned universities. During the visa interview, he reports, “Embassy staff clearly told me that because there is a case against me, it is not possible to grant me a visa.” He was acquitted in the case filed against him by RAB.

As a result of the public shaming, in many cases, their friends and neighbours would shun these victims out of fear that they themselves could become involved in terrorism investigations. Code BIAI⁶⁷ recalls that even her mother’s political party colleagues abandoned the family when she was disappeared and later branded a terrorist, with the situation changing only after the 5 August changeover: “দুঃসম্পর্কের মানুষ অনেকে আগে রিউমার ছড়াতো যে, মেয়ে জঙ্গি হয়ে গেছে। আমার আব্বুকে অনেক টলারেট করতে হয়েছে। তবে এখন পরিস্থিতি চেঞ্জ হয়েছে এবং তারা নিজেরাই স্বেচ্ছায় আমাকে দেখতে চায়, কথা বলতে চায়। বাড়িতে যাওয়ার জন্য বারবার রিকোয়েস্ট করে। এখন পরিস্থিতি চেঞ্জ হয়ে গেছে।”^{xliv}

The High Court of Bangladesh has repeatedly condemned media trials as unconstitutional and illegal. In the case of *The State v. Mr. Swadesh Roy*, the Appellate Division of the Supreme Court stated (44 CLC (AD) 49): “Any publication during the pendency of any matter in any Court of law, which tends to interfere with the course of justice in any substantial or real manner by prejudicing the mind of the public against persons concerned in the case before the cause is finally heard, is also contempt... We should not permit anyone to poison the fountain of justice. This would be a grave interference with the administration of justice.” This ruling reaffirms the danger of prejudicial reporting and establishes that media influence, regardless of intent, can erode the foundational impartiality of the judiciary and undermine the administration of justice.

⁶⁶ 30 year old male; abducted by RAB 2 in 2018; disappeared for 5 days

⁶⁷ 24 year old female; abducted by the police in 2018; disappeared for 14 days

The type of media coverage was divided into two: one uncritically repeated the state narrative, while the other raised some questions about it. The scepticism was usually not about the substance of the accusation. Instead—often based on statements from family members—the reports would question the timing of the person’s arrest and possible detention.

For instance, Kaler Kantha covered BNP activist Code BAB’s⁶⁸ predicament as: “দুজনকে গ্রেপ্তারসহ ২৯ জনের বিরুদ্ধে র‍্যাব-১০ সোমবার একটি মামলা করেছে। ... তাঁরা ফেসবুকসহ বিভিন্ন সামাজিক যোগাযোগ মাধ্যমে সরকারবিরোধী অপপ্রচার চালিয়েছেন বলে অভিযোগ করা হয়েছে।”^{xlv} The report questions the state’s narrative with: “স্বজনদের দাবি, গত ২৮ অক্টোবর পিএস টার্ন নামের একটি লঞ্চ থেকে জুলভার্নকে প্রশাসনের লোক’ পরিচয়ে তুলে নেওয়া হয়। নিখোঁজ হওয়ার ৯ দিন পর মঙ্গলবার মিরপুর থানায় জুলভার্নকে ডিজিটাল নিরাপত্তা মামলায় গ্রেপ্তার দেখানো হয়েছে।”^{xlvi} Whilst it indicates the victim was taken into custody well before RAB acknowledged it, the substance of the accusation remained largely unchallenged.

The instances we have noted where the narrative is fully challenged were usually where a political party directly intervened to register their disagreement. For example, on 5 August 2010, The Daily Star published a report headlined “RAB Claim Shibir link with Outlaws”: “The Rapid Action Battalion yesterday claimed to have found link between Islami Chhatra Shibir and banned Islamist outfits. The elite force claimed that Shibir operatives are collecting arms and explosives from the outlawed organisations to carry out subversive activities in the country.”

Shibir provided an addendum, that was published in the same article, arguing: “Meanwhile, in a press release, Islami Chhatra Shibir yesterday alleged that Rab personnel planted the fire-arms and ammunition at the residences of its activists and made the arrests when the activists were in sleep.”

Such instances, however, were few and far between. In the vast majority of cases, we found the media simply parroted the information provided to it by law enforcers who labelled their enforced disappearance victims as terrorists, with no attempt to provide any contrarian accounts whatsoever.

⁶⁸ 59 year old male; abducted by RAB 10 in 2018; disappeared for 10 days

8. Weaponised criminal justice system

This chapter demonstrates how Bangladesh’s criminal justice system, particularly prosecution practices and court processes, was repurposed to legitimise repression and shield state actors from scrutiny. Rather than safeguarding due process, legal mechanisms were routinely used to criminalise victims, normalise unlawful custody, and transform coerced narratives into judicial record. The Commission identifies consistent patterns of coerced statements, procedural manipulation, and strategic case-filing that enabled enforced disappearance to persist under a veneer of legality. Through its analysis of these patterns, legal distortions, and institutional incentives, the Commission concludes that the justice system has been redirected from upholding rights to serving political objectives, legitimising repression, and criminalising

8.1 Coerced statements

Across numerous testimonies spanning different districts, years, and agencies, a disturbingly consistent pattern emerges in the extraction of confessional statements from the victims of enforced disappearances and arbitrary detentions. The uniformity of these accounts suggests a coordinated method of producing alleged self-incriminating statements through coercion, procedural violation, and institutional complicity.

8.1.1 Threats and coercion as standard practice

Victims were clearly told that unless they signed the Section 164 confessional statements and repeated to the Magistrate what they had been instructed to say, they would face severe consequences. Over the years, individuals detained by various security forces have consistently described direct threats, physical violence, and psychological coercion during custody. These included threats of death, prolonged disappearance, harm to family members, and repeated torture. In many cases, victims were warned that refusing to follow the dictated narratives would lead to death or fabricated charges of even greater severity.

Code EDB:⁶⁹ “আমাকে সারা রাস্তা বলে রাখছে, তুই যদি উল্টাপাল্টা করিস বা ১৬৪ না দিস, তাহলে তোর ওয়াইফকে নিয়ে আসবো। তোকে ইচ্ছামতো মারবো। ... আমাদের এখানে কোনো রুলস নাই, বা কেউ কিছু করতে পারবে না।”^{xlvi}

⁶⁹ 27 year old male; abducted by CTTC in 2021; disappeared for 32 days

Code BGBJ:⁷⁰ চার মাস পরে নিয়ে গেল, “আমাকে চোখ বেঁধে নিয়ে গিয়ে বলতেছে, তুমি কি এখান থেকে বের হতে চাও, নাকি এভাবেই জীবন শেষ হয়ে যাবে?” আমি বললাম, “অবশ্যই আমি এখান থেকে বের হতে চাই।” তখন বলে, “ঠিক আছে, তাহলে আমরা যে কথাগুলো বলবো, তুমি কোর্টে ম্যাজিস্ট্রেটের সামনে তাই বলবা। ... তুমি যদি এটা বলো, তাহলে তুমি এখান থেকে বের হবা। আর যদি না বলো, তাহলে এখানে তোমাকে ক্রসফায়ার দিয়ে দিব, তুমি মরবা।”^{xlvi}

Code BBHJ:⁷¹ একটা কাগজ লিখে দিয়েছেন, “এইভাবে এইভাবে তুমি স্বীকারোক্তি দিবা। আর না হলে তোমাকে বাঁচায় রাখবো না। যদি স্বীকারোক্তি না দাও, তাহলে তোমাকে মেরে ফেলা হবে।” ... আমি প্রথমবার দিতে চাইছিলাম না। ম্যাজিস্ট্রেট সাহেব ডাক দিয়ে বললেন, “আপনাদের আসামি তো ভালো করে স্বীকারোক্তি দিচ্ছে না।” তারপর উনারা আমাকে বাইরে নিয়ে গেছেন। বাইরে নিয়ে গিয়ে শাসিয়েছেন। ... আমি ম্যাজিস্ট্রেট সাহেবের কাছে কেঁদে কেঁদে বললাম, “স্যার, আমাকে আমার ভাইয়ের কাছে যেতে দেন। আমার ছোট ছোট ভাইয়ের জন্য আমার মনটা, প্রাণটা কাঁদছে। আমার মায়ের জন্য কাঁদছে। আমার মায়ের কাছে যেতে দেন।” এইভাবে আকৃতি করলাম।^{xlvi}

8.1.2 Pre-coached statements and rehearsed formats

Many victims, spread across years and secret detention centres, recount being forced to memorise scripts prepared by law enforcement officers. These scripts were rehearsed multiple times under duress and then delivered to the Magistrates, as though voluntarily made.

Code BGIH:⁷² ওই বিভিন্ন জিনিস লেখাইছে, মুখস্ত করাইছে, বলছে এগুলি বলবি ম্যাজিস্ট্রেটের কাছে গিয়ে। নাইলে কিন্তু যতবার খুশি, ততবার আমরা রিমান্ড আনবো।ⁱ

Code EAF:⁷³ লাস্টের চার দিন সময় দিছে যে: “তোমারে চার-পাঁচ দিন সময় দিলাম, এটা মুখস্ত করবা... তুমি এই কথাগুলোই বলবা... যদি না বলো এগুলো, তা তোমারে পাঁচ-সাতটা মামলা দিয়া দিমু, আর যদি বলো, তাহলে তোমার একটা ছোট্ট মামলা দিয়া ছেড়ে দিমু।”^{li}

Code EFE:⁷⁴ আমাকে তারা আগে থেকেই ফরমেট সারারাত পড়াইছে, “এইটা এইটা বলবা।” সকালবেলা আবার পড়াইছে, “কোর্টে যাবা, যা যা জিজ্ঞাসা করুক, তুমি এটাই বলবা ম্যাজিস্ট্রেটের কাছে।” ... ম্যাজিস্ট্রেটকে আমি বলছি, “স্যার, আমি একটু আপনার সাথে আলাদাভাবে কথা বলতে চাই...” ম্যাজিস্ট্রেটকে যখন আমি বলছি, “স্যার, এগুলো আমি করি নাই। এরা আমারে মারধর করে, আমারে জোর করে এগুলো বলাই দিছে।” ম্যাজিস্ট্রেট বলছে, “ঠিক আছে, আমি দেখতেছি।” কিন্তু তারপরও সে এটা আমার বিপক্ষে লেখছে। কারণ, এতদিন আমারে গুম রাখছে, অন্য কোনদিন কিন্তু তারা ম্যাজিস্ট্রেটের সামনে আনতে পারতো না? [কিন্তু আসলে] যেদিন তাদের পছন্দের ম্যাজিস্ট্রেট ছিল, সেদিনই তারা আমারে কোর্টে হাজির করছে।^{lii}

⁷⁰ 28 year old male; abducted by DGFI and RAB 2 in 2017; disappeared for 208 days

⁷¹ 18 year old male; abducted by CTTC in 2020; disappeared for 3 days

⁷² 45 year old male; abducted by CTTC in 2023; disappeared for 4 days

⁷³ 27 year old male; abducted by RAB 10 in 2017; disappeared for 113 days

⁷⁴ 19 year old male; abducted by CTTC in 2020; disappeared for 44 days

8.1.3 Absence of legal representation

Victims were frequently made to appear before the Magistrates for recording their alleged confessions without access to any counsel. The presence of legal representation at this stage, if permitted by law, may impede the application of procedural safeguards that could have prevented or challenged coerced confessions.

Code BHCA:⁷⁵ তখন জজ সাহেব বলল, “তোমাদের কোন উকিল আছে কিনা।” আমাদের গুম অবস্থায় সরাসরি ওখানে নিয়ে গেছে। কেমনে উকিল ধরবো? বললাম, “উকিল নাই।” ... তো জজ সাহেব চার দিনের রিমান্ড দিলেন।^{liii}

Code FGA:⁷⁶ কোর্টে ম্যাজিস্ট্রেট সাহেব আমাদেরকে জিজ্ঞাসা করছে, “আপনাদের তো উকিল নাই, আপনাদের কিছু বলার আছে কিনা?” তখন আমরা বলছি, “স্যার, আমাদের বলার আছে। ... আমাদের এই রিমান্ড কীভাবে হবে, আমরা তো এখানে ছিলামই না।” এইভাবে আমাদের যখন পুরো গুমের ঘটনা বর্ণনা করছি, তখন ম্যাজিস্ট্রেট সাহেব নিজেই আশ্চর্য হয়ে গেছে। উনি তখন বলছে, “আচ্ছা, ঠিক আছে।” উনি বলছে, “এই যে উনারা বলতেছে যে, উনাদেরকে গুম করে রাখা হয়েছে, তো আপনি তো বলতেছেন যে আপনারা গত পরশুদিনে উনাদেরকে গ্রেফতার করছেন, তাহলে এখন কি জবাব দিবেন?” তো তখন আমাদেরকে যে রিমান্ড চেয়েছিল, চট্টগ্রামের একজন পুলিশ কমিশনার, উনি বলছে, “উনারা ট্রেনিংপ্রাপ্ত। ট্রেনিংপ্রাপ্ত না হলে কি এই ভাবে বলতে পারে?” কারণ বলতেছে, “ওরা যদি গুমে থাকে, তাহলে ওদের মোচ কাটা কেন? ওদের পরনে পরিষ্কার পোশাক কেন?” অথচ মিডিয়াতে শো করার আগের দিন মোচ কেটে, পরিষ্কার পোশাক দিয়ে আমাদেরকে নিয়ে আসা হয়েছে। ... পরবর্তীতে ম্যাজিস্ট্রেট সাহেব আমাদের তিন দিনের রিমান্ড মঞ্জুর করে এবং বলে, “উচ্চ আদালতের নির্দেশনা অনুযায়ী, কোন ধরনের নির্যাতন বা শারীরিক টর্চার ছাড়া রিমান্ড শেষ করতে হবে।”^{liv}

8.1.4 Judicial misconduct, apathy or inaction

Multiple testimonies indicate that the Magistrates failed to meet the minimum legal requirement of verifying whether confessions were made voluntarily. Victims reported being brought before the magistrate by the officers who had tortured them, with no opportunity to speak freely, at which point they would be remanded to custody. In some cases, the Magistrates appeared disinterested or rushed, merely rubber-stamping the statements without inquiries. In certain cases, the victims stated the contents recorded in the confessional document bore no resemblance to anything they had said. This suggests not just coercion, but direct fabrication.

Code BDAH:⁷⁷ আমি বললাম, “স্যার, আপনার সাথে আমার অনেক কথা আছে। উনাদেরকে [অর্থাৎ পুলিশকে] আপনি বের করেন রুম থেকে।” মাহমুদুল হাসান স্যার বলছে, “উনারা বের হবে না, যা বলার এখানে বল।” আমি বলছি, “স্যার, আমাকে উনারা গুম রাখছে। আমার বাবা-মা জানে না আজ পর্যন্ত আমি বেঁচে আছি কি মরে গেছি। ... এই যা লেখছে, আমাকে মুখস্ত করানো হইছে। স্যার, আমি এই সম্পর্কে কিছুই জানি না।” মাহমুদুল হাসান স্যার কম্পিউটারে টাইপ দিয়ে অনেকগুলি লেখা কেটে দিচ্ছে। আরও লেখা বড় ছিল। “কই দেখো, অনেক লেখা কেটে দিছি, আর কাটা যাবে না। যা আছে এখানে সাইন করো।” আমি বললাম, “স্যার,

⁷⁵ 25 year old male; abducted by RAB 11 in 2019; disappeared for 13 days

⁷⁶ 20 year old male; abducted by DGFI, RAB 2 and RAB 7 in 2016; disappeared for 315 days

⁷⁷ 19 year old male; abducted by CTTC in 2017; disappeared for 28 days

আপনার সাথে আমার কথা আছে। স্যার, আমার সামনে পরীক্ষা। স্যার, আপনি উনারকে বের করেন।” কোনভাবেই উনাকে আমি ম্যানেজ করতে পারলাম না। পরবর্তীতে যখন আমি এটা পড়তে গেলাম আবার, ম্যাজিস্ট্রেটের লেখাটা, তখন উনি আমাকে বলতেছে, “তোমার তো এত জায়গা-জমি নাই যে আমি লিখে নিয়ে যাব। সাইন করতে বলছি, সাইন করো।” ... আমাকে উনি কোন সুযোগ দেয় নাই। কোন সময় দেওয়া হয় নাই।”^{lv}

Code EBG:⁷⁸ ১৬৪ করছিল, কিন্তু ১৬৪ মাইরা করছে “... আমার হাত বাঁধা, আমার দুইটা হাত বাঁধা। ... ম্যাজিস্ট্রেট আমারে জিজ্ঞেস করতেছে আর লিখতেছে।” ... একবার জিজ্ঞেস করছে, “আপনার বাসায় কি লাইব্রেরি আছিল?” আমি বলছি, “আমার বাসায় বই ছিল, লাইব্রেরি ছিল।” “তো আপনারা কি ওখানে বসে বন্ধুবান্ধব আড্ডা দিতেন?” আমি বলছি, “মাঝে মাঝে আসতো, গল্প করতাম...” এই কথাটা আমি বলছি। কিন্তু সে এখানে যখন লেখছে, তার হাতের লেখা, সে লেখছে যে, আমি জিহাদি কর্মকাণ্ডে জড়িত ছিলাম... আমি তো তাকে এই কথাটা বলি নাই কখনো... সে তো তার মত করে লিখল। ... র্যাবের লোকরা যখন ১৬৪ রুমে ঢুকায়, তখন আমার চোখ বাঁধা। এটা যে ১৬৪ রুম, সেটাও তো আমি জানি না। র্যাবের থেকে আমারে বলছে, “আমরা যেভাবে শিখাইছি, সেভাবে বলবি। যদি না বলস, এখান থেকে বাইর আনার পরে তুই আর জীবন দেখবি না।”^{lvi}

Code DDB:⁷⁹ ম্যাজিস্ট্রেটের সামনে নিয়ে গেছে... তো আমি উনার কাছে বললাম, “এরা আমারে সদরঘাট থেকে এরকম এরকম কইরা নিয়ে আসছে। আমারে এদিকে আটকা রাইখা এতদিন আমারে মারছে, পিটাইছে। আমি জানি না, আমার বাসায় এরা কেমন আছে। ওরা জানে না আমি কেমন আছি...” তো উনি বলতেছে, “কি করমু ভাই? আপনার নাম তো এজহারের মধ্যে আছে।” কয়, “এখন কি করমু? যেই মামলা, আপনারে রিমান্ড তো দেওয়াই লাগে।” তো আমি বললাম, “আমি এতটা দিন এগো কাছে ছিলাম।” “কই ছিলেন?” আমি বললাম, “এই র্যাবরা দিয়া গেছে।” “র্যাবদের কাছে ছিলাম? র্যাব অফিসে ছিলেন?” বললাম, “জি।” “কি করমু এখন? এটা তো নিয়ম, দেওয়াই লাগে।” তো উনি আবার তিন দিনের রিমান্ড দিচ্ছে।^{lvii}

Together, these patterns reveal that the process of extracting confessional statements in many of these cases was not merely procedurally flawed but systematically abusive as well. The combination of threat, scripting and absence of counsel, and judicial complicity forms a closed circuit of impunity that enables the production of legally admissible but fundamentally coerced confessions.

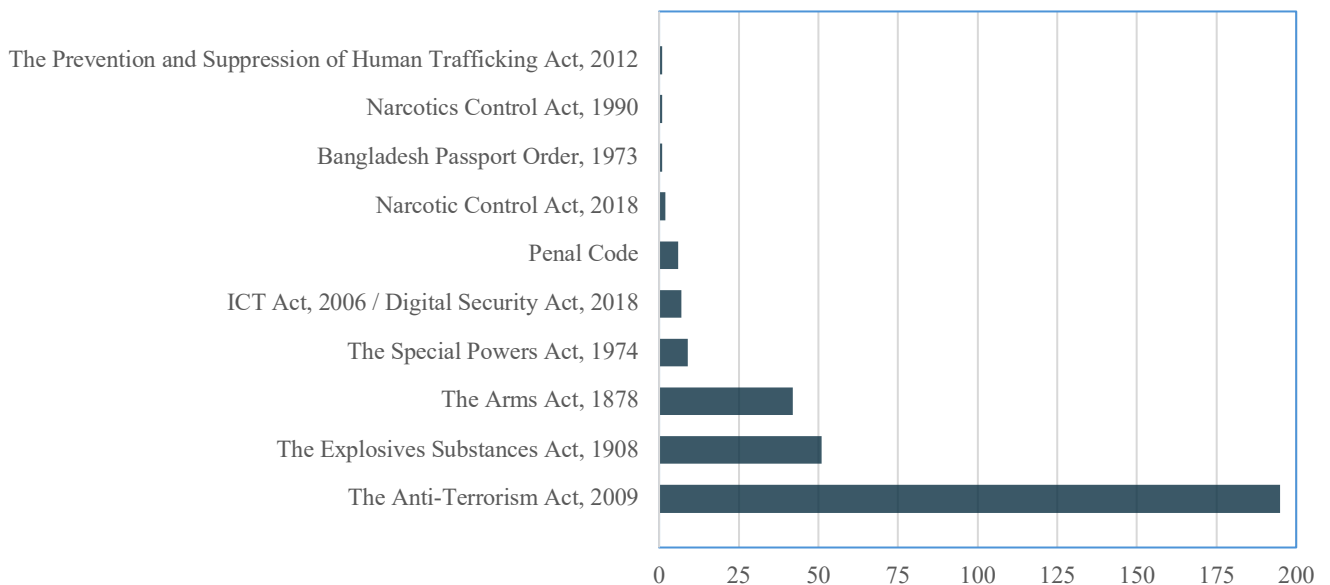
8.2 Charged under similar laws

The chart below shows the number of victims in our current sample who have had at least one case filed against them under various laws in Bangladesh. The Anti-Terrorism Act, 2009 stands out as the most frequently invoked law, with 195 victims facing charges under it, far more than any other legislation. The Explosive Substances Act, 1908 and the Arms Act, 1878 follow, with 51 and 42 victims respectively. Fewer cases were filed under the Information and Communication Technology Act, 2006 and its successor, the Digital Security Act, 2018 (7 victims), as well as the Special Powers Act, 1974 (9 victims). The over-reliance on broad

⁷⁸ 37 year old male; abducted by RAB 11 in 2017; disappeared for 11 days

⁷⁹ 27 year old male; abducted by RAB 11 in 2019; disappeared for 42 days

national security and criminal statutes, such as the Anti-Terrorism Act, suggests a pattern of systemic criminalisation, often without regard for individualised evidence.



51 Fig: Acts under which cases have been filed against individuals in the sample

What is particularly striking is that despite the wide variation in the victims' ages, professions, and years of abduction, the vast majority were charged under the same law: the Anti-Terrorism Act. This convergence suggests that these cases were not built on individual circumstances or tailored allegations but rather reflect a systemic use of national security laws as a blanket tool for repression. Whether student or businessperson, abducted in 2012 or 2022, the uniformity of charges underscores the absence of meaningful case-by-case assessment and reinforces the impression of politically motivated criminalisation.

8.3 Similarities in the charges

Over the past decade, State authorities in Bangladesh have deployed a range of criminal statutes to frame charges against individuals in ways that closely resemble one another across time, location, and political context. These charges often rely on vague language, recycled accusations, and formulaic justifications that bypass evidentiary scrutiny.

By analysing these charge sheets across a random sample from our subset, it became evident that a pattern of prosecutorial scripting had taken root. It portrayed dissent, protest, and ideological deviation not as acts to be judged on their individual merits, but as parts of a predetermined narrative of national threat. The examples below demonstrate how this system operates through mechanical repetition, pre-empting due process and reinforcing a culture of impunity.

routine narratives seen in fabricated charges



52 Fig: Routine narratives seen in fabricated charges

8.3.1 Framing dissent as a national security threat

Online expression in Bangladesh, particularly when it involved criticism of Sheikh Hasina, state institutions, or support for protest movements, was routinely framed as a threat to national security. Laws such as the Digital Security Act and Section 57 of the Information and Communication Technology Act were used to securitise dissent in cyberspace, linking it to extremism, public disorder, or anti-state conspiracies. This legal framing allowed the previous regime to treat political speech not as a civil liberty but as a potential trigger for instability.

Location	Year	Charge language (Information Technology Act, 2006, Sec 57)
Jatrabari, Dhaka	2018	“তাদের নিজ নিজ ফেসবুক আইডি মাধ্যমে ... জাতির জনক বঙ্গবন্ধু শেখ মুজিবুর রহমান, মাননীয় প্রধানমন্ত্রী শেখ হাসিনা, মাননীয় তথ্য প্রযুক্তি উপদেষ্টা জনাব সজীব ওয়াজেদ জয়সহ অন্যান্য মন্ত্রী বর্গের ছবি সুপার এ্যানিমেশন মাধ্যমে অশ্লিল ও বিকৃতভাবে তৈরি, সংরক্ষণ ও প্রচার করে ... আওয়ামী লীগসহ সমমনা রাজনৈতিক দল সম্পর্কে মানহানিকর বিরূপ ও কুরুচিকর, বিভ্রান্তিমূলক মিথ্যা গুজব, রটনা প্রচার করে ... হেফাজতে ইসলাম তথা ছাত্র আন্দোলনের দ্বারা অর্থাৎ চাকুরীতে কোটা বিরোধী আন্দোলন, নিরাপদ সড়ক চাই আন্দোলন ইত্যাদি ইস্যুকে কাজে লাগিয়ে সরকার পরিবর্তনের অপতৎপরতা চালিয়েছে।” ^{lviii} (Code IDB) ⁸⁰
Ramna, Dhaka	2018	“শান্তিপূর্ণভাবে চলমান “নিরাপদ সড়ক চাই” আন্দোলনকে ইচ্ছাকৃতভাবে ভিন্নধাতে পরিচালিত করে দেশের আইনশৃঙ্খলা পরিস্থিতি অবনতি করার জন্য ... ফেসবুক আইডি থেকে মিথ্যা, অসত্য, বানোয়াট, উদ্ভাসিমূলক লিখা ও ভিডিও পোস্ট আপলোড করা হচ্ছে...” ^{lix} (Code BEDD) ⁸¹
Jatrabari, Dhaka	2018	“ফেসবুকসহ অন্যান্য সামাজিক যোগাযোগ মাধ্যমে মাননীয় প্রধানমন্ত্রিসহ অন্যান্য মন্ত্রীদের ব্যক্তিগত ছবি বিকৃত আকারে প্রকাশ করে রাষ্ট্র ও সরকারের বিরুদ্ধে নানা প্রকার কুৎসা রটনা ও বিভ্রান্তিকর পোস্ট ... বিচার বিভাগ, সেনাবাহিনী, পুলিশসহ জাতীয় সকল প্রতিষ্ঠান সমূহকে ঘিরে কিছু সাইবার অপরাধী জনগণের মধ্যে বিরূপ ধারণা তৈরির চেষ্টা করছে...” ^{lx} (Code BAB) ⁸²

2 Table: Framing dissent as a national security threat using ICT Act 2006

⁸⁰ 45 year old male; abducted by RAB 10 in 2018; disappeared for 14 days

⁸¹ 22 year old male; abducted by CTTC in 2018; disappeared for 25 days

⁸² 59 year old male; abducted by RAB 10 in 2018; disappeared for 10 days

What was most striking was the consistency of charge language across cases involving different individuals, filed at different police stations. Posts about the quota movement, the road safety protests, or even digitally altered images of government leaders were uniformly portrayed as incitement to unrest. Frequently, the language used in charge sheets was virtually identical, suggesting the application of a pre-set prosecutorial script rather than an evidence-based legal process. Note, for instance, the identical language used in the Jatrabari case above and in separate cases filed under different laws against different individuals in both Jatrabari and Mirpur.

Location	Year	Charge language (Digital Security Act 2018)
Mirpur, Dhaka	2018	ফেসবুকসহ“ অন্যান্য সামাজিক যোগাযোগ মাধ্যমে মাননীয় প্রধানমন্ত্রিসহ অন্যান্য মন্ত্রীদের ব্যক্তিগত ছবি বিকৃত আকারে প্রকাশ করে রাষ্ট্র ও সরকারের বিরুদ্ধে নানা প্রকার কুৎসা রটনা ও বিভ্রান্তিকর পোস্ট ... বিচার বিভাগ, সেনাবাহিনী, পুলিশসহ জাতীয় সকল প্রতিষ্ঠান সমূহকে ঘিরে কিছু সাইবার অপরাধী জনগণের মধ্যে বিরূপ ধারণা তৈরির চেষ্টা করছে...” ^{lxi} (Code BAB) ⁸³
Jatrabari, Dhaka	2018	ফেসবুকসহ“ অন্যান্য সামাজিক যোগাযোগ মাধ্যমে মাননীয় প্রধানমন্ত্রিসহ অন্যান্য মন্ত্রীদের ব্যক্তিগত ছবি বিকৃত আকারে প্রকাশ করে রাষ্ট্র ও সরকারের বিরুদ্ধে নানা প্রকার কুৎসা রটনা ও বিভ্রান্তিকর পোস্ট ... বিচার বিভাগ, সেনাবাহিনী, পুলিশসহ জাতীয় সকল প্রতিষ্ঠান সমূহকে ঘিরে কিছু সাইবার অপরাধী জনগণের মধ্যে বিরূপ ধারণা তৈরির চেষ্টা করছে...” ^{lxii} (Code IDB) ⁸⁴
Mirpur, Dhaka	2018	“আসামী ... ফেসবুকে মাননীয় প্রধানমন্ত্রী, বিভিন্ন মন্ত্রীদের বিরুদ্ধে এবং সরকারবিরোধী উস্কানিমূলক ও অসত্য পোস্ট দেন কিনা জিজ্ঞেস করলে তিনি জানান, তিনি রাষ্ট্র ও সরকারের বিরুদ্ধে নানা প্রকার কুৎসা করে ও বিভ্রান্তিকর পোস্ট ফেসবুকে দিয়ে নাশকতামূলক কর্মকাণ্ড ঘটানোর লক্ষ্যে ... বিচার বিভাগ, সেনাবাহিনী, পুলিশসহ জাতীয় সকল প্রতিষ্ঠানসমূহকে ঘিরে কিছু সাইবার অপরাধী জনগণের মধ্যে বিরূপ ধারণা তৈরি করে থাকেন।” ^{lxiii} (Code BAB) ⁸⁵
Jatrabari, Dhaka	2018	“আসামী ... ফেসবুকে মাননীয় প্রধানমন্ত্রী, বিভিন্ন মন্ত্রীদের বিরুদ্ধে এবং সরকারবিরোধী উস্কানিমূলক ও অসত্য পোস্ট দেন কিনা জিজ্ঞেস করলে তিনি জানান, তিনি রাষ্ট্র ও সরকারের বিরুদ্ধে নানা প্রকার কুৎসা করে ও বিভ্রান্তিকর পোস্ট ফেসবুকে দিয়ে নাশকতামূলক কর্মকাণ্ড ঘটানোর লক্ষ্যে ... বিচার বিভাগ, সেনাবাহিনী, পুলিশসহ জাতীয় সকল প্রতিষ্ঠানসমূহকে ঘিরে কিছু সাইবার অপরাধী জনগণের মধ্যে বিরূপ ধারণা তৈরি করে থাকেন।” ^{lxiv} (Code IDB) ⁸⁶
Khilgaon, Dhaka	2020	“আসামীর ফেসবুক আইডি [থেকে]... বাংলাদেশ সরকার বিরোধী ষড়যন্ত্র, হত্যা, জনমনে ভ্রাস, ভীতি ও জননিরাপত্তা বিপন্ন করার লক্ষ্যে পরিকল্পনা, প্রশিক্ষণ, অস্ত্র সংগ্রহের চেষ্টা করত। তাহার ব্যবহৃত মোবাইল সেটে বাংলাদেশ সরকার বিরোধী ষড়যন্ত্র সংক্রান্তে বিভিন্ন লিংক আছে ... অনলাইন ভিত্তিক প্রচারণায় দেশের বিদ্যমান গণতান্ত্রিক ব্যবস্থার বিরুদ্ধে ... মাননীয় প্রধানমন্ত্রী সম্পর্কে কটুক্তি সম্বলিত বিভিন্ন পোস্ট এর কপি প্রচার করে।” ^{lxv} (Code BBHJ) ⁸⁷

3 Table: Framing dissent as a national security threat using DSA 2018

8.3.2 Generic claims of secret intelligence

Across several years and locations, law enforcement agencies repeatedly cite unnamed secret sources, without verifiable evidence or judicial oversight, as a pretext to justify arrests, raids,

⁸³ 59 year old male; abducted by RAB 10 in 2018; disappeared for 10 days

⁸⁴ 45 year old male; abducted by RAB 10 in 2018; disappeared for 14 days

⁸⁵ 59 year old male; abducted by RAB 10 in 2018; disappeared for 10 days

⁸⁶ 45 year old male; abducted by RAB 10 in 2018; disappeared for 14 days

⁸⁷ 18 year old male; abducted by CTTC in 2020; disappeared for 3 days

and surveillance. This recurring formula enabled the exercise of broad discretionary power and helped normalise unaccountable policing practices across the country.

Location	Year	Charge language (Anti-Terrorism Act 2009)
Railway PS Sirajganj	2014	“টহল করাকালীন গোপন সংবাদের ভিত্তিতে... টিকেট ঘরের পূর্ব পার্শ্বে প্লাটফর্মে গমনাগমন পথে সন্দেহভাজন যাত্রীদের তল্লাশী কাজ পরিচালনা করি” ^{lxvi} (Code FCH) ⁸⁸
Akbarshah Chattogram	2016	“টহলদল সরকারী গাড়ীযোগে চট্টগ্রাম মহানগরীর সাগরিকা এলাকায় টহল ডিউটি করাকালে তারিখ ০৮/১২/১৬ইং ০৫:২৫ ঘটিকার সময় আমি গোপন সূত্রে জানতে পারি যে...” ^{lxvii} (Code FGH) ⁸⁹
Joydebpur, Gazipur	2016	“জয়দেবপুর থানা এলাকায় সন্ত্রাসী গ্রেফতার ও বিশেষ অভিযান পরিচালনায় বাহির হইয়া জয়দেবপুর থানাধীন রাজেন্দ্রপুর মোড়ে হোটেল নিরিবিল এর সামনে রাস্তায় অবস্থানকালে গোপন সূত্রে সংবাদ পাই যে...” ^{lxviii} (Code CBG) ⁹⁰
Bandar Narayanganj	2017	“মদনপুর বাসস্ট্যান্ড এলাকায় টহল ডিউটি করাকালীন ২১/০৮/২০১৭ইং তারিখ রাত্রি অনুমান ১৯.৫০ ঘটিকার সময় গোপন সংবাদের ভিত্তিতে জানতে পারি যে...” ^{lxix} (Code CDI) ⁹¹
Demra Dhaka	2017	“এই মর্মে এজাহার দায়ের করিতেছি যে, অদ্য ০১/০৮/২০১৭ ৪৮ ১৬:১৫ ঘটিকার সময় গোপন সূত্রে সংবাদ পাই যে...” (Code BDAH) ⁹² ^{lxx}
Nandigram Bogura	2017	“নন্দীগ্রাম থানা এলাকায় বিশেষ অভিযান পরিচালনা করাকালে গোপন তথ্যের ভিত্তিতে জানিতে পারেন যে...” (Code BGHI) ⁹³ ^{lxxi}
Cantonment Dhaka	2019	“ঢাকা মহানগর এলাকায় নিয়মিত অভিযান পরিচালনা করার জন্য গুলশান ও উত্তরা বিভাগে অবস্থানকালীন গোপন সংবাদের মাধ্যমে জানা যায় যে...” (Code BGEJ) ⁹⁴ ^{lxxii}

4 Table: Generic claims of receiving secret intelligence

8.3.3 Pre-scripted escape attempts

Across multiple years and locations, a recurring claim in charge narratives is that suspects attempted to flee upon sensing the presence of law enforcement, prompting immediate pursuit and arrest. This "attempted escape" trope appears across districts from Narayanganj to Gazipur, Chattogram to Bogura, and is routinely cited to justify arrests without warrants. It often substitutes for concrete evidence, serving as a ready-made justification for police action regardless of the specifics of the case.

Location	Year	Charge language (Anti-Terrorism Act 2009)
Akbarshah Chattogram	2016	“র্যাবের উপস্থিতি টের পেয়ে পালাবার চেষ্টাকালে... সঙ্গীয় অফিসার ফোর্সের সহায়তায় গ্রেফতার করে...” ^{lxxiii} (Code FGH) ⁹⁵
Demra Dhaka	2017	“১০/১১ জন লোককে গোপন শলাপরামর্শ করিতে দেখিয়া আমরা আগাইয়া গেলে পুলিশের উপস্থিতি টের পাইয়া তাহারা দৌড়াইয়া পালাইবার চেষ্টাকালে...” ^{lxxiv} (Code BDAH) ⁹⁶

⁸⁸ 25 year old male; abducted by RAB Intelligence and RAB 12 in 2014; disappeared for 10 days

⁸⁹ 20 year old male; abducted by DGFI, RAB Intelligence, RAB 2 and RAB 7 in 2016; disappeared for 224 days

⁹⁰ 43 year old male; abducted by DB in 2016; disappeared for 5 days

⁹¹ 29 year old male; abducted by RAB 11 in 2017; disappeared for 13 days

⁹² 19 year old male; abducted by CTTC in 2017; disappeared for 28 days

⁹³ 28 year old male; abducted by Bogura DB in 2018; disappeared for 14 days

⁹⁴ 54 year old male; abducted by DGFI and RAB 1 in 2019; disappeared for 254 days

⁹⁵ 20 year old male; abducted by DGFI, RAB Intelligence, RAB 2 and RAB 7 in 2016; disappeared for 224 days

⁹⁶ 19 year old male; abducted by CTTC in 2017; disappeared for 28 days

Nandigram Bogura	2017	“বর্ণিত স্থানে আসা মাত্রই সংকেত দিয়া গতিরোধ করিলে মোটরসাইকেলটি ফেলে রেখে দৌড়াইয়া পালানোর চেষ্টাকালে অফিসার ও ফোর্সের সহায়তায় একজন ব্যক্তিকে আটক করি” ^{lxv} (Code BGHI) ⁹⁷
Bandar Narayanganj	2017	“র্যাবের উপস্থিতি টের পাইয়া দৌড়ে পালানোর চেষ্টাকালে আমি সঙ্গী ফোর্সসহ... ০২ জনকে ধৃত করতে সক্ষম হই।” ^{lxvii} (Code CDI) ⁹⁸
Tongi West Gazipur	2021	“র্যাবের উপস্থিতি টের পেয়ে সেখানে অবস্থানরত পালানোর জন্য দিক-বেদিক দৌড় দিলে সঙ্গী অফিসার ও ফোর্সের সহায়তায় ০১ জনকে আটক করতে সক্ষম হই” ^{lxviii} (Code DGE) ⁹⁹

5 Table: Pre-scripted escape attempts

8.3.4 Instant confessions of terrorism

Across cases spanning years and regions, authorities consistently claim that after arrest, suspects immediately confessed to being members of banned militant groups. Yet such instant and detailed admissions are highly uncharacteristic of ideological actors, who typically resist interrogation and deny affiliation. Unlike common criminals, they are far less likely to incriminate themselves upon capture, making the uniformity and timing of these confessions suspect.

Location	Year	Charge language (Anti-Terrorism Act 2009)
Railway PS Sirajganj	2014	“ধৃত আসামীগণকে জিজ্ঞাসাবাদে জানায় তাহারা নিষিদ্ধ ঘোষিত সন্ত্রাসী জঙ্গী সংগঠন জেএমবি’র সক্রিয় সদস্য” ^{lxxviii} (Code FCH) ¹⁰⁰
Akbarshah Chattogram	2016	“ধৃত আসামীদের জিজ্ঞাসাবাদে ... তারা নিজেদেরকে নিষিদ্ধ ঘোষিত জঙ্গি সংগঠন ‘হরকাতুল জিহাদ আল ইসলামীর’ সক্রিয় সদস্য বলে স্বীকার করে” ^{lxxix} (Code FGH) ¹⁰¹
Demra Dhaka	2017	“জিজ্ঞাসাবাদে ধৃত আসামিরা উল্লিখিত নাম-ঠিকানা প্রকাশ করে এবং তারা নিষিদ্ধ ঘোষিত সংগঠন ‘নব্য জেএমবি’ এর সদস্য বলিয়া স্বীকার করে” ^{lxxx} (Code BDAH) ¹⁰²
Nandigram Bogura	2017	“আটককৃত ব্যক্তিকে জিজ্ঞাসাবাদে উপরে উল্লিখিত নাম ঠিকানা জানায় এবং নব্য জেএমবির দক্ষিণ অঞ্চলের প্রধান শুরা সদস্য ও ভারতের মোস্ট ওয়ান্টেড বলিয়া স্বীকার করে” ^{lxxxi} (Code BGHI) ¹⁰³
Bandar Narayanganj	2017	“ধৃত আসামীদেরকে জিজ্ঞাসাবাদে ... জানায় যে, তারা নিষিদ্ধ ঘোষিত জঙ্গী সংগঠন ‘জামাআতুল মুজাহিদিন বাংলাদেশ’ (জেএমবি) এর ‘এহসার’ এবং সামরিক শাখার সদস্য” ^{lxxxii} (Code CDI) ¹⁰⁴
Tongi West Gazipur	2021	“...জিজ্ঞাসাবাদে জানায়, সে সহ পলাতক আসামীরা নিষিদ্ধ ঘোষিত জঙ্গী সংগঠন ‘আনসার আল ইসলাম’ এর স্বশস্ত্র গ্রুপের সদস্য” ^{lxxxiii} (Code DGE) ¹⁰⁵

6 Table: Instant confessions of terrorism

⁹⁷ 28 year old male; abducted by Bogura DB in 2018; disappeared for 14 days

⁹⁸ 29 year old male; abducted by RAB 11 in 2017; disappeared for 13 days

⁹⁹ 42 year old male; abducted by DB and RAB 2 in 2021; disappeared for 58 days

¹⁰⁰ 25 year old male; abducted by RAB Intelligence and RAB 12 in 2014; disappeared for 10 days

¹⁰¹ 20 year old male; abducted by DGFI, RAB Intelligence, RAB 2 and RAB 7 in 2016; disappeared for 224 days

¹⁰² 19 year old male; abducted by CTTC in 2017; disappeared for 28 days

¹⁰³ 28 year old male; abducted by Bogura DB in 2018; disappeared for 14 days

¹⁰⁴ 29 year old male; abducted by RAB 11 in 2017; disappeared for 13 days

¹⁰⁵ 42 year old male; abducted by DB and RAB 2 in 2021; disappeared for 58 days

8.3.5 Possession of ideologically curated literature

Across multiple years and regions, many charge sheets list confiscated books and pamphlets, often portraying the mere possession of religious, oppositional, or ideological texts as conclusive proof of terrorist intent. Authorities routinely claim to have recovered dozens of ‘jihadist’ texts at the time of arrest, sometimes stored together in a single bag or drawer. The volume, variety, and immediate classification of these texts as incriminating strains plausibility. This recurring pattern suggests the use of a scripted template in which possession of certain literature is used to construct a preordained narrative of militancy.

Location	Year	Charge language (Anti-Terrorism Act 2009)
Railway PS Sirajganj	2014	“তার নিকটে থাকা কালো রং এর ব্যাগের ভিতর ৪৭ (সাতচল্লিশ) টি বিভিন্ন জিহাদী বই, যার মধ্যে প্রশিক্ষণ পুস্তিকা জেএমবি ১০১ (এফ) টি, তাওহীদের পতাকা বাহকদের প্রতি ... ০১ (এক) টি, তৃতীয় বিশ্বযুদ্ধ এবং দাজ্জালী ০১ (এক) টি, জিহাদের ভূমির পথে (২কপি), আন্তর্জাতিক জিহাদ এবং এর বিভিন্ন সংশয় নিরসন ০১ (এক) টি, মুসলিমদের ভূমিকে প্রতিরক্ষা করা ০১ (এক) টি, আত্ম তাহরীদ (গ্রেফতারকৃত আসামীদের কর্তৃক হাতে বাধায় করা) ০১ (এক) টি, সামাজিক বিভীষিকা ও ইসলাম ০১ (এক) টি, নামাজ ত্যাগকারীর বিধান ০১ (এক) টি, রোজার সত্তরটি মসলা মাসায়েল ০১ (এক) টি, হিযনুল মুসলীম ০১ (এক) টি, নূরানী কায়দা ০১ (এক) টি, মুসলীম নারীর নিকট ইসলামের দাবী ০১ (এক) টি, ইসলামী সমাধান ০১ (এক) টি, ইসলামের হাকিকত ০১ (এক) টি, বহুজাতিক সংস্থার ভারতে আগ্রাসন ভারতের মুৎসুদ্দি পুঁজির আত্মসমর্পণ ০১ (এক) টি, যুগে যুগে শয়তানের হামলা ০১ (এক) টি, জিহাদের আপদ ০১ (এক) টি, তাওহীদ আল-আমালী ১ (এক) টি, তুলিদ আল ইলমদের প্রতি উপদেশ ০১ (এক) টি, কোরআন সুন্নাহর দর্পণ ০১ (এক) টি, আক্বীদা ০১ (এক) টি, রাসুলুল্লাহর (স) জিহাদ ০১ (এক) টি, জিহাদ ০১ (এক) টি, বাংলাদেশের কমিউনিষ্ট আন্দোলনের রূপরেখা ০১ (এক) টি, রাসায়েল ও মাসায়েল ০১ (এক) টি, গণতন্ত্র এর আসল রূপ ০১ (এক) টি, তাওহীদ ও শীর্ক সুন্নাহ ও বিদআত ০১ (এক) টি, মতভেদ নেই ইসলামের এটাও তাওহীদ পৃথিবীতে সবাই মিলে একই দিনে করি ঈদ ০১ (এক) টি, ইসলামী হুকুম ও প্রতিষ্ঠা করা কি সম্ভব ০১ (এক) টি, গণতন্ত্র একটি দ্বীন ০১ (এক) টি, রক্ত পিচ্ছিল শখের যাত্রী যারা ০১ (এক) টি, তালেবানের মেয়ে (০২টি), প্রসঙ্গঃ তাবলীগ জামাত এবং কোরআন মজিদ এর আলোকে আল্লাহ তায়ালা ০১ (এক) টি, তিনটে শুদ্ধি করার দলিল ০১ (এক) টি, রাজনৈতিক সাংগঠনিক পর্যালোচনা ০১ (এক) টি, তাবি’ঈদের জীবন কথা ১ম খন্ড ০১ (এক) টি, আফ্রিকার দুলাহান ০১ (এক) টি, ঈমান দীপ্ত দাস্তান ০১ (এক) টি, চোগলখোর ও গীবতকারীর ভয়াবহ পরিণতি এবং প্রতিবেশীর হার ০১ (এক) টি, তাওহীদ রিসালাত ও আখেরাত ০১ (এক) টি, মরণ একদিন আসবেই ০১ (এক) টি, উম্মতে মোহাম্মদীর মুক্তির সঠিকপথ ০১ (এক) টি, কিয়ামতের আলামত ও দাজ্জালের আবির্ভাব ০১ (এক) টি, আকাবিরদের খুনের মিছিল ০১ (এক) টি।” ^{lxxxiv} (Code FCH) ¹⁰⁶
Akbarshah Chattogram	2016	“অতঃপর আসামীদের দেখানো মতে তাদের হেফাজত হতে ... জিহাদী বই ১৪ (চৌদ্দ) টি। যার মধ্যে i) ফিলিস্তিনের স্মৃতি-আব্দুস সাভার, ii) আইনী তুহফা সলাতে মুস্তফা দ্বিতীয় খণ্ড-অধ্যাপক মাওলানা হাফেজ শায়খ আইনুল বারী আলিয়ারী, iii) বাজেয়াপ্ত ইতিহাস-মুনশী মোহাম্মদ মেহেরুল্লাহ রিসার্চ একাডেমি, iv) সত্যের মাপকাঠি-মোঃ নাজমুল ইসলাম, v) প্রচলিত রাজনীতি নয় জিহাদই কাম্য-মাওলানা মুহাম্মদ আবদুর রহীম (রহঃ), vi) দেশ ধ্বংসের নীল নকশা-সু-আ না হোসেন, vii) এসো তারকীব শিখি-মাওলানা খ ম তাওহীদুল ইসলাম দুবাজাইলী, viii) উল্টা বুঝিল রাম ও সাধু সাবধান-মাওলানা আবু তাহের বুদ্ধিমালী, ix) ইতিহাসের কাঠগড়ায় হযরত মু’আবিয়া রাঃ-বিচারপতি আলামা তকী উসমানী, x) ইসলামী আন্দোলন কর্মীদের বৈশিষ্ট্য-মুহাম্মদ

¹⁰⁶ 25 year old male; abducted by RAB Intelligence and RAB 12 in 2014; disappeared for 10 days

		হুছামুদ্দীন চৌধুরী ২টি, xi) হরকাতুল জিহাদ আল ইসলামী বাংলাদেশ পরিচিতি ২ (দুই) টি, xii) জিহাদের ডাক। ¹⁰⁷ (Code FGH) ¹⁰⁷
Bandar Narayanganj	2017	“একটি কালো রংয়ের ব্যাগে রক্ষিত জিহাদী বই (i) ঈমান আনার পর প্রথম ফরজ মুসলিম ভূমির প্রতিরক্ষা- মাওলানা মুহাম্মাদ ইসহাক খান (ii) কাফির বলার প্রয়োজনীয়তা ও নিয়ম- মুহাম্মাদ ইকবাল বিন ফাখরুল (iii) আল্লাহপ্রেমের সন্ধানে তিনটি কিতাব তরীকে বেলায়েত কুদৃষ্টি- কুসম্পর্কের ক্ষতি ও প্রতিকার ওলি হওয়ার চারটি আমল- হযরত মাওলানা শাহ হাকীম মুহাম্মদ আখতার ছাহেব (iv) জিহাদের জন্য একজন সর্বজনীন খলীফা বা বিশ্বনেতা থাকা কি শর্ত, নাকি স্থানীয়ভাবে আমীর নিয়োগ করে জিহাদ করা যায়?, জিহাদ কিয়ামত পর্যন্ত অব্যাহত থাকবে, মুসমানগণ কি ইতিহাস ভুলে গেছেন?, জিহাদের ময়দানে নেই কেন খোলা তরবারী-আবু আব্দুল্লাহ। ¹⁰⁸ (Code CDI) ¹⁰⁸
Cantonment Dhaka	2019	“একটি ড্রয়ারের মধ্যে ০৭ (সাত) টি জিহাদী পুস্তিকা, পুস্তিকা গুলির উপরের পাতায় যথাক্রমে (ক) আজ-জাওয়াহিরি, আল-হারারি ও আন-নাযারির আল-কায়দা, (খ) আল্লাহর বিধান না মানবরচিত আইন, (গ) আনি তোমাদেরকে যা বলছি অচিরেই তোমরা তা স্মরণ করবে, (ঘ) হয় দাওলাতুল ইসলাম নতুবা মহাপ্লাবন, (ঙ) খিলাফা ঘোষণা ও বাংলাদেশ, (চ) শামে আল-কায়েদার মিত্ররা, (ছ) একটি বোমা তৈরী কর তোমার মায়ের রান্নার ঘরে। ¹⁰⁹ (Code BGEJ) ¹⁰⁹
Tongi West Gazipur	2021	“(গ) “অপারেশন মাজার-ই-শরীফ” নামক ০১ (এক) টি জিহাদী বই। (ঘ) জিহাদী পুস্তিকা, যথা- ১. তাওহীদের পতাকাবাহকদের প্রতি ২. সতর্কতা, গোপনীয়তা এবং ধুমজালঃ সতর্কতার মধ্যমপস্থা ৩. ফিদায়ী অভিযানের বসয়ে ইসলামের বিধান ৪. কুফরী একটি গুরুত্বের অপরাধ আর কাফির কখনও নিরপরাধ নয় ৫. হিজরত ও জিহাদের চূড়ান্ত প্রস্তুতি ৬. গেরিলা যুদ্ধে কৌশলগত অতিপ্রসারতা ৭. মানহাজের ব্যাপারে নির্দেশনা ও ৮. তাগুত সহ সর্বমোট ০৮ (আট) টি জিহাদী পুস্তিকা। ¹¹⁰ (Code DGE) ¹¹⁰

7 Table: Ideologically curated literature

8.3.6 Detailed confessions during preliminary questioning

Authorities consistently claimed that suspects provided full accounts of their activities during preliminary questioning. These alleged confessions often included detailed information about banned organisations, the suspects’ roles within them, ideological motives, training histories, and long-term plans for subversive activity. The striking uniformity and depth of these statements—given they are given immediately upon arrest, across different districts and years—stretches plausibility. Rather than emerging from case-specific investigations, this pattern suggests reliance on a standardised narrative used to frame individuals within a pre-scripted template of militancy.

Location	Year	Charge language (Anti-Terrorism Act 2009)
Railway PS Sirajganj	2014	“ধৃত আসামীগণকে জিজ্ঞাসাবাদে জানায় তাহারা নিষিদ্ধ ঘোষিত সন্ত্রাসী জঙ্গী সংগঠন জেএমবি’র সক্রিয় সদস্য ... এবং ... জেএমবি’র গায়রে এহসার। তারা রাজশাহী থেকে ঢাকাগামী ধুমকেতু ট্রেন যোগে সাংগঠনিক কাজে সিরাজগঞ্জ আসে বলে জানায়। ¹¹¹ (Code FCH) ¹¹¹

¹⁰⁷ 20 year old male; abducted by DGFI, RAB Intelligence, RAB 2 and RAB 7 in 2016; disappeared for 224 days

¹⁰⁸ 29 year old male; abducted by RAB 11 in 2017; disappeared for 13 days

¹⁰⁹ 54 year old male; abducted by DGFI and RAB 1 in 2019; disappeared for 254 days

¹¹⁰ 42 year old male; abducted by DB and RAB 2 in 2021; disappeared for 58 days

¹¹¹ 25 year old male; abducted by RAB Intelligence and RAB 12 in 2014; disappeared for 10 days

Akbarshah Chattogram	2016	“আসামীদের জিজ্ঞাসাবাদে তারা উপরোক্ত নাম ঠিকানা প্রকাশ করে এবং তারা সকলেই নিষিদ্ধ ঘোষিত ‘হরকাতুল জিহাদ আল ইসলামী’র সক্রিয় সদস্য বলে জানায়। ... তারা জন্মকৃত অস্ত্র-গুলি দ্বারা বাংলাদেশের সংহতি ও জননিরাপত্তা বিপন্ন করাসহ জনগণের মধ্যে আতঙ্ক সৃষ্টির লক্ষ্যে সন্ত্রাসী কার্যক্রম পরিচালনা এবং অপরাধ সংঘটনের মতো জঘন্যতম অপরাধের ষড়যন্ত্র করে।” ^{xc} (Code FGH) ¹¹²
Demra Dhaka	2017	“তাহারা আরও জানায়, সরকার ও রাষ্ট্রবিরোধী ধ্বংসাত্মক কর্মকাণ্ড পরিচালনার পরিকল্পনা বাস্তবায়নের উদ্দেশ্যে শলাপরামর্শ করার নিমিত্ত তাহারা উক্ত স্থানে মিলিত হয়। ... তাহাদের জিজ্ঞাসাবাদে জানা যায় যে, ধৃত ১ নং আসামী ... নব্য জেএমবি’র এক দুর্ধর্য ধর্মীয় আধ্যাত্মিক নেতা। সে পূর্বে পাকিস্তান হইতে অস্ত্র ও সামরিক প্রশিক্ষণ গ্রহণ করিয়াছে। সে বর্তমানে নব্য জেএমবি’র জিহাদী শিক্ষাগুরু, সদস্য সংগ্রাহক ও অস্ত্র-বোমা প্রশিক্ষক।” ^{xcii} (Code BDAH) ¹¹³
Nandigram Bogura	2017	“জিজ্ঞাসাবাদে জানা যায় যে, সে ২০০২ সালের সেপ্টেম্বরের দিকে হিজরত করে বাংলাদেশসহ ভারতের নদীয়া, বিরভূম ও বর্ধমান জেলার নিষিদ্ধ ঘোষিত ‘জেএমবি’ এবং ‘নব্য জেএমবি’ জঙ্গি সংগঠনের দায়িত্বশীল হিসাবে কার্যক্রম পরিচালনা করে আসছিল।” ^{xciii} (Code BGHI) ¹¹⁴
Bandar Narayanganj	2017	“ধৃত আসামীদেরকে জিজ্ঞাসাবাদে উপরে ১ নং ও ২ নং ক্রমিকে উল্লেখিত নাম ঠিকানা প্রকাশ করে এবং জানায় যে, তারা নিষিদ্ধ ঘোষিত জঙ্গি সংগঠন জামাআতুল মুজাহিদিন বাংলাদেশ (জেএমবি) এর ‘এহসার’ এবং সামরিক শাখার সদস্য। তারা জেএমবি’র সাংগঠনিক কার্যক্রম পরিচালনা ও সংঘটিত হওয়া, প্রশিক্ষণ শিবির স্থাপন, আঞ্চলিক কর্মকাণ্ড পরিচালনা, নাশকতার ষড়যন্ত্র ও সংঘটনের প্রস্তুতির নিমিত্তে গোপন বৈঠক করার উদ্দেশ্যে ... মিলিত হয়।” ^{xciii} (Code CDI) ¹¹⁵
Tongi West Gazipur	2021	“সে একজন নিষিদ্ধ ঘোষিত জঙ্গি সংগঠনের সদস্য হয়ে রাষ্ট্রের নিরাপত্তার বিরুদ্ধে ষড়যন্ত্র করার মানসে গণতন্ত্রমনা জনসাধারণের নিরাপত্তার বিরুদ্ধে কাজ করা ও নাশকতা সৃষ্টির জন্য নিজেদের সংঘটিত করার লক্ষ্যে অপরাপর পলাতক ও অজ্ঞাতনামা সহযোগীদের নিয়ে টঙ্গী এলাকায় তাদের সংগঠনের দাওয়াতী কার্যক্রম পরিচালনাসহ বিভিন্ন বিষয়ে মিটিং করার জন্য সংঘবদ্ধ হয়েছে। ... গ্রেফতারকৃত আসামীসহ তাদের অপরাপর পলাতক আসামী ধর্মীয় উগ্রবাদিতা ছড়ানো, নাশকতা সৃষ্টির পরিকল্পনা করে নিষিদ্ধ ঘোষিত ‘আনসার আল ইসলাম’ নামীয় সংগঠনে ভিড়িয়ে আত্মঘাতী জঙ্গিবাদী কার্য বা নাশকতার মত অপরাধ সংগঠনের জন্য সাংগঠনিক কার্যক্রম পরিচালনার ষড়যন্ত্র করে আসছে।” ^{xciv} (Code DGE) ¹¹⁶

8 Table: Confessions during preliminary questioning

Crucially, interviews with multiple police officers have revealed that there are indeed set scripts. When a new case needs to be filed, these scripts are reused with minimal changes – often underdeveloped, copy-pasted, and lightly edited to fit the individual.

Taken together, these patterns reveal a legal and administrative machinery more focused on ideological containment than impartial justice. Whether through identical charge language, implausibly timed confessions, or the branding of literature as evidence of terrorism, these charges demonstrate a prosecutorial template that prioritises political narratives over factual specificity.

The reliance on unverifiable intelligence, copy-paste confessions, and presumed guilt by association has allowed law enforcement and prosecutors to substitute procedural fairness with a pre-written script of guilt. This calls into question the legitimacy of such prosecutions and

¹¹² 20 year old male; abducted by DGFI, RAB Intelligence, RAB 2, and RAB 7 in 2016; disappeared for 224 days

¹¹³ 19 year old male; abducted by CTTC in 2017; disappeared for 28 days

¹¹⁴ 28 year old male; abducted by Bogura DB in 2018; disappeared for 14 days

¹¹⁵ 29 year old male; abducted by RAB 11 in 2017; disappeared for 13 days

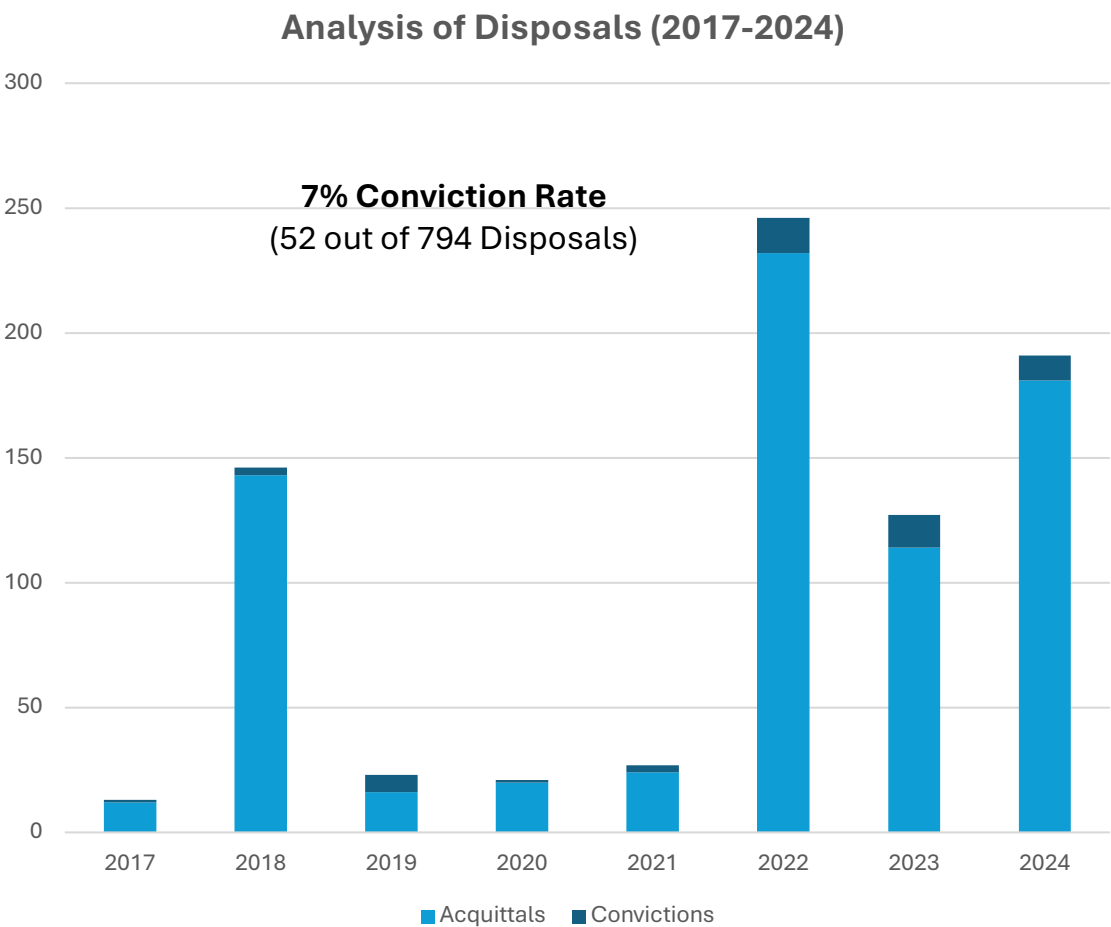
¹¹⁶ 42 year old male; abducted by DB and RAB 2 in 2021; disappeared for 58 days

underscores the urgent need for legal reform, judicial independence, and safeguards against the instrumentalisation of criminal law for political ends.

8.4 Impact on the Courts

This section examines how the (mis)use of the Anti-Terrorism Act 2009 has turned the law into a tool of repression. Through quantitative data and collected testimonies, it reveals how politically motivated filings and performance-driven case disposals have undermined due process, often inflicting prolonged harm on victims rather than delivering justice.

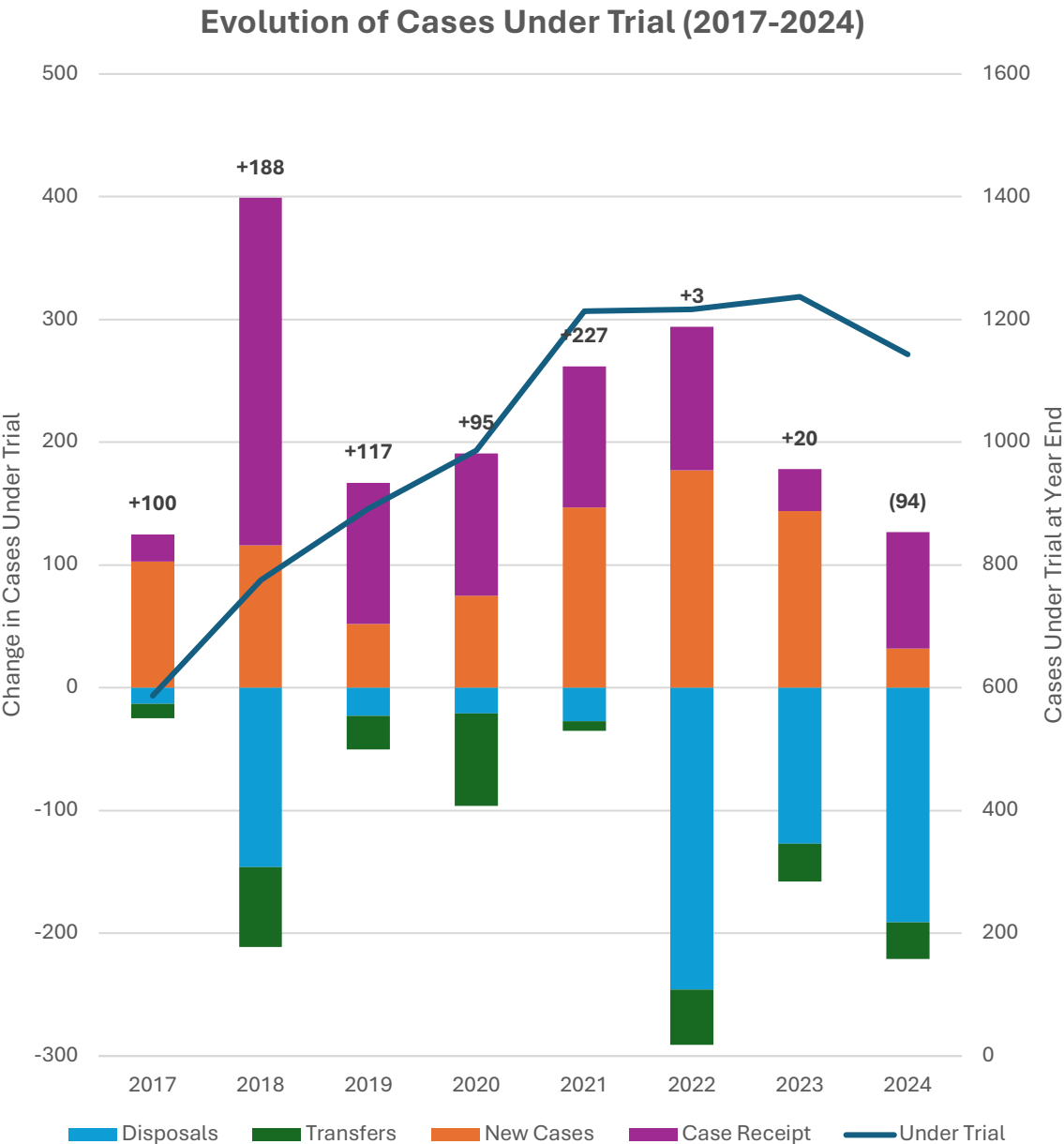
Cases brought under Bangladesh’s Anti-Terrorism Act exhibit an overwhelmingly low conviction rate. To conduct the following analysis, we acquired nationwide data on the Anti-Terrorism Tribunals from official records. Of the 794 resolved cases from 2017 to 2024, only 52 resulted in convictions, yielding a conviction rate of just 7%. This means the vast majority of the accused (93%) were acquitted, despite the free hand law enforcers had in manufacturing these cases, raising serious questions about the evidentiary standards used to initiate such prosecutions. Unlike most other crimes, to be accused of terrorism carries an almost-life long sentence of stigma even if one is adjudged innocent afterwards. This makes the low conviction rate all the more worrisome.



53 Fig: Analysis of disposals (2017-2024)

Yet, the number of pending cases under trial pursuant to the Anti-Terrorism Act doubled over the analysis period, increasing from under 600 cases in 2017 to over 1200 by 2021. The chart below disaggregates the data into case inflows (new filings and case receipts) and outflows (disposals and transfers) across the 2017-2024 period. Two key patterns emerge from this dataset: the political link and the performance indicator link.

Note - New Cases: Filed directly in the Courts; Case Receipt: Cases initiated at the police station level, transferred to court following submission of charge sheet or final report; Disposals: Resolved cases, including both convictions and acquittals; and Transfers: Cases reassigned to other Courts.



54 Fig: Evolution of cases under trial (2017-2024)

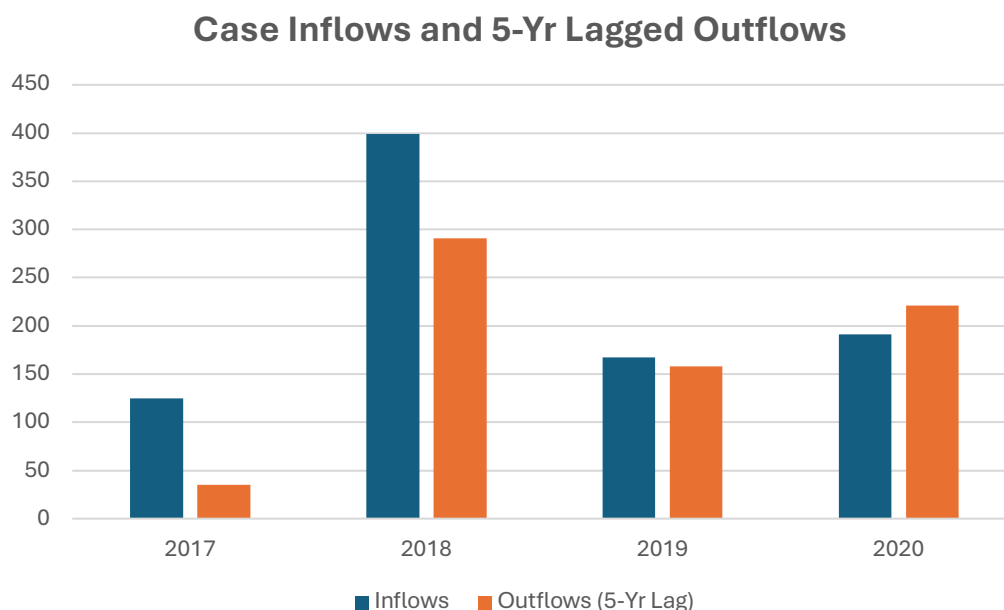
8.4.1 The political link

If indeed anti-terror laws were used agnostic of the political climate, we would not expect to see any relation between political events and case inflows. And yet, surges in case inflows align with periods of heightened political unrest and subsequent law enforcement crackdown. The most significant spike occurred in 2018, coinciding with a general election marked by widespread suppression of opposition activities. Similarly, the rise in 2021 reflects the state's response to mass protests against Indian Prime Minister Narendra Modi's visit to Bangladesh. Interviews with multiple police officials suggest that increased mobilisation efforts by the BNP and Jamaat-e-Islami in 2022 contributed to sustained filings of cases that year.

In contrast, opposition activity in 2023 shifted toward more direct street confrontations which, according to senior police officers, were less frequently pursued under anti-terrorism charges. This shift—combined with the concentration of large-scale protests towards the year's end—contributed to a drop in filings in 2023. By 2024, new cases declined markedly, possibly reflecting the overall lull in opposition activities following the national election. The fact that case inflows dovetail national political events belies the claim that these cases were solely filed to counter terrorism.

8.4.2 The performance indicator link

If these anti-terrorism cases were solely about arbitrating the available evidence, we would not expect to see any particular pattern in case resolutions beyond random variation. And yet, there is a revealing pattern in the timing of case outflows. A performance indicator tracked by the judiciary is the number of cases pending for more than five years. The largest spike in case disposals occurred in 2022, exactly five years after the 2018 surge. This correlation suggests that the judicial system is expediting resolutions to avoid the appearance of backlog, particularly for cases approaching the five-year threshold.



55 Fig: Case inflows and 5-year lagged outflows

Similar five-year lag patterns between inflows and outflows are evident throughout the dataset. This external pressure to avoid five-year backlogs was confirmed by the interviews with Judges, one of whom noted: “I will hold off on new case disposal when needed but always prioritise cases reaching the five-year mark. This is expected.”

The pattern in the graph strongly suggests the timing of case resolution is driven less by judicial progress and more by the need to meet administrative key performance indicators. The artificial nature of these resolution spikes, coupled with an abysmally low conviction rates, implies that many of these cases lacked prosecutorial merit from the outset. Instead of pursuing justice, the system appears to have allowed these cases to linger until they risked embarrassing the Judiciary.

A more troubling interpretation and one consistent with qualitative interviews conducted with relevant stakeholders is that the very burden of prolonged legal proceedings—financial, reputational, and psychological—was not merely a byproduct of flawed prosecution, but the intended outcome. In this view, the Anti-Terrorism Act has been brought into play not primarily as a tool for national security, but as a mechanism of state-sanctioned harassment against political opponents. Victims are frequently told that although they will eventually be released alive, a specific “procedure” must be followed. This typically involves being presented before the media—referred to euphemistically as “মিডিয়া করা” (“doing media”)—after which a fabricated case is filed against them. They are then required to spend a period in jail before being granted bail.

8.5 Impact on the victims and families

The procedural coercion discussed above is not only emotionally and reputationally damaging, it also imposes a severe financial burden on victims and their families. The graph below displays the reported amount spent by families in our sample on legal cases, excluding extreme outliers. Each blue dot represents an individual case, sorted by total expenditure. The red dashed line marks the median spending, which stands at approximately BDT 700,000: half the victims spent more than this, and half spent less.

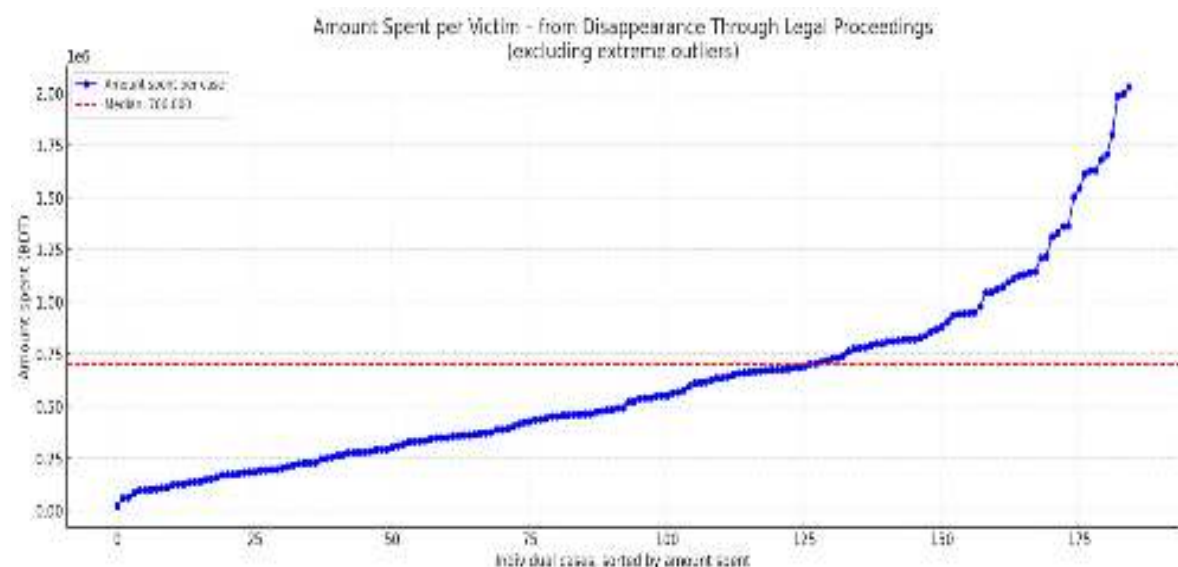
To understand how much that really is: the average family in Bangladesh earns about BDT 300,000 in a whole year, according to the Household Income and Expenditure Survey 2022 conducted by the Bangladesh Bureau of Statistics. That means most families in this sample spent more than two years’ worth of income by way of legal costs. Many spent even more—some as much as five or six years’ income—just to try get justice.

This level of financial burden is debilitating for low- and middle-income households. It forces families to sell assets, borrow from informal lenders, or fall into prolonged cycles of debt, compounding the trauma of the initial rights violation with sustained economic hardships. Rather than offering relief, the justice process often imposes further suffering on the families who have already endured significant loss.

While the graph captures the staggering costs associated with legal proceedings, the true burden on victims and their families extends far beyond attorney fees and court expenses. Many victims—a large number still in their primes—spend years shuttling between courtrooms, required to appear before magistrates on a regular basis as part of routine bail conditions. If multiple cases have been filed against them, they may be summoned several

times a month, often having to travel from one end of the country to the other to comply. The psychological toll, physical exhaustion, and financial burden of this process are immeasurable. It is important to remember that these are not genuine prosecutions but fabricated cases, designed to punish and exhaust.

On top of this, enforced disappearance often results in long-term psychological trauma, disrupted education, and the need for ongoing medical or psychiatric care—costs that are neither easily measured nor short-lived. One of the most complex and time-consuming identification efforts undertaken by the inquiry involved a male victim (Code BHFG¹¹⁷) repeatedly mentioned by survivors of secret detention. Witnesses described a boy, approximately 15 or 16 years old at the time of his abduction, who exhibited clear signs of severe psychological distress while held at the TFI centre. According to multiple accounts, he would cry constantly, and the guards would reportedly respond by escalating the physical abuse. Although numerous captives consistently referred to his presence, we were initially unable to confirm his identity or establish what became of him after his release.



56 Fig: Amount spent per victim, excluding extreme outliers

At one point, a former detainee disclosed that he had seen the same boy months after his release, confined in a psychiatric cell at Kashimpur jail, called “pagla cell”, and clearly with his nails removed, likely a sign of torture. He was able to provide some identifying characteristics and a general timeframe. This prompted the team to obtain registry data from that facility’s psychiatric cell. However, without a confirmed name, we could not match the entries to the subject in question.

Further leads proved inconclusive until another witness (Code IGB¹¹⁸) recalled that he had once known the boy’s name, though he had since forgotten it. Days later, he recollected the name and shared it with the inquiry team. Yet even this name did not appear in official records, possibly due to inconsistencies between formal and informal naming conventions.

¹¹⁷ 16 year old male; abducted by RAB Intelligence and RAB 3 in 2019; disappeared for 20 months 13 days

¹¹⁸ 26 year old male; abducted by DGFI, RAB Intelligence and RAB 3 in 2019; disappeared for 110 days

The case remained unresolved until another survivor (Code CEI¹¹⁹) reported that he had been transported from jail to court alongside the boy on one occasion several years ago. Though unable to recall the exact date, he suggested two plausible dates based on approximate memory. He added that the boy had received no food during the court visit and that they had shared a meal. This small but verifiable detail prompted the team to target court appearance logs for those dates, despite the continued uncertainty about the boy's full legal name.

Subsequent outreach to another detainee—who had not been abducted by the same security force but had served time in the same prison during the relevant period—proved unexpectedly successful (Code IBB¹²⁰). Upon hearing the boy's description, the individual immediately recognised him and confirmed the identity. He further disclosed that, after his release, by chance he had encountered the boy a year earlier at a bicycle repair shop, where the boy appeared to be living with his father, albeit still suffering from psychological instability.

Acting on this lead, the survivor returned to the location and successfully located the boy, who was then brought to the Commission. His identity was confirmed through cross-verification with prior testimonies. He was the same boy whose plaintive cries had been described by multiple survivors over several years. At the time of his disappearance, he had just been promoted to class nine. Before receiving his new schoolbooks, he had already endured two years in secret detention, two more in prison, and ongoing mental health challenges as a result of sustained abuse.

At the meeting with the Commission, it was immediately evident that the boy remained deeply psychologically unwell, despite undergoing treatment. The family was clearly impoverished, and the father's confusion—both about what had transpired and about the legal process—was palpable. The testimonies of the victim and his father given below are a compelling illustration of the long-term impact of enforced disappearance and its accompanying legal burdens on survivors and their families.

ভুক্তভোগীর বাবা বলেছেন: [গুম পরবর্তীতে থানায় যেয়ে] “পরে দূর থেইকা দেখলাম, কথা বললাম, কাছে গেলাম। হে আমারে চিনলো, খালি হাসে, আর কিছুই কয় না।” আমি জিগাইলাম, “এই যে তোর নখগুলা কই গেল? হাত দেখা তো, পা দেখা।” দুই পায়ের নখ নাই। হাতের বৃদ্ধাঙ্গুলের দুইটা নখও নাই। আগেত এমন আছিল না।

আমি জিগাইলাম, “এই কী হইছে?” সে কিচ্ছু কইতে পারলো না। শুধু কইলো, “বলা যায় না।” ঠিক বুঝতে পারি না, কিন্তু আমি চোখে দেখি – নখ নাই, দুই পায়েরও নাই।

আমি আবার জিগাইলাম, “স্যার, আমার ছেলেটারে কই থেইকা আনছেন?” তারা কয়, “র্যাব হেফাজতে ছিল, সেখান থেইকা দেওয়া হইছে।” আমি কইলাম, “আমার ছেলে তো দুই বছর ধইরা নিখোঁজ। এতদিন পরে কইরতে আনছেন? আগে কই আছিল?” তারা কয়, “আপনার ছেলের মামলা দিয়া ছিল।” আমি কইলাম, “মামলা যদি দিয়া থাকে, এতদিন পর কেন আনছেন?”

ওনারা কয়, “আপনার এত বাড়াবাড়ির দরকার নাই।” আমি কইলাম, “ভাই, আপনি যদি সহজ করে কইতেন, আমি তো সব শেষ মানুষ। আমার বউ মরে গেছে, ছেলে হারা হইছিল।” এতদিন পর যদি পাইলাম, তাহলে আগে জানাইলে আমি জামিনও নিতে পারতাম। আমি তো কিচ্ছু বুঝি না। তারা কয়, “উকিলের লগে যান, সব

¹¹⁹ 33 year old male; abducted by CTTC in 2020; disappeared for 143 days

¹²⁰ 25 year old male; abducted by CTTC in 2021; disappeared for 110 days

বুঝাই দিমু।” আমি কইলাম, “দোষটা কী? আমি তো শুধু অভিযোগ দিছি, ছেলে নিখোঁজ। আইনশৃঙ্খলা বাহিনীর পরিচয় দিয়া নিছে।” দুই বছর পরে পাইছি। কয় কাগজ দেখাইলে বুঝা যাবে মামলার অবস্থা।

একজন লোক নিয়া গেল উকিলের কাছে। ফাইল তুললো। দেখা গেল, মামলায় অনেক কিছু লেখা আছে। তারপর জজ কইলো, “বেল নিতে হইবো।” আমি তো জানতাম না। আমার ছেলে দুই বছর দুই মাস গুম আছিল। হেইখান থেইকা পরে কেস দিছে। দোষটা কী, আমি তো জানি না। উকিল কয়, “আমরা হাজিরা দিয়া জামিন চাইবো।” আমি তো গরিব মানুষ, খরচ চালাইতে কষ্ট হয়। একটা কাগজ লইয়া দেড় বছর ঘুইরা শেষ।

এর মধ্যে দুই জেলে নিছে – একবার কাশিমপুর, আরেকবার কেরানীগঞ্জ। জজ কইছে, দেখা কইরা কথা কওন লাগবো, মাসে একবার সাক্ষাৎ। সাক্ষাতের লাইগা নাম লেখান, ছবি দেন, আইডি দেন। আমি কইলাম, ভাই, একটা ব্যবস্থা করেন। ছেলেটা এতিম, মায় মারা গেছে। লেখাপড়া করত, সব শেষ। ... [গুম থেকে ফেরার পর] ও বসে থাকতো, হঠাৎ রেগে যাইতো। কেউ কথা জিগাইলেই থাপড় দিত। ... এখন ও খালি একা একা হাসে, কিছু কইলে ফেনায়, ঠিকমতো কথা কয় না। আগের মত না। ডাক্তার দেখাইলাম, ওষুধ দেয়, খায় না। কয় শরীর কাপে, ঘুমে ধরে। ওষুধ ফালায় দেয়। ডাক্তার কয়, নিয়ম মতো ওষুধ খাওয়াইতে হইবো।

এই হইলো ঘটনা। আমার ছেলে পাইলাম, এইটাই বড় কথা। সবাই কয়, “যা হইছে হইছে, এখন খাইয়া-পইরা বাঁচ।” কিন্তু আমি জানি কত কথা হজম কইরা এই পর্যন্ত আইছি। “এখন আমি আর উকিলের কাছেও যাই না, কারণ টাকা-পয়সার অভাব।”

ভুক্তভোগী ছেলে বলেছেন: সেলের ভিতরে থাকতাম, ওয়াশরুমে যাইতাম – ওই সময় মাইর খাইতাম, লাঠি দিয়া। খুব কান্না করতাম, ব্যথা পাইতাম। মনে হইতো বাড়ি যাই। কিন্তু বইলা দিত, “দিন হইছে শুয়ে থাক, রাত হইছে ঘুমা, কথা বলবি না, আওয়াজ করবি না।” ... আইনের লোক আছিল, কিন্তু ওই জায়গায় কোনো বন্ধু ছিল না। একা আছিলাম। অফিসার আইতো, জিগাইতো নাম, খাবার কি, অসুস্থ লাগলে কইতো। কয়, “কান্না করিস না, কষ্ট হইলে বলিস।” ... এখন কষ্ট পাই না, কিন্তু তখন ভিতর থেইকা খুব কষ্ট পাইতাম। যখন বাড়ি আসলাম, খুব ভালো লাগলো। মনে হইলো দুনিয়া পাইলাম।^{xv}



57 Fig: Nails were frequently uprooted as a form of torture (illustration based on witness and survivor accounts)

8.6 A message for the Judiciary

This section speaks directly to the Judiciary as guardian of constitutional rights and as a decisive actor in preventing recurrence. The Commission's documentation shows that when judicial oversight is delayed, deferential, or procedural rather than substantive, enforced disappearance becomes easier to commit and harder to unwind. The Judiciary can either function as a downstream legitimiser of coercion, or as a living barrier to secret detention through rigorous scrutiny, insistence on legality, and accountability for abuse.

It goes without saying that the Judiciary is one of the vital organs of the State. The Judiciary serves as the Guardian of the Constitution and the protector of the fundamental rights of the people as enshrined in Part III of the Constitution. A resilient, independent and accountable Judiciary is vital not only for democracy and human rights, but also for sustainable economic and social development. Only through coordinated constitutional and institutional reforms can Bangladesh ensure a Judiciary that is independent, impartial, transparent and worthy of public trust. As Lord Denning rightly said, "When a Judge sits to try a case, he himself is on trial."

The Judiciary is the dispenser of justice, the shield of the vulnerable and the compass of democracy. Public trust in the Judiciary is a bedrock of a functional society. Without it, the rule of law crumbles, and public confidence in Judges—which cannot be demanded but must be earned—erodes. Judges promote and protect human rights through the administration of justice. Almost all basic human rights articulated in the Universal Declaration of Human Rights, 1948 have been incorporated in Part III of our Constitution. Judges are charged with saying what the law means, and when they speak, the force behind the law begins to operate. A Judge should treat every case—whether involving the Prime Minister or a street vendor—with equal rigour.

As the Judges don their robes every morning, they should remember the words of our Constitution:- "The Republic shall be a democracy in which fundamental human rights and freedom.....shall be guaranteed." This guarantee should begin with the Judges. Let us build a Judiciary where a rickshaw driver in Dhaka and a garment worker in Sylhet alike can say, "We trust the Court – we trust the Judiciary." The journey is arduous, but the reward—a just, confident Bangladesh—is immeasurable.

Judicial independence is the lifeblood of constitutionalism in a democratic polity. This independence is not for the sake of the Judges, but for the judged. When the perception of the people is that the Judiciary is not functioning independently of the Executive and the Legislature, the Judiciary stands nowhere.

In the words of late lamented Chief Justice of the then East Pakistan High Court Mr. Justice Syed Mahbub Murshed, "No tyranny is worse than judicial arbitrariness and no misfortune is worse than judicial subservience." This observation is self-explanatory and germane to the context of Bangladesh. Judicial independence does not mean judicial highhandedness. There is no conflict between judicial independence and judicial accountability; rather, accountability reinforces the proper exercise of independence. Judicial independence and accountability are complementary pillars of constitutional democracy, and neglect of either undermines institutional integrity and public trust.

Members of the law-enforcing and intelligence agencies are not above the law. Torture and degrading or inhuman treatment in custody are illegal, unconstitutional and condemnable. Enforced disappearance and custodial death are the worst forms of human rights violations. Even a hardcore criminal has the right to be tried in a competent court of law. By subjecting victims to enforced disappearance, perpetrators take the law into their own hands and themselves violate the law—conduct that cannot be countenanced in a democratic society.

The rule of law requires protection of the fundamental rights of citizens against the Government and its instrumentalities. Law must guarantee human dignity and ensure implementation through due process by an independent Judiciary. In the absence of this requirement, the rule of law becomes a hollow slogan. Lord Justice Stephen Sedley of the Court of Appeal of the UK observed, “The irreducible content of the rule of law is a safety net of human rights protected by an independent judicial system” (quoted from Soli, J. Sorabjee).

The Appellate Division has clarified that Magistrates and courts must strictly enforce procedural safeguards governing arrest, remand and detention, including scrutiny of case diaries, rejection of unfounded shown-arrest requests, and verification of lawful custody. Courts have an affirmative duty to act against unlawful conduct by officers and to respond decisively to any indication of torture or custodial death, including through medical examination and proceedings under the Torture and Custodial Death (Prevention) Act, 2013. The Magistrates, Judges and Tribunals are mandated by law to dispense evenhanded justice without fear or favour and to remain mindful of the dictum—“Let justice be done, though the Heavens fall.” Yet, regrettably, the Judiciary failed to play a proactive role in curbing enforced disappearances, even when such practices were brought to its notice during the immediate past Hasina-led Administration.

The Commission organised four judicial sensitisation workshops to respond to a pressing problem faced by resurfaced victims: the backlog of allegedly false and fabricated cases filed against them under various laws. Held in Dhaka with support from OHCHR, the workshops brought together judges of District and Sessions Courts, Anti-Terrorism Tribunals, Chief Metropolitan Magistrates and Chief Judicial Magistrates. The aim was to deepen understanding of enforced disappearance as a grave human-rights violation, highlight the lived realities of victims, and encourage more careful scrutiny of weak or abusive prosecutions.

Through keynote discussions, case dialogues, group exercises and a documentary screening, participants examined legal gaps, practical challenges and possible remedies. The workshops generated concrete recommendations, including faster case disposal, stronger protections for victims and witnesses, improved coordination, and targeted legal reforms, helping to build a more responsive and humane judicial approach to disappearance-related cases.

9. How did we arrive here?

Enforced disappearances in Bangladesh were not only enabled by operational capacity but sustained by a permissive political and institutional environment. The result was an authoritarian bargain in which securitisation narratives provided cover and resources, normalising illegality as a method of governance. Alongside the weaponisation of the judiciary, two other key factors enabled this system. They are a domestic culture of complicity within the security forces, and an international counterterrorism consensus that shielded abuses under the guise of stability. Alarming, this culture of impunity persists even after the regime change on 5 August 2024. This chapter examines the conditions that made enforced disappearance possible at scale: security forces, generally speaking, indoctrinated into partisan objectives, a permissive internal culture, and an entrenched expectation of impunity. The goal is not merely historical narration but diagnosis because unless these conditions are deliberately dismantled, the same crimes will continue to be repeated.

9.1 A culture of coercion

Throughout our work, a troubling pattern has emerged. During Sheikh Hasina's reign, internal dissent within the security forces, especially on issues such as enforced disappearances, political neutrality, or institutional accountability, often carried adverse personal and professional consequences.

One officer in his forties recounted how expressing independent views and refusing to toe the official line on enforced disappearance led to systematic isolation from his colleagues. Before each new posting, his colleagues were warned not to trust him. His family's communications were monitored, and fabricated allegations of sundry crimes followed him. Although he had never committed any formal wrongdoing, administrative tools like internal investigations and revoked security clearances were reportedly used to derail his career. "In the army," he noted, "once an investigation is opened against someone, it is permanently recorded, regardless of the outcome." The officer's testimony was corroborated by others with knowledge of the event.

An officer (Code BDDJ¹²¹) who had commanded the task force investigating corruption by an Awami League leader during the 2007-2008 period was dismissed from service, forcibly

¹²¹ 37 year old male; abducted by DGFI in 2011; disappeared for 28 months

disappeared, and later jailed under fabricated charges after the Awami League returned to power. The details of the case were confirmed by a former Director General of DGFI who was a witness to the events. His case exemplifies a broader pattern in which law enforcement officers face consequences for actions taken in good faith. As a result, many officers fear taking principled action—even when it is part of their mandate—believing they may be punished in the future for doing what is right.

In another case, a young man (Code BHIC¹²²) described his brother’s mental collapse while working in an intelligence agency. The brother had been tasked with submitting a list of active political dissidents from his area of responsibility. To his horror, he subsequently discovered that everyone in the list he had submitted were eliminated. The guilt overwhelmed him to the extent that, his family reported, he was eventually hospitalised for severe psychological distress.

A victim (Code BEDD¹²³), now permanently disabled due to the torture he endured, recalled how the CTTC officer assigned to interrogate him broke two instruments during the course of the beating, and then continued the torture using a third instrument. The violence was so extreme that two female officers present in the room broke down in tears and left. Although he was semi-conscious at the time, he vividly remembers their tears.

One soldier in his mid-twenties, upon being posted to a secret detention site particularly notorious for its systematic cruelty to captives, became horrified by what he witnessed. In the basic training, he was given the standing order obeyed by all there: “বন্দীদের সাথে কখনো স্বাভাবিক আচরণ করা যাবেনা, যেটা স্বাভাবিক মানুষের সাথে করা হয়। তাদের সবকিছু থেকে বঞ্চিত রাখতে হবে, সব অধিকার থেকে। যাতে সে কষ্ট অনুভব করতে পারে।”^{xvii} Guards were even strongly discouraged from using their voices in close proximity to the prisoners, instead they were told to use “ইশারা”/signs and whistles. (Multiple blindfolded victims have reported these tell-tale whistles used at this site.)

When he asked to be removed from the assignment, he was plainly warned that backing out could get him killed. Whilst this may have been hyperbole on the part of his superior – since we have not yet found any instance of someone actually being killed for refusing to serve there and because soldiers and officers were routinely rotated in such postings – it indicates that loyalty was often only interpreted as silence and compliance.

9.1.1 Dissent

Yet, dissent did exist. That same soldier, though unable to leave, coped through small acts of resistance. He regularly gave his own meals to detainees, who were routinely served only half the rations of the guards. We confirmed this account directly from a victim who had received the soldier’s largesse. One day, a captive tearfully thanked him for finally getting a full meal. The soldier stepped aside and silently broke down crying. When a superior asked why he had tears in his eyes, he blamed homesickness.¹²⁴

He was not alone in his anguish. Complicity in these crimes often took an emotional toll on some members of the security forces, as demonstrated in the following extract from the

¹²² 32 year old male; abducted by RAB Intelligence and RAB 14 in 2021; disappeared for 33 days

¹²³ 22 year old male; abducted by CTTC in 2018; disappeared for 25 days

¹²⁴ As a witness in an ongoing legal case, the individual’s identity has been withheld for safety.

testimony of a government employee who was a victim (Code DFE¹²⁵). He recounts meeting a soldier during his period of enforced disappearance at RAB 4, following two months at DGFI's JIC:

....সময় হয়তো মাঝ রাত হবে। “আমি কোন রকম একটা ওয়ু করছি, দাঁড়ায়া তেলাওয়াত করতছি। যেহেতু নিয়মিত কোরআন পড়তাম, তেলাওয়াত অনেক সুন্দর ছিল। আমি তেলাওয়াত করতছি আর এমন কান্না কানতছি। কান্নার চোটে আমি আর কথা বলতে পারতছি না।” ... পাশে যে ডিউটি করতছিল, ও পরবর্তীতে বলছিল, “ভাই, আসলে আমি চাকরি করতে বাধ্য হছি। আমি হলাম সেনাবাহিনীর সৈনিক। তাদের এই জুলুমগুলো আমার সহ্য হয় না। আমার এখানে ডিউটি করতে মন চায় না।...”

আমি তেলাওয়াত করতছি আর কানতছি। তো সম্ভবত ওই যে সৈনিক যে আমারে পাহারা দিতেছে, ও'ও কানতছে। সে বলতছিল, “আচ্ছা, এরা কি সন্ত্রাসী? আচ্ছা, ও কি সন্ত্রাসী? ও কি সন্ত্রাসী হতে পারে? ও কি মানুষ মারতে পারে? ওর ব্যাপারে এরা কি করতছে? অফিসাররা এগুলো কি করতছে? স্যাররা এগুলো কি শুরু করতছে?” নিজে নিজেই। রাত তো গভীর, কেউ নাই, নিজে নিজেই উনি বলতছে। আমি হালকা হালকা শুনতছি। ... কয়েকদিন পরে ডিউটির সময় উনি আমারে বলল যে, “দেখেন, আমার দৃঢ় বিশ্বাস আপনারা সন্ত্রাসী-টন্ত্রাসী কিছুই না। আপনারা স্যাররা নিয়ে আসছে, এটা একটা জুলুম করতছে।” আমি আর কিছু বলি নাই। ...

তো যখন ওই আমাদেরকে মিডিয়া করে নিয়ে আসছে। আনার পরে আমাদেরকে এনে আবার কুঠুরিতে রাখছে। তখন ওই সৈনিক ভাই ডিউটিতে ছিল। উনি তো আমাদেরকে দেখে মহা খুশি। আমারে [জড়ায়ে] ধরতে তো পারতছে না, তো বলতছে, “ভাই, আমি রাতে ১০টা ডিউটি করে গেছি আপনার এখান থেকে। তো ভাবছিলাম যে রাতে আপনাকে ক্রসফায়ার দিয়ে দিতে পারে। কারণ ওই রাতে মিটিং হইছে আপনাদের ব্যাপারে। কারে কি করবে, কারে ক্রসফায়ার দিবে, না মামলা দিবে। সবার ব্যাপারে সিদ্ধান্ত হয়েছে। আমি আবার যখন আসছি ৩টার দিকে ডিউটিতে, তখন দেখলাম যে, না, আপনারা আছেন। তখন বুঝলাম যে, আপনাদের ক্রসফায়ারের কোন সিদ্ধান্ত হয় নাই। এইজন্য আমি খুব খুশি, কারণ আমি ১০টার দিকে যখন ডিউটি থেকে যাই, আমি কোন ঘুমাই নাই। আমি সারাক্ষণ নামাজে বসে কান্নাকাটি করছি, যাতে আপনাদেরকে ক্রসফায়ার না দেয়।”

... আমি বললাম যে, “আচ্ছা ভাই, যেহেতু আপনি আন্তরিকতা দেখাইছেন, তাহলে একটু বলেন, আপনি নিজেও তো দেখতেছেন যে নাটক সাজাইতেছে তারা। এই যে অস্ত্র-মস্ত্র এগুলো দিয়া। এতে উনাদের লাভটা কি? উনারা দেশের আইনশৃঙ্খলা ঠিক করবে, তো আইনশৃঙ্খলা ঠিক হবে কিভাবে এটা করলে? উনাদের লাভ কি? আমাদেরকে যে রাখতেছে, পালতেছে, এটা তো খরচ আরো হইতেছে।” তো বলল যে, “যদি একটা বড় জঙ্গি ধরা যায়, তাহলে স্যারদের খুব দ্রুত প্রমোশন হয়। আপনারা চলে যাবেন এরপরে স্যারের প্রমোশন হবে। এইটাই লাভ।” আমি বললাম, “একটা প্রমোশনের জন্য আমার জীবনটা এভাবে ধ্বংস করে দিল।” উনি মনে হয় কান্না করে দিবে। চেহারা ঘুরায় ফেলাইছে আর কি।^{xvii}

Captives often spoke of moments when they witnessed quiet defiance. Some guards, for instance, untied prisoners or refrained from carrying out the punishment mandated by officers. A female detainee (Code BIAH¹²⁶) held at RAB 11 recalled a guard who loosened the restraints tying her hands to the cell door that had forced her to remain standing as a punishment: “আহা আপা, আপনার অনেক কষ্ট হইতেছে। আমি আপনাকে একটু খুলে দেই, আপনি একটু রেস্ট নেন। স্যার আসার শব্দ শুনলে আপনি দাঁড়ায়া যাবেন, আপনাকে আমি আবার হ্যান্ডকাফ লাগায়া দিবো।”^{xviii} These glimpses of humanity suggest that refusal, though not without risk, was possible.

¹²⁵ 31 year old male; abducted by DGFI and RAB 4 in 2017; disappeared for 5 months 11 days

¹²⁶ 25 year old female; abducted by police in 2018; disappeared for 24 days

One RAB Intelligence officer was allegedly ordered to kill a long-term detainee whose whereabouts had been compromised due to a colleague's indiscretion. He refused, reportedly saying, “যদি ওনাকে মারতে হয়, তাহলে আমাকে এখান থেকে চেঞ্জ করে দিন, আমি মারব না।”^{xciix} The victim was not killed and the officer remained in position until after 5 August, showing that resistance to unlawful orders did not always bring immediate fallout. (We received this account from a fellow colleague of his.)



58 Fig: Train lines were used as body disposal sites (illustration based on witness accounts)

The most striking case of protest we uncovered emerged entirely by accident. A colleague from the International Crimes Tribunal, while reviewing documents abandoned at Gonobhaban after 5 August, discovered two handwritten notes penned by RAB officers addressed to the Director of RAB Intelligence Wing, in which they refused to carry out unlawful orders. These were not formal letters but personal declarations, yet even these had clearly been forwarded to Sheikh Hasina, who retained them in her files from 2015 until her escape to India in 2024. One of the notes reads:

“...when I was ordered to go on an operation by the RAB authority, I said that if there is any plan of extrajudicial killing or firing which is not permitted by the law of the country, I cannot take part in such kind of act.”

From the public statements made after 5 August 2024 by the then army chief, General Iqbal Karim Bhuiyan, we found out these officers quickly sought refuge at a military police check post, were returned to the army and, notably, did not face any disciplinary consequences for their refusal. This is despite the fact that news of their non-compliance had reached the highest levels of political authority.

The very existence of these notes, handwritten by junior officers yet deemed important enough to be placed before the then Prime Minister, underscores the extent of Sheikh Hasina's personal oversight. Her decision to preserve such documents for nearly a decade is telling. Their discovery after 5 August not only reveals the depth of her involvement, even in the smallest details of the system of repression, but also serves as a rare reminder that, within even the most coercive environments, some space for conscience and refusal did exist—however limited and fraught with risk.

9.1.2 Permissive institutional culture

However, when we consider the duration of the crime period—spanning over 15 years—the sheer number of victims, now over 1900 official complaints to the Commission, and the growing number of law enforcement and intelligence officers implicated in this inquiry, a deeper issue becomes evident. The problem is not merely individual misconduct; there exists a systemic problem within the institutional culture. It appears that there was an environment in which such crimes were tacitly condoned, and those who committed them were not regarded as offenders in any meaningful way.

A clear illustration of this is found in the documentation of the intelligence forces. Of all the intelligence files, those maintained by DGFI are considered some of the most detailed. These files cover not only military personnel but also members of other forces, including the police. The Commission had the opportunity to review seven such files belonging to officers against whom there is *prima facie* evidence of complicity in serious crimes, including enforced disappearance.

The nature of these disappearances strongly indicates that they were not the actions of lone individuals. These crimes were carried out with the involvement of many members of the individual units, which makes it nearly impossible that such actions could have been concealed from intelligence agencies, some of which had regularly assigned agents deployed to these units with the explicit mandate to monitor their colleagues and report to their superiors. And yet, not one of the reviewed files contained a single mention of enforced disappearance, despite how widespread the practice was during the period in question.

It is as if these officers, drawn from both the military and the police, had committed no such crimes at all. What the files did contain, often in meticulous detail, were notes on any suspected political affiliations they had. These included associations not only of the officers themselves but also of their extended family members, including such convoluted connections as the political identities of their wives' aunts. Additionally, the files recorded any complaints lodged against the officers, such as allegations of corruption, indiscipline, or misconduct. Yet, conspicuously absent was any mention of enforced disappearance or extrajudicial killing.

For example, one officer's dossier documents a multitude of complaints of corruption and misconduct made against him by his colleagues. Minute details, such as that he used to regularly send "fish therapy" (gifts of fish) to the then Director Intelligence of RAB, the then BA 4060 Lt Colonel Ziaul Ahsan, is included. But there is no mention of the capital crimes he was involved in.

Another officer, currently a brigadier, against whom we have *prima facie* evidence of involvement in enforced disappearances was described by the then Director General of RAB, Benazir Ahmed, as having an exemplary record. The officer's performance was labelled as “খুবই সন্তোষজনক” (very satisfactory) and his leadership as “উচ্চ মানের” (high quality). Alongside, he is described as a “ভদ্র” (polite) and “সৎ স্বভাবের” (honest) officer who is professionally “অত্যন্ত দক্ষ” (very skilled). He was lauded because “স্ব উদ্যোগে” (self-initiated), “চট্টগ্রামের বিভিন্ন স্থানে অভিযান চালিয়ে” (conducted raids in various places in Chattogram), he had tackled “ইসলামী জঙ্গিবাদ, সন্ত্রাসী, চোরাচালান এবং মাদকের সাথে জড়িত সিন্ডিকেট” (Islamic militancy, terrorism, and smuggling, and drugs syndicate). The report insisted “কোনো নেতিবাচক তথ্য পাওয়া যায়নি” (no negative information was found) about this officer.



59 Fig: Captives were thrown in front of vehicles to be killed (illustration based on witness and survivor accounts)

9.1.3 What explains the persistent silence within the forces?

One possible explanation is that certain actions, including these grave human rights violations and crimes against humanity we are examining, were not perceived within the security forces at the time as criminal acts. Rather, they may have been regarded as part of a wider operational mandate – understood internally as necessary steps in the pursuit of the proverbial national security and public order. In that context, such actions were possibly not viewed as deviations, but as routine responsibilities carried out by the officers under institutional instructions.

This mindset is clearly illustrated by the brigadier mentioned earlier. When the Commission confronted him with evidence of his involvement in enforced disappearances, his reaction underscored the insidious nature of this institutional mentality. Rather than expressing remorse or even acknowledging wrongdoing, he exhibited a level of arrogance that pointed to a deep-rooted sense of entitlement. He spoke proudly of his achievements, recalling how RAB held monthly competitions where battalions earned points for successful operations, with the top

performers receiving substantial monetary rewards. He consistently finished at the top, a fact that he clearly relished, even after the nature of his actions had come to light. This, he insisted, was proof that he was effective and proof that our efforts were misguided.

This pride in his role, despite the grave crimes committed, illustrates a broader culture of impunity within the security forces. Illegality was normalised, and officers were celebrated for their criminal actions rather than held accountable. This culture has permeated the ranks, fostering a mentality where criminal acts are seen not as violations, but as accomplishments worthy of pride. The result is a pervasive impunity that continues to protect criminals.

From that standpoint, it would not have occurred to anyone to formally report them as offenses. Much like how routine duties such as submitting a briefing or conducting a patrol are rarely flagged unless something goes wrong, these actions, too, were normalised. This is a reflection of how institutional priorities and norms can shape what is recorded and what is not. It is the only explanation that aligns with the otherwise thorough documentation we have seen.

This idea that certain actions became normalised as part of institutional culture is reflected in an interview we conducted with a high-ranking general. He spoke of the efforts he had made to ensure that officers seconded from the military to RAB did not become involved in capital crimes. One such measure, he said, was a system of briefing and debriefing: officers were spoken to before their deployment to RAB, and again upon their return after the deployment, and warned not to engage in unlawfully killing the defenceless.

In one of these debriefing sessions, a junior officer was asked by his superior whether he had killed anyone during his deputation period, and if so, how many. The officer hesitated, then admitted to having personally killed two individuals and having witnessed the killing of four others. Since funds were reportedly routinely distributed after such incidents, his superior followed up by asking what he had done with the money he had received after the operation. The officer replied that he had donated the money to his village mosque.

Religiosity per se, while meaningful to many, is no substitute for justice. One senior officer recounted confronting a subordinate who had begun to show signs of religiosity following his involvement in serious crimes. He told him that while the prayers he now offered were his duties to God, the crimes he had committed were debts owed to people. God, he said, does not forgive violations of others' rights on a person's behalf. The subordinate would need to seek forgiveness directly from those he had wronged, because prayer alone was not sufficient.

And yet, the junior officer's response is worth pausing over. It revealed an internal conflict – the kind of quiet moral struggle that, even if expressed clumsily, suggested a young man grappling with the weight of what he had done. At just 26-27 years old, the officer appeared to be trying, in his own disordered way, to seek some form of personal redemption. He may not have known how, but the prick of conscience was there.

What stands out even more is what the senior general *didn't* say in response. At no point did he indicate that, upon hearing his junior's admission of committing cold blooded murder twice, he took any steps to initiate an investigation, to identify the victims, or to refer the matter to military or civilian justice mechanisms. Despite having every opportunity to act, he chose not to. Instead, he presented this story to us as an illustration of his own vigilance – as if the debriefing itself fulfilled his responsibility.

This raises a serious question. If such an admission could be treated not as a red flag but as a routine anecdote, then what does that tell us about the prevailing understanding of justice and due diligence in these forces?

Another senior retired officer, widely acknowledged for his honesty, discipline and commitment to institutional standards, expressed concern to us about his officers being posted to RAB. But his concern did not seem to lay in the killings themselves, nor in the fate of the victims. “In the name of crossfire, our officers were getting involved,” he said, lamenting what he saw as a lapse in military decorum. He added, “You have lowered being a soldier to the level of being a member of Ansar or police. Everyone gets on the same pickup and goes on the same operation.” The issue, in his eyes, was one of pride and protocol, not legality or ethics.

That even the most principled officers viewed the matter through this lens spoke volumes about how deeply embedded this culture had become. It also explains why, after the seven-murder episode in Narayanganj, the Army Security Unit reportedly questioned only the soldiers involved in the incident but none of the officers. Even in the midst of accountability efforts, shades of the culture of impunity persisted.

9.1.4 Consequences for junior officers and the future of the forces

Young officers, especially, often felt deeply disempowered in the prevailing environment. In one incident, a soldier recounted how a captive managed to briefly escape from a RAB Intelligence safe house but was caught outside by the soldier and brought back inside, subsequent to which he was likely killed. A young officer nearby was reportedly shaking in fear and broke down in tears, believing that if the captive had managed to escape, in retaliation, he himself might have been killed or severely punished by his senior officer. That particular senior officer was renowned for his ruthlessness.

This kind of extreme fear persisted even when officers were fully aware that what was happening around them was unlawful. In another account, an officer described how a colleague, who had become heavily involved in enforced disappearances and other illegal operations, told him: “I didn’t have the courage to refuse at the beginning, and now I’m stuck.”

Such testimonies reveal not only a pervasive climate of fear, but also a striking pattern of dereliction of duty among senior officers, who failed to provide pastoral care, moral support, or ethical guidance to those under their command. This dynamic was not limited to the military. Sub-inspectors in the police reported being compelled to sign documents prepared by superiors that implicated them in actions they neither authorised nor felt able to resist. The problem therefore extended across the security forces.

Within the military in particular, *formayeshi* reports — fabricated or “made-to-order” documents — were produced to malign officers who dissented, particularly junior ones. These reports remained in personnel files and were later weaponised in decisions on postings and promotions, ensuring long-term institutional punishment for perceived disloyalty. The consequences persist to this day, with almost no meaningful effort undertaken within the institutions to correct these injustices. With a change in political leadership imminent, there is a real risk that accumulated grievances will manifest as renewed politicisation, undermining the possibility of building a genuinely professional military.

We fully recognise that security forces operate in complex and high-pressure environments, often under political and institutional strain. Still, it is difficult to ignore the fact that had the senior officers collectively taken a stand – had they resisted the pressure from civilian authorities to engage in these acts – things might have been different. Yes, it might have made their career progression harder, but they were Generals already. Yes, there might have been some unpleasant consequences, but a unified stance would have dispersed the risks.

Lawful, unified dissent, particularly for senior officers, was always an option. Officers were not bound to carry out illegal orders. This principle was understood then, just as it is now – not only by the officers, but also by the rank-and-file of the security forces as well. The possibility, indeed, the responsibility, of resisting the culture of impunity always existed, not just to protect the victims but also to protect lower ranking members of the forces who might have found it harder to refuse. Tragically, it was a possibility too often missed.

This, perhaps, captures the central moral challenge we face in looking back: whether genuine accountability was ever attempted and what could have been different if it had.

9.1.5 Ongoing culture of impunity

It would be inaccurate to suggest that the culture of impunity has ended. Over the course of our work, we have encountered numerous instances that illustrate its continued presence, as well as its chilling effect on justice and accountability efforts. In the medium to long term, the culture of impunity harms both the victims and their families as well as the security forces.

In many of our interactions with the members of the security forces, both the officers and the rank-and-file, we have found them to be deeply fearful. However, their fear was not directed at the Commission or its accountability mandate. In fact, during private conversations, many of them were candid in stating that their fear stemmed not from us, nor from any governmental accountability processes, but from their own institutions. Several expressed a genuine fear of retaliation, including the possibility of being killed.

One soldier, for example, initially agreed to communicate with the Commission only through an intermediary, too afraid to even let his voice be heard by any member of the Commission. It was only after repeated reassurances and ongoing engagement that he eventually felt safe enough to speak to us directly. This reflects the depth of fear that has permeated the ranks.

We are also aware of efforts within certain security agencies to resist cooperation with the Commission. We understand that internal groups were formed expressly to coordinate responses to our work. Briefing and debriefing sessions took place regularly, as members of the security forces repeatedly confirmed to us. Over time, references to these sessions began appearing in letters sent to armed forces personnel, directing them to attend briefings with their superiors. Several officers and soldiers have reported that some, though quite certainly not all, of these sessions included explicit instructions directing personnel to remain silent before the Commission.

In one instance, an interviewee reported that he was told by his superiors that even if he admits to his own actions, he must not name any other officers or speak of anyone else's conduct. Lawyers have been sent to the Commission accompanying officers summoned for interviews,

despite there being no enabling provision in the law allowing their presence. When a military officer was asked why he had brought a lawyer along, he protested it was not his choice but the decision of “Headquarters”.

For those who have chosen to break ranks and speak frankly to the Commission, the pressure feels institutional in nature, not the product of individual decisions. In March 2025, a former RAB Intelligence officer messaged, “Most importantly, don’t refer my name in any evidence that I am passing you... then Army will sack and arrest me.” The perception among many is that the security forces, as institutions, are positioning themselves in opposition to accountability efforts even as many members of the security forces are yearning for a resolution to this decade-long trauma.

We do not believe this perception to be entirely accurate, as we have typically received some cooperation from many forces, including RAB. Nevertheless, it has created a dynamic in which those who may be culpable believe that they need only to wait out the Commission’s tenure, confident that their institutions will shield them. Meanwhile, those who are not accused of wrongdoing, but could serve as witnesses, fear that coming forward would place them at risk, as their institutions may ultimately fail to protect them, or worse, may retaliate against them for cooperating.

This environment of non-cooperation has caused immeasurable harm to justice and accountability efforts. It is also inflicting profound distress upon the families of the disappeared. The fate of the missing can only be determined through the testimony of those who were present at the time these victims were abducted and transferred to their final resting places. When those very individuals are intimidated into silence, the victim families are denied the possibility of truth and closure. That this denial persists even after the changeover of 5 August, after the window of opportunity opened for greater transparency and independence, marks an especially tragic and unjust outcome.

It is important to note that this resistance to accountability appears to be present across various branches of the security forces. For example, in January 2025, a CTTC officer expressed confidence to the Commission that they would not be implicated in the inquiry. Their reasoning, as conveyed to us, was that while the unit might have held individuals in custody incommunicado for extended periods, they had not engaged in other forms of misconduct. This attitude, which frames secret, unauthorised detention as a lesser offense or a non-offense, reflects the broader culture of institutional minimisation of wrongdoing and reinforces the challenges facing any effort to uncover the whole truth.

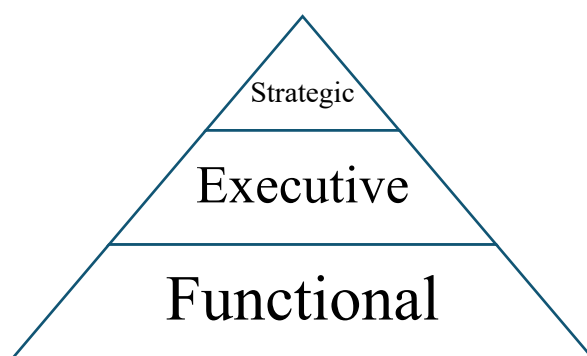
The failure to bring this episode to a proper close through comprehensive truth-seeking and meaningful accountability is already doing lasting harm to the security forces themselves. Although a number of trials for enforced disappearance have begun at ICT, in what is a historic first in South Asia and in many parts of the world, many of the principal accused remain at large. After arrest warrants were issued, several accused generals escaped from within the Dhaka Cantonment in successive waves and travelled to India. Among those absconding are also Sheikh Hasina and her security adviser, Major General Tariq Siddiqi.

This sequence of events has generated deep unease about the future of accountability efforts. Officers within the security forces who genuinely wish to see the inquiry succeed have privately expressed concern that, if such senior figures are allowed to evade justice without

consequence, the institutional commitment to accountability may already be fundamentally compromised.

Crucially, the point we wish to make here is that the absence of accountability is not only harming the victims and their families, it is also inflicting serious institutional damage on the security forces themselves. The system of enforced disappearance involved multiple tiers of state and security structures, which can be broadly conceptualised as a three-tiered pyramid.

At the top lies the *strategic layer*, occupied by key political figures, such as Sheikh Hasina, General Tariq Siddiqui, the Home Minister, and other senior officials, who held the authority to order abductions and extrajudicial killings. Below this is the *executive layer*, comprising senior Generals and high-ranking members of the police and other security forces. These individuals directly received instructions from the political leadership and, as such, could serve as vital witnesses to their involvement. At the base is the *functional layer*, made up of lower-ranking personnel within the security apparatus who carried out the operations under orders from above.



60 Fig 8C: A three-tiered pyramidal system

In the case at hand, the Generals who headed DGFI served as direct interlocutors between the armed forces and figures such as Sheikh Hasina and General Tariq Siddiqui when they ordered enforced disappearances. For instance, Lt General Akbar informed the Commission that he had directly discussed the case of Humam Quader Chowdhury, a known victim detained in the JIC, with Sheikh Hasina herself. In one case, a junior DGFI officer recalled hearing his Director speak about a detainee's fate in a way that made clear Sheikh Hasina was informed of him and had expressed an opinion on the matter. What surprised the Commission was the casual manner in which the remark was delivered, indicating that even in cases that did not appear especially significant, her involvement was understood to be direct and intentional.

Therefore, it is these senior officers, positioned between civilian command and military execution, whose testimony could best demonstrate that responsibility for these crimes rested at the highest levels of civilian authority. Their testimony could have served a dual purpose: advancing truth and accountability, and protecting the institutional reputation of the security forces by clarifying that operational orders did not originate from within their hierarchy.

However, when these officers absconded, that critical link was at least partly severed. Their disappearance left the armed forces vulnerable to allegations that they had acted on their own when committing crimes against humanity. This is, in fact, the narrative that has begun to unfold. For years, the Awami League categorically denied the occurrence of enforced disappearances in Bangladesh, often offering alternative explanations, such as voluntary disappearance or criminal involvement. And yet, after the escape of the witnesses best

positioned to reveal Sheikh Hasina's command responsibility, Awami League's posture shifted radically.



61 Fig: Captives were executed in isolated locations away from public view (illustration based on witness accounts)

On 16 April 2025, Mohammad Ali Arafat, spokesperson for the Awami League, yet again publicly denied any role played by the party or its leadership but became open to the possibility that enforced disappearances happened during their reign, albeit at the sole initiative of the military. He told the BBC: “If any such detention did occur, it would have been a product of complex internal military dynamics. I see [no] political benefit for the Awami League or for the government to keep these people in secret detention.” He also asserted that such actions were not conducted under the direction of Sheikh Hasina or any member of her cabinet.

The military's position, as conveyed by its chief spokesperson Lieutenant Colonel Abdullah Ibn Zaid to the BBC, was decisive. He said, “The army categorically denies operating any such detention centres,” and added, “The army has no knowledge of the things being implied.”

While Mohammad Ali Arafat's statements may reflect the Awami League's political necessity, they underscore the serious consequences of failing to secure testimony from those best positioned to reveal the chain of command. The result is an Awami League narrative that *unfairly* and *untruthfully* isolates the military as the *sole* guilty party while absolving the civilian leadership of its responsibility. This outcome runs counter to any genuine effort to protect the institution's reputation – an aim we understand the current Armed Forces leadership rightly takes very seriously, as do we.

Preserving institutional credibility requires a process through which the security forces can be visibly and credibly cleansed of the individuals whose personal criminal liability renders them potential threats to national security. It also requires that the origins of unlawful commands within the political leadership be permitted to come to light. Allowing complicit officers to

abscond or evade accountability creates a direct obstacle to both of these objectives. It's self-defeating and harmful to the institution.

More troubling still is the emergence of a new pattern. Individuals who were not originally implicated in enforced disappearances, and who, based on available information, were not involved in the commission of those crimes, now find themselves complicit in a second cycle of wrongdoing. By facilitating the escape of individuals against whom lawful arrest warrants had been issued, they are committing new offenses. This risks drawing more actors into institutional misconduct, expanding the circle of impunity, and deepening reputational harm.

That this situation has arisen not because of a lack of the truth, but because those best placed to reveal it were permitted to abscond, is a profoundly damaging outcome – and one that was entirely avoidable had the institutional inertia against accountability in the security forces not been so strong.

10. The foreign nexus

This chapter examines how external relationships shaped the operation of Bangladesh's system of enforced disappearance. It traces how diplomatic narratives, security cooperation, intelligence exchange, and cross-border practices interacted with the consolidation of authoritarian rule. In particular, it shows how the language of counter-extremism helped normalise practices that gradually became systemic.

During its time in power, the Awami League cultivated a narrative that framed itself as the only viable safeguard against the rise of Islamist extremism in Bangladesh. This framing was deployed consistently across diplomatic platforms, public speeches, and party communications. In 2015, the Prime Minister's Office described Sheikh Hasina as “a staunch crusader against fundamentalism and extremism” during a speech at Columbia University, projecting an image of moral leadership in the professed global war on terror.

International partners echoed this message. Jay Kansara, speaking on behalf of the Hindu American Foundation before the Subcommittee on Asia and the Pacific of the Committee on Foreign Affairs, U.S. House of Representatives, directly linked opposition forces, specifically the BNP and Jamaat-e-Islami, to “a history of collaboration with terrorist elements.” Such statements helped consolidate a consensus in which political competition was viewed as a potential gateway to instability, and authoritarian consolidation as a necessary trade-off.

Domestically, this narrative was reinforced through persistent rhetorical framing by senior government figures. In 2021, Obaidul Quader, General Secretary of the Awami League and Minister of Road Transport and Bridges, declared that “Awami League has always taken a firm stance against militancy and communal forces in Bangladesh.” A year later, he emphasised that the party had “continuously opposed the anti-liberation forces and their efforts to destabilise the country through terrorism.”

State Minister for Foreign Affairs Shahriar Alam likewise stated in 2023 that “যে রাষ্ট্রে একবার জঙ্গিবাদের উত্থান হয়েছে, সেখানে আবারও তা ফিরে আসার আশঙ্কা থেকেই যায়” (“In a state where extremism once appears, the risk of its return always remains”). These pronouncements portrayed national security as inherently bound to the party's continued rule, turning governance into a form of counterterrorism by definition and delegitimising all oppositions as patent or latent threats.

The evidence examined in this chapter demonstrates how the counter-extremism narrative functioned as an enabling condition, insulating domestic practices from scrutiny, narrowing

the space for political dissent, and reinforcing impunity through international tolerance rather than direct command.

10.1 Renditions to India

The Awami League's domestic counter-terror narrative was mirrored in bilateral security cooperation with India. This relationship extended beyond rhetoric and translated into tangible joint operations, cross-border coordination, and illegal renditions. In several testimonies, victims describe being handed over from Indian custody to Bangladeshi intelligence, and vice versa.

Indian involvement in Bangladesh's system of enforced disappearances is a matter of public record. There are two highly publicised cases that provide valuable insights into how such operations were carried out: the case of Shukhranjan Bali, abducted from Bangladesh Supreme Court premises who resurfaced subsequently in an Indian jail, and that of BNP leader Salahuddin Ahmed (discussed in Chapter 13). Besides these incidents, Hummam Quader Chowdhury describes hearing Hindi-speaking people outside his cell inquiring about the condition of his captivity, such as: 'When was he picked up? Has he given any information? What interrogation has been done yet?' etc.

Interviews with soldiers deputed to RAB Intelligence have yielded further information about the practice of captive exchanges between the two countries and the possible subsequent fate of the detainees. One soldier described being present on two occasions circa 2011 when RAB Intelligence received three captives from India via the Tamabil border crossing in the presence of uniformed Indian Border Security Force personnel. On one occasion, one captive was received and handed over alive to another team inside Bangladesh. In return, RAB Intelligence handed over two captives from Bangladesh to India. On another occasion, two captives were received and subsequently killed by the side of the road after the exchange. Whilst the soldier¹²⁷ was unable to furnish us with the names of the captives, this level of official security service coordination underscores the systemic and transnational nature of enforced disappearances:

বর্ডার এলাকায় গিয়েছিলাম। ঐসময় আমাদের সাথে বন্দি অবস্থায় দুইজন বাংলাদেশী নাগরিক ছিল। ঢাকা থেকে পুরো রাস্তা তাদের কালো যমটুপি পড়িয়ে হাত বাধা অবস্থায় নিয়ে যাই। আনুমানিক রাত দুইটা অথবা তিনটার দিকে ভারতীয় সীমান্তে পৌছাই। আমরা বর্ডার এলাকায় গিয়ে ভারতীয়দের সাথে উক্ত দুইজন বন্দিকে বিনিময় করি। ভারতের কাছ থেকে বন্দি অবস্থায় দুইজন লোককে আমরা গ্রহণ করি। ... আমাদের কাছে হস্তান্তর করা আসামীদেরকেও হাত বাঁধা ও যম টুপি পড়া অবস্থায় ছিল। আমরা উক্ত আসামীদেরকে নিয়ে সীমান্ত থেকে ফেরার পথে গাড়ি থামিয়ে প্রথমে একজন আসামীকে নিয়ে নামে এবং আমাকে ও অন্য একজনকে পঞ্চগশ গজ দূরে দাঁড় করায় সিকিউরিটির জন্য। এ সময় আমি একটা গুলির আওয়াজ শুনতে পাই। ... কাছে এসে দেখি আসামীর মৃত দেহ পড়ে আছে। এরপর আমরা গাড়িতে উঠি এবং দশ থেকে পনেরো কিলোমিটার পথ আসার পরে ... অপর আসামী সহ গাড়ি থেকে নামে এবং আগের মতই আমাকে ও অন্য একজনকে গাড়ি থেকে পঞ্চগশ গজ দূরে দাঁড় করায় সিকিউরিটির জন্য। এসময় একটি গুলির আওয়াজ শুনতে পাই। ... গুলি করে মেরে ফেলেছে।^c

¹²⁷ As a witness in an ongoing legal case, the individual's identity has been withheld for safety.

In one instance, the individual was first picked up in India by Indian authorities. DGFI then sent a set of questions to Indian intelligence, who posed them to the captive and relayed the responses back. This sequence of activity has been confirmed to us through sources within DGFI. The man was later returned to Bangladesh and transferred to DGFI custody where he was kept forcibly disappeared for years. Code EAD¹²⁸ recounted to us the occasion of his handover across the border: “রাতের বেলা, রাত দেড়টার দিকে, [ইন্ডিয়ান অফিসাররা] প্রথমে আমার চোখ বাঁধলো। হ্যান্ডকাফ তো আছেই। ওদের অস্ত্রসহ রেডি হলো। ... তারপর গাড়ি থেকে ওই ১০ মিনিট পরে নামালো। নামানোর পরে বুঝলাম যে, আমাকে হস্তান্তর করতেছে আরকি। ... আমাকে বলছে, “তুমি বস, তুই বস।” আমাকে বসিয়ে, নিচ দিয়ে পার করছে।”^{ci}

Another victim (Code BFI¹²⁹), who we have been able to confirm from RAB sources was kept imprisoned in two facilities run by RAB Intelligence, described being transferred from Bangladesh to India where, afterwards, he was interrogated for posting video content on Indian Muslims.

ওরা ওই জায়গায় তিন মাস রাখলো। রাখার পর একদিন ওরা আবার ওদের যে আমাকে প্রথম যে জায়গায় রাখছিল সেই জায়গায় নিয়ে গেল। সেখানে গিয়ে বলল, “বড় বড় অনেক গোয়েন্দা সংস্থা আছে, আমাদের হাত থেকে নিয়ে তোকে মাইরা ফেলবে। আমাদের কাছে এতদিন ছিল, তোর ভালোর জন্য তোকে দেশের বাইরে কিছুদিন রাখতে চাই।” ... পরে তারা বলল, “তোমার আত্মা অনেক কান্নাকাটি করতাকে। এর জন্য অনেক ছড়াছড়ি হয়েছে। তাই তোমাকে দেশে রাখা যাবে না, দেশের বাইরে পাঠাব আমরা।” ... “তোমাকে আমরা ইন্ডিয়া পাঠাব।” তারপরের দিনই আমাকে রেডি করে নিয়ে গেল। ... হাইস গাড়িতে করে নিয়ে গেছিল, চোখ বেঁধে। ... বর্ডারে দুইটা লোক আইছিল, হোন্ডায় করে। বলল, “এরা তোরে পার করে দিবে। তারপরে, তুই ওই জায়গায় কতদিন থাকবি, আবার আমরা তোকে ব্যাক নিয়ে আসবো।” “... যখন আমাকে অন্যজনের কাছে তুলে দিল, তখন আমার চোখ খুলে। তখন যারা আমাকে নিয়ে গেছে, তাদের দেখছি। ... তারপর একটা নদী পার করাইলো। ওই নদী পার করার পর কাটাতারের একটা বেড়া ছিল। ওই বেড়া দিয়ে আমাকে পার করে তারা নিয়ে গেল। ...”

ওরা বইলা দিছিল, “এই বাস যেই জায়গায় থামবে, ওই জায়গায় তুই নেমে পড়বি। ওই জায়গায় লোক আইবো, তারা তোকে নিয়ে যাবে। লোক আইবো, তারা তোকে কাজ কাম দিয়া দিবে। কিছুদিন থাকবি।” পরে আমি নামার পর দেখি, কেউই আসে না। রাত হয়ে যায়। ... [বাংলাদেশে] ওরা টাকা-পয়সা দিছিল - তিন হাজার বাংলাদেশি টাকা দিছিল। ... ইন্ডিয়া আসার পর, ওরা আমার ওই ৩০০০ টাকা নিয়ে যায়। পরে আমাকে ১০০০ টাকা দেয় - ইন্ডিয়ান ১০০০। ... আমি ভাবলাম দেখি, কোনো শোয়ার জায়গা আছে কিনা। পরে হাটতে থাকলাম। রাস্তায় ছিলাম প্রায় চার দিন। ... খাবার-দাবারের কিছু ছিল না। ওই যে টাকা দিছিল, শুধু পানি কিনে খাইতাম। মানে পানি খেয়ে বাঁচতাম; খাবার কিনতাম না। কিনলেই তো টাকা ফুরায় যায়। তাই না? ... চার দিন আমি বাসস্ট্যান্ডে শুয়ে আছিলাম। পরে এলাকার লোকজন আমাকে পুলিশের হাতে দিয়ে দেয়। ...

থানায় নিয়ে আমাকে জিজ্ঞাসাবাদ করলো। আমি কিসের জন্য আইছি? পরে আমি সব কিছু খুলে বললাম, “আমাকে এরকম র্যাব ধরছে। তারা আমাকে এই জায়গায় পাঠাইছে। আর আমাকে জঙ্গি বলে ধরছিল।” তারা এগুলো বিশ্বাস করে না। তারা আমাকে “আনপাসপোর্ট কেস” দেয়। আনপাসপোর্ট কেস দিয়ে আমাকে জেলে দেয়। ... দুইটা টয়লেটের মাঝখানে—মানে টয়লেটের যেটা নোংরা, ওইগুলোর মাঝখানে আমাকে শোয়াইতো। ... আবার দোতালার পাইপের উপর, ভান্সা টয়লেটে, ওই জায়গা থেকে ছিটা ছিটা আইতো শরীরের উপর। ওই

¹²⁸ 21 year old male; abducted by DGFI, RAB Intelligence and RAB 1 in 2016; disappeared for 2 year 8 months 7 days

¹²⁹ 21 year old male; abducted by RAB 4 and RAB Intelligence in 2023; disappeared for 1 year 3 months 24 days

জায়গায় শোয়াইতো। আবার খাবার—কখনো দিত, কখনো দিত না। কাজ করাইতো, কাজ কইরা দেখতাম খাবার নাই। ...

হ্যাঁ, দিল্লি থেকে জিজ্ঞাসাবাদের জন্য লোক আইছে। তারা বলল, “আমরা দিল্লি হেডকোয়ার্টার থেকে আইছি।” ... তারা আইসা জিজ্ঞাসাবাদ করছে, “তুই কিসের জন্য ইন্ডিয়া বিরোধী ভিডিও ছাড়ছিস?” আমি বললাম, “আমি জানি না, আর আমি কিছু ছাড়ি নাই।” ... তারা বাংলা বলছে। ... ভারত বিরোধী ভিডিও কিসের জন্য পোস্ট করতছি, বিশেষ করে কাশ্মীরি বিরোধী ভিডিও। মানে মুসলমানদের একটু জুলুম হইতেছে না, ওইটার পক্ষে কিছু বলা হইছে। ... তারা জিজ্ঞাসা করছে ইন্ডিয়ার প্রসঙ্গে। তারা বলল, “এই ভুল জানি আর জীবনে করবা না। এইবারের মত ছেড়ে দিলাম।” এরকম। ... না, এমনে টর্চার করে নাই। কিন্তু ওই যে খাবারে সমস্যা করছিল—খাইবার দেয় নাই। কাজ করাইছে, কিন্তু খাইবার দেয় নাই।^{cii}

We have documented Code BDIJ¹³⁰, also kept imprisoned by RAB Intelligence, who was handed over to India. There is eyewitness corroboration of his presence inside the TFI centre and we have reviewed the Indian case documents that support his claim. He reports that:

প্রচণ্ড মাথায় যন্ত্রণা হইতো। শরীর প্রচুর দুর্বল হয়ে গেছে। ... তখন আমি মানে হাস্কার স্ট্রাইক করি। ওইখানেই ২৪ ঘন্টা হাস্কার স্ট্রাইক দিই। তখন গুমখানায় ডিউটি করা একটু অফিসার পর্যায়ের একজন কয়, “তুমি নিজেকে নিজে মাইরা ফেলাইতোছো কেন? তুমি জানো নেলসন ম্যান্ডেলা কত বছর জেল খাটছে?” তারাই আবার আমারে বুঝাইতো, “ইউসুফ নবী অনেক জেল খাটছে, ইয়া খাটছে”, এগুলো তারাই বুঝাইতো। তো বলে, “তুমি এখান থেকে বের হইয়া অনেক দিন বাইচা থাকবা। তুমি শুধু নিজেরে নিজে কষ্ট দিতাছো মিঞা।” আমি যেন খাওয়া-দাওয়া করি, এই জন্য কনভিন্স করতো। মানে একটা বিষয় কি জানেন—যেটা মানে পজিটিভ-নেগেটিভ সবই তো বলতে হইবো—তারা এইটুকুই চাইতো যে দমটা যেন থাকে, মারাটা যেন না যায়...

পরে, যখন আমি হাস্কার স্ট্রাইক দিলাম, আমি বড় স্যারদের সাথে কথা বলতে চাই। পরে একজন বড় স্যার—উনি আমাকে সর্বপ্রথম জিজ্ঞাসাবাদ করছিলেন এবং সর্বশেষও উনি জিজ্ঞাসাবাদ করছিলেন—তার মনে একটু কিঞ্চিৎ ১% হয়তো মানুষের ছোঁয়া আছে। প্রচণ্ড খারাপ লোক সবাই, কোন সন্দেহ নাই। তো আমি বলতেছি, “স্যার, আমারে আর কষ্ট দিয়েন না। আমারে স্যার ক্রসফায়ার দেন। আমারে শুধু শুধুই রাখছেন।” তো পরে বলে, “না, বাইচা থাকতে হবে।” তারা সবচেয়ে বেশি ফোকাস করতছিল, “তুমি কয়টা নাম বলে চলে যাও। নাম বলো।” আমি বলছিলাম, “নাম জানি না... জঙ্গি সংশ্লিষ্ট... আমি নাম জানবো কেমনে?” ... বড় স্যারে আমারে বললেন, “ঠিক আছে, যাও, এক সপ্তাহের মধ্যে একটা ব্যবস্থা হবে।” এই ব্যবস্থা করছিল ঠিকই, কিন্তু মাগার আমারে ইন্ডিয়া চালান করে দিলো। সবচেয়ে বেশি আমার কষ্ট হইছে এইটা যে আমারে ইন্ডিয়া চালান করলো...

গাড়িতে উঠাইয়া আমাকে জম টুপি পরিয়ে ফেলে, যেটাতে আপনি স্বাভাবিকভাবে বাতাস নিতে পারবেন না... গাড়ি থেকে নামাইল... রাত দুইটার মতো বাজে আনুমানিক। তো এখান থেকে নামাইয়া অনেক দূর রাস্তা হাঁটায়। দুজন লোকের উপর আমি ভর দেই... পরে দুজন লোকের কাছে হস্তান্তর করলো। তারা একটু সামান্য হাঁটায় অন্য একটা গাড়িতে তোলে... পরে আমাকে থানাতে দিল... বিভিন্ন মাধ্যমে আমি জানার চেষ্টা করলাম, কারা আমাকে দিয়া গেছে এখানে। বলতেছে, “তোরে দিয়া গেছে এসটিএফ-এর লোকেরা।” স্পেশাল টাস্ক ফোর্স, পশ্চিমবঙ্গের গোয়েন্দা সংস্থা। এসটিএফ কী, এটা আমি আগে জানতাম না। ...

¹³⁰ 30 year old male; abducted by RAB Intelligence in 2021; disappeared for 10 months

আনপাসপোর্ট মামলা দিছিলো... জেল খাটা হলে গাড়ির সিরিয়াল পাওয়ার জন্য অপেক্ষা করতে হইলো জেলখানাতে... এটা আরপি সিরিয়াল বলে। আরপি মিনস হচ্ছে ‘রিলিজড প্রিজনার’—মানে যেসব প্রিজনারদের সাজা খাটা শেষ... অনেক লোক আছে যাদের গাড়ি সিরিয়াল পেতে তিন মাস পর্যন্ত সময় লেগেছে... তখনকার জেল সুপারটা ভালো ছিল বিধায় আমারটা ২৯ দিনে পাওয়া যায়... আমি মনে করি যে, কোনো সময় যদি কেউ ক্রেইম করে যে, তারা কোনো প্রমাণ পায় নাই যে আমি জঙ্গি সংশ্লিষ্ট আছি, অমুক-তমুক আছি, কোনো প্রমাণ পায় নাই—এখনও যদি কেউ কোনো সময় ক্রেইম করে যে, “এই লোকটারে কেন বিনা দোষে শাস্তি দিছেন?” তখন তারা বলতে পারে, “আমরা তো তাদেরকে শাস্তি দেই নাই। সে তো আসছে ইন্ডিয়া থেকে।”^{ciii}

Individuals speaking foreign languages, including Hindi, also visited prisoners at secret detention sites. We have heard this from several prisoners, including a long-term prisoner at the TFI centre who remembers (Code BDAG¹³¹):

আমি হিন্দি ভাষা বলতে শুনছি। ... যখন পরিদর্শনে আসতো, তখন আমাদেরকে দেয়ালের দিকে মুখ করে হ্যান্ডকাফ পরিয়ে বসিয়ে রাখতো, সারাদিন নড়াচড়া করতে দিত না। তারপর আমি বুঝতে পারতাম যে, অনেকজন লোক আসছে – পায়ের আওয়াজ শুনতাম। দুর্গন্ধের জায়গা – পেশাব, পায়খানার গন্ধ থাকতো সব জায়গায়। হঠাৎ করে পারফিউমের ঘ্রাণ পেতাম; অনেকজন আসছে। তারপর মোবাইলের রিংটোন, মোবাইল বাজতেছে, নোটিফিকেশন আসতেছে – এগুলো আওয়াজ শুনতে পারতাম। অনেকজনের পায়ের আওয়াজ শুনতে পারতাম। আর আমাকে ওয়াল ফেসিং দিয়ে রাখত, আমি পেছনে বুঝতে পারতাম অনেকজন আমাকে দেখছেন। তো আমি ভিজিট টাইমে হিন্দি ভাষা শুনছি। ... যে তারা একজন আরেকজনের সাথে হিন্দি ভাষায় কথা বলতেছে। ... A crowd watching over me. Some of them speaking in English. In Hindi. এটা clearly আমি শুনছি। More than once.^{civ}

10.2 Captive exchange with India

These accounts point to a pattern of informal, opaque, and bilateral intelligence cooperation between Bangladesh and India, involving cross-border transfers and joint interrogations of captives. The details above suggest that such cooperation was not always driven by exceptional security concerns; at times, it appears to have been triggered by surprisingly trivial reasons. The discussion below about the prisoner exchange involving Subrata Bain further illustrates the troubling frequency and normalisation of such practices.

A top criminal on Interpol’s “Most Wanted List”, Subrata Bain was released from RAB’s TFI centre between 6-7 August 2024. Bain is a notorious Bangladeshi criminal implicated in numerous serious offenses including murder, extortion, and abduction. He was listed among the 23 most wanted criminals by the Bangladesh Government in 2001 and has long been the subject of an Interpol red notice. He has a history of evading law enforcement, having escaped from a Nepalese jail in 2012 by digging a tunnel. He was arrested multiple times in India, including in Kolkata, but managed to secure bail and continue his activities.

At the end of April 2022, Bain was handed over to RAB Intelligence Wing as part of a secret, illegal prisoner exchange program operated between Indian and Bangladeshi intelligence agencies. In return for receiving Bain, Bangladesh, via RAB Intelligence Wing, handed over

¹³¹ 32 year old male; abducted by DB and RAB Intelligence in 2016; disappeared for 8 years

to its Indian counterpart a Bangladeshi man who had been imprisoned at the TFI centre, along with another detainee, who was likely an Indian man, as reported by fellow TFI survivors.

The Commission was able to locate the Bangladeshi man (Code BDIJ¹³²). We discovered that after arriving in India, a case was filed against him and he served jail term there before returning to Bangladesh. His presence in India was confirmed through Indian case documents he supplied to us. His captivity inside the TFI cell was corroborated by a fellow detainee (Code EEH¹³³) who had seen him there and learnt his name. It was only after tracing this arc that we discovered that he was the person who had been exchanged for Bain.

Bain complained of being brought to Bangladesh on 27 Ramadan 2022. This date matched the Indian case documents we saw, which confirmed the timeline of events. While held at the TFI cell, Bain developed a range of illnesses, including piles, but appeared resigned to not retaining any contact with the outside world. Even officers who served at TFI used to avoid meeting him. Contrary to rumours that circulated online, we have found no indication at all that he was receiving any form of training during his stay at TFI. Instead he appears to have led a secluded life of captivity.

Since his release, however, he reportedly re-established his criminal empire, secured a wealthy patron with strong political connections, and, to the best of our knowledge, he resumed ordering killings. Prior to his arrest at the end of May 2025, law enforcement agencies were struggling to apprehend him. This case raises significant concerns and illustrates the systemic consequences of enforced disappearance as a practice.

Orders to detain someone of such high international notoriety could not have originated from within RAB alone. As far as we understand RAB's organisational culture, such a decision must have come from the very top of the civil administration, at least from the level of the Home Minister, likely even higher. Still, it is unclear why RAB Intelligence kept Bain secretly imprisoned with no contact with the outside world at all for so long, particularly when they eliminated captives for far lesser offences. We understand that there were specific plans to eliminate him but these did not come to fruition; it is our assessment that he simply stopped being a priority captive once he was securely locked away inside a TFI cell.

Nevertheless, had Bain been produced in Court, the criminal justice system might have been able to keep him in prison from the beginning. Since he was kept outside the legal system, his release could not be lawfully regulated or challenged. This failure allowed him to re-establish his network. While there are many failings of the criminal justice system, including its tendency to imprison the innocent while failing to confront powerful offenders, as we argue elsewhere in this report, this case demonstrates that extra-legal detention also harms public safety and institutional legitimacy.

The Bain incident is revealing for several reasons. It shows that covert, illegal exchanges between security agencies across borders do not necessarily yield gains meaningful enough to offset their costs. On the Indian side, the Bangladeshi man transferred by RAB Intelligence at end April 2022 was quickly released from the custody of a West Bengal security agency, possibly in as little as 48 hours, perhaps even less. If he had truly been a high-value target, that is unlikely to have occurred. On the Bangladeshi side, while Bain was certainly a significant

¹³² 30 year old male; abducted by RAB Intelligence in 2021; disappeared for 10 months

¹³³ 33 year old male; abducted by RAB Intelligence and RAB 13 in 2022; disappeared for 40 days

target, the manner in which he was received and detained—through unlawful and unofficial means—ultimately prevented the state from keeping him in custody. Valuable energy and resources had to be expended to return him to custody, by which time he had resumed operating a criminal empire under political protection.

Beyond ascertaining that he was kept in near isolation during the entire period at RAB's TFI centre, we cannot definitively speculate on why Bain was never formally charged. One possible reason is that his illegal transfer complicated his legal status and made formal prosecution politically or diplomatically difficult. Another is that Indian agencies, with whom RAB Intelligence Wing retained close ties until the very end, might have influenced the decision for their own gains.

What is clear, however, is that this level of secrecy, illegality, and informal manoeuvring has not strengthened Bangladesh's domestic security system. In fact, it has likely weakened it. That is the lasting lesson of this case. Enforced disappearance is so often defended in the name of national security, when, in reality, it frequently undermines that very goal.

More detailed analysis will be required to determine the full extent of Indian involvement and its implications for both countries. There remains a persistent suggestion within Bangladeshi law-enforcement circles that some Bangladeshi nationals subjected to rendition may still be in Indian prisons. Through the Ministry of Foreign Affairs, the Commission formally requested a list of such detainees from the Indian authorities. A response was received containing several thousand names; however, this list was incomplete because it did not cover the full period between 2009 to 2024. Additionally, the list lacked essential identifying details, including parents' names, addresses, and timelines, making it impossible to reliably match those names with our records. In the absence of verifiable identifiers, the Commission could not meaningfully proceed with this line of inquiry.

Accordingly, this aspect of the inquiry remains incomplete. The Commission recommends that the Ministries of Foreign Affairs and Home Affairs continue their efforts, through appropriate diplomatic channels, to identify any Bangladeshi citizens who may still be incarcerated in India. Pursuing this matter beyond Bangladesh's borders lies outside the Commission's jurisdiction, but it is essential that the trail not be abandoned.

10.3 Security cooperation with Western actors

Parallel to the India nexus, the Awami League also benefited from sustained Western cooperation under the banner of counterterrorism. Senior officers confirmed to us that this partnership, particularly with the United States, enabled capacity building within Bangladesh's security sector even as abuses mounted. In one testimony, a victim recalled being interrogated by two Americans while in DB custody where there was dispute about, what we suspect was, an informed consent document (Code BEID¹³⁴):

হয় মাস পর তারা আমাদের আবার ডিবিতে নিয়ে এল। এইবার আমেরিকা থেকে দু'জন লোক এসেছিল... তারা শুধু আমাকে জিজ্ঞাসাবাদ করার জন্য আসেনি, তারা আরও অনেক লোককে এনেছিল... তারা আমাকে ঐ দু'জন আমেরিকান লোকের সামনে বসালো, আর তারা আমাকে একটা ফর্ম দিল এবং বলল, “আমরা চাই

¹³⁴ 30 year old male; abducted by CTTC in 2015; disappeared for 4 days

আপনি এটাতে সই করুন।” আমি বললাম, “আমি কি আগে এটা পড়তে পারি?” তারা বলল, “আপনার কি দোভাষীর দরকার?” আমি বললাম, “আমি সরাসরি আপনার সাথে কথা বলতে পারি।” ...

তারা আমাকে এই ফর্মটা দিল, আর তাতে আমার নাম এবং অন্যান্য ডিটেইলস ছিল... লেখা ছিল আমার আইনজীবীর সাহায্য পাওয়ার অধিকার আছে এবং সে জিজ্ঞাসাবাদের সময় উপস্থিত থাকতে পারবে... আমি বললাম, “আমার বোন একজন আইনজীবী... আমি চাই আপনারা কিছু জিজ্ঞেস করার আগে সে এখানে থাকুক।” তারা বলল, “আমাদের তো বাংলাদেশে কোনো এখতিয়ার নেই, তাই এটা শুধু একটা কাগজ যার কোনো ব্যবহার নেই।” ...

আমি বললাম, “দেখুন, আপনারা হয় এটা বলুন যে এটা একটা অর্থহীন কাগজ, অথবা আমার বোনকে এখানে আনুন, না হলে আমি এটাতে সই করব না।” তারা বলল, “ঠিক আছে, এই কাগজটা দেখুন... এটা শুধু একটা ফর্মালিটি... আপনি সই করে দিন।” আমি বললাম, “আপনারা স্বীকার করছেন এটা এক প্রকার অর্থহীন, তাই না?” তারা বলল, “হ্যাঁ, আমরা স্বীকার করছি।” ... তারা আমাকে জিজ্ঞেস করল, “আপনি কী করেন?”... “আপনার ইংরেজি এত ভালো কিভাবে?... আপনি কী পড়েছেন?” আমি বললাম, “আমি আন্তর্জাতিক স্কুলে পড়েছি।” ...সব শেষে তারা আমাকে ছেড়ে দিল... আর তারপর তারা আর কিছু জিজ্ঞেস করেনি।^{cv}

Another captive, whose detention in DGFI custody we have independently confirmed, recalled being interrogated by a foreigner. He suspects the interrogator was an English-speaker, based on cues he picked up during the questioning (Code EAD¹³⁵):

[এর অনেক দিন পর] ডিজিএফআই-এর অফিসারটা জাস্ট বললো যে, ফরেন গেস্ট আছে, ইংলিশে কথা বলো। তখন আমার ধারণা হলো ইন্ডিয়া থেকে আসছে। তো আমি পরীক্ষা করার জন্য হিন্দিতে বলি। এটা আমি পরীক্ষা করার জন্য বলছি আরকি। তো বলছে, “না, ইংলিশেই বলতে হবে।” ... অনেকক্ষণ, দুই-তিন ঘণ্টা, ঘুরে পিছে একই কথাবার্তা। ... তারপরে আমাক বেশ ভয় লাগায় দিচ্ছে। মানে সেদিন আমাক সর্বশেষ বলতেছে, “তুমি যা দিলা এটা তো হবে না।” তা আমি বললাম যে, আমি তো জানি না। তখন বলতেছে, “তুমি যদি না-ই কিছু বলতে পারো, তাহলে তো তোমাকে বাঁচিয়ে রাইখা লাভ নাই আমাদের। মানে ইউ হ্যাভ টু লে গোল্ডেন এগ।” একদম এই কথাই বলছে। ... পরের দিন আমি কি সোনার ডিম দিব, এটা শোনার জন্য পরের দিন আবার নিবে। পরের দিন আমি শুধু একটা কথাই লিখছি যে: “আই এম এক্সট্রিমলি সরি নট টু বি এবল টু গিভ গোল্ডেন এগ।” এই একটা লাইনই শুধু লিখছি। মানে মেজাজও খারাপ হয়ে গেছে যে মানে কি করতেছে এসব অযথা। তো যাই হোক, পরের দিন আর জিজ্ঞাসাবাদ করে নাই। নিয়ে গেছিল জাস্ট, নিয়ে আসছে, আর জিজ্ঞাসাবাদ করে নাই।^{cv}

While as far as we know these foreign individuals did not engage in direct abuse, their presence gave legitimacy to a broader system of enforced detention. Their role appeared more symbolic—reinforcing state narratives and extracting appearances of procedural consent—than protective.

As early as 2011, Human Rights Watch reported that “foreign governments, in particular the UK and the US, regard RAB as Bangladesh’s most effective anti-terrorism force and have expressed strong interest in increasing cooperation with RAB.” This endorsement, echoed in diplomatic and security circles, lent significant political and material support to RAB over the following years—despite mounting evidence of extrajudicial killings, secret detentions, and enforced disappearances. The Awami League government, by framing itself as an

¹³⁵ 21 year old male; abducted by DGFI, RAB Intelligence and RAB 1 in 2016; disappeared for 1023 days

indispensable bulwark against Islamist extremism, entered into what effectively became an authoritarian bargain: in exchange for visible alignment with global counterterrorism priorities, it received tacit tolerance or even active backing from international partners.

Although some sanctions were eventually imposed in response to systemic abuses, these came only after years of complicity. Throughout much of the preceding decade, the global counterterrorism agenda provided both cover and resources to a force widely accused of grave human rights violations. Intelligence-sharing agreements, training programs, and surveillance cooperation continued largely uninterrupted, even as domestic repression intensified. The portrayal of the Awami League as a counter-extremist anchor helped normalise this support, reinforcing the idea that repression at home was the necessary cost of stability in the region.

Now that the regime is no longer in power, these arrangements and the broader security frameworks they underwrote must be openly reassessed. A serious reckoning with how the rhetoric of extremism enabled sustained foreign complicity is crucial to understanding the institutional landscape that allowed such widespread violations to occur, and to remain unchallenged for so long.

11. Consequences for the victims, the families, and the institutions

Enforced disappearances leave a devastating legacy that extends far beyond the immediate victims. They fracture families, instil lasting fear, and erode institutional integrity. This chapter examines the wide-ranging impacts of enforced disappearances, including the profound trauma borne by victims and their families, the distinct and often overlooked harms suffered by women, and the corrosive effect of impunity within the security forces. It shows how these violations produce continuing psychological, social, and legal consequences, and why accountability, reform, and healing are essential. The aim is to highlight the necessity of redress, rehabilitation, and truth for national recovery. It also considers the institutional damage produced by participation in these crimes, including compromised chains of command, exposure to blackmail, reputational decline, and the long-term weakening of legitimate security capacity.



62 Fig: Victims have been left with enduring trauma from the torture (illustration based on witness and survivor accounts)

11.1 Impact on victims

For those who returned alive from enforced disappearance, the ordeal continued unabated. Victims often endured ongoing threats, silencing them from sharing their experiences or seeking accountability. Their fear was intensified by the absence of due process, the lack of judicial safeguards, and the systemic impunity granted to the perpetrators. Survivors faced the stigma of criminal charges, whether real or fabricated, and were frequently labelled as criminals. These accusations not only tarnished their reputations but also hindered their ability to rebuild their lives.

Code BFBG¹³⁶: র্যাবের ওখানে আবার ভিতরে নিয়ে, আবার মাটিতে বসায় রেখে, একই নাটক আবার করল। সে পিস্তলের মনে হচ্ছে লোড করছে, টিগ্রার টানছে, এরকম করছে, আর ওই কথাগুলো আবার শোনাইলো। কিছু বলা যাবে না, কে ধরছিল সেটা বলা যাবে না, তারপরে সংগঠন করা যাবে না, করলে অযোযিতভাবে তুমি মারা যাব।^{cvi}

Code GBE:¹³⁷ র্যাব সদস্যরা বলেন: আমরা থানায় প্রেরণ করতেনি। আগামীকালকে তোমাকে দেখার জন্য অনেক সাংবাদিক, অনেক লোকজন আসবে। তাদের সামনে এই কথা বলবে। যদি এই কথা না বলো তাহলে এই যে জেলখানার মধ্যে থাকবে এখান থেকে আবার আমি বের করে নিয়ে যেয়ে ডাইরেক্ট পিস্তলটা মাথায় ধরে, ডাইরেক্ট এখানে শট করবো।^{cvi}

The social and economic repercussions of their enforced disappearances were devastating for the victims. Many lost their livelihoods due to the stigma attached to enforced disappearances and the challenges of reintegration into the society after captivity. Their interactions with the legal system often depleted their resources, leaving them financially incapacitated. The cumulative psychological, social, and financial toll on the victims highlights the urgent need for restorative justice, systemic reforms, and comprehensive support to them.

Code IBB:¹³⁸ ওড়না ব্যবসা করতাম তখন। গুম অবস্থায় আমার ব্যবসা শেষ হয়ে গেছে। তার পরবর্তীতে প্রায় ১০ লক্ষ টাকার উপর আমার খরচ এই মামলার পিছনে, মানে দৌড়াদৌড়ি করে। আমি নিখোঁজ সে সময় আকবা যে জায়গায় পাইছে, ওই জায়গায় টাকা পয়সা খরচ করছে।^{cix}

Code BFA:¹³⁹ আমি মরে গেছি মনে করে আমার বিবিকে পরিবার বিয়ে দিতে চেয়েছে। একদিন স্বপ্ন দেখছি যে আমার বিবির বিবাহ হয়ে যাইতেছে। আমি একটা ঘোড়াতে করে চড়ে দৌড়ায় আসছি। তখন বিবি ওখান থেকে উঠে চলে আসছে যে, আমার স্বামী চলে আসছে। আমার ফ্যামিলির জীবন... অনেক কষ্ট পেয়েছি। আমার কিন্তু এই মেরুদণ্ডের হাড় ভেঙ্গে গেছে টর্চারে।^{cx}

¹³⁶ 29 year old male; abducted by RAB 5; disappeared for 46 days

¹³⁷ 35 year old male; abducted by RAB in 2015; disappeared for 185 days

¹³⁸ 25 year old male; abducted by CTTC in 2021; disappeared for 61 days

¹³⁹ 36 year old male; abducted by RAB Intelligence and RAB 7 in 2010; disappeared for 62 days

The most prominent effect of the system of enforced disappearances has been the widespread spread of a culture of fear and silence that had severe dampening effect on civic and political life. This culture penetrated deeply into personal lives, even creating fear within families operating in the safety of their own homes, as demonstrated by the following example (Code DFE¹⁴⁰):

পরিস্থিতিটা এমন ছিল যে আমি জেল থেকে যখন বাড়িতে গেছি, আমারে জোরে কথা বলতে দিত না। আমাদের মেইন রোডের পাশেই বাড়ি। অনেক সময় কথা বললে একটু বাড়ির বাইরে আওয়াজ চলে যায়। তাই জোরে কথা বলতে দিত না। কেন? আন্নার ভয় হলো যে, যদি আমার কোন কথার আওয়াজ বাইরে যায়! ... আন্না কইতো যে, “একটা থেকে বাইচে আসছোস, এ পর্যন্তই থাক।” আমি বলতাম যে, “আন্না, আমারে কেউ মারবে, আমি কি একটু কানতেও পারমু না?” কয় যে, “না, কাঁদার বহু সময় আছে, আল্লাহ কাঁদার সময় দিব। এখন তুই কানতেও পারবি না। তুই কান্দা ছাড়াই থাক।”

আন্নার দেখাদেখি আমার ওয়াইফও আমার সাথে প্রায় সময়ই কঠোর আচরণ করতো। কোন একটা বিষয় আসলে যদি আমি বলতে চাইতাম যে: “ওরা আমাদের জমিগুলো অন্যায়ভাবে দখল করে রাখবে, আপনারা কোন কথা বলবেন না, এটা হইলো? আমার অধিকার কি আমি নিতে পারমু না? মাইরা ফেলবে এই জন্য? গুম-খুন করে ফেলবে? তো ওরা তো ওই চেষ্টা করছেই। এই জন্য কি আমি জমির পাশে যাইয়া দাঁড়াইতে পারমু না?” তো আমার ওয়াইফ আমার ভাইয়েরে ফোন দিত যে, “আপনি ভাইরে বুঝান, উনি যাতে এগুলোর কথা না বলে। জমি যা হয় হবে। জমি তকদীরে থাকলে আসবে।”

... [৫ আগস্টের পর] সরকার কি হইছে না হইছে, ওইটা আমার খুব বেশি মাথা ব্যথার বিষয় না। তকদীরে যেটা আছে, এটাই হবে। বাকি আমি ব্যক্তিগতভাবে এটা উপলব্ধি করি যে, এখন আমার ওয়াইফ আমারে কথা বলার জন্য আর ধমক দেয় না।^{cxi}

Dr Anis Ahmed, Consultant Forensic Psychiatrist in the UK and Chair of the Volunteering and International Psychiatry Special Interest Group at the Royal College of Psychiatrists, recently supported survivors of enforced disappearances and their families in Dhaka. Based on global clinical insight, he underscored the complex and often misunderstood mental health impact on both returned victims and the families of those still missing.

He explained that returned victims frequently suffer not only from Post-Traumatic Stress Disorder (PTSD) but also from major depressive disorder, generalised anxiety disorder, complex trauma, and in some cases adjustment disorders and dissociative symptoms. Common presentations include chronic insomnia, emotional numbness, anhedonia, irritability, violent outbursts, and hypervigilance—a heightened state of alertness linked to perceived or real threats. Many also describe a deep fear of public attention, fearing surveillance, social judgment, or renewed targeting. “We often see flattened affect, detachment, and vague speech not because survivors are evasive, but because trauma has interrupted the brain’s ability to form coherent narratives,” Dr Ahmed notes.

The situation is further worsened when survivors are publicly discredited or when their experiences are denied by state or political actors. “To disbelieve someone who has survived state violence is to retraumatise them,” says Dr Ahmed. He advocates for legal redress as a psychological necessity, not merely a judicial process. Survivors must be offered structured trauma-informed judicial mechanisms, including testimonial fitness assessments, supportive

¹⁴⁰ 31 year old male; abducted by DGFI and RAB 4 in 2017; disappeared for 164 days

interviews, and protection from re-exposure to harm. He warned that cognitive impairments, emotional dysregulation, and memory fragmentation—all well-documented outcomes of chronic trauma—can compromise the clarity of survivor testimonies in court. Without clinical interpretation, such inconsistencies may be wrongly perceived as dishonesty

Crucially, Dr Ahmed urged that these psychological responses must not be pathologised as signs of weakness. “What these individuals are experiencing is not mental fragility,” he clarified, “but a normal response to inhuman conditions.” To illustrate this, he offered an analogy: “If someone is thrown from a tall building, we expect broken bones, and we treat those with graded physical rehabilitation. But when someone is thrown into trauma, we cannot see the injury, so we often ignore or misjudge it.” Invisibility, he notes, is the defining cruelty of mental trauma.

11.2 Women and child victims

We have identified significantly more male victims than female ones. This is mostly due to the higher number of men being forcibly disappeared. Additionally, many female victims are hesitant to come forward, largely due to fears of social stigma. Nevertheless, several brave female victims have shared their experiences with us. Their accounts of abduction, torture during detention, and eventual release into the legal system are, in many respects, similar to those of male victims. In numerous instances, women were targeted because of their associations with male relatives who were suspected of being involved in criminal activities, particularly terrorism, regardless of whether such suspicions were based on credible evidence or fabricated claims.

The most shocking aspect of enforced disappearance involving women has been the discovery of multiple verified cases where women were disappeared along with their children. This practice of forcibly disappearing children alongside their mothers has been longstanding and widespread, with reports spanning from 2015 to as recently as 2023, involving Metropolitan police in Chittagong to CTTC officers in Dhaka. The situation is further complicated by the difficult choice facing mothers between keeping their children with them in custody during the period of enforced disappearance or allowing them to be placed in state care. Given the widespread reputation of state care for neglect and abuse, mothers almost always choose to keep their children with them, although their preferred option is usually to place the children in the care of family members.

One female victim we interviewed was detained for a month whilst pregnant, with her three-year-old and 18-month-old children incarcerated alongside her. She reported being beaten by a male officer despite being pregnant. This is not an isolated case. A young child we interviewed recalled being held in CTTC along with her mother when the child had been only six years old. (EDI¹⁴¹)

In another instance, a mother and her young daughter were picked up and detained overnight at the then RAB 2 Battalion Headquarters. The next day, the daughter was thrown out of a vehicle on to the streets. According to the family, an imam found the child and returned her to them. We took this girl, now a grown-up woman, to suspected RAB facilities, where she was

¹⁴¹ 30 year old female victim; abducted by CTTC in 2023; disappeared for 67 days

able to definitively identify one of the rooms where she had been held that night. Her mother never returned.(JB¹⁴²)

Enforced disappearance operates on the premise that families must not be informed that their loved ones are in custody, and this rule produced consequences that were at times extraordinarily cruel. In one case, the father, mother, and their youngest son were detained by CTTC, while their two older children remained at a boarding madrasa.(BGIA¹⁴³) The parents repeatedly begged officers to allow someone to be notified, explaining that the boys' holidays were approaching and they would have nowhere to go. These pleas were ignored for months.

When the parents were eventually released, they discovered that the two children, both under thirteen, had left the madrasa on their own and travelled across cities until they somehow reached a relative's home safely. The youngest son, who had himself been detained for nearly ten months, later broke down while describing his experience to the Commission: hospitalised once whilst in captivity, he was taken there by the police alone while his mother was refused permission to accompany him. The case illustrates how the denial of information inherent in enforced disappearance does not merely conceal detention, but actively places families, including children, at risk and deepens the harm that requires accountability and justice.

11.3 Impact on the victim families

The effects on the victims' families have been multifaceted, ranging from severe psychological trauma to legal and financial challenges. Family members often endure surveillance, intimidation, harassment, and threats at the hands of law enforcement and intelligence agencies. Despite their persistent efforts to cooperate and provide all necessary information to the authorities in the hope of locating their loved ones, these families frequently faced relentless pressure and fear. Nevertheless, even in the face of a repressive state machinery that silenced most of the people at the time, many families have demonstrated immense bravery by advocating for the rights of the disappeared and demanding their return.

Their psychological trauma extends across generations. Families develop a pervasive culture of fear, with the victims' children inheriting this emotional burden. These families rarely, if ever, receive any psychosocial counselling and treatment, despite the urgent need for it. For example, in one case, a victim's daughter, now a teenager, came to the Commission's office in her school uniform. Her father had been forcibly disappeared nearly a decade ago when she was just six years old. She has no memory of him, yet the unresolved nature of his disappearance continues to perpetuate her trauma. Her mother continues to iron and preserve his clothes, awaiting his return. She cried expressing her fear that her family might not be safe even after August 5 changeover.(BAH¹⁴⁴)

Since a large number of the hitherto missing victims of enforced disappearances were primary breadwinners for their families, these families have been living in dire conditions due to economic crises. The economic hardship has had a detrimental impact on the mental, social, and physical well-being of the families of the disappeared, as well as their ability to search for

¹⁴² 35 year old female; abducted by RAB 2 in 2015; victim still missing

¹⁴³ 43 year old female; abducted by CTTC in 2022; disappeared for 252 days

¹⁴⁴ 42 years old male; abducted by RAB Intelligence in 2010; victim is still missing

their loved ones. It has also hindered the fulfilment of other basic human rights, such as the rights to education, health, and shelter.

The legal challenges related to inheritance add another layer of complexity. A disappeared person cannot be declared dead without a court order, which typically takes at least seven years. During this time, the deceased's wealth and property are inaccessible to the family. Even after obtaining a court order, families often struggle with the emotional burden of declaring a loved one dead without conclusive evidence. Many wives, for instance, are unwilling to go to court and make such declarations while clinging to the hope that their husbands might still be alive. The rare instances where victims have returned alive after years of disappearance only fuel this hope, making closure even more elusive.

Family members of disappeared victims are frequently stigmatised. Their children face difficulties gaining admission to educational institutions, while others struggle to find housing, as landlords are often reluctant to get involved in potentially criminal cases. The Awami League has also engaged in various smear campaigns against the families of enforced disappearance victims, including character assassination in cyberspace, which has had a material impact on their lives. One victim's mother tearfully described how, after her son was forcibly disappeared and labelled a terrorist, her neighbours stopped making eye contact with her.^(FCE¹⁴⁵) When he was finally shown arrested in a criminal case and sent to jail, she recounted her sufferings: she would avoid drinking water on the days she visited him in prison, knowing that she wouldn't have access to a bathroom until she returned home.

We recommend the Government urgently address the damage inflicted on these families. The psychological and financial toll, even for those whose loved ones have returned, is incalculable and demands immediate attention. In particular, we have given detailed feedback in our previous report on how the problems related to inheritance can be resolved; we are pleased to report the new ordinance related to enforced disappearance addresses some of these issues.

11.4 Impact on the criminal justice system

The widespread use of scripted and coercively extracted confessions has deeply distorted the functioning of the criminal justice system. In many cases, confessions operate less as instruments of truth-finding and more as bureaucratic shortcuts to conviction. Where investigative capacity is weak and institutional independence compromised, they offer an easy resolution that sidesteps the need for evidence collection, witness examination, or accountability for misconduct. The result is structural imbalance: confessions become decisive even when all surrounding circumstances—illegal detention, torture, denial of counsel—clearly indicate procedural violation.

A further consequence is that the system, in practice, becomes less adversarial and more purely accusatorial. Once an accused is made to confess, the legal process tends to treat the matter as effectively settled. The space for defence shrinks, the burden of proof is informally reversed, and the courtroom becomes an extension of custodial coercion rather than a check on it. Public confidence in law as a remedy is weakened, and legal proceedings risk becoming a continuation of abuse by other means.

¹⁴⁵ 32 years old male; abducted by CTTC in 2017; disappeared for 11 days

One of the legal consequences of coerced confessions is that bail becomes extremely difficult to secure, particularly in cases involving Section 164 statements. As Code EEC¹⁴⁶ shared: “আন্দোলনের পরে পাঁচটা মামলাতে জামিন হইছে। এখন দুইটা মামলা আছে, এই দুইটা মামলাতে ওই যে মারধর করে ১৬৪ নিচ্ছে। এখন এই দুইটা মামলাতে জামিন করতে পারতেছে না, মানে ঝামেলা হচ্ছে অনেক। বারবার জামিন না মঞ্জুর হচ্ছে।”^{cxii} Even after 5 August, despite bail being granted in earlier cases, the cases involving custodial confessions have become highly resistant to judicial relief – the 164 statement, once given, overdetermined the outcome.

This dynamic did not arise in isolation. Generally, the criminal justice system—working in tandem with the security apparatus—was systematically instrumentalised by the Government of Sheikh Hasina to suppress dissent. Using an expanding framework of repressive laws and institutional pressure, opposition politicians, independent journalists, trade unionists, lawyers, writers, and ordinary citizens seeking justice were subjected to harassment, false cases, arbitrary arrests, enforced disappearances, and extrajudicial killings. Fabricated cases frequently intensified around election periods, magnifying the pressure on political opponents. As one survivor described (Code BHFJ¹⁴⁷): “তখন ইলেকশনের আগ মুহূর্তে আর কি। তো আমি বললাম যে দেখেন, আমার তো এমনি দুইটা কেস চলতেছে, আমি এগুলো হাজিরা দিতেছি। বলছে যে আসলে এই মুহূর্তে তারা মামলা দিবেই।”^{cxiii}

The statements by victims of enforced disappearance—many of whom were later shown arrested in various cases—may not individually represent the whole truth. For instance, Code BHGJ¹⁴⁸ recounted: আমি বলছি, “স্যার আমারে মাইরা ফেলাইলেও আমি 164 দিবো না।” ওদেরই একজন... আইসা বলতেছে, “ও 164 দিতে চায় না, অনেক চেষ্টা করছি, দিতে চায় না।” আবার সেই কোর্টের যে জাজ, সে বলতেছে, “ও এখন দাঁড়ায় আছে কিভাবে? ... 164 দেয় না? এটা তো দাঁড়ায় আছে, সুস্থ আছে। 164 দেওয়ার জন্য কিছু মসলা করতে হবে, না?”^{cxiv} It is possible that, if asked, the judge might offer a subjectively benign explanation for this seemingly threatening statement. But even if taken as partial or half-truths, they expose significant dereliction of duty by members of law enforcement and judicial officers.

Against this background, the structural weaknesses of the system become clearer. The criminal justice process in Bangladesh depends on three core actors: the Investigating Agency, the Prosecutors, and the Judges. If investigations are not conducted lawfully and impartially, the entire case collapses at its foundation, because the chargesheet is built on manipulation rather than truth. Prosecutors must then pursue cases with skill and integrity, and Judges must adjudicate strictly on the basis of reliable evidence. When any one of these actors fails — whether through negligence, corruption, or political pressure — justice is inevitably distorted. For this reason, every stage of the process requires meaningful oversight and accountability, with consequences where officials neglect or abuse their duties.

11.5 Self-destructive impact on the security forces

Additionally, the victims who managed to survive enforced disappearances have provided testimony about the conflicting behaviour of their captors. Whilst many prison guards shared the cruelty of their high ups, a minority of prison guards were reportedly kind – sharing food, information, and expressing empathy by acknowledging the innocence of the detainees. To

¹⁴⁶ 28 year old male; abducted by DB in 2016; disappeared for 149 days

¹⁴⁷ 46 years old male; abducted by DGFI, RAB 10 and RAB 2 in 2015; disappeared for 391 days

¹⁴⁸ 28 years old male; abducted by RAB 2 in 2019; disappeared for 65 days

the prisoners, they excused their inability to confront the injustice they personally oversaw by pleading that they were “hukumer golam” (slaves to their command).

A striking example of this moral conflict is seen in the testimony of one victim who reports that as he was being handed over to DGFI officials, a DB officer accompanying him in the car had tears in his eyes and begged forgiveness, clearly uncomfortable with the order that he was carrying out.(JG¹⁴⁹) An even starker example comes from another victim, a supporter of Jamaat-e-Islami, who recounted how a police officer, whilst throwing him to his planned death in front of an oncoming vehicle, apologised for doing so, pleading, “Please forgive me. I have no choice.”(BFIH¹⁵⁰) It was only due to the vehicle failing to hit him at the last minute, possibly due to swerving, and the officer’s unwillingness to repeat the murderous attempt that the victim survived. This officer’s act of attempted murder, evidently contrary to his personal beliefs, highlights the extent to which the members of the security forces have been compelled into complicity in serious crimes, including capital offences, even when such actions are against their personal and professional interests.

11.6 Strategic risks for the country

A major risk for all security forces in continuing to protect or retain officers potentially involved in crimes against humanity within their ranks is their high vulnerability to hostile intelligence services. Individuals implicated in serious violations may take extreme and unauthorised measures to prevent their complicity from being exposed. In doing so, they may inadvertently create opportunities for foreign intelligence agencies to exploit their position, secrecy, or fear. This not only compromises individual integrity but also national security. The harm, therefore, is multilayered: there is direct harm to the victims and their families, and there is institutional harm that affects the credibility, cohesion, and long-term stability of the security forces themselves.

It is possible that, within the security forces, the long-term implications of these accountability dynamics remain unclear. In conversations with high-ranking officers, particularly those currently in decision-making roles, some expressed reservations about the focus on senior intelligence officials. Their view was that holding the heads of intelligence agencies accountable is unprecedented, inappropriate, and harmful for the country’s security. They pointed out that agencies, such as the CIA in the United States, have engaged in numerous controversial or unlawful operations, yet it is rare for the CIA directors to face legal consequences for institutional decisions. The implication was that prosecuting Bangladeshi intelligence heads represents an unusual and unjust precedent.

However, such comparisons overlook a critical distinction. While agencies like the CIA have been involved in contested or covert activities, they have not historically functioned as instruments for persecuting domestic political oppositions during partisan transitions. In the US context, for instance, the CIA has not been known to target Republicans during Democratic administrations, or vice versa. In contrast, in the Bangladeshi case, intelligence agencies have been used to systematically suppress domestic political opposition parties, a dynamic that renders the current situation fundamentally different.

¹⁴⁹ 32 year old male; abducted by DB and DGFI in 2016; disappeared for 210 days

¹⁵⁰ 47 year old male; abducted by DB in 2013; disappeared for 8 days

A more appropriate comparison may be found in the experiences of fallen autocratic regimes, such as Iraq after Saddam Hussein or Libya after Colonel Gaddafi. In most of those cases, transitional periods were marked by swift and often violent retribution against former security chiefs. In that light, the process unfolding in Bangladesh, however complex, is notably more restrained and judicial in nature. Far from being an exceptional overreach, it reflects a comparatively measured approach to accountability in the aftermath of systemic, decade-long abuse.

Thus, addressing this entrenched culture of impunity must not be reduced to a mere exercise in retribution. It is not about casting the security forces as our adversaries. Instead, our efforts to ensure accountability can foster a profound cultural transformation—one that uplifts and empowers the security forces. The siloed nature of operations in these forces makes it likely that a significant portion of security personnel did not directly engage in these crimes of their own volition; rather, they have been caught in a system shaped and exploited by a select few in the corridors of power who largely benefited from it. Eradicating this system is as much to the benefit of these forces as it is to the nation's and the victims'.

Our work in the Inquiry Commission is thus rooted in a genuine desire to support the security forces in creating an environment where their members can serve with dignity and pride. We envision a future where they can carry out their duties without the fear of being tainted by the actions of a corrupt and murderous few, where they can retire from their jobs with clear conscience, and without the sword of Damocles hanging over their heads. Ours is not an effort to harm or vilify, but to heal, to reform, and to restore. It is a call to align the values of service and justice, for the benefit of both the nation and the dedicated security personnel. By addressing these systemic injustices and crimes, we hope to build a foundation of trust and integrity that will endure for ages.

12. Assessment of common claims

In contexts where enforced disappearance is practised as a system rather than an aberration, responsibility is frequently contested through a set of recurring claims. The Commission has encountered variations of these assertions across testimonies, institutional responses, and public discourse. This chapter addresses the most common claims and explains why, in light of the findings set out in earlier chapters, they do not withstand scrutiny.

12.1 Claim that responsibility lies with earlier office-holders

Some have argued that they should not be held responsible because they neither personally abducted the victim nor ordered the abduction. According to this claim, the abduction was carried out by a predecessor, and later office-holders merely assumed charge after being transferred into the post, inheriting detainees or detention facilities without involvement in the original act. A frequent challenge put to the Commission is: *can I be held responsible when the abduction occurred before my posting, I did not order it, and I simply inherited custodial authority over an existing detention?*

This argument fails because it misunderstands the nature of enforced disappearance. Enforced disappearance does not end with the initial abduction. In the eyes of the law, it continues for as long as the person remains unlawfully detained and their fate or whereabouts are concealed. Anyone who assumes command or custodial authority during that period assumes responsibility for whether the crime continues or ends. A change of command does not break responsibility. It transfers it.

This is because, at any given time, someone must exercise control over the detention. There cannot be a captive without a custodian. If responsibility were limited only to the person who ordered the initial abduction, there would be no accountable authority once that person left office. That is not how detention operates in practice. Detention facilities remain staffed, guarded, supervised, and administered by those who succeed to command.

The same logic applies to release. If a detainee were released, responsibility for that act would lie with the official who held authority at the time, not with a predecessor who no longer exercised control. Responsibility cannot be disclaimed for continued detention while authority over the detention is actively exercised. Authority over detention brings with it responsibility for both action and inaction.

This position is reflected in the military's own internal findings. In early September 2024, in the Court of Inquiry conducted by the Army into the disappearance of Brigadier Azmi, the inquiry report records that BA 2890 Lt General Akbar, then DG, DGFI, authorised the initial abduction and detention. However, the report further records that the DGFI Director Generals who served after him bore responsibility for having abused their authority to "continue unauthorised detention of BG Azmi" (Army inquiry report, p. 66). On that basis, the Court of Inquiry recommended exemplary punishment for those DGs who held command during the eight years of continued detention. Notably, the punishment recommended for these later DGs was the same as that recommended for Lt General Akbar, and not of a lesser degree.

The above serves as confirmation that the concept of continuing responsibility is already recognised within the military's own institutional framework. Claims that later office-holders bear no responsibility simply because they did not initiate the original abduction are therefore incompatible with both the law and the military's own understanding of command responsibility in cases of unlawful detention.

12.2 Claim of ignorance by senior officials

Another common assertion is that senior officials or those in command positions were unaware of enforced disappearances carried out by subordinates. A frequent challenge put to the Commission is: can you prove that I personally issued the order, or ever entered the detention facility, or ever met the detainee? We provide below three forms of rebuttal to this claim: legal, testimonial and geographical.

12.2.1 The legal response

The framing of the claim of ignorance misunderstands both the nature of the crime and the standard by which responsibility is assessed. The Commission is not required to prove that a senior official personally issued an order in every case. Legally, what must be established is whether the official knew, or should have known, that enforced disappearances were occurring under their authority, and whether they failed to prevent or punish those acts.

On that score, the Commission finds claims of ignorance implausible in light of the scale, duration, and visibility of the practice of enforced disappearance. As documented throughout this report, enforced disappearances occurred over many years, across multiple regions, and affected thousands of victims. They generated consistent and observable patterns, including unexplained custody gaps, repeated court appearances following periods of incommunicado detention, and sustained public reporting by families and the media.

In these circumstances, prolonged ignorance by those exercising command authority would imply a level of institutional blindness incompatible with the exercise of command. Under the doctrine of superior responsibility, knowledge may be inferred where a superior knew, or should have known, of crimes and failed to prevent or punish them. This principle is well established in both international and domestic law.

In addition to this legal framework, the Commission relies on direct statements, administrative indicators, and geographical evidence. The operation of detention facilities necessarily required food budgets, guard deployments, duty rosters, logistics, and supervision. Such

arrangements could not have existed without the knowledge of those responsible for command, staffing, and oversight.

12.2.2 The testimonial response

Direct testimonies further undermine claims of institutional ignorance. When he appeared before the Commission, the Director General of DGFI (2013-2017), BA 2890 Lt General Akbar, stated that he discussed the disappearance of Hummam Quader directly with Sheikh Hasina, including the family's demand for his release. According to Lt General Akbar, she replied that Hummam would be released and asked whether Major General Tariq Siddiqi had been informed; Akbar confirmed that he had.

CTIB Director (2020-2022), BA 4015 Major General Kabir Ahmed, shared that discussed Brigadier Azmi's captivity at the JIC with the two Director Generals under whom he served: BA 2999 Lt General Saiful Alam and BA 3243 Lt General Ahmed Tabrej Shams Chowdhury. Similarly, DGFI Dhaka Det Commander (2015-2016), BA 3651 Major General AKM Aminul Haque, told the Commission that the order to pick up Brigadier Azmi came directly from Lt General Akbar, and that he personally heard the instruction being given.

RAB DG (2020-2022) BP 6489020946 Chowdhury Abdullah Al Mamun stated in his Section 164 statement before the ICT that senior RAB leadership was well aware Barrister Arman was in their custody:

র‍্যাব কর্তৃক রাজনৈতিক ভিন্নমত মতাবলম্বী এবং সরকারের জন্য হুমকি হয়ে ওঠা কোনো ব্যক্তিকে তুলে আনা, জিজ্ঞাসাবাদ, নির্যাতন এবং গোপন বন্দীশালায় আটক রাখার বিষয়টি র‍্যাবের ভিতরে একটা কালচার হিসেবে বিবেচিত হতো। তবে এই কাজগুলো প্রধানত র‍্যাবের ADG (Ops) এবং র‍্যাবের গোয়েন্দা বিভাগ RAB (Intel) এর পরিচালকগণ সমন্বয় করতেন। ... র‍্যাব কর্তৃক কোনো ব্যক্তিকে উঠিয়ে আনা বা গুম করার নির্দেশনা বা ক্রসফায়ারের হত্যা করার মতো সিরিয়াস নির্দেশনাগুলো সরাসরি প্রধানমন্ত্রীর দপ্তর থেকে আসতো বলে শুনেছি। ... কিছু কিছু নির্দেশনা নিরাপত্তা ও সামরিক উপদেষ্টা তারিক সিদ্দিকির পক্ষ থেকে আসতো বলে জানতে পারি। ... ব্যারিস্টার আরমান টিএফআই সেলে বন্দি আছে, এই বিষয়টি আমি জানতাম। ... আমার পূর্ববর্তী ডিজি বেনজির আহমেদ [BP BP 6388000021] দায়িত্ব হস্তান্তরকালে ব্যারিস্টার আরমান যে টিএফআইতে আটক আছেন তাহা আমাকে অবহিত করেন। পরবর্তীতে ADG (Ops) ও Director (Int) সরোয়ার বিন কাশেমও [BA 6150] আরমান সাহেবের আটকের বিষয়টি আমাকে অবহিত করেন। ... এ বিষয়টি জানার পরে আমি প্রধানমন্ত্রীর সামরিক উপদেষ্টা তারিক সিদ্দিকির সাথে কথা বলি। তারিক সিদ্দিকি আমাকে বলেন: ঠিক আছে রাখেন, বিষয়টি আপনাকে পরে বলবো। পরে তিনি আমাকে কিছুই জানায়নি। ... আমি DG RAB হিসেবে দায়িত্বভার হস্তান্তরের সময় পরবর্তী DG RAB [BP 6491020943] খুরশিদ হোসেনকে আরমানের বিষয়টি অবহিত করি। ... আমি র‍্যাব এ দায়িত্বপালনকালীন সময় টিএফআই সেলে বিনা বিচারে বন্দিদের আটকে রাখা এবং নির্যাতন করা বা কাউকে কাউকে ক্রসফায়ারে হত্যা করার কিছু কিছু বিষয় জানতাম কিন্তু আমি কোন তদন্ত করিনি বা এগুলোর বিরুদ্ধে কোন ব্যবস্থা গ্রহণ করিনি।^{cxv}

Additional corroboration comes from security personnel themselves: soldiers stationed there have confirmed CTIB Directors visited the JIC; victims reported seeing Superintendents of Police with their own eyes in Bogura and Bagerhat, as well as senior officials from CTTC and DB. When he appeared before the Commission, Bogura SP, BP 7905122796 Md Ali Ashraf Bhuiyan, was even able to identify with precision which of his officers were most responsible

for holding captives illegally. This is knowledge he could not plausibly have possessed had he been unaware of the site and its operations.

A soldier who served at the TFI centre testified that he personally knew of visits by two ADGs (Operations) and two Directors (Intelligence), identified as BA 5047 Col K M Azad (2021-2022), BA 5322 Col Md Mahbub Alam (2023-2024), BA 6357 Lt Colonel Md Moshir Rahman Jewel (2021-2023), and BA 6781 Lt Col Saiful Islam Sumon (2023- 2024). In advance of such visits, the TFI team was alerted during morning roll call two to three days prior, so that the premises could be prepared. He specifically recalled Lt Col Moshir Rahman Jewel’s visit on the day of Eid-ul-Fitr in 2023. After Eid prayers, he brought sweets for the guards and looked into every cell.

Interviews of security force personnel across multiple years indicate that such inspections were routine, not exceptional. Taken together, the testimonies demonstrate senior-level knowledge, oversight and engagement with detention sites across the years. Assertions that superiors were unaware of these operations are therefore not credible.

12.2.3 The geographical response

Geographical evidence independently corroborates the accounts documented by the Commission. Given physical proximity, visibility, shared access, routine movement, and surveillance, claims of ignorance by commanding officers are implausible and unsupported by evidence (see table below).

Force	Description
CTTC and DB	At the CTTC headquarters, the CTTC Chief sits in the same building where detainees were held on the first and seventh floors. Victims and officers used the same lifts and staircases. The Dhaka DB Chief sits in an office directly above the DB holding cells in Minto Road, and to access the upper floors he must pass the cells on his right. Officers enter the building through a door directly opposite the cells. Torture routinely took place in the offices across the DB and CTTC buildings. We inspected if the rooms were soundproofed – they were not, which means the screams of the victims would have been audible to anyone in the nearby rooms. When the CTTC building was under construction, both DB and CTTC captives were kept in tin-shed structures scattered across the Minto Road compound. Captives were placed under tables, lay on the floor, or were handcuffed to windows or chairs in plain sight of officers working in those rooms. Given these physical arrangements, any claim that DB and CTTC officers were unaware of captives in their custody is untenable.
Bogura Police Line	At Bogura Police Line, the SP’s office is located on the same floor where captives were detained. The SP’s office was on the right side of

	the floor, and detention rooms were on the left. The SP would have used the same staircase to access his office as the detainees. Additionally, standing on the veranda outside his office, he would have had a clear line of sight to the in-service training centre building where other captives were held. This arrangement made the presence of detainees unavoidable to senior officers.
Cox's Bazar Police Line	At the Cox's Bazar Police Line, captivity locations were not secret. Detainees were held in the ground floor rooms of the in-service training centre, in plain sight from the entrance of the compound. Such placement makes claims of concealment implausible.
Dinajpur and Bagerhat Police Lines	At neither of these lines were captivity locations concealed. At the Bagerhat Police Line, for example, detainees were held on the ground floor of the hospital.
LIC	At the LIC captivity location within Police HQ, the rooms used as detention cells and for torture were situated on the ground floor. Access to the upper floors, including the IGP's office, required passing in front of this area. The head of LIC sat within clear earshot of these rooms, and the walking distance from his office to the cell was less than one minute.
RAB Intelligence's TFI (also known as "hospital")	The TFI coordinator sat on the second floor of the TFI building, with his office located approximately half a minute from the cluster of cells most frequently used to detain captives. Officers were required to pass these cells in order to reach their offices. The Director (Intelligence) and ADG (Operations) were based at RAB Headquarters, approximately ten minutes away by car and eighteen minutes on foot from TFI. Even if it were assumed that they did not routinely traverse this distance, the Commission has received consistent accounts from soldiers and officers confirming that both the ADG (Operations) and the Director (Intelligence) physically inspected TFI. Additionally, TFI is approximately a two-minute walk from the RAB 1 CO's office and is visible from outside the door of that office. There is no credible basis to assume that successive RAB 1 COs concealed the existence of detention facilities from their superiors over a fifteen-year period.
RAB Intelligence's glass house detention centre ("Clinic")	The RAB Intelligence detention centre known as "Clinic" is located on the third floor of a glass-façade building behind the RAB HQ building, within the RAB HQ compound. It takes approximately two minutes to walk from the RAB HQ building, where the Director (Intelligence) and ADG (Operations) sit, to this facility.
RAB 1	The entrance to the RAB 1 cells is in plain view of the main RAB 1 gate. Blindfolded captives were taken in and out of vehicles at a downstairs veranda located in front of offices that are less than a two-minute walk from the CO's office, which has full CCTV coverage of the compound.
RAB 7	At RAB 7, standing outside the CO's office provides a direct line of sight to the armoury where detention cells were located. The distance from the CO's office to the cells is approximately two minutes on foot.

RAB 11	At RAB 11, a detainee stated that he was taken out of his cell, led down two steps, walked a short distance, and then taken up three steps before being returned to a cell while blindfolded. The Commission retraced these movements. To match the two-step and three-step description, the detainee must have been taken out of the armoury, walked behind the battalion mosque, and then taken back into the armoury. This route was entirely open and remained in clear line of sight of the CO's office.
RAB (nationwide)	The Commission repeated this exercise across RAB battalions nationwide, with consistent results. CCTV coverage extends across all battalions, with live displays available in the CO's office. Any claim of ignorance would require commanding officers to have been unaware of what was visible, audible, and physically proximate to them over many years. This is implausible.
DGFI's JIC	The JIC is located within the same compound as DGFI HQ. The walking distance between DGFI HQ, where the Director General and bureau directors are based, and the JIC is five minutes via the main entrance, while access through a side entrance takes two minutes. Both buildings are situated within the same secured compound, at an aerial distance of 0.1 miles. Adjacent to the JIC was the MI room where DGFI's doctors were based, making it an area of regular foot traffic, and directly opposite it for many years was the armoury, which was under 24-hour guard.
NSI	The NSI cells are located at the Gulshan office. To access them, captives used the same entrance as all other staff members of the office, which was relatively large and housed numerous personnel. The block of cells had functional office and accommodation spaces both in front of and behind it and therefore could not have escaped the notice of personnel over the years. Nor did it do so: even junior NSI officers, based at HQ rather than the Gulshan office, were aware of the cells when the Commission spoke to them.

9 Table: Location of captives was not hidden from superiors

Further details of the cells and their locations are discussed in Chapter 4. In light of this evidence, the Commission is compelled to reject claims of ignorance as incompatible with the exercise of command and the ordinary discharge of supervisory responsibility.

12.3 Claim of national security necessity

Enforced disappearances have been justified, implicitly or explicitly, as necessary measures in the interests of national security or counterterrorism. A frequent challenge put to the Commission is: *you are being idealistic; in the real world of counterterrorism there is no other way to act, so what we did improved national security.*

The Commission finds no legal basis to justify enforced disappearance on grounds of national security or counterterrorism. International law allows no derogation from the prohibition of enforced disappearance, even in states of emergency. The evidence further shows that enforced disappearance was not a narrowly tailored security measure but a broad instrument of governance used against political opponents, critics, and perceived dissenters. The pattern

of targets, the scale of operations, and the routinised character of the practice undermine claims of necessity and instead indicate a strategic use of repression. Otherwise, it is difficult to explain why most victims with known political identities belonged to opposition parties rather than the ruling party, and why the numbers rose and fell in step with election cycles and periods of political crackdown. Such pattern is not consistent with random crime; it reflects coordinated state practice. These issues are discussed in greater detail in Chapter 5.

However, claims that enforced disappearances were necessary for national security or counterterrorism are usually framed as pragmatic rather than legal: *the law is ill-suited to the realities of counterterrorism and that unlawful measures were the only effective means available*. The Commission addresses this argument on its own terms and finds that, in practice, enforced disappearances have weakened rather than strengthened national security.

CTTC's BP 8311142515 ADC Ahmedul Islam, who stands *prima facie* accused in several complaints, told a Commission member that, in his assessment, all individuals he had detained were terrorists. He described prolonged illegal detention as routine rather than exceptional in cases involving ideological crimes. In his account, such detention was considered necessary to secure cooperation, and because the law did not permit it, unlawful measures were treated as the only viable course of action.

When asked why many cases brought after periods of enforced disappearance failed before the Anti-Terrorism Tribunals, he stated that it was extremely difficult to obtain evidence that met judicial standards. He maintained that this difficulty did not, in his view, undermine the correctness of the initial detention, but reflected practical limits in proving such offences. When pressed on how, in the absence of admissible evidence, it could be established that a particular individual was in fact a terrorist, he replied that such determinations should be accepted on the basis of his personal judgement.

The Commission finds no legal or ethical basis for this position. Personal assurance cannot substitute for evidence capable of judicial scrutiny. Reliance on subjective assessment rather than proof collapses the distinction between suspicion and guilt and removes any meaningful safeguard against error, abuse, or arbitrariness.

In practice, this approach has meant that thousands of individuals have been charged under repressive laws, particularly anti-terrorism laws, on the basis of weak, fabricated, or indistinguishable evidence. Some were not terrorists at all but were nonetheless drawn into the counterterrorism dragnet. Others may have engaged in criminal conduct but were charged with offences they did not commit. Still others may have been correctly suspected of criminal conduct but were themselves subjected to enforced disappearance, making them victims of a serious crime irrespective of any wrongdoing on their part.

Since the same law enforcement agencies generated both genuine and false cases, the resulting charge sheets, evidentiary patterns, and narratives often appear indistinguishable. Courts across the country are now faced with thousands of cases in which it is extremely difficult to determine, on the materials available, who poses a genuine security threat and who does not.

This problem has become particularly acute following 5 August 2024, as courts and the government have sought to review past prosecutions, ensure that individuals are not imprisoned for crimes they did not commit, and dispense justice in a context where underlying records reveal serious evidentiary flaws and inconsistencies.

The Commission finds that this collapse of evidentiary credibility poses a grave national security challenge. It undermines the ability of the justice system to identify, prosecute, and punish actual terrorists without simultaneously criminalising innocent individuals. At the same time, enforced disappearances and unlawful detentions have allowed even genuine extremists to claim victimhood, to portray all allegations as fabricated, and to capitalise on the sympathy generated by such abuse.

Alongside this, the practice of placing innocent and criminal detainees together in secret facilities and prisons may also have created fertile ground for ideological recruitment. Individuals who are wrongfully detained, tortured, and then released often return to society with deep grievances, loss of employment, social marginalisation, and a sense of betrayal by the state. These conditions are easily exploited by extremist actors and can continue to generate security risks long after the original operations have ended.

We examined this risk directly with intelligence officials, who informed us that the vast majority of those released appear to be returning to ordinary life — a fortunate outcome, but not one that was guaranteed at the outset. Security threats, however, are non-linear: the remaining ‘few’ can matter a ‘lot’. Without meaningful rehabilitation or reintegration support, these circumstances can produce harmful psychological and social pathologies. Far from strengthening national security, enforced disappearance has instead generated vulnerabilities that future institutions will continue to confront for years to come.

12.4 Claims of isolated misconduct or institutional inability

Several related claims have been advanced to contest responsibility for enforced disappearances. It is variously argued that any illegality arose from procedural lapses or investigative error, that abuses were the work of a small number of rogue officers acting without authorisation, or that institutional constraints prevented those in authority from intervening. The Commission finds that none of these claims withstand scrutiny.

First, the suggestion that enforced disappearances resulted from procedural error or legal irregularity is directly contradicted by the evidence. As documented in this report, the criminal justice system was repeatedly and deliberately manipulated to absorb and legitimise unlawful detention. The routine use of coerced confessions, templated charge sheets, identical allegations across unrelated cases, and prolonged remand following periods of secret detention demonstrates intentional practice rather than inadvertent error. These methods served a clear and consistent function: converting enforced disappearance into formal criminal cases while insulating perpetrators from scrutiny. Such consistency across time and cases cannot be reconciled with accidental or overzealous policing.

Second, the claim that enforced disappearances were the product of unauthorised actions by a limited number of rogue officers is inconsistent with the scale, standardisation, and coordination observed. Across different districts and over many years, victims described strikingly similar abduction methods, detention environments, interrogation practices, and post-release legal processing. Detention layouts were replicated, specific procedures were followed as routine, and detainees were moved across jurisdictions in ways that required planning, staffing, secure facilities, and logistical support. These features presuppose institutional involvement and cannot plausibly be explained by isolated misconduct.

Inter-agency coordination is also directly observable in victim accounts. Many victims described being blindfolded and transported, only for their journey to be interrupted and custody transferred to another unit. In several cases, blindfolds and restraints were removed and replaced during these handovers. One detail, for instance, was that blindfolds used by DGFI were made of thicker cloth, while those used by RAB were thinner, sometimes allowing victims to see more clearly after the transfer.

The Commission considers this detail significant. It indicates that different units used their own equipment, which was reclaimed at the end of each period of custody, and that handovers were deliberate and organised rather than informal. Such transfers necessarily required prior communication, agreed locations, and mutual recognition between units.

Finally, the claim that institutional constraints prevented effective action is contradicted by the record. Legal frameworks addressing abduction, unlawful detention, torture, and superior responsibility were in place. Complaints were repeatedly brought to the attention of relevant authorities. The failure to intervene, investigate, discipline, or refer cases was therefore not the result of incapacity or legal vacuum, but of choice. Where institutions consistently declined to act despite credible information, such inaction constitutes facilitation rather than neutrality.

Taken together, these claims do not weaken the attribution of responsibility. When assessed against the evidence, they reinforce the conclusion that enforced disappearance in Bangladesh functioned as a deliberate, routinised, and sustained system within an organised state security framework. Responsibility cannot be confined to individual perpetrators alone. It extends to those who designed, authorised, enabled, and perpetuated the practice through action or omission.

12.5 Claim that accountability should be left to military law and internal military processes instead of civilian courts

A recurring position advanced by military authorities has been that allegations against military personnel should be addressed exclusively under military law and through internal processes. It is usually framed as: *Why the ICT Act and not just the Army Act?*

Although often framed as a jurisdictional or legal dispute, this position rests on a broader claim: that the security forces can be trusted to investigate themselves, secure suspects, preserve evidence, and deliver accountability without recourse to civilian judicial mechanisms.

The reasons offered in support of this claim vary. They include assertions that civilian authorities lack the capacity to understand military norms and operations; that military personnel are governed exclusively by the Army Act; and that civilian judicial processes would undermine troop morale at a sensitive moment in Bangladesh's transitional period.

We rebut this claim below from both legal and practical perspectives.

12.5.1 Legal barrier

From a legal standpoint, the claim that allegations against military personnel should be dealt with exclusively under the Army Act, 1952 cannot be sustained for two reasons. First, the Army Act does not recognise enforced disappearance or abduction as criminal offences, nor does it provide for superior or command responsibility. The omission is not merely technical: the Army Act is structurally incapable of addressing the gravity, systemic nature, and leadership accountability inherent in enforced disappearance. Trying such conduct under the Army Act would therefore be akin to using the Cyber Security Act to prosecute the theft of livestock — it is simply the wrong legal framework.

Second, the International Crimes (Tribunals) Act, 1973 not only recognises enforced disappearance as a crime against humanity and expressly provides for the responsibility of superiors, it also contains a *non obstante* clause in Section 26, giving it overriding effect over any conflicting law. Where conduct amounts to crimes against humanity, the International Crimes Tribunal is therefore the appropriate and controlling forum, including for serving officers, as its jurisdiction applies irrespective of rank or service status.

Even if this legal position were not decisive, the Commission’s experience raises serious concerns about reliance on internal military processes. We observed repeated failures to secure suspects, prevent flight, preserve records, and pursue investigations to conclusion. These failures were not isolated or technical. They go to the heart of whether internal accountability can be trusted to operate at all.

12.5.2 An internal military inquiry with inconsistent application

The Commission observed significant gaps between internal findings and enforcement action. The Army Court of Inquiry into the disappearance of Brigadier Azmi submitted its report on 7 September 2024. It stated (Army Court of Inquiry report, 2024, p. 66):

“For directing the abduction of BG Azmi on 22 August 2016, unauthorized detention up to 22 Feb 2017, and hiding the fact to the inquiry board exemplary punishment to be awarded to the then Director General BA - 2890 Major General (now Lieutenant General) Md Akbar Hossain, SBP, SUP (BAR), afwc, G+, PhD (LPR).”

Unlike other branches of government, the armed forces have not migrated to the PLR system. Lieutenant General Akbar’s Leave Pending Retirement therefore began on 10 November 2023 and ended on 10 November 2024, giving the authorities nearly two months (between September and November 2024) to take action against him prior to his formal retirement. To the best of our knowledge, no such action was taken.

This stands in contrast to the treatment of other Directors General during the intervening period, at least three of whom were sent into forced retirement. These included BA 3787 Major General Hamidul Hoque, the final DG to have had custody of Brigadier Azmi, who appears to have been removed from service by September 2024.

On the available evidence, therefore, the officer who authorised Brigadier Azmi's release appears to have faced more immediate consequences than the officer who authorised and maintained his illegal imprisonment. This sequence raises questions about the consistency, seriousness, and intent of the military leadership with respect to accountability.

Along with the other accused Directors General, Lieutenant General Akbar fled the country from his residence in Dhaka Cantonment in early January 2025, after warrants were issued by the International Crimes Tribunal. At the time, their passports had already been revoked and they had been under active travel bans since late November 2024. We understand that Army leadership had been informally notified in advance that these arrest warrants were imminent.

12.5.3 An internal military inquiry without findings

In early September 2024, at the same time that the Army constituted a Court of Inquiry to examine the abduction of Brigadier Azmi, another internal board was established to inquire into the alleged crimes committed by RAB, including enforced disappearance and extrajudicial killings, with a particular focus on the case of BNP leader Ilias Ali. The board was led by Lt General S. M. Kamrul Hasan and included the following members: Major General Iftekhar Anis; Major General Md Naheed Asgar; Brigadier Mohammad Monour Hossain Khan; Brigadier Mohammad Abdur Rahman; and Brigadier Md Asif Iqbal. At the same time, a third internal board was constituted to investigate corruption. The chair of that board, Lt General Mizanur Rahman Shameem, confirmed its existence to the Commission.

The board on RAB operated for about two weeks. During this period, it interviewed a large number of officers and soldiers, potentially numbering up to sixty individuals, although exact numbers remain unclear to us. Multiple witnesses later informed the Commission that their depositions were formally recorded at that board. Some stated that audio recorders were placed in front of them, others reported the presence of video cameras, and several indicated that they were asked to sign written statements. The Commission therefore has no doubt that evidence was systematically collected during the inquiry. BA 3799 Brigadier Rashidul Alam, who was RAB 1 CO (2009-2013) at the time BNP leader Ilias Ali disappeared from Banani, informed the Commission:

I was called over telephone. To me, it seemed to be a board of officer for the fact-finding... They asked me exclusively on what I know about Lt Gen Mujib and his involvement in Elias Ali case. Here also I tried my best to give them full detail of involvement of Major General Zia in Elias Ali case. I gave one written statement and the board most probably recorded my statement because I saw an audio recorder in front of me. I just marked it.

Despite this, the Commission has been unable to trace any report produced by the board. When contacted, the chair of the board stated that it was disbanded without reaching any resolution. When the Commission requested access to the evidence collected during the inquiry, it was informed that the same was no longer available. This account was independently corroborated by the Director of the Personnel Services Directorate under the Adjutant General's Branch at Bangladesh Army Headquarters, who served as the Commission's focal point.

The Commission sought clarification as to whether there had been any other instance since 5 August 2024 in which a formally constituted inquiry was dissolved without issuing findings and where all collected evidence subsequently became unavailable. The Commission was informed that this was the only such instance. When asked why the board did not complete its mandate, the Commission was told that it had been halted on the basis of “orders from above”.

The Commission notes that any order directing the cessation of a board led by a Lieutenant General would necessarily have had to originate from a higher authority. In the circumstances described, the only officer with such authority would have been the Chief of Army Staff, General Waker-uz-Zaman. When asked whether any documentary record existed to explain under what rule the evidence had been rendered unavailable, the Commission received no explanation.

The seriousness of this absence is underscored by the substance of the testimony that should have formed part of the missing record. Witnesses who later spoke to the Commission, and who had also appeared before the board, described having given accounts of enforced disappearances and executions that they had personally witnessed. This included at least one soldier who stated that he had participated in the operation during which BNP leader Ilias Ali was abducted. We consider this evidence to be of paramount importance.

The Commission therefore concludes that this episode exemplifies institutional resistance to inquiry at the highest levels. An internal inquiry was initiated, evidence was gathered, and then the process was terminated without explanation or outcome, and the material collected was rendered unavailable. Such conduct undermines confidence that internal investigations will be permitted to operate independently or in good faith, and reinforces the conclusion that reliance on internal processes alone cannot ensure accountability.

Taken together, these facts leave no room for doubt. The Army Act does not cover the crimes alleged, and the military’s internal processes have repeatedly failed to secure suspects, preserve evidence, or act in a timely and credible manner. Claims that accountability should be confined to military law or internal military mechanisms therefore lack weight. In these circumstances, leaving accountability to any security force’s own processes cannot deliver justice.

12.6 Claim that the Commission targeted the military

One of the most spurious claims advanced against the Commission is: *Why is the Commission selectively targeting the military?* This claim is unfounded on both factual and legal grounds.

First, the list of accused persons before the Commission is not confined to military officers. It includes many members of the police and other law-enforcement agencies, several of whom are already in ICT custody. In the case of the police, the chain of responsibility is relatively clear. Police officers implicated in enforced disappearances were not seconded outside the police. They remained within the police hierarchy, and responsibility therefore extends to their superiors who exercised command and oversight during the relevant periods.

Second, while enforced disappearances occurred across agencies, the methods by which rights were violated were not identical. Police units, for example, were associated not only with enforced disappearance but also with other forms of cruel abuse, such as kneecapping.

Documented cases of kneecapping include Codes FGF (20-year-old male), GBA (25-year-old male), GBB (34-year-old male), BBEE (35-year-old male), and BAJH (44-year-old male) who were disappeared by the police for short periods, such as 3-4 days, but resurfaced with permanent, life altering disabilities. These patterns reflected policing practices and incentives that differed from those operating in institutions where military officers served on deputation. *The distinction concerns differing methods, not differing gravity of wrongdoing.*

Third, these differences in modus operandi were closely linked to secrecy, and secrecy in turn shaped our investigative effort. Police-run units such as DB and CTTC often maintained weaker secrecy protocols. Detainees could frequently discern where they were being held and sometimes identify officers directly. Blindfolds were at times routinely removed during questioning and inside cells, making later identification possible. Attribution in such cases was comparatively straightforward.

By contrast, detainees held by RAB Intelligence and its battalions, or by DGFI, encountered systems deliberately designed to obscure identity and location. Movement was tightly controlled, sight was restricted for extended periods, and interactions were compartmentalised. Where military officers served in these units, this secrecy formed part of the institutional environment, even when the military *as an institution* was not formally directing the operation.

Accordingly, for the Commission the consequence was methodological rather than political: cases involving high secrecy required deeper inquiry; those involving weaker secrecy did not. Perceptions of “targeting” arise from this difference in evidentiary complexity, not from institutional bias.

These realities are reflected in the Commission’s own summons records. Over the course of the inquiry, the Commission issued summons to 98 police officers and 108 military officers (Army, Air Force, and Navy combined). The difference is marginal. This outcome is particularly notable given that cases involving military-linked institutions typically required far greater investigative effort, owing to tighter secrecy protocols and higher levels of compartmentalisation. Even so, the resulting pattern of summonses shows that police and military officers were treated almost on par by the Commission.

Fourth, although some accused were military officers by commission, most of the conduct under examination occurred while they were seconded to RAB, DGFI, or NSI. During those periods, their operational reporting lines lay outside ordinary military command, and institutional responsibility for specific acts lies primarily with the agencies to which they were deputed.

At the same time, the assertion that the military lacked awareness of the conduct of its officers while on deputation cannot be sustained. Internal monitoring mechanisms existed. Confidential assessments prepared by bodies such as DGFI’s CIB and placed before promotion boards contained information about postings, reputational concerns, and activities during deputation. Senior commanders were aware of these materials and used them in making career decisions. The same channels could have been used to detect or restrain criminal conduct, and indeed it should have been used.

The Commission also heard consistent accounts that officers were briefed before deployment to RAB and debriefed upon return. Some officers explained that, during certain periods, including under General Iqbal Karim Bhuiyan, limited discretion sometimes existed to decline

or curtail such postings, although this was not uniformly applied. The very existence of briefings and debriefings demonstrates scrutiny and institutional awareness; such processes would not exist if conduct during deputation were considered irrelevant or unknown.

Accordingly, the Commission rejects the claim that it targeted the military as an institution. Responsibility has been assessed on the basis of conduct, command, and knowledge across all agencies. Claims of institutional ignorance, whether advanced by police or military authorities, are incompatible with the evidence.

12.7 Claim that the principal offenders escaped while innocents remain to face trial

A frequent allegation put to the Commission is: the principal offenders were permitted to escape, while those left behind, often the innocent, are now facing trial. Does this not amount to selective justice? This allegation fundamentally misstates both the Commission's role and the real causes of the subsequent escapes.

The Commission is neither a prosecuting authority nor an arresting body. It does not issue warrants, execute them, or control custody. Its mandate is to collect and assess evidence, determine responsibility, and place its findings before the competent authorities. On that basis, the Commission has named and attributed responsibility, including to individuals who later absconded, in both its interim and final reports. The fact that some suspects fled does not reflect a failure of attribution; it reflects a failure of enforcement.

The dynamic is best illustrated by events surrounding the issuance of arrest warrants by the ICT on 6 January 2025. On that date, the ICT issued warrants against eleven individuals who, on a prima facie basis, were found complicit in enforced disappearances, drawing on materials supplied by the Commission as well as the prosecution's own inquiries.

Among those named were several senior DGFI officers: BA 2890 Lieutenant General Md. Akbar Hussain, BA 3116 Major General Md. Saiful Abedin, BA 2999 Lieutenant General Mohammad Saiful Alam, BA 3243 Lieutenant General Ahmed Tabrej Shams Choudhury, BA 3787 Major General Hamidul Haq, and BA 3622 Major General Mohammad Towhid-ul-Islam. These officers held command positions during periods when detainees such as Brigadier Azmi, Ambassador Maroof Zaman, and others were held inside the JIC, the original Aynaghar, under DGFI operational control. Repeated reviews of command structures confirm that enforced disappearances at JIC could not have occurred without the explicit knowledge and acquiescence of these generals; the army's own internal court of inquiry validate this claim.

Although retired when the warrants were issued, at least three of these officers were still on Leave Pending Retirement (LPR) and therefore remained subject to service restrictions, including controls on foreign travel. Anticipating flight risk, the Commission formally requested revocation of their passports in November 2024. The Ministry of Home Affairs complied. When Lt General Akbar appeared twice before the Commission in December 2024, he expressed frustration at being cornered, his movements constrained. Several of the named officers were residing inside Dhaka Cantonment immediately before the warrants were issued. Yet none of the warrants were executed. When the Commission later summoned some of these individuals in May 2025, Army Headquarters reported that they could not be contacted and their whereabouts were unknown.

The pattern that emerges is striking. Officers who were physically present within a tightly controlled environment — often concentrated along one or two roads inside Dhaka Cantonment — were beyond reach only weeks later, despite cancelled passports and travel bans. The unavoidable implication is that, notwithstanding their proximity to enforcement mechanisms, they were able to abscond.

This was not an isolated occurrence. There were three distinct waves of escape among generals under investigation: first, the departure of BA 3421 Major General Majibur Rahman in August 2024 (under investigation for corruption by the Army and a *prima facie* accused in enforced disappearances during his tenure as RAB ADG (Ops), 2011-2013); second, the flight of multiple generals following the January 2025 warrants; and third, the flight of Major General Kabir Ahmed in October 2025, when the second round of warrants was issued. In General Kabir's case, the likelihood of arrest was widely anticipated. He had been interviewed by the Commission weeks earlier, transferred from command to a posting at the Ministry of Foreign Affairs, and placed under a travel ban since November 2024. Yet, after a warrant was issued on 8 October 2025, the Adjutant General reported that he left his residence on 9 October and did not return.

The fact that many of these officers possibly crossed into India is especially troubling. Chapter 10 presents evidence of Indian involvement in cross-border renditions and cooperation in enforced disappearances, as well as the longstanding political alignment that facilitated the Hasina regime's impunity for fifteen years. The relocation of key suspects into a jurisdiction implicated in prior operations poses a continuing security risk and may compromise prospects for accountability.

The Commission sought to understand how repeated lapses of this scale could occur. Conversations with officers in Military Intelligence (led by BA 5274 Brigadier Selim Azad) and the Army Security Unit (led by BA 5382 Brigadier Shams Mohammad Mamun) indicate that, despite the first and second waves of escapes, no meaningful remedial measures appear to have been implemented to prevent the third. Discussions revealed a noticeable defensiveness and an insistence that monitoring senior officers who posed clear flight risks lay outside their mandates.

Taken together, these accounts suggest the absence of a coordinated security and intelligence response. No single unit assumed responsibility for tracking high-risk officers, closing escape routes, or reviewing failures after each incident. Such fragmentation is difficult to reconcile with a system in which clear directives are issued from senior military leadership; it could only persist in the absence of explicit instruction to treat these escapes as a priority security and intelligence matter. This, rather than any deficiency in the Commission's inquiry work, explains how multiple high-ranking suspects, located in controlled environments and subject to formal travel restrictions, were nevertheless able to abscond.

The resulting picture is one of a broader intelligence and enforcement failure, extending across components of DGFI, MI, ASU, NSI and associated entities. The Commission regards this not merely as a procedural shortcoming, but as an ongoing national security concern that needs to be urgently addressed.

13. Attribution of responsibility

This chapter sets out the Commission’s attribution framework: how responsibility can be assigned in a system designed to obscure culpability, using the evidentiary foundations established in earlier chapters. It distinguishes direct responsibility from superior and command responsibility, recognising that systematic crimes rely on both visible actors and organisational authority. The Commission analyses repeat patterns of agency involvement, custody indicators, documentary traces, chain-of-command inferences, and post-release legal processing from 256 cases. The aim is to show how case-level facts, when assessed systematically, can support robust findings about direct and superior responsibility.

13.1 How has responsibility been attributed?

The International Crimes (Tribunals) (Amendment) Ordinance, 2024 establishes criminal liability for individuals or groups, including members of disciplined forces, auxiliary forces, and intelligence agencies, who commit crimes within the Tribunal’s jurisdiction. Responsibility extends to any person who commits a crime directly, individually or jointly; orders, solicits, or incites its commission; aids or abets its commission; or intentionally contributes to the criminal activity of a group. Liability also attaches to attempts to commit such crimes where substantial steps were taken but the crime was not completed due to circumstances beyond the person’s control.

Superior or command responsibility is also addressed under the Act. A commander, superior officer, or leader is criminally liable where they order, permit, or acquiesce in crimes committed by subordinates, or where they fail to prevent or repress such crimes. Liability extends to those who failed to exercise proper discipline or control over their subordinates, or who neglected to take necessary and reasonable measures to prevent the commission of crimes, even if they did not directly participate, provided they knew or, owing to the circumstances at the time, should have known that such crimes were being or were about to be committed.

In cases of direct responsibility, the Commission relied on victim accounts where perpetrators could be clearly identified. Identification occurred in several ways. In some instances, victims saw name tags or recognised faces. In others, they heard names spoken during detention, such as guards referring to a particular officer by name, for example stating that “Ahmed sir” was arriving. Some victims recalled faces and were later able to associate them with specific names after seeing photographs or identifying names displayed outside office rooms. In certain cases, perpetrators directly disclosed their names to the victims.

In attributing direct responsibility, we have relied only on cases where identification was clear and credible, and have deliberately discarded names in instances where such direct identification was not possible. It is notable that victims held by the police were often able to identify perpetrators and locations more easily, as blindfolding protocols within police custody were not always strictly maintained. By contrast, in composite forces and intelligence organisations involving military personnel, victims were rarely able to identify direct perpetrators. In these settings, protocols for secrecy were rigorously enforced, including strict masking of identities and continuous blindfolding.

Direct perpetrator identification was also critical in cases where multiple forces operated within the same premises. For example, DB and CTTC operated from the same Minto Road compound for several years, and in some periods even shared small office spaces, while the new CTTC building was under construction. In such cases, identifying a direct perpetrator enabled the Commission to determine whether the captive was held by DB or CTTC, allowing for accurate attribution between forces that otherwise operated in overlapping physical spaces.

In situations where victims could not identify individual perpetrators, the Commission relied primarily on the identification of detention sites and attributed responsibility on the basis of command and superior responsibility, according to which authority exercised control over the location at the relevant time. The sections that follow set out how command and superior responsibility have been attributed across the various organisations.

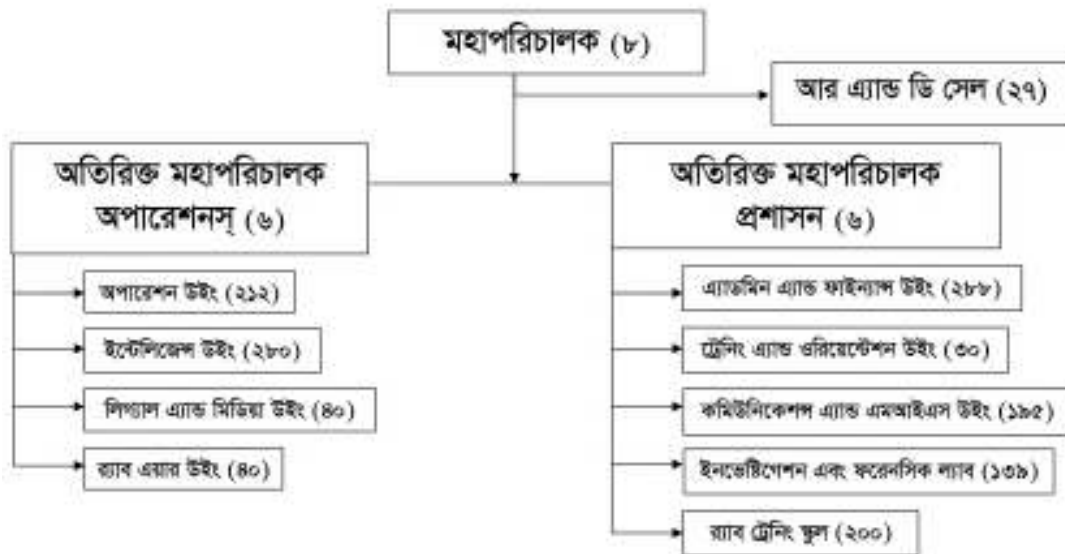
13.1.1 Rapid Action Battalion

Enforced disappearances within RAB were carried out under a clear chain of command. According to the organisational structure of RAB as supplied by RAB HQ (see figure below), the Director General (DG) sits at the top, followed by two Additional Director Generals (ADGs): one for Operations (Ops) and the other for Administration (Admin). The ADG for Operations oversees four key units: the Operations Wing, the Intelligence Wing, the Legal and Media Wing, and the RAB Air Wing. The ADG for Admin supervises the Admin and Finance Wing, the Training and Orientation Wing, the Communications and MIS Wing, and the Investigations and Forensic Lab.

For the purpose of this inquiry, we focused on the ADG (Ops) as the relevant authority, given that our work pertains to operational matters rather than administrative ones. Multiple testimony from officers and soldiers confirmed that ADG (Ops), as the highest-ranking military officer within the composite force that is RAB (i.e., a Colonel), consistently acted as a key node in the operational chain. The Intelligence Wing, led by the Director (Intelligence), a Lt Colonel, reports directly to the ADG (Ops). Therefore, responsibility for the captives held by the Intelligence Wing has been attributed to the Director (Intelligence), the ADG (Ops), and the DG, in line with the command structure.

Additionally, the battalions report to the RAB Forces Headquarters, with their operations overseen by the ADG (Ops) and their administrative matters handled by the ADG (Admin). This was confirmed to the Commission by the present RAB DG BP 6591020939 AIG AKM Shahidur Rahman. Therefore, in cases involving the battalions, we have held the battalion Commanding Officers (COs), the ADG (Ops), and the DGs responsible. Where we could not confirm specific battalion involvement but could ascertain RAB's involvement, responsibility

has been attributed to the ADG (Ops) and the DG, excluding the battalion or Intelligence Wing as appropriate. This represents a minority of cases.



63 Fig: RAB organogram, supplied by RAB HQ

In rare instances, we encountered cases where battalion detention centres, although officially under the control of the battalion, appeared to be operated by the Intelligence Wing instead. Typically, captives of intelligence organisations would be handed over to other intelligence organisations before legal cases were filed against them. For instance, DGFI captives would be transferred to RAB Intelligence or DB, and RAB Intelligence would subsequently hand them over to a RAB battalion before the victim resurfaced. This pattern is consistent over time.

However, during the period 2016-2019, the Commission identified a limited number of cases in which individuals initially detained by DGFI resurfaced directly in RAB 2 custody (e.g. Codes BHHG, FGA, FEC, CBI, FGH, AHGC, BGDE, BGBJ). When questioned, one CO of RAB 2 at the time stated that RAB Intelligence had assumed control of those battalion cells during this period, rendering them outside his operational authority. After multiple cross-checks, this explanation was assessed as credible and accepted, primarily because it corresponded with a discernible deviation from the prevailing pattern, under which DGFI detainees were ordinarily held in RAB Intelligence-controlled facilities, most notably the TFI centre. A similar pattern was observed in RAB 4 in 2017, where several DGFI detainees were transferred directly to RAB 4 cells without passing through TFI (e.g. Codes BFD, DFE, and ICB). In these cases, the Commission excluded RAB 2 and RAB 4 from attribution of responsibility, while documenting the underlying evidence for potential future investigation.

In addition, during the 2022-2023 period, a soldier deputed to RAB Intelligence testified that RAB Intelligence had temporarily taken control of an entire floor within a RAB 7 building. In instances where victim testimony corresponded to detention on this floor, the Commission similarly refrained from attributing responsibility to RAB 7.

Separately, the Commission adopted a cautious approach in cases where a victim's detention at a battalion lasted less than 24 hours. This was done because, in many instances, battalions

appeared to function solely as transit points or as venues for filing legal cases against detainees, functions that the Intelligence Wing could not perform directly. Where detention did not exceed 24 hours, such battalions were excluded from attribution of responsibility, though their involvement was retained in the factual narrative for possible future inquiry. Where detention exceeded the 24-hour threshold, liability was extended to include the battalion concerned. This calibrated methodology reflects the Commission's commitment to evidentiary precision: avoiding over-attribution of responsibility while ensuring that all relevant institutional involvement is preserved for accountability processes.

The chain of command within RAB is well-documented, and accountability is firmly linked to this structure. We received lists of personnel who held these positions as well as their durations from RAB early on in the inquiry in 2024; they have been shared with ICT.

It is worth noting here that officers cannot evade responsibility by claiming they were simply caught up in our dragnet by virtue of their posts, unaware of the crimes occurring under their watch. Not only is this claim legally indefensible, the geographical proximity of key officers to the detention sites makes such claims untenable as well. For instance, in RAB 1, the secret detention cells labelled "ration store" were directly visible from the main gate, with blindfolded captives being moved in full view of offices located just minutes away from the CO's office. Similarly, in both RAB 7 and RAB 11, detention facilities were easily visible from the CO's office or adjacent areas. This is true nationwide. Extensive CCTV coverage, with live feeds in CO offices across battalions, renders it inconceivable that commanding officers could have been unaware of the operations within their units.

Alongside, both the Director (Intelligence) and ADG (Operations) were based at RAB HQ, approximately ten minutes away by car and eighteen minutes on foot from the TFI centre. Testimony from TFI centre guards confirm that ADG (Operations) and Director (Intelligence) used to go to TFI. Furthermore, the TFI centre is approximately a two-minute walk from the RAB 1 CO's office and is visible from the door of that office. There is no credible basis to assume that successive RAB 1 COs concealed the existence of the TFI centre from their superiors over a fifteen-year period.

Counterintelligence operatives were also routinely deployed across the organisation – there is no reason to assume they hid these detention locations from their superiors either. RAB Intelligence's "Clinic", a detention centre located in a glass-façade building behind RAB HQ, is situated approximately two minutes' walk from the RAB HQ building, where both the Director (Intelligence) and ADG (Operations) sit. This direct proximity further underscores their responsibility and involvement in the oversight of RAB operations.

Further details, including testimonies, are in Chapter 12. These factors eliminate any plausible defence of ignorance. The combination of command responsibility and physical proximity ensures that those in charge cannot evade accountability.

13.1.2 DGFI and NSI

DGFI is headed by a Director General holding the rank of Major General. The primary detention site maintained by DGFI was the JIC. In a letter dated 1 October 2024, DGFI confirmed in writing to the Commission that the JIC falls under CTIB, which is headed by the CTIB Director, and in the same letter DGFI provided the identities and tenures of the CTIB

Directors. As noted earlier, the distance between the JIC and DGFI Headquarters, where both the Director General and the CTIB Director are based, is approximately 0.1 aerial miles, or roughly a two-minute walk. Testimony from JIC guards confirms that CTIB Directors visited the site, a fact further corroborated by testimony given by CTIB Directors themselves before the Army Court of Inquiry into the disappearance of Brigadier Azmi. Separately, in a letter dated 10 August 2025, NSI confirmed in writing its command chain as well as the officers within that chain who were responsible for its detention cells; NSI is also headed by a Major General. In addition to the discussion in Chapter 12, and in addition to the automatic legal responsibility arising from their command positions, any claim of ignorance regarding the operation of these detention facilities is difficult to sustain.

13.1.3 Police

We have attributed responsibility based on the location of captivity. For LIC captives, because the detention site was located within Police Headquarters, we have attributed superior responsibility to both the Inspector General of Police and the head of LIC. For captives held in police lines, we have attributed command responsibility to the respective Superintendents of Police, as police lines fall under their authority. In Chapter 12, the Commission has set out testimonial and geographical evidence that pre-empts claims of ignorance by these actors.

13.1.4 CTTC and DB

Command responsibility for crimes committed by CTTC and DB rests with their respective unit chiefs. In the case of CTTC, responsibility lies with the CTTC Chief, who is based in the same building where CTTC detention cells were located. For DB captives, command responsibility lies with the head of the organisation. The Commission received personnel and tenure information directly from both organisations.

13.2 Concrete illustrative examples

The following case studies illustrate how the Commission’s attribution framework operates in practice. By setting out these step-by-step analyses, the Commission demonstrates that its findings are not speculative: they emerge from consistent evidentiary patterns applied across multiple incidents. These worked examples, therefore, show how individual incidents, when examined methodically, support credible conclusions about both direct perpetration and superior responsibility.

13.2.1 Rendition to India example: Salauddin Ahmed

BNP leader Salahuddin Ahmed’s (Code ICI¹⁵¹) case exemplifies certain characteristic practices of the Bangladesh-India rendition system. Detained whilst hiding in Uttara on 10 March 2015, he recounts being imprisoned in a barren cell, where a hole in the ground to the back served as a toilet. Bedding provided to him bore the letters “TFI”, indicative of the “Task Force for Interrogation” centre operated by RAB Intelligence Wing working under the aegis

¹⁵¹ 53 year old male; abducted by RAB Int in 2015; disappeared for 62 days

of RAB Headquarters, located within a walled compound inside RAB 1 Battalion Headquarters at Uttara, Dhaka.

When we had submitted the first interim report in December 2024, we had speculated, based on soldier testimony, that whilst not visible then, there were previously cells on the ground floor of the TFI centre and that was where Ahmed had been imprisoned. In January 2025, these cells were discovered by breaking through several walls at the TFI centre. An additional factor in our calculation was that, to our knowledge, two agencies maintained regular cross-border prisoner exchange scheme with India in this period: DGFI and RAB Intelligence. DGFI holding cells in no way matched Ahmed's description of his cell whereas detainees of the ground floor TFI cells describe similar characteristics as Ahmed's well into 2022.

Ahmed returned to the location with a team from the Ministry of Culture to film a documentary on his disappearance. Later, in a phone conversation with a Commissioner in August 2025, he stated that based on the characteristics he witnessed there, he was likely imprisoned in one of those downstairs cells, although there had been some changes in the intervening years.

Based on the testimony of soldiers and officers who had served at TFI centre at the time, we were able to identify the OIC TFI when Ahmed was imprisoned there: BA 6733 Lt Col Md Saiful Islam Sohel. In conversation with the Commission, he insisted his main task was to analyse mobile phone data at DGFI's NMC. Subsequently, he owned up to being the OIC TFI but insisted that he did not know of any enforced disappeared victims in those cells; anyone brought there was sent for joint interrogation through court order.

This statement was demonstrably false for several reasons. First, the layout of the second floor of the TFI centre (see Chapter 4) shows that the administrative section, including the office of the OIC, was located only a few feet from the cluster of cells to the left of the staircase. Most detainees on that floor were held in these cells. Given this physical proximity, it would have been impossible for officers working in their offices to remain unaware of the detainees' presence, including their screams, cries, and whimpers.

Second, the fact that Lt Col Islam occupied that office has been independently confirmed by BP 7206109818 ASP Maksudur Rahman. Notably, ASP Maksud was initially extremely reluctant even to acknowledge that he had been posted to the unit, despite having served there from 2010 to 2014. Therefore, he also had to have been privy to the goings on of the TFI centre, again by virtue of sheer proximity if naught else.

Third, it is irrelevant whether Lt Col Islam now acknowledges his presence there; by virtue of being the OIC, it was his duty to know of the captives under his custody.

We identified the relevant guard commanders of that period as Lance Corporal Enamul (4033001; RAB Intelligence, 2013-2015) and Lance Corporal Moniruzzaman (1615615; RAB Intelligence, 2019-2023). Their photographs were shown to a soldier who had been stationed at the TFI centre during the relevant period; he recognised both men as his guard commanders.¹⁵²

Given the guard commanders' close and regular contact with captives, it is reasonable to conclude that they were more likely than ordinary soldiers to know the detainees' identities.

¹⁵² As a witness in an ongoing legal case, the individual's identity has been withheld for safety.

Both were questioned by the Commission but, despite substantial contrary evidence, denied having been posted to the TFI centre. When asked where they had been posted instead, neither was able to provide a credible or internally consistent explanation.

We also received information about a senior warrant officer believed to have taken food to Ahmed: SWO Shahid (described as possibly bald and dark-complexioned). However, the list provided by RAB did not contain any Shahid matching this description in the relevant time period, suggesting the list may have been incomplete. The only Shahid whose tenure aligned was neither bald nor particularly dark in appearance. Due of time constraints, we were unable to pursue this lead further but recommend that future investigators do so.

Ahmed describes being transported to the India-Bangladesh border, where he was handed over to the officials on the Indian side. The formal nature of the handover, combined with the presence, well inside Indian territory, of suspected Bangladeshi security personnel wearing hoods over their heads to avoid recognition, underscores the high level of coordination between the two Governments and their respective security forces.

Based on the discussion above, culpability for Ahmed's disappearance therefore *prima facie* falls on the RAB DG of the time, BP 6388000021 AIG Dr Benazir Ahmed, RAB ADG (Ops) BA 4060 Col Ziaul Ahsan and RAB Director Intelligence BA 5294 Lt Col Md Abul Kalam Azad (deceased).

This case demonstrates that attribution does not depend exclusively on the cooperation of officers or guards who later deny involvement. Once a detention location is credibly identified, and the institutional chain responsible for operating that site at the relevant time is established, responsibility can still be inferred to a reasonable standard, even where individual witnesses remain evasive or uncooperative.

The same logic applies in rendition contexts: if the site of initial custody and the authorities controlling that facility are known, and the subsequent transfer follows a documented pattern between agencies or across borders, then accountability can be traced through command structures. In other words, the combination of place, control, and practice enables attribution, even when those involved refuse to acknowledge their role.

13.2.2 Survivor examples: Golam Mortuza Mihin and Abdullah Zayed Bin Sabit

On 14 July 2010, following evening prayers, Shibir student leader Golam Mortuza Mihin was abducted near Rabindra Sarobar, Dhaka. Mihin was forced into a white Hiace van, blindfolded, stripped off his belongings, and heard one of the abductors report over the phone, "Subject closed". This individual identified himself as Captain Tauhid several times on the phone; subsequently, when entering a secure facility, the driver told the guard (as overheard by Mihin): "Don't you see Captain Tauhid is in front? Open the door." At the point of abduction, Mihin also saw the man he later identified to the Commission as Captain Tauhid. Additionally, Mihin's friend, Abdullah Zayed Bin Sabit, saw Mihin being abducted by Captain Tauhid; Sabit would later see this same Captain during his own abduction a few weeks later.

Subsequently, the vehicle passed several security bumps before entering a compound the Commission identified as the TFI centre, based on the descriptions provided by the victim.

Inside, he was taken upstairs and subjected to prolonged electric-shock torture, suspension by the arms, genital electro-shock, and beatings. Interrogation themes centred on weapons, alleged militant plots, and organisational plans – accusations he consistently denied.

He was placed in a line of narrow barred cells arranged around a central corridor. For many days, torture was near-daily, food was minimal, and his hands were frequently cuffed overhead. On some occasions when his blindfold slipped during the torture, he again spied the same officer, Captain Tauhid, who had abducted him. One day, he saw Sabit, who he had been told by his interrogators had been killed, in the cell opposite his.

Mihin was periodically taken outside to identify associates and locations. During one trip, interrogators staged a mock execution, loading a weapon and threatening to kill him unless he confessed to militant links. Eventually, interrogators offered to release him on strict conditions: deny RAB involvement, avoid politics, and never discuss his detention.

On 29 August 2010, he was transported over what he suspected was the Jamuna Bridge, transferred between vehicles, and ultimately brought to RAB 5 in Rajshahi, where officers dictated the narrative he was to give in court. He was subsequently arrested. Contemporaneous documents of his disappearance and reappearance in RAB custody exist.

Abdullah Zayed Bin Sabit, then president of Mohammadpur Thana Chhatra Shibir, was abducted on 2 August 2010 amid a broader crackdown on Jamaat-Shibir leadership. Armed men in black stopped his CNG, assaulted him publicly, bound and blindfolded him, and transported him to a secure location. He recognised one of his captors as the same person he had seen abducting Mihin, Captain Tauhid.

Inside an interrogation room, multiple officers questioned him about jihad, weapons, and militant networks. Each denial prompted renewed physical assault. He was kept in a cell identified by the Commission as consistent in description to cells at the TFI centre, where he saw Mihin opposite him.

He was eventually handed over to Mohammadpur Police Station, where he was subjected to further interrogation and beatings. Subsequently, he was taken to court, presented as lawfully arrested by 5 August 2010, and sent to jail.

When questioned by the Commission, BA 6829 now Lt Col Tauhid stated that although he had been posted to the RAB Headquarters Intelligence Wing between 2010 and 2012, he had never served at the TFI centre. When asked where his superior officer, BA 5294 Lt Col Abul Kalam Azad (then OIC, TFI), to whom he acknowledged reporting, was located, he claimed that he did not know the location of his superior's office and had never been informed of it during all his years with RAB Intelligence.

The Commission finds this claim inherently implausible. A serving officer professing ignorance of the physical location of his direct superior's office over an extended posting fundamentally undermines the credibility of his account. This assertion is contradicted by BP 7206109818 ASP Maksudur Rahman, who confirmed that Tauhid had in fact been posted to the TFI team and maintained an office on the second floor of the TFI centre.

Tauhid's denial is also contradicted by victim testimony. Both Mihin and Sabit independently identified him by face before the Commission, and the Commission finds no plausible

alternative explanation for how they could have known that Tauhid was a member of the TFI team at the time or heard his name repeatedly.

Lt Col Tauhid further argued that he could not have been involved in the relevant incidents because of illness, submitting medical documentation in support of his claim. The records show that he attended an ISSB course beginning on 11 April 2010; was hospitalised between 28 April and 2 May; briefly returned to the course; underwent surgery on 5 May; and was transferred from CMH Chittagong to CMH Dhaka on 6 July. He was discharged from CMH Dhaka on 12 July 2010 after five days of observation.

Mihin was abducted on 14 July 2010 and Sabit on 2 August 2010. When it was put to him that discharge on 12 July would ordinarily require him to rejoin his parent unit by 13 July, Tauhid claimed instead that he remained within the Army and did not return to RAB Intelligence. He provided no movement order or other documentation to support this claim. In the absence of such documentation, it would not have been lawful for an officer to avoid rejoining his unit.

Tauhid next argued that he was again unwell during this period, pointing to records showing he was “sick in quarters” from 8 August and hospitalised from 24 August to 4 September. The Commission rejects this reasoning. On the contrary, the detailed records both before and after the abductions only highlight the absence of any documentation covering the critical intervening period. Had he genuinely been incapacitated then, comparable medical records would reasonably be expected.

In assessing credibility, the Commission accords greater evidentiary weight to converging indicators, particularly direct visual identification by two victims at the point of abduction. Set against this, Lt Col Tauhid’s denial of his TFI posting, his claimed ignorance of the location of his superior’s office, and his failure to substantiate his alleged absence collectively and decisively undermine the credibility of his account.

As with Mihin’s case, Abdullah’s experience shows deliberate sequencing: covert detention, coercive interrogation, threats, and later “legalisation” via police and courts — a hallmark of enforced disappearance systems operating through both intelligence and battalion structures. All relevant documentation concerning these matters has been transmitted by the Commission to the investigators of the International Crimes Tribunal for further action.

At the time of these events, the TFI centre operated under a clear chain of command: RAB Director General Addl IGP Hasan Mahmud Khandokar (02.02.2007-31.08.2010); ADG (Operations) BA 2884 Colonel S M Motiur Rahman (16.02.2010-18.12.2010); and Director, RAB Intelligence BA 4060 Lt Colonel Ziaul Ahsan (03.09.2009-07.12.2013). OIC TFI was BA 5294 Lt Colonel Md Abul Kalam Azad, subsequently promoted to Director Intelligence.

As the senior officers exercising authority over TFI operations, they bore *prima facie* superior and command responsibility for the unlawful detention and treatment of captives held there. Lt Col Tauhidul Islam, whose presence and actions were independently identified by victims and corroborated by contextual evidence, *prima facie* bears direct responsibility for his role in the abduction and custody of detainees.

This case also reaffirms a central finding of the Commission: even where officers deny involvement or attempt to obscure their postings, responsibility can still be established through documentary records, command-structure evidence, site identification and converging victim

testimony. In systems built to conceal culpability, it is the alignment of place, time and authority that ultimately reveals where responsibility lies.

13.2.3 Missing cases examples

The missing cases have proved among the most difficult to resolve. In most instances, almost no trace remains: captives were moved across jurisdictions, official records were suppressed or destroyed, and even those present during executions often did not know who the victim was. Again and again, our obstacle has not been the absence of evidence that killings occurred, but the near impossibility of identifying *who* was killed. In several testimonies, witnesses describe large numbers of executions, sometimes exceeding two hundred victims, yet without any way to determine the identity of those killed. As an officer recounted:¹⁵³

অভিযানে গোয়েন্দা পরিচালক লেঃ কর্ণেল জিয়াউল আহসান তার ইন্টেলিজেন্স উইং এর টিমসহ অংশগ্রহণ করেন। তবে এই এনকাউন্টার অভিযান পরিচালনার আগের রাতে লেঃ কর্ণেল জিয়াউল আহসান এর নির্দেশনা ও পরিকল্পনায় ইন্টেলিজেন্স উইং এর সদস্যদের সহায়তায় একটি গর্ফ অভিযান পরিচালনা করা হয়। সেখানে নাম না জানা ৪ জন ব্যক্তিকে প্রথমে গুলি, পরবর্তীতে পেট কেটে সিমেন্টের বস্তা বেঁধে নদীর মোহনায় ফেলে দেওয়া হয়। উক্ত গর্ফ অপারেশনে আমি স্ব-শরীরে ঐ ট্রলারে উপস্থিত ছিলাম।^{cxvi}

In approaching these cases, the Commission developed three complementary strategies.

1. Our first approach focused on reconstructing the abduction: We attempted to locate eyewitnesses, map vehicles and movements, and identify which units conducted the pickup. In the rare instances we succeeded, it did not reliably lead to the execution teams, much less to the burial site of the disappeared. This has been a source of deep distress for the families. Several famous missing cases illustrate both the potential and the limits of this method.

Missing BNP leader Sajedul Islam Sumon and his seven companions (4 December 2013)

Through multiple corroborating testimonies, we determined that the pickup was conducted jointly by RAB Intelligence and RAB 1, with the then RAB 1 Commanding Officer BA 4490 Lt Colonel Kismat Hayat acknowledging in writing to the Commission that he had sent a patrol team to facilitate the operation but insisting he did not know of the final plans with or the fate of the victims. Members of that patrol team identified BA 6256 Major Mohammad Mahfuz-ul-Amin Noor of RAB Intelligence as present during the pickup. Major Mahfuz Noor denied involvement in the pickup, stating that his role was limited to mobile-phone tracking. Given the number and consistency of witnesses, however, we are satisfied that the pickup is established. Yet the subsequent fate of the victims remain unknown.

Missing BNP leader M Ilias Ali (17 April 2012)

Eyewitness testimony from a soldier involved in the abduction linked the operation to then Director of RAB Intelligence, BA 4060 Lt Colonel Ziaul Ahsan, working with BA 5341 Major Ashraful Abedin aka Major Nawshad and his team. Although we identified other participating officers, they have since refused to disclose what happened thereafter.

¹⁵³ As a witness in an ongoing legal case, the individual's identity has been withheld for safety.

Missing Shibir member Hafez Md. Zakir Hossain (3 April 2013)

A member of the pickup team recalled the case with unusual clarity because the victim, Hafiz Zakir, requested permission to pray while being transported to TFI, explaining that he was a *hafiz* and did not want to miss his prayers. This moment left a strong impression on the soldier, who voluntarily approached the Commission after the 5 August changeover to describe the incident. He was able to identify the location of abduction, and the Commission is satisfied that both the site and the victim were accurately identified. According to his account, Zakir was removed from the TFI centre a few days later and has never been seen again. The pickup team included BA 5480 then Major Abdullah Al Momen (later RAB 1 CO as well as ADG Ops during the July 2024 uprising) along with BA 7089 then Captain H M Selimuzzaman. Both officers denied involvement in any enforced disappearance but now Lt Colonel Selim acknowledged being a member of then Major Momen's team.

In these cases, command responsibility falls on the then AIG Md. Mokhlesur Rahman, who served as RAB DG from 02 September 2010 to 31 December 2014; BA 3421 then Colonel Majibur Rahman who served as RAB ADG (Ops) from 19 September 2011 to 10 November 2013 [sic]; and BA 4060 then Lt Colonel Ziaul Ahsan served as Director of RAB Intelligence from 03 September 2009 to 07 December 2013.

However, the cases demonstrate a recurring pattern: even where responsibility for the abduction can be legally attributed, the families' central question — *what happened to our relative?* — remains unanswered.

2. Our second method involved reconstructing suspected execution events: In one instance, an officer described accompanying a mixed RAB intelligence and battalion team on a night-long operation in which approximately five men were executed along a specific route. Although he could not recall the exact date, he remembered key circumstantial details, notably that a colleague was transferred out of his battalion the following day. By locating the relevant posting order of that colleague, we were able to identify the precise night of the operation.

Cross-referencing this timeline with newspaper archives from the following days, bodies recovered along the described route were located, bearing characteristic gunshot wounds. This allowed us to link the operation to then Director of RAB Intelligence BA 4060 Lt Colonel Ziaul Ahsan, who multiple witnesses identified as the shooter that night, and to locate specific victims who had been logged in the local police stations as unidentified bodies.

A second case emerged from the testimony of an officer that BA 4060 then Lt Colonel Zia had boasted to him of killing a BDR soldier on the instructions of General Tariq Siddiqi, apparently as part of a post-BDR carnage "cleanup" in which potential state witnesses were eliminated. Newspaper searches again yielded information about the body. Although the family had not submitted a complaint to us, a search through our files showed the case (Code BIHF¹⁵⁴) had been logged previously in an Ain o Shalish Kendra (ASK) archive.

Only after connecting several disjointed testimonies from officers as well as civilians from that period were we able to reconstruct the operation. In the course of pursuing just this lead, numerous additional executions surfaced, but the victims' identities almost always remained

¹⁵⁴ Male of unspecified age; disappeared in 2010; dead body discovered

unknown. Effectively, these events pointed to killing location (usually rivers) where hundreds of bodies without names were regularly dumped.

3. Our third avenue relied on survivor accounts: In the case of Shibir member Jaynul Abedin,¹⁵⁵ he and Code BHFI¹⁵⁶ were detained first at RAB 7 and then transferred to the TFI centre. They were held in adjacent cells and were able to communicate during their detention.

Abedin initially believed that Code BHFI had been picked up because of associating with him and expressed remorse on that basis. Code BHFI, however, explained that he had in fact been detained earlier, and that likely the analysis of his phone records, which showed regular contact with his friend and teacher Abedin, had led to Abedin's abduction. One day, Abedin was removed from the TFI centre along with several other detainees and never seen again. Code BHFI survived and provided detailed testimony to the Commission.

We identified the RAB 7 CO of the time, BA 5077 Brigadier Miftah Uddin Ahmed, who denied all knowledge of enforced disappearance. The TFI OIC of the time, BA 7037 Lt Colonel Shaheen Azad, acknowledged serving as TFI OIC from late 2016 during his posting at RAB Intelligence, yet claimed TFI was merely an administrative mechanism for joint interrogations. When asked where these interrogations occurred, he stated that he arranged them in various locations, including a RAB 1 company commander's room. Pressed on why interrogations would occur in RAB 1 when ample space existed at Headquarters where he claimed he was posted, he could not explain. In essence, he wanted to deny the existence of the TFI building altogether.

All evidences related to these cases have been provided to the ICT's investigation unit, therefore we have been deliberately sparse with the details above.

Together, these three methods — tracing pickups, reconstructing executions, and relying on survivor testimony — have allowed us to uncover truths that would otherwise have remained buried. Yet they remain partial: pickups seldom led us to execution sites; reconstructed executions rarely yielded full victim identification; and survivor testimony confronted walls of institutional denial. Despite these limitations, the methods documented above provide future investigators with workable pathways for pursuing still-unresolved disappearances, whilst also demonstrating the extent of concealment that must be confronted.

13.2.4 Attributed responsibility from the 256 case cluster

Table 10 at the end of this document presents the attribution of responsibility across the 256-case cluster discussed earlier. These are cases in which contemporaneous evidence exists both at the point of abduction and at the point of release into legal custody. In addition, the victim is alive and therefore able to provide descriptions that allow us to identify detention locations.

Some individuals within the 256 may have had links to criminality, such as extremism; the Commission has not assessed this, as it falls outside our mandate and capacity. However, based on interviews, it is highly unlikely that all documented individuals were criminals. In any event, individual criminality cannot be addressed through reciprocal criminal acts by the State.

¹⁵⁵ 22 year old male; disappeared in 2017; still missing

¹⁵⁶ 16 year old male; abducted by RAB 7, RAB Intelligence and RAB 14 in 2017; disappeared for 3.5 years

As discussed in the previous chapters, such practices generate serious institutional and societal blowback.

In addition to identifying alleged perpetrators with *prima facie* evidence, the dataset reveals consistent patterns that point to a wider systemic problem. Successive officers occupying command positions are repeatedly implicated across multiple years and multiple chains of custody. This recurring presence of leadership-level responsibility indicates not episodic misconduct but the operation of an institutional system in which enforced disappearance became routine rather than exceptional.

A further complexity concerns attribution across time. Several individuals appear in the dataset more than once, not because of duplication, but because they occupied different command roles during different periods. Officers moved from battalion command to headquarters positions, or from district postings to specialised counterterrorism units, often carrying forward the same operating practices. In such instances, the liability attached to each role is analytically distinct: the authority, information flows, and scope of decision-making change with rank and posting. Treating these as separate entries therefore reflects institutional reality rather than inflating numbers. It also underscores a deeper point – what is visible here is not merely the conduct of individuals, but the continuity of a system that travelled with them as they advanced through the chain of command.

It is important to note that this list represents only a small subset of the total complaints received by the Commission. The full list of alleged perpetrators is likely to be substantially larger. In several instances, the Commission was able to identify detention locations and the officers in charge of those facilities but was unable to trace the detainees themselves. One such example is the NSI facility known as Usree House. The Commission received information that, ahead of the 2024 national elections, several politically connected detainees had been held there. When the Commission visited the location, it found that individual bedrooms bore telltale labels and holes in walls and ceilings consistent with the prior installation of CCTV cameras, a highly implausible arrangement if, as personnel on site claimed, the rooms were merely used as officers' bedrooms. A witness present at the site corroborated the timeline and admitted that people had been detained there. However, none of the victims could be located; the most promising lead identified by the Commission had died several months earlier.

Another case in point is BA 4664 Brigadier Imran Ibne A Rouf. One complaint (Code BGHE¹⁵⁷), received through the ASK archive, recorded that four men were abducted, of whom two later returned while two remain missing till date. The survivors identified RAB 10 as the unit responsible for the abduction. At the relevant time, Brigadier Imran served as RAB 10 CO. Despite being summoned twice by the Commission as an alleged accused, he failed to appear or provide any explanation for his repeated absence. In these circumstances, the Commission is compelled to draw adverse legal inference regarding his involvement.

Taken together, these findings reinforce the central claim of this report: enforced disappearance in Bangladesh was widespread, organised, and systemic, not a series of isolated deviations. Our task has been to make that system legible while protecting the dignity of those who endured it. Without comprehensive structural reform, the practices we documented risk recurring, because the institutional “muscle memory” that enabled them remains intact.

¹⁵⁷ Four victims likely aged 18-21y; disappeared in April 2013; two returned, two remain missing

14. Measures required for accountability and non-repetition

Enforced disappearance is not a partisan political issue and should not be made one. As the examples below demonstrate, under Sheikh Hasina, it affected everyone.

A BNP activist recounted to us the traumatic memory of his torture (Code BJH¹⁵⁸): “গোপনাস্ত্রে ইলেকট্রিক শক দেয়ার সাথে সাথে আমি সেন্সলেস হয়ে পড়ে যাই ওইখানে। কতক্ষণ শুয়ে আছি জানিনা। কিছুক্ষণ পর কানে আওয়াজ শুনতেছি, তারা কথা বলতেছে, ‘বেঁচে আছে, বেঁচে আছে’... দাঁড়ানোর পর বলতেছে ‘তাকে বুলা।’ ... আবার বুলাইয়া, আবার পিটানো। ... বলে তুই বুঝস না? তুই পিলখানা হত্যাকাণ্ড নিয়ে লেখস।^{cxvii}”

A medical student, who was a Shibir activist, was left with permanent injury following his disappearance (Code CEB¹⁵⁹): “আমাকে ওদের টর্চার রুমটার সামনে রাখতো। তো যখনই খুবই হাই ভলিউম মিউজিক বাজতো, তখনই আমি বুঝতাম যে, কাউকে না কাউকে মারতেছে। এবং তাদের চিংকারের শব্দ এত বেশি আসতো, আসলে আমার তখনই মানে ডেফিকেশনের [মলত্যাগ] চাপ চলে আসতো। ... আমার কন্টিনিউয়াস দুই মাস চোখ বাঁধা ছিল। ওরা চোখ বেঁধে রাখার কারণে আমার চোখে প্রচণ্ড ব্যথা হতো। মনে হচ্ছে সবকিছু ছিড়ে যাবে। ... পরে যখন আমি বের হলাম, তখন আমার চোখে অপারেশন করা হয়। মানে এই চোখে রেটিনা এন্ডিং যেটা, এটা ছিড়ে যায়।^{cxviii}”

A female student recalls her humiliation when (Code BIAH¹⁶⁰): “অনেকটা ক্রুসিফাইড হওয়ার মত করে হাত দুই দিকে বেঁধে বুলিয়ে রাখছে। ওরা আমাদের ওড়না নিয়ে নিছিল; আমার গায়ে ওড়না ছিল না। আর যেহেতু জানালার দিকে মুখ করা ছিল, অহরহ পুরুষ মানুষ যে কতগুলো আসছে দেখার জন্য এটা বলার বাহিরে। মানে তারা একটা মজা পাচ্ছে। বলাবলি করতেন যে, ‘এমন পর্দাই করছে, এখন সব পর্দা ছুটে গেসে।’ ” She also added, “আমার পিরিয়ড হওয়ার ডেট ছিল অনেক লেটে। কিন্তু যেই টর্চার করে তাতে আমি এত পরিমাণ অসুস্থ হয়ে যাই যে, সাথে সাথে আমার পিরিয়ড আরম্ভ হয়ে যায়। তারপর উনাদেরকে বলি যে, “আমার তো প্যাড লাগবে” - এটা নিয়ে অনেক হাসাহাসি করে ওরা।^{cxix}”

The human cost of sustaining the Awami League’s rule has been staggering. Lives were lost, careers shattered, educations cut short, and families torn apart. Survivors carry deep psychological and physical scars, often worsened by years spent entangled in fabricated legal cases. The criminal justice system itself was turned into an instrument of repression. In our sample, the median legal cost borne by a victim is BDT 700,000, almost twice the average annual household income, while cases drag on for years, draining families and communities of stability, security, and hope. In many instances, victims were also illegally transferred across borders through covert rendition practices.

¹⁵⁸ 38 year old male; abducted by CTTC in 2021; disappeared for 33 days

¹⁵⁹ 21 year old male; abducted by RAB Intelligence and RAB 13 in 2016; disappeared for 2 months

¹⁶⁰ 25 year old female; abducted by police in 2018; disappeared for 24 days

Even the security forces were not spared. Demoralised by institutional complicity and compromised by the presence of culpable actors within their ranks—many of whom are now vulnerable to hostile intelligence services and, thus, pose a threat to national security—they require deep reform to resist future political pressure of a similarly criminal nature. Clearly, the Awami League’s regime of fear affected people of all strata of society wearing all political colours. It should, thus, be our unified national goal to eradicate this culture altogether.



64 Fig: Female captives have complained of not being able to cover themselves with orna and being harassed by male law enforcers (illustration based on survivor accounts)

This final chapter translates the Commission’s findings into measures aimed at preventing recurrence and enabling lawful accountability. The objective is a durable reset: dismantling the conditions that enabled enforced disappearances and restoring public trust. In its interim reports, the Commission recommended the enactment of laws criminalising enforced disappearance, including recognition of its continuing nature and the application of command and superior responsibility. We also recommended the establishment of specialised bodies with the independence and authority necessary to investigate such crimes. With the Commission’s input, the interim government has enacted ordinances addressing these concerns. These laws must now be ratified by the next government through Parliament. The remaining work required to consolidate these reforms is set out below.

Dismantle the institutional machinery of disappearance

- **The Government must dismantle RAB.**
RAB has been at the centre of the system of enforced disappearance, torture, and extrajudicial killing described in this report. Its legal mandate, operational culture, and chain of command have proved resistant to reform. The force should therefore be wound up as an institution, with transitional arrangements that protect evidence and enable prosecutions. Any future specialised units must be placed under strict civilian oversight, with narrow mandates and independent monitoring.

- **The Government should withdraw the armed forces from domestic law enforcement roles.**
 Military officers have repeatedly occupied senior positions in law enforcement and intelligence organisations that were central to the system of secret detention and scripted prosecutions. Through deputation, military chains of command were extended into civilian policing, eroding clear lines of accountability. These composite arrangements exposed both military and police officers to unlawful practices and corruption, placing personnel trained for fundamentally different roles into hybrid command structures that weakened professional standards and normalised misconduct. Such arrangements should be phased out and prohibited in future, with civilian expertise restored and strengthened within the relevant institutions.
- **The disciplined forces must address coercive career incentives, provide redress for past retaliatory practices, and reform evaluations to prevent recurrence.**
 The Commission heard repeated testimony that officers who resisted participating in unlawful operations faced tangible retaliation, including adverse performance reports, manipulated course results that undermined merit-based promotion, stalled careers, punitive postings, and withdrawal from UN peacekeeping missions. Over time, these coercive incentives fostered a culture in which participation in illegality became normalised as a condition of professional survival. This culture must be confronted directly. Internal review mechanisms should identify personnel whose records reflect retaliatory downgrading linked to refusal to engage in unlawful acts and provide appropriate redress. At the same time, future evaluation systems should reward lawful restraint and respect for rights, rather than obedience at any cost. Without addressing these internal dynamics, resentment within the ranks will persist, leaving institutions vulnerable to renewed politicisation and future cycles of abuse.
- **The Government must strengthen judicial capacity.**
 The Government must substantially strengthen the judiciary through increased staffing and modern infrastructure. At present, 4.5 million pending cases are being handled by only around 2294 judges, an imbalance that undermines timely and effective justice. Without sufficient manpower and institutional support, judicial independence cannot be meaningfully exercised. If law-enforcement agencies and the wider public lose confidence in the judiciary's ability to act fairly and promptly, extra-legal practices become more likely and may even gain public acceptance. Such an erosion of trust would be deeply harmful, entrenching illegality and weakening the rule of law.

Reform counter-terrorism laws and practices

- **The Anti-Terrorism Act 2009 should be repealed or fundamentally amended.**
 The Act, including its 2012 amendments, has been repeatedly misused to initiate politically motivated or fabricated cases against individuals held in secret detention. Vague and expansive definitions of “terrorist activities” have enabled this abuse, while the inclusion of the death penalty has significantly raised the stakes of such prosecutions. The Government should therefore clarify and narrow the definition of terrorism to prevent its continued misuse.

- **The Government should adopt a strategic policy to counter terrorism that prioritises community-based prevention over militarised repression.**
Counter-terrorism should be grounded in engagement with locally trusted actors and institutions, including religious leaders, educators, and civil society organisations, and in rehabilitation and deradicalisation programmes for those at risk. Extremism must be addressed at its roots through social policy, education, and inclusion, rather than being treated solely as a law enforcement problem to be managed through special laws and exceptional force. Learning from successful regional examples, instead of the wholesale adoption of militarised US counter-terrorism norms, is key.
- **The Government must reform the relevant laws to remove any incentives for extra-legal detention and coercion.**
Law enforcement agencies have repeatedly argued that investigations into terrorism and ideologically motivated crimes require longer pre-charge detention than those permitted under existing law, and that this constraint has driven officers toward unlawful detention and coercive practices. To counter this argument, we recommend preventive detention of the suspects as per the law of the land (The Special Powers Act, 1974). However, some amendments of the relevant laws may be made to include limited delays in family notification where courts are satisfied that there is a genuine risk of accomplices fleeing, accompanied by mandatory reporting to the judiciary, if needed using video technology. Such reforms would allow time for law enforcement to operate flexibly but lawfully, protect the rights of the accused, and align Bangladesh's legal framework with evolving regional approaches to such crimes.
- **The judiciary must address the weaponisation of the criminal justice system.**
The justice system must confront the use of the criminal justice system as a tool of repression, particularly with regards to the Anti-Terrorism Tribunals. Cases involving potential victims of enforced disappearance should be prioritised in light of the structural realities documented in this report. Judges must be equipped, through systematic training and orientation, to recognise patterns of secret detention, coerced confessions and fabricated evidence, and to exclude unlawfully obtained material or order institutional inquiries where appropriate. Many victims have endured years of pre-trial detention, repeated adjournments and the constant threat of capital punishment, making prompt and structured review essential. Where judicial conduct contributed to the misuse of criminal law, institutional mechanisms should also examine failures of due diligence during the previous regime, including in the recording and acceptance of coerced Section 164 confessions. Addressing both backlog-driven delay and institutional failure is necessary to restore confidence in the administration of justice and prevent recurrence.

Strengthen accountability for law enforcement and intelligence agencies

- **The Government must repeal Section 13 of Armed Police Battalion Act 2003.**
This provision grants members of law enforcement immunity for acts done “in good faith”, which in practice has blocked victims' access to justice and shielded perpetrators behind a vague standard. Its repeal is necessary to bring the forces into line with constitutional guarantees and international standards that forbid blanket immunities for serious human rights violations.

- **The Government must depoliticise all law enforcement and intelligence forces.**
Intelligence and law enforcement agencies have been repeatedly drawn into partisan political work at the direction of governing parties. The use of state security institutions for political purposes must cease. Bureaus within intelligence agencies that are tasked with political surveillance or partisan activity must be dismantled.
- **The Government must codify the legal mandates of intelligence agencies.**
Clear statutory frameworks must define the lawful functions, limits and accountability structures of intelligence agencies, so officers are not left to operate in legal grey zones. Where questioning of suspects requires secrecy for justified national security reasons, the law should permit the production of detainees before a specially designated judicial authority with appropriate security clearance, including by video where necessary. This would preserve confidentiality while upholding the fundamental requirement of judicial oversight, preventing incommunicado detention and abuse, and ensuring that security operations remain anchored in the rule of law.
- **The Government must invest in the professional capacity of law enforcement.**
Law enforcement in Bangladesh remain understaffed, under-equipped and under-funded, conditions that have weakened investigations and incentivised coercive practices. These deficits must be addressed through sustained public funding, increased manpower, and modern investigative infrastructure. Officers should receive rigorous training in lawful investigation, evidence-based case construction, and forensic methods, so that prosecutions can meet judicial standards without reliance on coerced confessions. Capacity building should include carefully structured international partnerships focused on technical skills, forensic science, and rights-compliant investigation, rather than the wholesale importation of foreign counter-terrorism doctrines. Past experiences show that externally driven security models can distort priorities and produce harmful outcomes if adopted uncritically. Future cooperation should therefore be selective and grounded in domestic strategic priorities, with the aim of strengthening professional competence.
- **The Government must institute regular, mandatory human rights training for members of law enforcement and intelligence agencies.**
Training should cover international human rights and humanitarian standards, relevant UN conventions, and the fundamental rights guaranteed in Part III of the Constitution. It should be practical and scenario-based, with clear guidance on lawful arrest, custody, interrogation, and use of force, and should be repeated throughout an officer's career rather than treated as a one-off exercise.
- **The Government must treat unresolved criminal liability within the security sector as an active national security vulnerability, and address it through credible accountability or transitional justice processes.**
Officials who remain in service while facing credible allegations of serious criminal conduct may become vulnerable to blackmail, coercion, and manipulation by hostile intelligence services seeking leverage over State institutions. At the same time, individuals who have absconded abroad, as well as those who facilitated such flight, can continue to pose risks through witness intimidation, interference with investigations, disinformation, and the maintenance of illicit networks. These are not only accountability concerns but also ongoing security threats. The Government should therefore establish clear pathways to resolve these risks: either (i)

prosecutorial routes with specialised investigative capacity, witness protection, and effective international cooperation (mutual legal assistance, asset tracing, and, where appropriate, extradition), or (ii) transitional justice mechanisms, such as truth-seeking and healing processes, vetting and institutional reform, and other structured measures, designed to secure disclosure, protect victims, prevent recurrence, and remove leverage that hostile actors can exploit. Any approach must be grounded in due process, independent oversight, and transparent criteria, so that security sector integrity is restored without substituting one form of arbitrariness for another.

Victim-centred justice, reparation, and rehabilitation

- **The Government must ensure reparation and rehabilitation are central to any reform process.**

Families of the disappeared have suffered profound psychological, social and economic harm. Many lost primary breadwinners, while others exhausted their resources pursuing legal remedies in cases built on fabricated or weak evidence. Survivors also continue to bear lasting physical injuries and psychological trauma, compounded by false criminal cases that restrict employment, mobility and social reintegration. Those returning to society after torture and prolonged detention often experience social isolation, loss of livelihood and a deep erosion of trust in the State. Beyond the injustice of this situation, these conditions can also be exploited by extremist networks and generate long-term security risks. In close consultation with victims and families, the Government should implement a comprehensive reparation and rehabilitation policy addressing both families and survivors. This should include financial compensation, access to healthcare, trauma informed mental health services and education, legal assistance to clear false cases, employment reintegration support, and formal acknowledgment of wrongdoing.

- **The Government must ensure victims and witnesses are protected and supported throughout investigative and judicial processes.**

Any new investigative unit and prosecutorial mechanism must incorporate robust witness-protection measures, including relocation and identity protection where necessary, to ensure that survivors, witnesses and whistle-blowers can testify without fear of retaliation.

- **The Government must ensure the preservation and memorialisation of former secret detention sites.**

Former secret detention facilities must be formally preserved and converted into public museums and sites of memory and education. Without memorialisation and public access, documented abuses risk fading from collective consciousness, creating space for denialist narratives that contest or minimise what occurred and weaken accountability and collective reckoning. Even sites located in areas requiring heightened security, such as within cantonments or other restricted zones, must be preserved as memorial sites, with access structured for appropriate audiences, such as security-sector cadets. The Government must act promptly to publicly memorialise these locations, as delay risks their gradual loss through neglect, decay and ordinary wear, resulting in the irreversible erosion of their historical and evidentiary value.

Enhance constructive engagement and cooperation under UN human rights mechanisms

- **The Government must extend a standing invitation to the UN Human Rights Council Special Procedures.**

Extending a standing invitation to the UN Human Rights Council Special Procedures would reflect Bangladesh's continued commitment to constructive engagement with international human rights mechanisms. Such cooperation would allow independent UN mandate-holders, including the Working Group on Enforced or Involuntary Disappearances, to provide technical expertise and constructive recommendations to support national efforts to address allegations of enforced disappearances and strengthen safeguards related to arrest, detention, and accountability. Regular and unrestricted engagement with Special Procedures would contribute to the identification of structural gaps, enhance preventive measures, and support the alignment of security-sector practices with international human rights standards, consistent with Bangladesh's international obligations.

- **The Government should withdraw its reservation from Article 14(1) of the UN Convention against Torture, and recognise the competence of the Committee Against Torture.**

Withdrawing the reservation to Article 14(1) of the Convention against Torture and recognising the competence of the Committee Against Torture under Article 22 would strengthen Bangladesh's engagement with international treaty bodies, enhance access to remedies for victims, and support the effective implementation of the Convention. Such steps would demonstrate the State's commitment to accountability, transparency, and compliance with its international human rights obligations, consistent with cooperation with UN human rights mechanisms.

- **The Government should establish a National Preventive Mechanism to operationalise the Optional Protocol to the Convention against Torture.**

Bangladesh is a State party to the Optional Protocol to the Convention against Torture (OPCAT), which requires the establishment of an independent National Preventive Mechanism (NPM) to conduct regular visits to places of deprivation of liberty. The absence of an operational NPM limits the State's capacity to prevent torture and other ill-treatment through systematic monitoring. Establishing an NPM would support compliance with OPCAT obligations, strengthen safeguards against abuse, and enhance transparency and accountability in detention practices.

Implemented together, these recommendations amount to more than a set of technical fixes. They require the State to abandon the informal system of disappearance and scripted justice that has taken root over the past decade and a half. Taken as a whole, they would enable the replacement of that system with institutions which are transparent, accountable, and centred on rights, while also creating clear legal and procedural space for law enforcement and intelligence agencies to operate effectively within the rule of law.

10 Table: Prima facie attribution list, based on only the 256-case cluster

DGFI
DG, DGFI (8 August 2013 to 1 February 2017) BA 2890 Major General Md Akbar Hossain Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BGID (9 August 2014 to 24 September 2014), DHD (10 August 2014 to 24 September 2014), DCD (14 September 2014 to 24 September 2014), IEJ (23 February 2015 to 2 July 2015), BHHG (26 May 2015 to 17 November 2016), BHFJ (22 October 2015 to 16 November 2016), BGEB (4 November 2015 to 8 December 2016), BEG (4 January 2016 to 28 February 2017), FGA (28 January 2016 to 8 December 2016), FEC (25 March 2016 to 16 November 2016), CBI (10 April 2016 to 28 January 2017), CJB (11 April 2016 to 8 December 2016), FGH (29 April 2016 to 8 December 2016), BGJJ (17 May 2016 to 17 May 2019), BGDE (25 May 2016 to 8 December 2016), BHGC (3 June 2016 to 17 November 2016), JG (4 August 2016 to 2 March 2017), EAD (15 August 2016 to 25 January 2019), DG (22 August 2016 to 7 August 2024), BDA (24 October 2016 to 14 February 2018), BFD (17 January 2017 to 27 April 2017), ICB (26 January 2017 to 27 April 2017)
DG, DGFI (2 February 2017 to 4 March 2020) BA 3116 Major General Saiful Abedin Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: JG (4 August 2016 to 2 March 2017), BGJJ (17 May 2016 to 17 May 2019), EAD (15 August 2016 to 25 January 2019), DG (22 August 2016 to 7 August 2024), BFD (17 January 2017 to 27 April 2017), ICB (26 January 2017 to 27 April 2017), DFE (13 February 2017 to 27 April 2017), BHGH (4 February 2017 to 13 December 2017), BHHH (22 August 2017 to 31 December 2017), BGBJ (8 November 2017 to 4 June 2018), BGEI (13 January 2019 to 23 September 2019), BGEJ (13 January 2019 to 23 September 2019), FEF (9 April 2019 to 7 August 2024), BBI (27 February 2019 to 20 February 2020), BBH (8 March 2019 to 20 February 2020), IBG (11 January 2020 to 24 March 2020)
DG, DGFI (5 March 2020 to 27 July 2021) BA 2999 Major General Md Saiful Alam Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DG (22 August 2016 to 7 August 2024), FEF (9 April 2019 to 7 August 2024), BGIG (18 March 2021 to 7 February 2023), EBI (15 July 2021 to 20 September 2023)
DG, DGFI (28 July 2021 to 2 November 2022) BA 3243 Major General Ahmed Tabrej Shams Chowdhury Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DG (22 August 2016 to 7 August 2024), FEF (9 April 2019 to 7 August 2024), BGIG (18 March 2021 to 7 February 2023), EBI (15 July 2021 to 20 September 2023)
DG, DGFI (3 November 2022 to 5 August 2024) BA 3787 Major General Hamidul Huq Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DG (22 August 2016 to 7 August 2024), FEF (9 April 2019 to 7 August 2024), EEG (18 August 2023 to 31 August 2023)
Director, CTIB, DGFI (29 August 2013 to November 2014) BA 3177 Brigadier General Abu Taher Mohammad Ibrahim Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BGID (9 August 2014 to 24 September 2014), DHD (10 August 2014 to 24 September 2014), DCD (14 September 2014 to 24 September 2014)
Director, CTIB, DGFI (November 2014 to August 2018) BA 3622 Brigadier General Mohammad Towhid-Ul-Islam Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: IEJ (23 February 2015 to 2 July 2015), BHHG (26 May 2015 to 17 November 2016), BHFJ (22 October 2015 to 16 November 2016), BGEB (4 November 2015 to 8 December 2016), BEG (4 January 2016 to 28 February 2017), FGA (28 January 2016 to 8 December 2016), FEC (25 March 2016 to 16 November 2016), CBI (10 April 2016 to 28 January 2017), CJB (11 April 2016 to 8 December 2016), FGH (29 April 2016 to 8 December 2016), BGJJ (17 May 2016 to 17 May 2019), BGDE (25 May 2016 to 8 December 2016), BHGC (3 June 2016 to 17 November 2016), JG (4 August 2016 to 2 March 2017), DG (22 August 2016 to 7 August 2024), EAD (15 August 2016 to 25 January 2019), BDA (24 October 2016 to 14 February 2018), BFD (17 January 2017 to 27 April 2017), ICB (26 January 2017 to 27 April 2017), DFE (13 February 2017 to 27 April 2017), BHGH (4 February 2017 to 13 December 2017), BHHH (22 August 2017 to 31 December 2017), BGBJ (8 November 2017 to 4 June 2018)
Director, CTIB, DGFI (17 August 2018 to 6 February 2020) BA 4125 Brigadier General Sheikh Md Sarwar Hossain Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BGJJ (17 May 2016 to 17 May 2019), DG (22 August 2016 to 7 August 2024), BGEI (13 January 2019 to 23 September 2019), BGEJ (13 January 2019 to 23 September 2019), BBI (27 February 2019 to 20 February 2020), BBH (8 March 2019 to 20 February 2020), FEF (9 April 2019 to 7 August 2024), IBG (11 January 2020 to 24 March 2020)
Director, CTIB, DGFI (9 May 2020 to 20 March 2022) BA 4015 Major General Kabir Ahmed Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DG (22 August 2016 to 7 August 2024), FEF (9 April 2019 to 7 August 2024), BGIG (18 March 2021 to 7 February 2023), EBI (15 July 2021 to 20 September 2023)

Director, CTIB, DGFI (15 March 2022 to 29 May 2023) BA 4639 Brigadier General Md Mahbubur Rahman Siddiqui Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DG (22 August 2016 to 7 August 2024), FEF (9 April 2019 to 7 August 2024)
Director, CTIB, DGFI (30 May 2023 to 5 August 2024) BA 4441 Brigadier General Ahmed Tanveer Mazher Siddiqui Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DG (22 August 2016 to 7 August 2024), FEF (9 April 2019 to 7 August 2024), EEG (18 August 2023 to 31 August 2023)
RAB
DG, RAB (2 February 2007 to 31 August 2010) BP 5684000789 Additional IGP Hasan Mahmud Khandakar Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BFBG (14 July 2010 to 29 August 2010)
DG, RAB (2 September 2010 to 31 December 2014) Additional IGP Md Mukhlesur Rahman Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BFA (12 October 2010 to 13 December 2010), EHJ (23 May 2011 to 26 May 2011), DH (8 October 2011 to 13 May 2012), EGF (11 April 2013 to 4 May 2013), BEGH (11 April 2013 to 5 May 2013), BEGI (11 April 2013 to 5 November 2013), BBJD (21 April 2014 to 30 April 2014), EHF (16 October 2014 to 31 October 2014), DHI (28 September 2014 to 1 November 2014), EDH (24 September 2014 to 1 November 2014), FCH (21 October 2014 to 31 October 2014)
DG, RAB (7 January 2015 to 14 April 2020) BP 6388000021 Additional IGP Benazir Ahmed Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BIBA (26 February 2015 to 18 June 2015), GBE (23 February 2015 to 26 August 2015), DGH (21 February 2015 to 12 March 2015), BEGE (6 March 2015 to 15 June 2015), BEGJ (6 March 2015 to 16 June 2015), ECC (14 June 2015 to 2 July 2015), BHHG (26 May 2015 to 17 November 2016), BHFJ (22 October 2015 to 16 November 2016), EHG (18 October 2015 to 24 November 2015), BGEB (4 November 2015 to 8 December 2016), BEG (4 January 2016 to 28 February 2017), FGA (28 January 2016 to 8 December 2016), FEC (25 March 2016 to 16 November 2016), CBI (10 April 2016 to 28 January 2017), CJB (11 April 2016 to 8 December 2016), FGH (29 April 2016 to 8 December 2016), CEB (21 May 2016 to 21 July 2016), BGDE (25 May 2016 to 8 December 2016), BHGC (3 June 2016 to 17 November 2016), IAE (6 June 2016 to 1 January 2017), DDF (20 June 2016 to 21 July 2016), BGDH (21 June 2016 to 14 July 2016), BGFF (21 June 2016 to 14 July 2016), CEC (29 June 2016 to 21 July 2016), DEA (2 July 2016 to 24 August 2016), DDI (13 July 2016 to 24 August 2016), CED (14 July 2016 to 21 July 2016), EBA (10 August 2016 to 26 August 2016), BIIH (24 August 2016 to 22 November 2016), BDA (24 October 2016 to 14 February 2018), EBB (1 December 2016 to 19 December 2016), BFD (17 January 2017 to 27 April 2017), ICB (26 January 2017 to 27 April 2017), DFE (13 February 2017 to 27 April 2017), BIDE (4 March 2017 to 31 May 2017), BHBD (28 March 2017 to 18 June 2017), BFJA (3 April 2017 to 29 May 2017), CCG (10 April 2017 to 4 May 2017), BIAF (2 May 2017 to 17 July 2017), BIAG (2 May 2017 to 17 July 2017), ECG (3 May 2017 to 22 June 2017), ECI (3 May 2017 to 21 June 2017), BIHJ (11 May 2017 to 31 May 2017), BHGD (19 May 2017 to 29 July 2017), EBG (1 June 2017 to 11 June 2017), BIHI (1 June 2017 to 23 July 2017), BIHH (1 June 2017 to 23 June 2017), BGDJ (3 June 2017 to 26 July 2017), BHFH (9 June 2017 to 15 February 2018), BHFI (14 June 2017 to 20 December 2020), EHE (22 September 2017 to 31 January 2018), EDE (20 August 2017 to 28 November 2017), EDG (23 August 2017 to 28 November 2017), EHD (26 August 2017 to 28 November 2017), BEIH (23 September 2017 to 11 October 2017), DFH (9 September 2017 to 12 October 2017), EAF (20 August 2017 to 11 December 2017), EDC (2 October 2017 to 13 December 2017), DGD (4 October 2017 to 29 November 2017), IAF (17 October 2017 to 2 November 2017), CDJ (25 October 2017 to 9 November 2017), BGBJ (8 November 2017 to 4 June 2018), BJE (6 December 2017 to 19 December 2017), BIH (15 December 2017 to 19 December 2017), CDI (8 December 2017 to 20 December 2017), EDJ (4 May 2017 to 28 January 2018), EHG (18 October 2015 to 24 November 2015), BEHG (20 February 2018 to 29 April 2018), EAH (4 March 2018 to 30 April 2018), ICC (12 July 2018 to 30 September 2018), IAH (21 July 2018 to 30 August 2018), DCE (10 August 2018 to 14 January 2019), IDB (29 August 2018 to 11 September 2018), EDD (8 September 2018 to 2 October 2018), BHHF (8 September 2018 to 30 September 2018), IEC (18 September 2018 to 1 October 2018), BAB (27 October 2018 to 6 November 2018), CIC (21 November 2018 to 25 November 2018), BJAIE (18 November 2018 to 28 November 2018), BJB (9 November 2018 to 23 January 2019), DDB (14 February 2019 to 27 March 2019), EEJ (9 March 2019 to 11 April 2019), EFC (12 March 2019 to 17 March 2019), EFA (13 March 2019 to 18 March 2019), GCC (28 June 2019 to 1 August 2019), BHGJ (28 June 2019 to 1 September 2019), BDFG (28 August 2019 to 31 August 2019), BHBJ (4 October 2019 to 27 November 2019), BDBE (22 November 2019 to 27 November 2019), BHCB (24 November 2019 to 31 December 2019), BDDF (10 December 2019 to 19 December 2019), BHCA (19 December 2019 to 31 December 2019), IBG (11 January 2020 to 24 March 2020), CCB (1 March 2020 to 6 March 2020), CHF (3 March 2020 to 7 March 2020), EGC (10 March 2020 to 3 May 2020), BDAG (9 August 2016 to 6 August 2024), BHFG (3 March 2019 to 20 December 2020), BHEA (14 March 2020 to 23 March 2020)
DG, RAB (14 April 2020 to 30 September 2022) BP 6489020946 Additional IGP Chowdhury Abdullah Al-Mamun Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), BHFG (3 March 2019 to 20 December 2020), EGC (10 March 2020 to 3 May 2020), DGE (2 January 2021 to 28 February 2021), BGIG (18 March 2021 to 7 February 2023), EBI (15 July 2021 to 20 September 2023), BHIC (3 August 2021 to 4 September 2021), BEIA (15 August 2021 to 4 September 2021), JJ (19 September 2021 to 29 September 2021), DHG (20 September 2021 to 30 September 2021), BJAIE (19 October 2021 to 30 March 2023), BFGJ (19 November 2021 to 24 November 2021), EEH (13 January 2022 to 21 February 2022), BHDA (7 February 2022 to 17 February 2022), BEJH (19 June 2022 to 8 February 2023), BGII (7 August 2022 to 8 February 2023), CHB (23 August 2022 to 7 October 2022), CGJ (3 September 2022 to 7 October 2022), BGAF (14 September 2022 to 6 October 2022)

DG, RAB (30 September 2022 to 4 June 2024) BP 6491020943 Additional IGP M Khurshid Hossain Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), EBI (15 July 2021 to 20 September 2023), BGCE (17 April 2022 to 14 September 2023), BEJH (19 June 2022 to 8 February 2023), BGII (7 August 2022 to 8 February 2023), BFIJ (7 October 2022 to 23 July 2023), BIJF (8 November 2022 to 5 December 2022), BIJH (14 November 2022 to 5 December 2022), FCA (22 December 2022 to 2 May 2023)
DG, RAB (5 June 2024 to 7 August 2024) BP 6795000031 Additional IGP Barrister Md. Harun-or-Rashid Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024)
ADG (Ops), RAB (16 February 2010 to 18 December 2010) BA 2884 Colonel S. M. Motiur Rahman Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BFBG (14 July 2010 to 29 August 2010), BFA (12 October 2010 to 13 December 2010)
ADG (Ops), RAB (19 December 2010 to 19 September 2011) BA 3010 Colonel A. F. M. Jahangir Alom Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: EHJ (23 May 2011 to 26 May 2011)
ADG (Ops), RAB (19 September 2011 to 10 November 2013) BA 3421 Colonel Majibur Rahman Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DH (8 October 2011 to 13 May 2012), EGF (11 April 2013 to 4 May 2013), BEGH (11 April 2013 to 5 May 2013), BEGI (11 April 2013 to 5 November 2013)
ADG (Ops), RAB (7 December 2013 to 27 April 2016) BA 4060 Colonel Ziaul Ahsan Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BBJD (21 April 2014 to 30 April 2014), EDH (24 September 2014 to 1 November 2014), DHI (28 September 2014 to 1 November 2014), EHF (16 October 2014 to 31 October 2014), FCH (21 October 2014 to 31 October 2014), DGH (21 February 2015 to 12 March 2015), GBE (23 February 2015 to 26 August 2015), BIBA (26 February 2015 to 18 June 2015), BEGE (6 March 2015 to 15 June 2015), BEGJ (6 March 2015 to 16 June 2015), ECC (14 June 2015 to 2 July 2015), EHG (18 October 2015 to 24 November 2015)
ADG (Ops), RAB (28 April 2016 to 17 September 2018) BA 4386 Colonel Anwar Latif Khan Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BHHG (26 May 2015 to 17 November 2016), BHFJ (22 October 2015 to 16 November 2016), BGEB (4 November 2015 to 8 December 2016), BEG (4 January 2016 to 28 February 2017), FGA (28 January 2016 to 8 December 2016), FEC (25 March 2016 to 16 November 2016), CBI (10 April 2016 to 28 January 2017), CJB (11 April 2016 to 8 December 2016), FGH (29 April 2016 to 8 December 2016), CEB (21 May 2016 to 21 July 2016), BGDE (25 May 2016 to 8 December 2016), BHGC (3 June 2016 to 17 November 2016), IAE (6 June 2016 to 1 January 2017), DDF (20 June 2016 to 21 July 2016), BGDH (21 June 2016 to 14 July 2016), BGFF (21 June 2016 to 14 July 2016), CEC (29 June 2016 to 21 July 2016), DEA (2 July 2016 to 24 August 2016), DDI (13 July 2016 to 24 August 2016), CED (14 July 2016 to 21 July 2016), EBA (10 August 2016 to 26 August 2016), BIIH (24 August 2016 to 22 November 2016), EAD (15 August 2016 to 25 January 2019), BDAG (9 August 2016 to 6 August 2024), BDA (24 October 2016 to 14 February 2018), EBB (1 December 2016 to 19 December 2016), BFD (17 January 2017 to 27 April 2017), ICB (26 January 2017 to 27 April 2017), DFE (13 February 2017 to 27 April 2017), BHGH (4 February 2017 to 13 December 2017), BIDE (4 March 2017 to 31 May 2017), BHBD (28 March 2017 to 18 June 2017), BFJA (3 April 2017 to 29 May 2017), CCG (10 April 2017 to 4 May 2017), BIAF (2 May 2017 to 17 July 2017), BIAG (2 May 2017 to 17 July 2017), ECG (3 May 2017 to 22 June 2017), ECI (3 May 2017 to 21 June 2017), BIHJ (11 May 2017 to 31 May 2017), BHGD (19 May 2017 to 29 July 2017), EBG (1 June 2017 to 11 June 2017), BIHI (1 June 2017 to 23 July 2017), BIHH (1 June 2017 to 23 June 2017), BGDI (3 June 2017 to 26 July 2017), BHFH (9 June 2017 to 15 February 2018), BHFI (14 June 2017 to 20 December 2020), CCE (10 August 2017 to 23 August 2017), EDE (20 August 2017 to 28 November 2017), EDG (23 August 2017 to 28 November 2017), EHD (26 August 2017 to 28 November 2017), DFH (9 September 2017 to 12 October 2017), EAF (20 August 2017 to 11 December 2017), BEIH (23 September 2017 to 11 October 2017), EDC (2 October 2017 to 13 December 2017), DGD (4 October 2017 to 29 November 2017), IAF (17 October 2017 to 2 November 2017), CDJ (25 October 2017 to 9 November 2017), EAG (2 October 2017 to 13 December 2017), BGBJ (8 November 2017 to 4 June 2018), BJE (6 December 2017 to 19 December 2017), CDI (8 December 2017 to 20 December 2017), BIH (15 December 2017 to 19 December 2017), EHI (15 January 2018 to 27 January 2018), EHE (22 September 2017 to 31 January 2018), BEHG (20 February 2018 to 29 April 2018), EAH (4 March 2018 to 30 April 2018), ICC (12 July 2018 to 30 September 2018), IAH (21 July 2018 to 30 August 2018), DCE (10 August 2018 to 14 January 2019), IDB (29 August 2018 to 11 September 2018), EDD (8 September 2018 to 2 October 2018), BHHF (8 September 2018 to 30 September 2018)
ADG (Ops), RAB (17 September 2018 to 27 June 2019) BA 4635 Colonel Md Jahangir Alam Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: EAD (15 August 2016 to 25 January 2019), BHFI (14 June 2017 to 20 December 2020), BDAG (9 August 2016 to 6 August 2024), DCE (10 August 2018 to 14 January 2019), IEC (18 September 2018 to 1 October 2018), BAB (27 October 2018 to 6 November 2018), BJAIE (18 November 2018 to 28 November 2018), CIC (21 November 2018 to 25 November 2018), BJB (9 November 2018 to 23 January 2019), DDB (14 February 2019 to 27 March 2019), BHFG (3 March 2019 to 20 December 2020), EEJ (9 March 2019 to 11 April 2019), EFC (12 March 2019 to 17 March 2019), EFA (13 March 2019 to 17 March 2019)

ADG (Ops), RAB (27 June 2019 to 16 March 2021) BA 4933 Colonel Tofayel Mostafa Sarwar Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), BHFI (14 June 2017 to 20 December 2020), BHFG (3 March 2019 to 20 December 2020), BHGJ (28 June 2019 to 1 September 2019), BDFG (28 August 2019 to 31 August 2019), BHBH (4 October 2019 to 27 November 2019), BDBE (22 November 2019 to 27 November 2019), BHCN (24 November 2019 to 31 December 2019), BDDF (10 December 2019 to 19 December 2019), BHCA (19 December 2019 to 31 December 2019), IBG (11 January 2020 to 24 March 2020), CCB (1 March 2020 to 6 March 2020), CHF (3 March 2020 to 7 March 2020), EGC (10 March 2020 to 3 May 2020), BHEA (14 March 2020 to 23 March 2020), DGE (2 January 2021 to 28 February 2021)
ADG (Ops), RAB (16 March 2021 to 1 June 2022) BA 5047 Colonel K. M. Azad Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), BGIG (18 March 2021 to 7 February 2023), EBI (15 July 2021 to 20 September 2023), BEIA (15 August 2021 to 4 September 2021), JJ (19 September 2021 to 29 September 2021), DHG (20 September 2021 to 30 September 2021), BFGJ (19 November 2021 to 24 November 2021), EEH (13 January 2022 to 21 February 2022), BHDA (7 February 2022 to 17 February 2022), BGCE (17 April 2022 to 14 September 2023)
ADG (Ops), RAB (12 June 2022 to 17 May 2023) BA 5385 Colonel Md Kamrul Hasan Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), EBI (15 July 2021 to 20 September 2023), BGCE (17 April 2022 to 14 September 2023), BEJH (19 June 2022 to 8 February 2023), BGII (7 August 2022 to 8 February 2023), BGAF (14 September 2022 to 6 October 2022), CHB (23 August 2022 to 7 October 2022), CGJ (3 September 2022 to 7 October 2022), BIJF (8 November 2022 to 5 December 2022), BIJH (14 November 2022 to 5 December 2022), FCA (22 December 2022 to 2 May 2023)
ADG (Ops), RAB (18 May 2023 to 5 August 2024) BA 5322 Colonel Md Mahabub Alam Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), BGCE (17 April 2022 to 14 September 2023)
ADG (Ops), RAB (23 June 2024 to 2 September 2024) BA 5480 Colonel Abdullah Al-Momen Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024)
Director (Intelligence), RAB (3 September 2009 to 7 December 2013) BA 4060 Lieutenant Colonel Ziaul Ahsan Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BFBG (14 July 2010 to 29 August 2010), BFA (12 October 2010 to 13 December 2010), EHJ (23 May 2011 to 26 May 2011), DH (8 October 2011 to 13 May 2012), EGF (11 April 2013 to 4 May 2013), BEGH (11 April 2013 to 5 May 2013), BEGI (11 April 2013 to 5 November 2013)
Director (Intelligence), RAB (7 December 2013 to 25 March 2017) BA 5294 Lieutenant Colonel Md Abul Kalam Azad Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BBJD (21 April 2014 to 30 April 2014), EDH (24 September 2014 to 1 November 2014), DHI (28 September 2014 to 1 November 2014), EHF (16 October 2014 to 31 October 2014), FCH (21 October 2014 to 31 October 2014), DGH (21 February 2015 to 12 March 2015), BIBA (26 February 2015 to 18 June 2015), BEGE (6 March 2015 to 15 June 2015), BEGJ (6 March 2015 to 16 June 2015), ECC (14 June 2015 to 2 July 2015), EHG (18 October 2015 to 24 November 2015), BGEB (4 November 2015 to 8 December 2016), BEG (4 January 2016 to 28 February 2017), CJB (11 April 2016 to 8 December 2016), CEB (21 May 2016 to 21 July 2016), IAE (6 June 2016 to 1 January 2017), DDF (20 June 2016 to 21 July 2016), BGDH (21 June 2016 to 14 July 2016), BGFF (21 June 2016 to 14 July 2016), CEC (29 June 2016 to 21 July 2016), DEA (2 July 2016 to 24 August 2016), CED (14 July 2016 to 21 July 2016), BDAG (9 August 2016 to 6 August 2024), BIDE (4 March 2017 to 31 May 2017)
Director (Intelligence), RAB (26 March 2017 to 26 December 2019) BA 5322 Lieutenant Colonel Md Mahbub Alam Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: EAD (15 August 2016 to 25 January 2019), BDAG (9 August 2016 to 6 August 2024), BHGH (4 February 2017 to 13 December 2017), BFJA (3 April 2017 to 29 May 2017), BIAF (2 May 2017 to 17 July 2017), BIAG (2 May 2017 to 17 July 2017), ECI (3 May 2017 to 21 June 2017), ECG (3 May 2017 to 22 June 2017), BGDI (3 June 2017 to 26 July 2017), BHFI (14 June 2017 to 20 December 2020), EDJ (4 May 2017 to 28 January 2018), IAF (17 October 2017 to 2 November 2017), BEHG (20 February 2018 to 29 April 2018), BJB (9 November 2018 to 23 January 2019), BHFG (3 March 2019 to 20 December 2020)
Director (Intelligence), RAB (26 December 2019 to 4 November 2020) BA 6150 Lieutenant Colonel Md Sarwar-bin-Kashem Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), BHFI (14 June 2017 to 20 December 2020), BHFG (3 March 2019 to 20 December 2020), IBG (11 January 2020 to 24 March 2020), CCB (1 March 2020 to 6 March 2020), CHF (3 March 2020 to 7 March 2020), EGC (10 March 2020 to 3 May 2020), BHEA (14 March 2020 to 23 March 2020)

Director (Intelligence), RAB (4 November 2020 to 4 October 2021) BA 6203 Lieutenant Colonel Muhammad Khairul Islam Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), BHFG (3 March 2019 to 20 December 2020), DGE (2 January 2021 to 28 February 2021), EBI (15 July 2021 to 20 September 2023), BHIC (3 August 2021 to 4 September 2021), BEIA (15 August 2021 to 4 September 2021), JJ (19 September 2021 to 29 September 2021), DHG (20 September 2021 to 30 September 2021)
Director (Intelligence), RAB (4 October 2021 to 20 June 2023) BA 6357 Lieutenant Colonel Md Moshir Rahman Jewel Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), BGIG (18 March 2021 to 7 February 2023), EBI (15 July 2021 to 20 September 2023), BJAH (19 October 2021 to 30 March 2023), BFGJ (19 November 2021 to 24 November 2021), EEH (13 January 2022 to 21 February 2022), BGCE (17 April 2022 to 14 September 2023), CHB (23 August 2022 to 7 October 2022), CGJ (3 September 2022 to 7 October 2022), BGAF (14 September 2022 to 6 October 2022), BFIJ (7 October 2022 to 23 July 2023), BIJF (8 November 2022 to 5 December 2022), BIJH (14 November 2022 to 5 December 2022), BGII (7 August 2022 to 8 February 2023)
Director (Intelligence), RAB (20 June 2023 to 5 August 2024) BA 6781 Lieutenant Colonel Saiful Islam Sumon Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDAG (9 August 2016 to 6 August 2024), EBI (15 July 2021 to 20 September 2023), BGCE (17 April 2022 to 14 September 2023)
CO, RAB 1 (30 January 2017 to 1 January 2020) BA 6150 Lieutenant Colonel Md Sarwar-bin-Kashem Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: ECI (3 May 2017 to 21 June 2017), ECG (3 May 2017 to 22 June 2017)
CO, RAB 1 (23 September 2021 to 3 June 2023) BA 5480 Colonel Abdullah Al-Momen Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DHG (20 September 2021 to 30 September 2021), BHDA (7 February 2022 to 17 February 2022), FCA (22 December 2022 to 2 May 2023)
CO, RAB 2 (26 October 2017 to 28 January 2019) BA 5607 Lieutenant Colonel Anwar Uz Zaman Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DCE (10 August 2018 to 14 January 2019), BJAЕ (18 November 2018 to 28 November 2018), CIC (21 November 2018 to 25 November 2018)
CO, RAB 2 (3 February 2019 to 6 July 2020) BA 6154 Lieutenant Colonel Ashik Billah Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: GCC (28 June 2019 to 1 August 2019), BHGJ (28 June 2019 to 1 September 2019), BDFG (28 August 2019 to 31 August 2019)
CO, RAB 4 (11 June 2015 to 2 May 2018) BP 6995020822 Additional DIG Khandokar Lutful Kabir Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: CJB (11 April 2016 to 8 December 2016), EBB (1 December 2016 to 19 December 2016), BHGH (4 February 2017 to 13 December 2017), BFJA (3 April 2017 to 29 May 2017), BIAF (2 May 2017 to 17 July 2017), BIAG (2 May 2017 to 17 July 2017)
CO, RAB 6 (12 June 2015 to 3 June 2018) BP 6895108197 Additional DIG Khondoker Rafiqul Islam Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: CBI (10 April 2016 to 28 January 2017), EBA (10 August 2016 to 26 August 2016)
CO, RAB 7 (8 December 2013 to 4 April 2019) BA 5077 Lieutenant Colonel Miftah Uddin Ahmed Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BGEB (4 November 2015 to 8 December 2016), FGA (28 January 2016 to 8 December 2016), CJB (11 April 2016 to 8 December 2016), FGH (29 April 2016 to 8 December 2016), BGDE (25 May 2016 to 8 December 2016), BHFI (14 June 2017 to 20 December 2020)
CO, RAB 8 (23 April 2018 to 1 March 2021) BP 7399009537 Additional DIG Atika Islam Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: ICC (12 July 2018 to 30 September 2018), IAH (21 July 2018 to 30 August 2018)
CO, RAB 10 (10 July 2017 to 16 April 2018) BP 6695027873 Additional DIG Md Shahabuddin Khan Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BHFH (9 June 2017 to 15 February 2018), EAF (20 August 2017 to 11 December 2017), EDE (20 August 2017 to 28 November 2017), EDG (23 August 2017 to 28 November 2017), EHD (26 August 2017 to 28 November 2017), EHE (22 September 2017 to 31 January 2018), EDC (2 October 2017 to 13

December 2017), EAG (2 October 2017 to 13 December 2017), BDA (24 October 2016 to 14 February 2018), EAH (4 March 2018 to 30 April 2018)
CO, RAB 10 (17 April 2018 to 21 December 2020) BP 6698007634 Additional IGP Md Kaiumuzzaman Khan
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: EAH (4 March 2018 to 30 April 2018), DCE (10 August 2018 to 14 January 2019), IDB (29 August 2018 to 11 September 2018), EDD (8 September 2018 to 2 October 2018), BAB (27 October 2018 to 6 November 2018)
CO, RAB 11 (19 May 2016 to 23 April 2018) BA 5385 Lieutenant Colonel Md Kamrul Hasan
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: CCG (10 April 2017 to 4 May 2017), BHGD (19 May 2017 to 29 July 2017), EBG (1 June 2017 to 11 June 2017), CCE (10 August 2017 to 23 August 2017), DFH (9 September 2017 to 12 October 2017), BEIH (23 September 2017 to 11 October 2017), DGD (4 October 2017 to 29 November 2017), CDJ (25 October 2017 to 9 November 2017), BJE (6 December 2017 to 19 December 2017), CDI (8 December 2017 to 20 December 2017), BIH (15 December 2017 to 19 December 2017), EHI (15 January 2018 to 27 January 2018)
CO, RAB 13 (30 June 2014 to 26 August 2015) BA 4490 Lieutenant Colonel Kismat Hayat
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: GBE (23 February 2015 to 26 August 2015)
Police
Inspector General of Police (2014 to 2018) BP 5986000020 AKM Shahidul Haq
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BHFD (7 July 2017 to 20 November 2017), BICD (13 September 2017 to 21 September 2017)
Inspector General of Police (2018 to 2020) BP 6186000779 Md Javed Patowari
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BGIJ (1 April 2019 to 16 July 2019), BIAE (2 April 2019 to 16 July 2019), BGEA (10 April 2019 to 27 November 2020), BGDJ (10 April 2019 to 27 November 2020), EJC (27 October 2019 to 21 March 2020), DHF (13 January 2020 to 7 November 2020)
Inspector General of Police (2020 to 2022) BP 6388000021 Benazir Ahmed
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DHF (13 January 2020 to 7 November 2020), IAJ (2 June 2021 to 19 September 2021), IBA (2 June 2021 to 19 September 2021), IBB (2 June 2021 to 19 September 2021)
SP, Comilla (29 April 2013 to 31 May 2015) BP 7201056089 Additional DIG Tutul Chakrabarti
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: FGF (2 February 2015 to 4 February 2015), GBA (2 February 2015 to 4 February 2015), GBB (2 February 2015 to 4 February 2015)
SP, Bogura (9 June 2015 to 4 March 2018) BP 7199079689 Md Asaduzzaman
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BGBE (2 January 2017 to 5 June 2017), BDH (17 April 2017 to 8 July 2017), BHFD (7 July 2017 to 20 November 2017), FGB (29 November 2017 to 20 January 2018), BDEG (29 January 2018 to 19 March 2018)
SP, Bogura (4 March 2018 to 7 August 2021) BP 7905122796 Md Ali Ashraf Bhuiyan
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BDEG (29 January 2018 to 19 March 2018), BHJA (1 March 2018 to 30 April 2018), BGHI (7 May 2018 to 20 May 2018), BGJE (25 April 2018 to 4 July 2018), BHDJ (4 July 2018 to 24 October 2018), BIAE (2 April 2019 to 16 July 2019), BGIJ (1 April 2019 to 16 July 2019), BGEA (10 April 2019 to 27 November 2020), BGDJ (10 April 2019 to 27 November 2020), BICA (21 April 2019 to 21 March 2020), EJC (27 October 2019 to 21 March 2020), DHF (13 January 2020 to 7 November 2020), IAJ (2 June 2021 to 19 September 2021), IBA (2 June 2021 to 19 September 2021), IBB (2 June 2021 to 19 September 2021)
SP, Bogura (7 August 2021 to 10 July 2024) BP 7505105111 Shudip Kumar Chakrabarti
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: IAJ (2 June 2021 to 19 September 2021), IBA (2 June 2021 to 19 September 2021), IBB (2 June 2021 to 19 September 2021)
SP, Bagerhat (21 July 2016 to 25 February 2021) BP 7403020903 Pankaj Chandra Roy

Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: FBH (16 October 2016 to 3 November 2016), BIFJ (16 October 2016 to 3 November 2016), BIEC (19 October 2016 to 3 November 2016)
SP, Narsingdi (15 March 2018 to 15 November 2018) BP 7101049525 Saifullah Al Mamun
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BIAH (3 October 2018 to 17 October 2018), BIAJ (15 October 2018 to 11 November 2018)
SP, Cox's Bazar (18 September 2018 to 23 September 2020) BP 7505105079 ABM Masud Hossain
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BIEF (26 October 2019 to 29 February 2020)
CTTC
Chief, CTTC (16 February 2016 to 4 March 2021) BP 7095144500 Monirul Islam
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: JG (4 August 2016 to 2 March 2017), BGEH (1 December 2016 to 3 January 2017), FEA (16 March 2017 to 7 April 2017), EIA (25 April 2017 to 18 May 2017), BEAI (21 May 2017 to 1 August 2017), BDFB (21 May 2017 to 11 October 2017), BFIF (22 May 2017 to 2 August 2017), BEII (31 May 2017 to 11 June 2017), CIG (3 August 2017 to 23 August 2017), BAI (7 October 2017 to 24 November 2017), FCE (8 November 2017 to 19 November 2017), BDAH (22 November 2017 to 20 December 2017), BFJB (6 February 2018 to 18 February 2018), CEE (29 March 2018 to 14 July 2018), BEDD (6 August 2018 to 25 August 2018), BGDD (15 October 2018 to 18 November 2018), BGDF (15 October 2018 to 11 November 2018), BFDD (15 October 2018 to 11 November 2018), BIAJ (15 October 2018 to 11 November 2018), EIC (2 April 2019 to 24 November 2019), DIH (19 April 2019 to 30 April 2019), BIG (29 May 2019 to 23 September 2019), IDA (29 June 2019 to 2 October 2019), BCE (29 July 2019 to 8 August 2019), BCD (31 July 2019 to 8 August 2019), CEF (25 September 2019 to 26 January 2020), BIEF (26 October 2019 to 29 February 2020), BDEI (5 December 2019 to 27 December 2019), DJH (31 August 2020 to 21 September 2020), BDHB (8 September 2020 to 16 November 2020), BBHJ (14 September 2020 to 17 September 2020), CEI (12 November 2020 to 5 April 2021), DDE (24 December 2020 to 26 June 2021)
Chief, CTTC (15 April 2021 to 21 August 2024) BP 7199079689 Md Asaduzzaman
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DDE (24 December 2020 to 26 June 2021), BAD (15 April 2021 to 16 December 2022), CGA (6 May 2021 to 27 June 2021), IAJ (2 June 2021 to 19 September 2021), IBA (2 June 2021 to 19 September 2021), IBB (2 June 2021 to 19 September 2021), EDB (1 June 2021 to 26 June 2021), BDFC (24 June 2021 to 10 August 2021), HFD (13 February 2022 to 19 February 2022), BFDB (18 May 2022 to 25 May 2022), CAE (11 April 2022 to 16 July 2022), BDJF (11 April 2022 to 26 July 2022), CEJ (2 August 2022 to 1 November 2022), BHCJ (8 September 2022 to 13 September 2022), BIJJ (11 September 2022 to 13 September 2022), CCH (19 September 2022 to 27 September 2022), FDG (3 October 2022 to 26 October 2022), BEHI (8 November 2022 to 17 November 2022), IAC (13 December 2022 to 1 January 2023), IBJ (22 January 2023 to 30 January 2023), BGIH (24 January 2023 to 27 January 2023), CFC (6 February 2023 to 21 February 2023), DEC (21 May 2023 to 8 August 2023), CBJ (12 July 2023 to 7 October 2023), BEII (31 October 2023 to 3 November 2023)
DB
Chief, DB (8 February 2013 to 5 June 2015) BP 6189020937 Additional Police Commissioner Sheikh Mohammad Maruf Hasan
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: IDE (3 March 2014 to 13 March 2014), BGID (9 August 2014 to 24 September 2014), DCD (14 September 2014 to 24 September 2014), BHGG (30 May 2015 to 7 June 2015), BHGF (30 May 2015 to 7 June 2015), BDEB (30 May 2015 to 8 June 2015)
Chief, DB (6 July 2015 to 30 March 2017) BP 65191020953 Additional Police Commissioner Md Didar Ahammed
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: DBH (8 August 2015 to 14 August 2015), BEJE (23 November 2015 to 24 December 2015), BCB (6 January 2016 to 21 February 2016), BDBH (12 May 2016 to 12 June 2016), BEGC (12 May 2016 to 12 June 2016), BEGB (12 May 2016 to 12 June 2016)
Chief, DB (15 May 2017 to 13 December 2017) BP 7095144500 Additional Police Commissioner Monirul Islam
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BHHH (22 August 2017 to 31 December 2017)
Chief, DB (24 July 2018 to 13 September 2020) BP 6898112376 Md Abdul Baten
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BGJJ (17 May 2016 to 17 May 2019), BCHC (5 September 2018 to 10 September 2018), FIE (30 October 2018 to 6 November 2018), BCHF (20 December 2018 to 22 December 2018), BCHE (20 December 2018 to 22 December 2018), BHAB (17 April 2019 to 24 April 2019)
LIC

AIG, LIC (12 January 2017 to 1 March 2018) BP 7905122796 Md Ali Ashraf Bhuiyan		
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BHFD (7 July 2017 to 20 November 2017)		
AIG, LIC (1 July 2018 to 11 June 2020) BP 7103020900 A F M Anjuman Kalam		
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BGJ (1 April 2019 to 16 July 2019), BIAE (2 April 2019 to 16 July 2019), BGEA (10 April 2019 to 27 November 2020), BGDJ (10 April 2019 to 27 November 2020), EJC (27 October 2019 to 21 March 2020), DHF (13 January 2020 to 7 November 2020)		
AIG, LIC (21 June 2020 to 15 September 2022) BP 7906119732 Mir Abu Tauhid		
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: IAJ (2 June 2021 to 19 September 2021), IBA (2 June 2021 to 19 September 2021), IBB (2 June 2021 to 19 September 2021)		
NSI		
Director General, NSI (5 August 2018 to 3 August 2024) BA 3256 Major General T. M. Jobaer		
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BIJG (25 March 2022 to 26 April 2022)		
Director, CT Wing, NSI (6 April 2021 to 23 June 2024) BA 5150 Brigadier General Md. Saif Ullah		
Complainant codes and detention timelines across multiple locations, incl. facilities under the officer's command: BIJG (25 March 2022 to 26 April 2022)		
Direct responsibility		
The following individuals recur across the 256-case subset as figures with <i>prima facie</i> direct responsibility. Victims identify them by name, recount seeing them during arrest or interrogation, recognise their nameplates or offices, hear other personnel refer to them directly, or later confirm their identity through photographs. The consistency of these accounts across victims strengthens the attribution of responsibility. This is a non-exhaustive list; future investigators should consider this merely as a starting point.		
Identifier	Force	Complainants
BP 7003027838 Mohiuddin Faruqi	RAB 2 and RAB 10 company commander	BAB, CIC, DCE, EAF, EAG, EAH, EHD, EHE, IDB, EDC, EDD, EDE, EDG, EHD
BP 8513159445 Alep Uddin	RAB 11 and RAB Intelligence	BIH, BJE, CCB, CCE, CCG, CDI, CDJ, CGJ, CHB, DDB, DFH, DGD, EBG, EDJ, EEJ, EHI, IEC, BEIH, BEJH, BGAF, BGIG, BHB, BHGD, BHHF
Moshiur and Amjad, Alep Uddin's associates	RAB 11	BIH, CCG, CDJ, DDB, EBG, EDJ, EEJ, BEIH, BHGD, BHHF (Moshiur) CCE, CDI, CDJ, EBG, DGD, DFH, BHGD, BHHF (Amjad)
BP 6590046444 Shyamal Chowdhury	RAB Intelligence	CGJ, BEJH, BGAF, BGIG
BP 8311142515 Ahmedul Islam	CTTC	BAD, CAE, CBJ, CCH, CEI, CGA, DDE, DEC, DJH, BDFB, BDHB, BDJF, BEHI
BP 6894011184 Mezbah Uddin Ahmed	CTTC	BAD, CAE, CCH, CEI, CGA, DDE, DEC, BDJF, CBJ
BP 8814166254 Atiqur Rahman Chowdhury	CTTC	BCD, BCE, DIH, FDG, HFD, BEI
BP 8310126801 Rahmatullah	CTTC	CEJ, CGA
BP 8914166303 Sheikh Imran Hossain	CTTC	BCD, BCE, BIG, EFE, BDEI, BEAI
BP 8412147752 Md Ahsan Habib	CTTC	BIG, BDAH, BDEB, BFIG
BP 851316618 Md Tohidul Islam	CTTC	BEJH, CIG, BDAH, BDFB, BEAI, BCD, BCE
BP 7606119742 Arifur Rahman Mondol	DB Bogura	BDH, EJC, BGDJ, BGHI, BHFD
BP 7402072063 Nur E Alam Siddiqui and BP 8413154569 Zulhas Uddin, Arif Mondol's associates	DB Bogura	BDH, BGBE, BGHI, BGJE, BHDJ, BIAE, BICA, IAJ, CBJ, BHFD
BP7806117081 Goutom Kumar Biswas	Bagerhat SP Office	BIEC, BIFJ

15. English translations

ⁱ They interrogated me again. He asked, ‘Which party do you support?’ I said, ‘Sir, I don’t belong to any party. Personally, I like the BNP. I’m not involved with any party, but I’m a supporter.’ Then he said, ‘So you’re with Jamaat-e-Islami.’ I replied, ‘Sir, I’m not with Jamaat-e-Islami.’ After this kind of interrogation went on for a long time, he finally said, ‘Then you must be with a militant group.’ I said, ‘Sir, no, I don’t know anything about those. I’m not involved in any of that.’

ⁱⁱ I was first taken, blindfolded, to the Dhaka Police Headquarters, where I stayed for about a week. Inside a large building, they kept me in a room, and once I was brought in, they removed the blindfold. The room was relatively spacious, with a wooden door and what seemed to be sealed windows. There was a fan and a light, but no cot or bed — only a prayer mat placed on the tiled floor to sleep on. There were guards there at all times, and from their conversations I understood that this place was the Police Headquarters. Among those who came to interrogate me, I learned the names SP Hasan Masud (or simply Hasan), ASP Nure Alam, and ASP Ashraful Alam. The SP of Bogura DB, Arif Mondal, also came there. After Headquarters, I was taken to Bogura. From what the guards and constables said, I became sure that it was a large hall room on the ground floor of the in-service building at Bogura Police Lines. I was disappeared there for around four months. The hall had two doors and several windows, from which a large field could be seen outside. There were seven to ten cots laid out in the room, and the bathroom was outside. In Bogura, I was interrogated by Arif Mondal and SI Julhas, and later Asaduzzaman (who was the head of CTTC) came one day. They beat me physically, tortured me psychologically, regularly threatened me with crossfire, and frightened me by saying they would pick up my family members.

ⁱⁱⁱ After staying there for two months and eighteen days, I became certain that I was in RAB 6 when, through the ventilator, I could see the Rupsha Bridge. At first, they confined me in a small room measuring roughly three and three-quarters cubits long and two and three-quarters cubits wide. The toilet and living space were inside the same room, and the stench made it difficult for me to breathe. There was no arrangement for bathing or even washing my face. The floor was plain cement, and the ceiling was very low. In front of the room there was a prison-style iron grill, and beyond it a narrow passageway. It seemed that along that passage there were about seven or eight rooms in a row.

^{iv} In RAB, we used to call detainees “targets”. We did not know from where the targets were picked up. Most of them were supplied to us from the TFI Cell. We would be put in the vehicle and told, “there is a target, let’s go.” The TFI Cell was the delivery room for supplying targets. I did not know from where the people brought from the TFI Cell had originally been taken.

^v Through a small opening in my cell, I could see the door of the torture room and watch as other detainees were dragged in, unconscious or bleeding. Among the forms of abuse inflicted on me was being suspended in the air with the help of a machine, my chest strapped tight, and then being beaten mercilessly with a hockey stick or roller baton until I bled; at one point, they gave electric shocks to my feet and I lost consciousness. When I came to, they handcuffed my hands and tied my feet, laid me on my back, and three or four men sat on my chest while pressing cloth over my nose and pouring hot water, torturing me and pressuring me to provide information, accusing me of being an informer for BNP–Jamaat.

^{vi} To enter the building, you had to climb two flights of stairs and then walk into a corridor with five rooms in a row and a bathroom at the far end; I was kept in the first room. The walls were reddish and quite old, with a ceiling about twelve feet high. The only furniture was a wooden cot with no mattress, just a sheet and a pillow. There was an iron gate with a wooden door outside it so that prisoners being brought in or taken out could not be seen, although the wooden door of my room usually remained open. In the right-hand corner near the door there was an old exhaust fan that made a harsh, grating noise as it turned. Through the doorway I could see the corridor and, faintly, through small gaps in the wall pattern, some trees and distant buildings. During the day I could hear aeroplanes and the railway crossing, and I counted the passing days by scratching marks on the wall. Later, I was handed over from DGFI to RAB.

vii On one side there were iron bars, and outside the bars, fixed to the wall, an exhaust fan ran constantly with a loud noise and the light was always on. There I was told, while blindfolded, to strip completely naked. Then they gave me an orange shirt and a pair of shorts, which exposed my knees whenever I sat to pray. Outside the cell, on the right-hand side, there was a toilet. The cell itself was about five feet by eight feet. A dark-complexioned man said he needed to take my photograph and measure my height, and told me that if I “behaved well” it would be a blessing, but if I acted defiant, things would become worse than anything I could imagine.

viii In carrying out Golf Operations, victims from one area would be disposed of in another area — so that even if the dead body accidentally floated up, it would remain unidentified.

ix While I was in RAB-3, in the Jatrabari area we arrested a bomb-throwing terrorist openly from a welding shop, based on intelligence information, and we informed Zia sir about it. Zia sir asked me, “The person you arrested — did people see it?” I said, “Yes, sir.” Then Zia sir said, “It wasn’t a ‘clean pickup’. Release him.” I was genuinely shocked.

After that, two members of RAB Intelligence came to the battalion from RAB Headquarters, and in their presence we were forced to release that arrested suspect. Later, members of RAB Intelligence abducted that suspect again — without leaving any trace or witness — and brought him back to my battalion. At that time the suspect pleaded with me: “Sir, whatever you do — beat, torture — keep me here. Don’t send me to RAB Headquarters. If I go there, I will not be able to come back.”

Later, the RAB Intelligence members took the suspect away. I did not learn anything further about what happened to him.

x While they were beating me, at the time they were beating me, they were also playing songs — they used to play Hindi songs.

xi When I tried to sleep, someone would come and say, ‘Why are you sleeping?’ That is, they wouldn’t let me sleep. ... After the interrogation was over, they would take away the pillow. In the middle of winter, they removed the blanket and pillow altogether. ... And they gave punishments like that. They made me sit without a chair [squatting on bare feet]. ... Sometimes they handcuffed me and fastened it to the side of the bed. So, if a mosquito bit me on this hand, I couldn’t even slap it. The mosquitoes would bite. ... So, I suffered, you see. This is the kind of punishment they gave..

xii So Alep Uddin—later I came to know his name, didn’t know it at the time—he tortured me severely with a stick. ... One day he tortured me excessively. After torturing, he said, “Hang him up, suspend him.” So, you know the cell has a grill, right? The rods that are there... [to those] they hung me like that. ... Tied me up with handcuffs. ... After keeping me like that for many hours, I couldn’t take it anymore. That day, after the torture, one of my fingernails completely came off.

xiii One day they beat me a lot, beat me brutally, and kept saying, “We’ve conducted an inquiry at your house. We’ve received reports about you—your family is involved with Jamaat-BNP, your grandmother’s side is with Jamaat, and your father is with BNP.” They said these things, and said them while beating me. At one point during the beating, I think I hit a table corner or something and fell—I lost consciousness. Later, they poured water on my head in the bathroom and brought me back to consciousness. ... This hand of mine is numb. I can’t stand up. I mean, I can’t stand up straight. My condition is such that once I stand, I can’t sit, and if I sit, I can’t stand up again. They took me to the washroom. ... In the washroom—I know this is a bit shameful—but I still have to say it: I was standing in the washroom, I mean, I couldn’t manage. In that condition, they beat me again.

They kept asking the names of two people—“Where are they?” I said, “Sir, I don’t know, sir, I don’t know.” ... When I could no longer make any sound, I barely heard, “Did he die? Check if he’s dead.” One of them kicked me to see. By then my eyes opened slightly, and I just stared like that. ... And then what did they do? They poured water over my face using a towel. “Where are they? Where are they? Tell us where they are!” I mean, they didn’t give me even a second to breathe. ... They said, “No, you’ll have to tell us. Where are they now? Where can we find them?” ... Then it started—the electric shocks. They kept me standing. They would handcuff me to the grill to keep me standing so I couldn’t sit. They made me stand. My legs were so swollen. My hands had marks. These marks here... If I wanted to go to the washroom, they wouldn’t let me. That’s when the torture escalated. ... One day, they brought me in and grabbed my finger with pliers. After gripping it, they placed my hand on the table, held it with the pliers, and someone else inserted a needle. These are the needle marks. They said, “Aren’t you Abdul Mumin?” “Sir, I’m not Abdul Mumin, my name is Habib.”

^{xiv} They tied my legs and hung me upside down. Head facing down, legs up. They didn't leave any clothing on my body at that time—completely without dress. Then two of them started beating me together, randomly. Most likely with cane sticks. Later, they tortured me countless times and beat me so much that the blindfold over my eyes came off. Slaps and blows on the nose and mouth. ... They only beat me on the back. At that time, the skin tore—meaning the skin cracked and blood started to drip. ... Later, when they put me in a narrow cell space, I touched my back with my hand and saw that blood was coming out. And the marks from that lasted for almost one and a half years. I mean, the beating marks were that bad. ... So, when I was lying face-up, a person named Saiful there said, “Bhai, why are you lying face-up?” I said, “Bhai, I can't sit.” ... They tortured me physically for 25 days.

^{xv} Sometimes my eyes were tied with a towel, sometimes with that jom tupi—those things. My hands were sometimes tied in front, sometimes behind. And when they were going to beat me more severely, they would tie my hands behind my back and hit hard with thick sticks on my elbows and both knees. ... I used to think my bones would break, but later I saw that although the swelling was severe, it didn't seem the bones were broken. ... At one point they said, “We'll separate the flesh from your bones.” At that time, the flesh around my elbows was hanging like this. The thick sleeve of my shirt became tight—it had swollen so much that the flesh was hanging. And they kept saying, “We'll separate the flesh from your hands.” ... After that, for a long time, even sitting to pray was painful. ... They said, “This won't work. Hang him. He needs to be stretched.” So, one person, probably an ASI, tied both my hands with rope and hung me like this from that ceiling fan hook using rope. Only the tip of my big toes touched the floor, and the whole body was suspended. ... I still can't raise my hands—there's a problem between the joints.

^{xvi} They probably tied my hands with a towel or cloth or something. Then, inserting my hands through the insides of my knees, they passed a stick between both knees and placed me on a high stand. Because of that, my legs were up and my head was down. ... Then they started hitting the soles of my feet. Probably with a thin stick. ... And from the very beginning again, the same question, “Give us the names, who was with you?” ... After releasing me, they made me sit. After making me sit, they untied that towel and then handcuffed me like this behind the chair. Then they started hitting me in the knees. ... One of Allah's wonders, maybe, when they hit, it hurt a lot, but immediately they hit again, and the pain would go away. The pain would just go away instantly. ... Right after Maghrib, I think, they gave me electric shock in this spot. That is, when they sent me to pray Maghrib, I saw that my knees had turned black. That's how badly they had beaten the insides of my knees. So, after that, with the black marks on my knees, it was very painful, but still I prayed. Since I was in hardship, what else could I do, I prayed.

^{xvii} After entering his office room, there was a window on the left side. ... They tied my hand to the window and then beat me on my thigh, then my leg, then all the way down to the lower part of my spine. Then they told me, “You're a terrorist, you're a militant.” ... Then they threw me on the floor and tortured me. They tortured the joints of my feet, the soles of my feet. Not just once, they did it multiple times.

^{xviii} I was wearing a short-sleeved shirt, with a collar. They pulled it over my head and covered my face with it. Then they kept punching me in the face with their hands, and my upper lip was cut by my own teeth. Immediately, they attached two clips to my legs ... First-time experience of getting shocked. It felt like when they gave the shock, my whole body curled up like a football. They gave me shocks like this maybe eight to ten times. Each shock lasted maybe three to four seconds at most. Instantly, the body curled up, all the veins would tighten. So, they asked those questions and gave shocks, asked those questions and gave shocks. ... Four or five people very recklessly started beating me, holding both hands and hanging me on that hook. It felt like maybe they pressed some switch and automatically my body was being lifted upward. ... At that moment, they removed my clothes and again attached those same clips to my two private parts. And that interrogation continued in the same way. Whenever they pressed the switch, I felt like those parts of mine were burning ... and sometimes I would smell something like the smell of burning flesh. ... Four to five people would beat my entire body, from my feet all the way up to my neck. Like beating a cow, from all sides, I mean, there was no spot left untouched. When I first saw my body after going to jail, I saw that there was no spot left—everything had turned black.

^{xix} They shoved me into the car and blindfolded me. They handcuffed me and slapped me hard on the cheek. After beating, they threw me onto the seat like this and held a revolver to me, saying, “If you say a single word, I'll kill you and throw you into the Buriganga River.” They attached something like a clip here on my hand and pressed some switch somewhere. It felt like a thunderclap hit my head. After that, I don't remember anything. When I regained consciousness, it was around 1 a.m.

^{xx}They beat me badly on my knees, then on the soles of my feet. I was crying a lot. If I said Allah's name, they would beat me even more. So anyway, after beating me, they asked, "Why did we bring you here? Can you tell us?" I said, "No. You haven't told me why you brought me. You're punishing me without saying anything. Who are you people?" Then they didn't give any identity, just said, "Do you know such and such person, do you know so-and-so?" They said things like that; people I have no connection with. ...

So whenever they came, I would start trembling with fear. ... One day they took me on remand again, it was 12 at night. At that time, they gave me electric shock. They used two clips in my ears and kept giving me electric shock. Then they said, "We beat you a lot, tortured you. But you didn't say anything. You know so-and-so very well. So it's him who brought you into all this." ...

And they would pour water into my mouth with a wet cloth for about two to three minutes. During that time, I would often become unconscious, and saliva and such would come out of my mouth. They said, "You're very intelligent, let's reduce that intelligence a bit." So, they attached clips to my ears and gave me shock many times. To reduce my intelligence like that, they shocked me several times, and whenever they triggered the shock, my whole body would go cold. Right then it would feel like I was finished. My vision would blur. That's how it was, they gave me punishment day after day.

^{xxi} They asked me about some names from my friend list ... I don't know any of them. Then they asked me about one name, "How long have you known Major Zia?" I said, "I've actually heard this name for the first time." To be honest, I had heard the name for the first time. The moment I said that, they started beating me. Because of the beating, I lost consciousness. ...

They beat me from all sides. My hands were handcuffed behind my back, my eyes were blindfolded. And the blindfold was so tight that my head started to ache, the blindfold was that tight. In that condition, after the beating, I lost consciousness. ... They used to tie me to a chair. After tying me, four or five of them would stand on the sides. I could tell I was being beaten from all directions. ... And they gave electric shock. When they gave electric shock, I would lose consciousness. On the days I lost consciousness, they wouldn't do anything else. After regaining consciousness, I would find that I was back in my room again.

^{xxii} After laying me down, they placed a bamboo stick over both my arms and under my neck. After that, they placed another one under my feet, under my thighs, and again one over my thighs. After placing them, they kept me like that for a while, saying, "Big Sir is coming." After a while, he came. Upon arrival, he suddenly said, "Get up." The moment he said that, I felt like I was no longer in this world. I mean, such unbearable pain started in both my arms and between both legs. I felt like someone was tearing the flesh from my arms and legs. That's how it felt. They were so cruel, so terrifying with me. I was screaming so loudly. ... It was such an agonizing thing. ... My right arm, left arm—they went numb, the entire right arm became clenched like this. The arm that I had, I couldn't even describe it. I couldn't even eat rice with that hand. ... I would eat as much rice as I could pick up with three fingers—that's what I ate. ... They placed a towel over my face and started pouring water from above. ... They kept pouring water, a jug full ... I couldn't breathe. ... Then they removed the towel and said, "Say what you did." "Sir, what can I say? You tell me, what do you want to know? Why have you brought me?" Then they said, "No, it's not working. Put the towel back, put the towel back, pour the water again." After pouring water like this three or four times, they said, "Take him away and keep him."

^{xxiii} During interrogation, my eyes used to be blindfolded with three layers of cloth. First, they would blindfold me with one cloth. After putting on the jom cap, they would blindfold again with another cloth. And the handcuffs were put on behind my back. ... Tied to the chair, they beat both my knees until they were completely damaged. For almost 10-15 days, I couldn't walk upright. There wasn't even a chance to walk. I couldn't even stand for prayer. I had to pray by hanging my legs—meaning, letting my legs hang to the side and then praying. ... It was a regular chair. Like those wheelchairs where there's a footrest, there was a similar footrest. After placing my feet on the footrest, they tied many belts from my feet to my head. One on the head, then on the chest, also on this part of the hands, three on both sides of the hands, two on the chest, one on the stomach, a large belt on the chest, three like that on the legs. After putting these on, they spun me around for a while. I was spun around on that chair like that.

They said, "Now we'll give you electric shock." They told me, "We'll give you electric shock on your genitals," threatening me like that. When I said, "I don't know them, how can I say anything?" then the two of them started beating on my knees from both sides. For a long time, I mean, that torture was very intense. When I absolutely couldn't endure it anymore, then they stopped. They questioned me like this three to four times a day. Most days

it was in the last part of the night, meaning before Fajr, during those times they would interrogate. I was here for approximately seven and a half months.

^{xxiv} They placed me on a machine. After putting me on, they tied me here [on the head], tied here [on the hand], tied on the legs—meaning, in the middle of the knees—and again tied at the level of the feet. Standing straight like this. After putting me on that machine and starting it, it felt like all my bones were being separated. ... I can't say why, but the setting of that machine is such that the machine itself is a punishment. ... They said, "Keep your back completely flat against it. People lose control of their bowels on this thing." Meaning the condition is that severe. ... The machine can be rotated. Sometimes it can be flipped upside down. And it can also be laid flat like this. ... After that, while I was on it, they hit me on the knees. Like asking, "What conspiracies are you plotting against the government?"

^{xxv} At one point, they pressed hard on my testicles, and all my strength drained out.

^{xxvi} They tied me to a rope and hung me up using a machine. After hanging me, they started beating me randomly and using obscene language. At one point, they said to me, "You are a Shibir cadre." Then they spoke using "tui" and cursed a lot. I started crying. At one point, along with the beating, they gave an electric shock to my private parts. ... When I went to the bathroom, they would say, "Open one eye first, then do your business." But honestly, I didn't really see anyone clearly there. One day, two or three people took me in front of a camera and said, "You have to say it exactly the way we tell you, so that there are no mistakes." A laptop was in front of me, and their faces were covered, so I didn't see their faces either. Then they said there, "Say everything about your life."

^{xxvii} Blindfolded, handcuffed. ... These marks still haven't gone away, it's been 10–11 years. The way they took me to the bathroom was like this—they would give me a stick to hold like a blind man. My hands were tied behind my back, and in that state, they would place a stick between the gap of my hands. ... They kept me hanging naked and gave electric shock for about two hours, meaning the only demand was that I had to confess. ... I wasn't willing to accept that. ... How did they give the shock? They attached a clip or something like that to the penis, and my hands were tied above. In this condition, they would give electric shock and beat me from behind. If I said "yes," the beating stopped, the electric shock stopped. If I said "no," the beating continued. ... These were more like suggestions. They would say, "You are part of this organisation?" I said "no." Then the electric shock started.

How did they give the shock? They attached a clip or something like that to my penis, and my two hands were tied up above. In that condition they would give electric shocks and beat me from behind. If I said "yes," the beating stopped, the electric shock stopped. If I said "no," the beating continued. ... It was all a kind of suggestion game. They would say, "You belong to this organisation, don't you?" I would say, "No." And the electric shock would start.

^{xxviii} At that time, I didn't even have any case against me. Still, they didn't even leave any clothes on my body. They hung me up. After that, they did certain kinds of torture that I cannot tell you. Things that cannot be spoken. My wife knows. So, there I became senseless. Then they took me down. ... The marks on my wrists lasted for six months. From that, I developed a neck problem, because when I said I couldn't bear to be kept hanging, they didn't take me down. They tortured me and gave electric shock in such a place, they said, "I will make you impotent if you don't give us information." ... They gave me electric shock for a long time, and I was feeling it in each and every part of my body. I mean, after getting the shock, it felt like my legs and my head were being squeezed into one, alright? But even then, the most absurd thing was, they were laughing at me. Yes. It felt like they were making fun.

The marks on my wrists stayed for six months. From that, a problem started in my neck — because while they were keeping me hanging, I could not hold on. They didn't bring me down. They kept torturing me and gave electric shocks in such places, saying, "I will make you impotent if you don't give information." ...

They gave me electric shocks for a long time, and I felt it in each and every part of my body. From the electric shocks it felt as if my legs and my head were being squeezed together into one — alright? And still, the strangest thing was — they were laughing at me. Yes — it felt like they were making fun of me.

^{xxix} Then they started slapping and hitting me. They pulled down my pants. After pulling down my pants, they attached a clip to one of my testicles. They got into the car and closed the door. There were probably six or seven people, as far as I could tell while blindfolded. They were talking, then the car started moving, and by the time it was moving, my pants were already fully removed. They started giving electric shock with the clip. I was

screaming loudly in the car ... from jumping forward onto the front seat, the skin on both my legs got scraped about a foot each. But I didn't feel that pain. The pain from the electric shock was so much worse. ... They gave me electric shock for about 15 to 20 minutes. During those 20 minutes the car was moving ... after doing this when they finally stopped, it felt like the world no longer existed. After they stopped the electric shock, I kept screaming for three minutes. In the end, they were forced to hold my mouth shut. From the pain of that electric shock.

In the morning, they took me again and brought me into a room. ... They sat me in a chair. After making me sit, they tied my legs to the chair, tied my hands, tied my chest, tied my head. After tying me, they said, "We're going to press the switch on this chair." Now, I didn't know anything about the chair. After that, they started asking the same questions again. When they didn't get any answer, then ... they made me sit on a regular chair. After making me sit, when they asked a few questions again and didn't get any answers, then they tied both my hands with rope and hung me. After hanging me, they completely stripped me naked again. After stripping me, they attached the electric clip to that area and started giving electric shock. On one side electric shock, on the other side beating me with a cane stick. ... What a terrifying condition that Eid morning turned into. I said, what kind of hell did Allah send me to.

^{xxx} So they beat me to force a confession. They said, "If you confess to this, then you'll be lucky, otherwise you'll be in trouble." Later, I didn't confess. ... After drinking a lot of water, they let me urinate. While urinating, they gave me a bucket. There was water in the bucket. When the urine fell into the water, I got an electric shock. ... They beat me. Then left. And after opening the handcuffs, they tied something here. After tying it, they hung me up for a long time. ... And at night, when my hands were tied behind me, I couldn't sleep. When hands were tied behind my back, they would go numb.

^{xxxi} One of the harsh punishments they gave was a different kind of punishment. My eyes were blindfolded. They took me and started interrogating that day, after beating me they started interrogating again. At that moment I understood that today my life is over. After the interrogation, they said, "Urinate here. Urinate right here now." As soon as I started to urinate, I felt like I was lifted about five feet into the air with a jolt, electric shock in the most extreme place.

^{xxxii} Two types of operations are mainly carried out in the RAB forces. The first is regular patrolling and the second is encounter operations. In addition to these, another operation was conducted unofficially... This operation was commonly known in RAB as the Golf Operation.

^{xxxiii} A subject was taken out of the microbus. His eyes and hands were tied, he was wearing shabby clothes, an ordinary-looking person. Then he was taken near the bridge, and Zia sir himself shot him with a pistol. After untying the blindfold and the bindings on his hands, he was thrown over the bridge railing down below. In this work, Lieutenant Colonel Zia was assisted by other members of RAB Intelligence. After shooting the subject and throwing him down, Ziaul Ahsan delivered a speech to us. There he rebuked us harshly and said, 'You are cowards. You are unfit to serve in RAB. You are the disgrace of the army. Learn how this work is done.'

^{xxxiv} On that day, the few subjects who were shot and killed all had their eyes and hands tied with towels/cloth. All of them seemed to be young in age. They all appeared weak, their clothing was shabby and lifeless. It seemed to me that these subjects had been kept detained somewhere for a long time and tortured.

^{xxxv} Sir told me to open the back trunk of the car. I remember it was winter. It was dark — in the dark I reached my hand in, it felt completely cold. I got scared — a snake's body is cold, so I wondered if it was a snake or something. Then I realised it was a person. There was no way to recognise him... It was an uncovered body. The corpse of a man wearing a half-sleeve vest. Seeing this, I was so terrified it felt like my life would jump out of me. After leaving it beside the railway tracks, we got back into the car. After we got in, I saw the others who were there laid the body across the railway line. ... After the body was cut by the train, we left. We stayed in the car the whole time while the train was passing. After we left, to tell the truth, I couldn't eat or drink for five to seven days, and I couldn't sleep either. I just kept thinking — what have I done. What place have I come to. How am I going to deal with this.

^{xxxvi} At that time Sir got down from the car with one target, and alongside him Major Naushad got down from the car with another target. Then Ziaul Sir removed the lungi of his target and made him naked, and from very close range shot the target twice in the head and threw him off the bridge. I was standing a short distance away, watching the body fall from the bridge down into the water. Immediately afterwards I heard the gunshots from

Major Naushad Sir, and saw another target in the same way falling naked into the water below. Then I moved toward the car...

^{xxxvii} When shooting — the pistol would always be held to the head so that the sound would be less. If they fired from a distance, the blood from the target's body would spray and get on the faces of those who were shooting. After killing one after another like this — eleven people — we tied the bodies in cement sacks and threw them into the Buriganga River. At the moment of being killed, some of the detainees, out of fear and terror, would soil themselves. That had to be cleaned by hand. I myself saw Major Naushad Sir using tissues to clean it in the car.

^{xxxviii} From the microbus, two RAB members first brought down a man — his hands and eyes bound — and took him onto the trawler, leading him into the second compartment. In this way, one by one, four people (with hands and eyes bound) were brought onto the trawler. ... During this entire process, my duty was to observe whether there were any people around in the vicinity. ... When Sir gave the signal, a man with hands and eyes bound was brought out from inside the compartment. Four members of the Intelligence Wing surrounded that person. ... Among them, one first tied a cement sack, already hardened, to the body of the bound person; one member placed a cushion against the victim's head and, through the cushion, fired one round from a pistol into the head. After the shot, a third person cut the victim's abdomen along the line of the navel. A fourth person put his hand into the cut in the victim's stomach to confirm how deep the cut was... Before throwing the body, they finally confirmed the depth of the water and then the body was thrown away.

^{xxxix} When the incident was described to the duty officer, he expressed his inability to file a general diary. Later, upon approaching the Officer-in-Charge (OC), he made phone calls to various places. He said that a GD could not be filed against the administration.

^{xl} They didn't take the GD. My wife went three or four times. They told her, 'Go look around, go to the police station, go to DB. We can't take a GD right now.' ... What can I say. My wife's crying could break down walls. The DB IO said, 'Your wife used to come every day and cry for four or five hours straight. Felt like the wall would collapse.' ... At the police station they said, 'Go look around. If RAB or police or DB took him, sometimes—even if they didn't intend to disappear someone—once a GD is filed, they end up making them disappear. You all go look quietly among yourselves.'

^{xli} While taking me to court, they were saying, "We're going to hand you over to the court now. But if you tell the magistrate or judge that you were arrested three months ago, then we'll file five more cases against you. So, you'll say that you were arrested today."

^{xlii} They made it clear: "We know everything about you." I'm with the BNP. I work with Madam. They knew all of that. ... They asked: "You tell us first, what did you used to do for Begum Khaleda Zia?" I said, "I'm with the party. Whatever task I'm assigned, I carry it out." ... They asked: "Which countries were involved in her safety and security? Who supported her?" I said, "I don't know." When I said I didn't know, they responded, "Look, the more you don't cooperate with us, the worse things will get for you." Then they said, "You used to go to the embassies. Gifts used to come from the embassies. She used to give gifts. What were in those gifts?" I replied, "I don't know."

Then I remember—a sudden blow, maybe with a hammer or something—I don't even know exactly—hit me in the knee. My voice got completely stuck in my throat. They hit so hard, I couldn't speak anymore. From the side, a young officer was shouting, "Sir, let's finish him off! Let's do it now, right here!" The other one said, "No, he'll talk. How long will he stay quiet?" And that was the end of that day there. ...

Two or three days later, they suddenly took me again. Once there, they started again: "So, we had this conversation the other day. Are you ready to talk now?" I said, "I don't know anything." Then they said, "Tell us the account details of Tarique Rahman—where does he keep his money?" I replied, "Brother, I don't know. I simply don't know." Then they asked, "Where did Madam Zia put her money? Where does she keep it?" I said, "I don't know." Then again—they hit me twice on my kneecaps. After that, they left me there. ... Their main line of questioning boiled down to two things: Where are Begum Khaleda Zia's accounts? Where are Tarique Rahman's accounts? And do any foreign countries support Begum Khaleda Zia and Tarique Rahman? If so, which ones? These were the things they wanted to know.

^{xliii} They laid me flat on my back. Then they inserted bamboo rods between my arms and legs. After that, four people sat on my limbs. They covered my face with a cloth and poured water over it from above. I had read about this in some books: this is called waterboarding. I couldn't bear the torture. I felt like I would die any second.

that I would stop breathing. I think they were checking whether my heart would stop. They kept at it for two and a half to three minutes.

They kept asking, “Say it: are you with Jamaat? Are you with Shibir? What do you do?” I said, “Look, I used to be with Chhatra Shibir, but I’m not anymore. I left it a long time ago. Since 2014, I’ve been out of politics. After my father and brother passed away, I’ve just been trying to study and get a job.” These were the kinds of questions they asked—“Why do you pray Fajr in congregation? Why don’t you have any relationship with women?” They asked these things in between bouts of waterboarding. They’d stop, ask, and resume. I think after about two minutes, I lost consciousness. The last thing I remember hearing was a curse: “You child of a Razakar.” After that, I blacked out.

... During interrogation, they asked me why I didn’t have a girlfriend. At that time, I had a slightly long beard – “Why do you keep your beard long? Why do you wear your pants above your ankles?” “Why did your brother join Jamaat-e-Islami?” They kept throwing these questions at me, and in between, they hurled abuse. I was just crying and saying, “Sir, I’m not lying about anything. If you don’t believe me, go to my area and ask. I’m telling the truth. I used to be with Shibir, but I’m not anymore, sir. My brother was with Jamaat-Shibir; he’s dead now. No one else in my family is directly involved with Jamaat-Shibir.” Then they said, “No, even your father was with Jamaat.” I said, “No, my father was never in Jamaat. He was a devout Muslim; he practiced his religion. My family is religious, but they don’t belong to Jamaat. I was with Shibir, and my brother was in Jamaat-Shibir.”

... They focused on two more things. A group of seven or eight of us had formed a team to help the Rohingya. That’s all. They asked: Why did we go? Why did we help them? And then came questions about India and Pakistan. They asked, “Do you like India? Between Bangladesh, India, and Pakistan—which one do you like? Do you like Bangladesh’s independence?” Then they asked, “You went to help the Rohingya; —what are your intentions? Do you want to keep them in this country or send them back? Do you want to turn the Rohingya into militants like Jamaat-Shibir? What are your goals?” I said, “Look, I have no such thoughts. We just saw their suffering, formed a team, collected money, and helped. We had no plan to convert them or anything like that.” These are the things they focused on the most – what position I held in Jamaat-Shibir, and what my role was.

^{xliv} Many distant relatives used to spread rumours before that the girl had become a militant. My father had to tolerate a lot. But now the situation has changed, and they themselves voluntarily want to see me, want to talk to me. They repeatedly request me to come home. Now the situation has changed..

^{xliv} RAB-10 filed a case on Monday against 29 individuals, including the arrest of two. ... It has been alleged that they carried out anti-government propaganda through Facebook and other social media platforms.

^{xlvi} According to family members, on October 28, Jules Verne was picked up from a launch named ‘PS Turn’ by individuals identifying themselves as members of the administration. Nine days after his disappearance, he was shown as arrested on Tuesday in a Digital Security Act case at Mirpur Police Station.

^{xlvi} They kept saying to me the entire way, 'If you act up or don't give the 164, then we'll bring your wife. We'll beat you as we please. ... There are no rules here, and no one will be able to do anything.'

^{xlvi} Four months later they took me, blindfolded me, and said, 'Do you want to get out of here, or do you want your life to end like this?' I said, 'Of course I want to get out of here.' Then they said, 'Alright, then whatever we tell you, you will say that in court in front of the magistrate. ... If you say it, you will get out of here. And if you don't, then we'll kill you in a crossfire here, you will die.'

^{xlvi} They wrote a statement on a piece of paper and said, “This is how you will confess. And if you don’t, we won’t let you live. If you don’t give the confession, you will be killed.” ... I didn’t want to give it the first time. The magistrate called and said, “Your accused isn’t giving the confession properly.” Then they took me outside. After taking me outside, they threatened me. ... I cried and begged the magistrate, “Sir, please let me go to my brother. My heart, my soul is crying for my little brothers. I’m crying for my mother. Please let me go to my mother.” I pleaded like this

^{li} They made me write various things, made me memorize them, and said, "You will say these to the magistrate. Otherwise, we will bring you on remand as many times as we want.

^{li} In the last four days they said, "We're giving you four or five days, you will memorize this... you will say exactly these things... if you don't say them, we'll file five to seven cases against you, and if you do say them, we'll let you go with just a small case.

^{lii} They made me rehearse the format all night beforehand, "You will say this and this." In the morning, they made me rehearse again, "You will go to court, whatever they ask, you will say exactly this to the magistrate." ... I told the magistrate, "Sir, I want to speak with you privately..." When I told the magistrate, "Sir, I didn't do these things. They beat me and forced me to say all this," the magistrate said, "Alright, I'll look into it." But still, he wrote it down against me. Because they had kept me disappeared all this time, why didn't they produce me before the magistrate on any other day? [But in reality] they only brought me to court on the day when the magistrate was someone of their choice.

^{liii} At that time the judge said, "Do you have any lawyer?" They had taken us there directly while we were in a disappeared state. How could we arrange a lawyer? I said, "No lawyer." ... So, the judge granted four days of remand.

^{liv} In court, the magistrate asked us, "You don't have a lawyer, do you have anything to say?" Then we said, "Sir, we do have something to say. ... How can this remand happen; we weren't even here." When we were describing the entire disappearance incident, the magistrate himself was surprised. He then said, "Alright, okay." He said, "They are saying they were kept disappeared, but you are saying you arrested them the day before yesterday, then what will you answer now?" So, then the one who had requested our remand, a police commissioner from Chattogram, said, "They are trained. If they weren't trained, how could they speak like this?" Because he said, "If they were disappeared, then why are their moustaches trimmed? Why are they wearing clean clothes?" But the day before showing us to the media, they trimmed our moustaches and dressed us in clean clothes and brought us. ... Later the magistrate granted us three days of remand and said, "According to the High Court's instructions, the remand must be completed without any form of torture or physical abuse.

^{lv} I said, "Sir, I have many things to say to you. Please ask them [meaning the police] to leave the room." Mahmudul Hasan Sir said, "They will not leave. Say whatever you have to say here." I said, "Sir, they kept me disappeared. My parents still don't know whether I am alive or dead. ... What is written here, I was forced to memorize. Sir, I don't know anything about this." Mahmudul Hasan Sir deleted a lot of the text on the computer by typing. There was more written before. "Look, I've cut a lot of it, I can't cut anymore. Sign what's here." I said, "Sir, I need to speak with you. Sir, I have exams coming up. Sir, please ask them to leave." I couldn't get him to cooperate with me in any way. Later, when I went to read what the magistrate had written, he said to me, "You don't own so much land that I'll write everything for you. I'm telling you to sign, so sign." ... He didn't give me any chance. No time was given.

^{lvi} I gave the 164 statement, but they beat me into giving the 164... my hands were tied, both of my hands were tied. ... The magistrate was asking me questions and writing. ... At one point he asked, "Did you have a library at your house?" I said, "There were books at my house, there was a library." "So did you and your friends hang out there?" I said, "Sometimes they would come, we would chat..." This is what I said. But when he wrote it down, in his own handwriting, he wrote that I was involved in jihadi activities... I never told him that... he wrote whatever he wanted. ... When the RAB personnel brought me into the 164 room, my eyes were blindfolded. I didn't even know it was the 164 room. Someone from RAB told me, "Say exactly what we taught you. If you don't, once you're taken out of here, you will never see life again."

^{lvii} They took me before the magistrate... so I told him, "They brought me like this and that from Sadarghat. They kept me confined here and beat me, tortured me all these days. I don't know how things are at my house. They don't know how I am..." Then he said, "What can I do, brother? Your name is in the FIR. Now what can I do? Since there's a case, you have to be remanded." So I said, "I was with them all this time." "Where were you?" I said, "These RAB men brought me." "You were with the RAB? You were at the RAB office?" I said, "Yes." "What can I do now? It's the rule, you must be remanded." So, he gave a three-day remand again.

^{lviii} Through their respective Facebook IDs ... created, stored, and circulated obscene and distorted images in super animation format of the Father of the Nation Bangabandhu Sheikh Mujibur Rahman, the Honourable Prime Minister Sheikh Hasina, the Honourable ICT Advisor Mr. Sajeeb Wazed Joy, and other ministers ... spread defamatory, offensive, misleading, and false rumours about the Awami League and like-minded political parties ... carried out subversive activities to overthrow the government by exploiting issues like the Hefazat-e-Islam movement and student protests, such as the anti-quota movement and the Safe Roads movement.

^{lix} In order to deliberately divert the peaceful "Safe Roads Movement" and destabilize the country's law and order situation ... false, untrue, fabricated, and provocative writings and videos are being uploaded and posted from Facebook IDs...

^{lx} By publishing distorted personal images of the Honourable Prime Minister and other ministers on Facebook and other social media platforms, various kinds of slander and misleading posts are being spread against the state and the government ... some cyber criminals are attempting to create negative perceptions among the public about national institutions including the judiciary, the army, and the police...

^{lxi} By publishing distorted personal images of the Honourable Prime Minister and other ministers on Facebook and other social media platforms, various kinds of slander and misleading posts are being spread against the state and the government ... some cyber criminals are attempting to create negative perceptions among the public about all national institutions including the judiciary, the army, and the police...

^{lxii} By publishing distorted personal photos of the Honourable Prime Minister and other ministers on Facebook and other social media platforms, various forms of slander and misleading posts are being spread against the state and the government ... some cyber criminals are attempting to create negative perceptions among the public regarding the judiciary, the army, the police, and all other national institutions...

^{lxiii} When the accused was asked whether he posted provocative and false content on Facebook against the Honourable Prime Minister, various ministers, and the government, he stated that he spreads various forms of slander and misleading posts against the state and government on Facebook with the intention of carrying out subversive activities ... he admitted that some cyber criminals, including himself, attempt to create negative perceptions among the public regarding the judiciary, the army, the police, and all other national institutions.

^{lxiv} The accused ... when asked whether he posts provocative and false content on Facebook against the Honourable Prime Minister, various ministers, and the government, stated that he spreads various forms of slander and misleading posts against the state and the government on Facebook with the intention of carrying out subversive activities ... he continues to create negative perceptions among the public about the judiciary, the army, the police, and all other national institutions along with some cyber criminals.

^{lxv} From the accused's Facebook ID ... he used to engage in planning, training, and attempts to collect weapons with the intention of conspiring against the Government of Bangladesh, committing murder, creating panic and fear among the public, and endangering public safety. On the mobile phone used by him, there are various links related to conspiracies against the Government of Bangladesh ... through online-based campaigns, he spreads copies of various posts containing offensive remarks about the Honourable Prime Minister and against the existing democratic system of the country.

^{lxvi} While on patrol, based on secret information... we conducted a search operation on suspected passengers on the platform, on the passageway adjacent to the eastern side of the ticket counter.

^{lxvii} While the patrol team was conducting patrol duty with a government vehicle in the Sagorika area of Chattogram Metropolitan at 05:25 hours on 08/12/2016, I received secret information that...

^{lxviii} While stationed on the road in front of Hotel Niribili at Rajendrapur intersection under Joydebpur Police Station, having gone out to conduct a terrorist arrest and special operation in the Joydebpur Police Station area, I received secret information that...

^{lxix} While on patrol duty in the Madanpur Bus Stand area, on 21/08/2017 at night at approximately 19:50 hours, based on secret information, I came to know that...

^{lxx} Accordingly, I am filing this First Information Report stating that today, 01/08/2017 at 16:15 hours, I received secret information that...

^{lxxi} While conducting a special operation in the Nandigram Police Station area, he learned based on secret information that...

^{lxxii} While stationed in Gulshan and Uttara divisions to conduct regular operations in the Dhaka Metropolitan area, it was learned through secret information that...

^{lxxiii} Sensing the presence of RAB while attempting to flee... was arrested with the help of accompanying officer force...

^{lxxiv} Upon seeing 10/11 individuals in secret discussion, as we advanced, sensing the presence of police, they attempted to flee by running...

^{lxxv} As soon as we arrived at the described location, we signalled to stop them; as they abandoned the motorcycle and attempted to flee by running, one individual was detained with the assistance of officers and force.

^{lxxvi} Sensing the presence of RAB and attempting to flee by running, I, along with the accompanying force, was able to apprehend 02 individuals.

^{lxxvii} Sensing the presence of RAB, those present there tried to flee in different directions, and with the assistance of accompanying officer and force, 01 individual was apprehended.

^{lxxviii} The arrested accused during interrogation stated that they are active members of the banned terrorist militant organisation JMB.

^{lxxix} During interrogation, the arrested accused admitted that they are active members of the banned militant organisation Harkat-ul-Jihad-al-Islami.

^{lxxx} In the interrogation, the arrested accused revealed the mentioned names and addresses and admitted that they are members of the banned organisation Neo-JMB.

^{lxxxi} During interrogation, the detained individual disclosed the above-mentioned name and address and admitted to being a top Shura member of Neo-JMB's southern region and one of India's most wanted

^{lxxxii} During interrogation, the arrested accused stated that they are members of the banned militant organisation Jama'atul Mujahideen Bangladesh (JMB)'s 'Ehsar' and military wing.

^{lxxxiii} ...in interrogation, he stated that he and the absconding accused are members of the armed group of the banned militant organisation Ansar al-Islam.

^{lxxxiv} Inside the black-coloured bag in his possession, there were 47 (forty-seven) different Jihadi books, including: Training Manual JMB 101 (F) – 01 (one) copy, "To the Flag Bearers of Tawheed" – 01 (one) copy, "Third World War and the Dajjal" – 01 (one) copy, "On the Path of the Land of Jihad" (2 copies), "International Jihad and Its Misconceptions Resolved" – 01 (one) copy, "Defending the Lands of Muslims" – 01 (one) copy, "At-Tahreed" (handwritten by the arrested accused) – 01 (one) copy, "Social Terror and Islam" – 01 (one) copy, "The Ruling on Abandoning Prayer" – 01 (one) copy, "Seventy Issues on Fasting" – 01 (one) copy, "Hisnul Muslim" – 01 (one) copy, "Noorani Qaida" – 01 (one) copy, "Islam's Demands from Muslim Women" – 01 (one) copy, "Islamic Solutions" – 01 (one) copy, "The Reality of Islam" – 01 (one) copy, "Aggression of Multinational Corporations in India and the Capitulation of Indian Capitalism" – 01 (one) copy, "Satanic Attacks Through the Ages" – 01 (one) copy, "The Calamity of the Tongue" – 01 (one) copy, "Tawheed Al-A'mali" – 01 (one) copy, "Advice to Taqleed Scholars" – 01 (one) copy, "Mirror of Quran and Sunnah" – 01 (one) copy, "Aqidah" – 01 (one) copy, "The Jihad of the Messenger (SAW)" – 01 (one) copy, "Jihad" – 01 (one) copy, "Outline of the Communist Movement in Bangladesh" – 01 (one) copy, "Rasael o Masael" – 01 (one) copy, "The True Nature of Democracy" – 01 (one) copy, "Tawheed and Shirk, Sunnah and Bid'ah" – 01 (one) copy, "There Is No Dispute in Islam, This Too Is Tawheed, Let Us All Celebrate Eid on the Same Day" – 01 (one) copy, "Is It Possible to Implement Islamic Rulings?" – 01 (one) copy, "Democracy Is a Religion" – 01 (one) copy, "Blood-Slick Hobbyist Travelers" – 01 (one) copy, "The Daughter of the Taliban" (02 copies), "Regarding: Tabligh Jamaat and Allah Ta'ala in the Light of the Quran" – 01 (one) copy, "Three Proofs of Purification" – 01 (one) copy, "Political Organisational Review" – 01 (one) copy, "Life Stories of the Tabi'een Vol. 1" – 01 (one) copy, "Bride of Africa" – 01 (one) copy, "Faith-Lit Tales" – 01 (one) copy, "Horrific Consequences of Slanders and Backbiters and Rights of Neighbours" – 01 (one) copy, "Tawheed, Prophethood and Afterlife" – 01 (one) copy, "Death Will Surely Come One Day" – 01 (one) copy, "The Right Path to Salvation for the Ummah of Muhammad" – 01 (one) copy, "Signs of the Day of Judgment and the Appearance of Dajjal" – 01 (one) copy, "The Procession of Bloodshed of the Elders" – 01 (one) copy.

^{lxxxv} Thereafter, as indicated by the accused, from their custody ... 14 (fourteen) jihadi books were recovered. Among them: i) "Palestinian Memories" – Abdus Sattar, ii) "Ayni Tuhfa Salate Mustafa, Volume II" – Professor Mawlana Hafiz Shaikh Aynul Bari Aliyari, iii) "Confiscated History" – Munshi Muhammad Meherullah Research Academy, iv) "Standard of Truth" – Md. Nazmul Islam, v) "Not the Current Politics, Only Jihad is Desired" – Mawlana Muhammad Abdur Rahim (R.A.), vi) "Blueprint for National Destruction" – Su-A Na Hossain, vii) "Come, Let's Learn Tarkib" – Mawlana Kh M Tawhidul Islam Dubazaili, viii) "Ram Misunderstood and Saint Beware" – Mawlana Abu Taher Buddhimani, ix) "In the Dock of History: Hazrat Mu'awiya (R.A.)" – Justice Allama Taqi Usmani, x) "Characteristics of Islamic Movement Workers" – Muhammad Hossamuddin

Chowdhury (2 copies), xi) "Introduction to Harkat-ul-Jihad al-Islami Bangladesh" (2 copies), xii) "The Call of Jihad"

^{lxxxvi} A set of jihadi books stored in a black-coloured bag: (i) After Bringing Faith, the First Obligation is to Defend Muslim Lands – Mawlana Muhammad Ishaq Khan (ii) The Necessity and Rules of Declaring Someone a Kafir – Muhammad Iqbal bin Fakhrul (iii) Three Books in Search of Divine Love: The Path of Wilayah, The Harm and Remedy of Illicit Gazes and Relationships, Four Practices to Become a Saint – Hazrat Mawlana Shah Hakim Muhammad Akhtar Saheb (iv) Is the Presence of a Universal Caliph or Global Leader a Prerequisite for Jihad, or Can an Ameer Be Appointed Locally to Conduct Jihad?, Jihad Will Continue Until the Day of Judgment, Have Muslims Forgotten Their History?, Why is the Sword Not Unsheathed in the Battlefield of Jihad? – Abu Abdullah

^{lxxxvii} Inside a drawer were found 7 (seven) jihadi booklets. The covers of these booklets respectively contained the following titles: (a) Al-Qaeda of Al-Zawahiri, Al-Harari, and An-Nazari, (b) Allah's Law vs Man-made Law, (c) What I Am Telling You—Soon You Will Remember It, (d) Either the Islamic State or a Great Deluge, (e) Declaration of Caliphate and Bangladesh, (f) Allies of Al-Qaeda in the Levant, (g) Make a Bomb in Your Mother's Kitchen.

^{lxxxviii} One jihadi book titled "Operation Mazar-e-Sharif" and eight jihadi booklets respectively titled: To the Bearers of the Banner of Tawheed, Caution, Secrecy and Deception: A Balanced Approach to Discretion, Islamic Rulings on Fidai Operations, Kufr Is a Grave Crime and a Kafir Is Never Innocent, Final Preparations for Hijrah and Jihad, Strategic Overextension in Guerrilla Warfare, Guidelines on the Manhaj (Ideological Methodology), and On Taghut (Tyrants).

^{lxxxix} During interrogation, the arrested individuals stated that they were active members of the banned militant organisation Jama'atul Mujahideen Bangladesh (JMB) and part of the JMB's Ghair-e-Ehsar (outer circle). They further stated that they had travelled from Rajshahi to Sirajganj by the Dhumketu train for organisational purposes.

^{xc} During interrogation, the accused disclosed the aforementioned names and addresses and stated that they were all active members of the banned organisation Harkat-ul-Jihad al-Islami. They conspired to commit heinous crimes, including conducting terrorist activities and using the seized arms and ammunition to threaten the sovereignty and public safety of Bangladesh and instil fear among the public.

^{xci} They further stated that they had gathered at the said location to conduct consultations with the intent of executing plans for anti-government and anti-state destructive activities. Interrogation revealed that Accused No. 1 is a radical religious and spiritual leader of the neo-JMB. He previously received arms and military training from Pakistan. He currently serves as a jihadist instructor, recruiter, and weapons-and-explosives trainer for neo-JMB.

^{xcii} Interrogation revealed that around September 2002, he migrated and began operating as a key figure for the banned militant organisations JMB and neo-JMB in Bangladesh as well as in India's Nadia, Birbhum, and Bardhaman districts.

^{xciii} During interrogation, the arrested individuals disclosed the names and addresses listed under serials 1 and 2 and stated that they are members of the military wing and the 'Ehsar' of the banned militant organisation Jama'atul Mujahideen Bangladesh (JMB). They admitted to convening secretly for the purpose of organizing JMB's activities, conducting recruitment and training camps, coordinating regional operations, and planning and preparing acts of sabotage.

^{xciv} He, as a member of a banned militant organisation, conspired against the security of the state and acted against the safety of the democratic public. Along with other fugitive and unidentified accomplices, he gathered in the Tongi area to organize meetings and conduct proselytizing activities for their organisation. The arrested accused, along with the absconding individuals, have been involved in spreading religious extremism and planning sabotage. They conspired to recruit for the banned organisation named Ansar al-Islam and to carry out suicide attacks and other acts of militant violence as part of their organisational agenda.

^{xcv} The victim's father said: [After the disappearance, when I went to the police station] later I saw him from a distance, spoke, and went closer. He recognized me, just smiled, didn't say anything else. I asked, "Where did

your nails go? Show me your hands, your feet.” The nails on both feet were gone. The thumbnails on both hands were also gone. It wasn’t like this before.

I asked, “What happened?” He couldn’t say anything. He only said, “Can’t be told.” I don’t quite understand, but I saw with my own eyes—there were no nails, not even on both feet.

I asked again, “Sir, from where did you bring my son?” They said, “He was in RAB custody, he’s been handed over from there.” I said, “My son has been missing for two years. After all this time, you’re just bringing him back? Where was he before?” They said, “There was a case against your son.” I said, “If there was a case, why are you bringing him now after so long?”

They said, “You don’t need to make such a fuss.” I said, “Brother, if you had spoken kindly, I’m already a broken man. My wife is dead; I had lost my son.” If I had gotten him earlier, I could have arranged bail. I don’t understand anything. They said, “Go to a lawyer, we’ll explain everything.” I said, “What’s the fault? I only filed a complaint that my son was missing. He was taken away by people identifying as law enforcement.” I found him after two years. They said, when you see the documents, you’ll understand the status of the case.

Someone took me to the lawyer. He pulled the file. It turned out many things were written in the case. Then the judge said, “You’ll need to apply for bail.” I didn’t know. My son was disappeared for two years and two months. After that, they filed a case. What the fault is, I don’t know. The lawyer said, “We’ll appear and request bail.” I’m a poor man, it’s hard to bear the expenses. One paper took one and a half years to process.

In the meantime, he was taken to jail twice—once to Kashimpur, another time to Keraniganj. The judge said, after verifying, you’ll have to speak, once a month for visitation. To visit, register your name, give a photo, give ID. I said, brother, please make some arrangement. The boy is an orphan; his mother is dead. He used to study, now everything is lost. ... [After returning from disappearance] he would sit, suddenly get angry. If anyone asked him something, he would slap them. ... Now he just laughs to himself, foams at the mouth when spoken to, can’t speak properly. Not like before. I took him to a doctor, they prescribed medicine, but he doesn’t take it. Says his body shakes, he falls asleep. He throws the medicine away. The doctor said, the medicine must be taken regularly.

This is the story. I found my son; that’s the main thing. Everyone says, “What’s happened has happened, now just eat and survive.” But I know how many things I had to swallow to reach this point. Now I don’t even go to the lawyer anymore, because I don’t have money.

The victim (son) said: I used to stay in the cell, when I went to the washroom—that’s when they beat me, with sticks. I used to cry a lot; I was in pain. I used to feel like going home. But they used to say, “It’s daytime, lie down. It’s night, sleep. Don’t speak. Don’t make noise.” ... They were law enforcement, but in that place, there were no friends. I was alone. An officer would come, ask my name, what food I wanted, tell me to speak if I felt unwell. Said, “Don’t cry. If you’re in pain, tell us.” ... Now I don’t feel pain, but back then it hurt a lot inside. When I came home, I felt really happy. Felt like I had gotten the whole world.

^{xv} Prisoners must never be treated normally, the way normal people are treated. They must be deprived of everything, of all rights, so that they can feel the suffering.

^{xvii} It was probably the middle of the night. I made ablution somehow and then stood to recite the Qur'an. Since I regularly read the Qur'an, my recitation was very beautiful. I was reciting and crying intensely at the same time. The crying was so severe that I couldn’t speak anymore. ... The soldier who was on duty nearby later said to me, “Brother, I’m forced to do this job. I’m a soldier in the army. I can’t tolerate this kind of injustice. I don’t even want to be posted here.” ...

I kept reciting and crying. Maybe the soldier guarding me was crying too. He was saying things like, “Are these people terrorists? Is he a terrorist? Could he possibly be a terrorist? Could he kill anyone? What are they doing to him? What are the officers doing? What have the sirs started here?” He was saying these things to himself. It was late at night, no one else around—he was just talking to himself. I could faintly hear him. ... A few days later, while he was on duty again, he told me, “Look, I firmly believe you people are not terrorists or anything like that. The sirs brought you in, and they’re doing injustice.” I didn’t say anything in response. ...

Then came the day they brought us out before the media. After the media appearance, they put us back into the cells. That same soldier brother was on duty. He was thrilled to see us. He couldn’t come hug us or anything, but he said, “Brother, I went off duty from this post around 10 p.m. at night. I was afraid they might kill you in a

crossfire that night. Because there was a meeting that night about you all: about who would be crossfired, who would be charged with a case. Decisions were made about everyone. When I came back around 3 a.m., I saw you were still here. Then I realized they hadn't decided to crossfire you. That's why I was so happy. Because after going off duty at 10, I didn't sleep at all. I just sat in prayer the whole time, crying, hoping you wouldn't be killed in a crossfire." ...

I said, "Brother, since you've shown such sincerity, tell me something—you see with your own eyes that they're staging a whole drama with these weapons and such. What benefit do they get from all this? They're supposed to maintain law and order in the country. How does this help with that? What do they gain? Keeping us locked up, feeding us, it's costing more money." He replied, "If a big 'militant' is caught, the sirs get promoted very quickly. You all will be gone, and the sir will get promoted. That's the benefit." I said, "So for one promotion, my whole life was destroyed like this?" He looked like he was about to cry. He turned his face away.

^{xcviii} Ah, Apa, you're in a lot of pain. Let me loosen it a little for you, you take some rest. When you hear the sound of Sir coming, you stand up, I will handcuff you again.

^{xcix} If she has to be beaten, then transfer me from here, I won't do it.

^c We went to the border area. At that time, two Bangladeshi citizens were with us in custody. From Dhaka all the way, we took them with their hands tied and black hoods over their heads. At around two or three in the night we reached the Indian border. When we reached the border area, we exchanged the two detainees with the Indians. From India, we received two people in custody. ... The accused who were handed over to us also had their hands tied and were wearing black hoods.

We took those accused and, on the way back from the border, stopped the car and first got down with one accused. They made me and another person stand fifty yards away for security. At that time I heard the sound of a gunshot. ... When I came closer, I saw the dead body of the accused lying there. Then we got into the car and, after travelling ten to fifteen kilometres... they got down from the car with the other accused, and again, just like before, made me and another person stand fifty yards away from the car for security. At that time I heard another gunshot... He had been shot and killed.

^{ci} In the middle of the night, around 1:30 a.m., [the Indian officers] first blindfolded me. I was already handcuffed. They got ready with their weapons... Then after about 10 minutes, they took me out of the vehicle. Once I got out, I realized they were handing me over. They told me, "Sit down, you sit." They had me sit and passed me under it

^{cii} They kept me in that place for three months. After that period, one day they took me back to the place where they had initially kept me. There, they said, "There are many big intelligence agencies. They will take you from us and kill you. You've been with us this whole time — for your own good, we want to keep you outside the country for a few days." ... Later they said, "Your mother is crying a lot. There's been a lot of chaos because of this. So, you can't stay in the country — we will send you abroad." ... "We will send you to India." The very next day they got me ready and took me away. ... They took me in a HiAce vehicle, blindfolded. ...

At the border, two men arrived on a motorcycle. They said, "We'll get you across. After that, you'll stay there for some time, and then we'll bring you back." ... When they handed me over to someone else and my blindfold was removed, I could see again. I saw the people who had brought me there. ... Then they took me across a river. After crossing the river, there was a barbed wire fence. They took me across that fence. ...

They had told me, "Wherever this bus stops, you get off there. Someone will come to pick you up. People will come; they'll give you some work. You'll stay for a few days." But when I got off the bus, I saw that no one came. It got late into the night. ... [Back in Bangladesh] they had given me some money — three thousand Bangladeshi Taka. ... After arriving in India, they took that 3000 from me. Later they gave me 1000 — Indian 1000. ...

^{ciii} I used to have severe headaches. My body had become extremely weak. That's when I went on a hunger strike. Right there, I did a 24-hour hunger strike. Then an officer-level person on duty at the secret detention site said, "Why are you trying to kill yourself? Do you know how many years Nelson Mandela served in jail?" They were the same ones who would lecture me. "Prophet Yusuf spent many years in prison. He endured," they said. They told me, "You'll come out of here and live a long life. You're just hurting yourself for no reason, brother." They tried to convince me to eat. You know, the thing is, both the positive and negative sides have to be told. They just wanted the breath to stay in the body. They didn't want death to happen.

Later, when I went on hunger strike, I asked to speak to the senior officers. Then one senior officer — he was the first to interrogate me and also the last — seemed to have a little bit, maybe one percent, of human feeling. Everyone else was absolutely cruel, no doubt. So, I said, “Sir, please don’t torture me anymore. Just give me a crossfire. You’re just keeping me here for no reason.” He replied, “No, you have to stay alive.” They were focused mostly on getting names. “Just give us a few names and you can go. Tell us names.” I said, “I don’t know any names. I don’t know anyone linked to militancy. How would I know names?” The senior officer told me, “Okay, go. Within a week there will be an arrangement.” They did make an arrangement, but instead they deported me to India. That is what hurt me the most — that they sent me to India.

They put me in a car and made me wear a thick head covering that made it hard to breathe normally. When they took me out of the car, I had no energy left in my body. It was around two in the morning. From there they made me walk a long way. I had to lean on two people to stay upright. Then they handed me over to two others. They walked me a bit and put me in another vehicle. Later, they handed me over to the police station. Through various means I tried to find out who had sent me there. They said, “You were handed over by the STF.” The Special Task Force, an intelligence agency in West Bengal. I didn’t even know what STF was before.

I thought, maybe I can find a place to sleep. So, I started walking. I stayed on the street for about four days. ... There was no food or drink. With the little money they gave, I just bought water to drink. I stayed alive drinking water; I didn’t buy food. If I bought food, the money would run out, right? ... For four days, I slept at a bus stand. Later, some local people handed me over to the police. ... At the police station, they interrogated me. Asked, “Why did you come here?” I told them everything: “RAB caught me like this. They sent me to this place. They had arrested me saying I was a jihadi.” They didn’t believe any of it. They charged me under an “unpassport” case. Then they put me in jail under that case. ...

They made me sleep between two toilets — I mean, between the dirty parts of the toilet. ... Sometimes upstairs, over the pipe, in a broken toilet, where dirty water would splash on my body — they’d make me sleep there. As for food — sometimes they gave it, sometimes they didn’t. They made us work, but even after working, we often didn’t get food. ...

Yes, people came from Delhi for interrogation. They said, “We’ve come from Delhi headquarters.” ... They asked, “Why did you release anti-India videos?” I said, “I don’t know, and I didn’t release anything.” ... They spoke in Bangla. ... They asked why I posted anti-India videos — especially those against Kashmir policy. I mean, there’s a bit of oppression against Muslims, right? Some support was expressed for that. ... They kept questioning me about India. They said, “Now you know your mistake, don’t do it again in your life. We’re letting you go this time.” That’s how it was. ... No, they didn’t torture me like that. But the food situation was bad — they didn’t give us food. They made us work, but didn’t give us food.

They filed an “unpassport” case against me. After serving time, I had to wait in jail for my release to be processed through what they called an “RP Serial.” RP means “Released Prisoner,” referring to those who had completed their sentence. There were many people who had to wait up to three months to get that turn. Luckily, the jail superintendent at the time was decent, so I got mine in 29 days. I believe that if, at any time, someone claims there was no proof I was linked to militancy or any group, and no evidence against me, and asks why I was punished without cause, then they will just say, “We didn’t punish him. He came from India, didn’t he?”

^{civ} I heard people speaking in Hindi. ... During inspections, they would make us sit facing the wall with handcuffs on, not letting us move all day. Then I would understand that many people were coming — I could hear the sound of footsteps. The place reeked — urine, faeces, the smell was everywhere. Suddenly, I would get the scent of perfume; many people had arrived. Then the sound of mobile ringtones, phones ringing, notifications going off — I could hear all of that. I could hear many footsteps. And they would keep me wall-facing, but from behind I could sense that many people were watching me. So, during visitation time, I heard Hindi being spoken. ... That they were speaking to each other in Hindi. ... A crowd watching over me. Some of them speaking in English. In Hindi. I clearly heard this. More than once.

^{cv} Six months later, they brought us back to DB. This time, two people had come from America... They didn’t come just to interrogate me; they had brought several others as well... They sat me down in front of those two Americans, and they gave me a form and said, “We’d like you to sign this.” I said, “Can I read it first?” They said, “Do you need a translator?” I replied, “I can speak to you directly.” ...

They handed me the form, and it had my name and other details... It stated that I had the right to legal counsel and that a lawyer could be present during questioning... I said, “My sister is a lawyer... I want her to be present

before you ask me anything.” They said, “We don’t have jurisdiction in Bangladesh, so this is just a document without any legal effect.” ...

I said, “Look, either you acknowledge that this is a meaningless paper, or you bring my sister here—otherwise, I won’t sign it.” They said, “Alright, look at this paper... it’s just a formality... please go ahead and sign.” I said, “So you’re admitting that this is basically meaningless, right?” They said, “Yes, we acknowledge that.” ... Then they asked me, “What do you do?”... “How is your English so good?... What did you study?” I said, “I studied in an international school.” ... At the end, they let me go... and they didn’t ask anything else after that.

^{cv} [Many months later] the DGFI officer just said that there was a foreign guest, and I should speak in English. At that point, I figured they had come from India. So, to test it, I spoke in Hindi. I was doing it just to test them. Then they said, “No, you have to speak in English.”... For a long time, two or three hours, they kept going in circles with the same conversation... After that, they really started scaring me. That day, toward the end, they told me, “What you’ve given us won’t work.” I said, “I don’t know anything.” Then they said, “If you really can’t tell us anything, then there’s no point in keeping you alive. You have to lay a golden egg.” That’s exactly what they said... The next day, they were going to take me again – just to hear if I would give them the golden egg. The next day, I wrote only one thing: “I am extremely sorry not to be able to give golden egg.” That’s the only line I wrote. I was in a bad mood too, thinking what is this nonsense they’re doing. Anyway, the next day, they didn’t interrogate me. They just took me there and brought me back – no interrogation.

^{cvi} They took me inside again at the RAB facility, made me sit on the floor, and repeated the same act all over again. He acted as if he was loading a pistol and pulling the trigger, doing it repeatedly, while repeating the same warnings: nothing could be said, I must not reveal who had picked me up, and I must not try to organise anything; if I did, I would be killed “unofficially.”

^{cvi} The RAB members said: “We are sending you to the police station. Tomorrow, many journalists and many people will come to see you, and you will say exactly what we tell you. If you do not say it, then even from inside the jail we will take you out again, put a pistol to your head, and shoot you on the spot.”

^{cix} At the time, I used to run a business selling scarves. During my disappearance, my business collapsed. After that, I spent more than ten lakh taka just dealing with this case — the constant running around and expenses. While I was missing, my father also spent money searching in the place where he eventually found information about me.

^{cx} Thinking I had died, my wife’s family tried to marry her off. One night I dreamt that her wedding was taking place. I was riding a horse, rushing there, and then my wife stood up and left, saying, “My husband is coming.” My family’s life... we suffered terribly. And because of the torture, the bone in my spine was broken.

^{cxi} The situation was such that when I came home from jail, I wasn’t allowed to speak loudly. Our house is right beside the main road. Often, if someone speaks, the sound goes a little outside the house. So, they didn’t allow me to speak loudly. Why? Abba was afraid that if any of my words were heard outside! ... Abba used to say, “You’ve escaped from one thing, let it stay that way.” I used to say, “Abba, someone might kill me, can’t I even cry a little?” He said, “No, there’s plenty of time to cry, Allah will give you time to cry. For now, you can’t even cry. You have to stay without crying.”

Seeing Abba, my wife too would often behave harshly with me. If a topic came up and I wanted to say: “They will unlawfully keep occupying our lands, and you all will say nothing, is that it? Can’t I claim my rights? Just because they might kill me? Disappear me—murder me? Well, that’s exactly what they’re trying to do. So, for this reason, can’t I even go stand near the land?” Then my wife would call my brother. Saying, “Please explain to Bhai, so he doesn’t talk about these things. Whatever happens with the land will happen. If land is in fate, it will come.”

... [After 5 August] whatever happened or didn’t happen with the government, that’s not really my concern. Whatever is in fate, that’s what will happen. But personally, I now realize that my wife no longer scolds me for speaking!

^{cxii} After the movement, I got bail in five cases. Now there are two cases remaining, and in these two cases—those are the ones where they beat me and took the 164 statement. Now they can’t manage to get bail in these two cases, meaning there’s a lot of trouble. Bail is being denied again and again.

^{cxiii} It was just before the election, you see. So I said, look, I already have two cases ongoing, I’m attending the hearings for those. They said that actually, at this moment, they will definitely file the case.

^{cxiv} I said, “Sir, even if you kill me, I won’t give the 164.” One of them... came and said, “He doesn’t want to give the 164, we’ve tried a lot, he just doesn’t want to.” Then the judge of that very court said, “How is he even standing right now? ... Doesn’t want to give the 164? But he’s standing, he looks fine. You have to cook up something for the 164, no?”

^{cxv} Within RAB, abducting individuals — particularly those with dissenting political views or seen as threats to the government — interrogating and torturing them, and detaining them in secret facilities was regarded as part of the institutional culture. However, these operations were mainly coordinated by the ADG (Operations) and the Directors of RAB Intelligence. ... I had heard that serious directives — including orders to pick people up, disappear them, or have them killed in ‘crossfire’ — came directly from the Prime Minister’s Office, and that some instructions also came from the Security and Military Adviser, Tariq Siddiqi. ... I knew that Barrister Arman was being held in the TFI cell; my predecessor, DG Benazir Ahmed [BP BP 6388000021], informed me of this during the handover, and later ADG (Ops) and Director (Intelligence) Sarwar bin Kashem [BA 6150] also briefed me. ... After learning of the detention, I spoke with the Prime Minister’s Military Adviser, Tariq Siddiqi, who told me to keep him there and said he would revert later, but he never did. ... When I handed over my duties, I informed the next DG RAB, Khurshid Hossain [BP 6491020943], about Arman’s situation. ... During my tenure, I was aware that detainees were being held without trial in the TFI cell, that some were tortured, and that some were killed in crossfire, but I did not conduct any inquiry or take any action regarding these matters.

^{cxvi} The operation was led by Intelligence Director Lieutenant Colonel Ziaul Ahsan, who participated along with his Intelligence Wing team. However, on the night before carrying out this encounter operation, a Golf Operation was conducted under the direction and planning of Lieutenant Colonel Ziaul Ahsan, with the assistance of members of the Intelligence Wing. There, four unidentified persons were first shot, and later their stomachs were cut and cement sacks were tied to them, and they were thrown into the river estuary. I was personally present on that trawler during that golf operation.

^{cxvii} As soon as they gave electric shock to my genitals, I lost consciousness right there. I don’t know how long I was lying down. After a while I started hearing voices in my ear, they were saying, “He’s alive, he’s alive”... After standing me up, they said, “Hang him”... Hung again, beaten again... They said, “Don’t you understand? You wrote about the Pikhana massacre.

^{cxviii} They used to keep me in front of their torture room. So whenever very high volume music played, I would understand that they were beating someone. And the sound of their screams was so intense, actually at that moment I would feel a pressure for defecation... My eyes were continuously blindfolded for two months. Because they kept them tied, my eyes would hurt terribly. It felt like everything would tear apart... Later, when I got out, they had to operate on my eye. I mean, in this eye, the retina ending—this part—it tore.

^{cxix} They hung me with my arms tied out to the sides, almost like being crucified. They had taken away our scarves; I didn’t have a scarf on me. And since I was facing the window, it’s beyond words how many men came just to look. I mean, they were enjoying it. They were saying, “She used to be so modest, now all her modesty is gone.” ... My period date was quite late. But the torture they inflicted made me so sick that my period started immediately. Then I told them, ‘I need a pad’ — they laughed a lot about it.